

The Law of Torts 2018

C. Jamnadas & Co.

NOSHIRVAN H. JHABVALA'S

LAW OF TORTS

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UP-TO-DATE THIRTY SECOND EDITION

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PREFACE TO THE THIRTY SECOND EDITION

We are pleased - and indeed, proud - to present before the student community, the thirty second edition of our extremely popular book on the Law of Torts. This edition has been thoroughly revised and recent case law referred to wherever necessary. Although the Indian law of torts is based mainly on the law of England, in addition to English cases, American cases have also been referred to at relevant places.

Updated questions set at the examinations of the University of Mumbai have been shown in the margin at the relevant places - indicating the importance (or otherwise) of a given topic from the examination angle. A summary of the law of torts has been set out in the Appendix, which, we hope, will be of great help for a quick revision of the subject just before the examinations.

We are quite confident that this edition will receive the same warm and enthusiastic response which the earlier editions have received in the past. Suggestions, if any, are welcome.

THE PUBLISHERS

BOOKS RECOMMENDED FOR

FURTHER READING

SALMOND on Torts

P. H. WINFIELD : A Text Book on the Law of Torts

P. H. WINFIELD : Cases on the Law of Torts

RATANLAL & DHIRAJLAL :The Law of Torts

STREET :The Law of Torts

GLANVILLE WILLIAMS & HEPPLE : Foundations of the Law of Torts

CLERK & LINDSEL : Torts

SCOTT : Casebook on Torts

RAMASWAMY IYER :The Law of Torts

GANDHI: Law of Torts

Chapter 1

GENERAL PRINCIPLES

Questions for this chapter

Define 'tort' 2 marks May 2012, April 2014, April 2015, January 2017, May 2017, June 2018

What is meant by the "pigeon-hole theory"? 2 marks. October 2011.

Write a short note on: Pigeon-hole theory. May 2017.

"Tortious liability arises from the breach of duty primarily fixed by law." Discuss. November 2013.

Write a short note on: Characteristics of a tort. January 2018

Define tort and explain how it differs from a crime. April 2011.

Define tort and explain how it differs from a contract. April 2011.

The following *ten* topics are discussed in this Chapter:

- A. Tort' defined
- B. Nature of the subject: The law of *tort* or the law of *torts*
- C. Wrongs which are *not* torts
- D. Law of torts in India
- E. Characteristics of a tort
- F. Cyber torts
- G. Tort and crime distinguished
- H. Tort and breach of contract distinguished
- I. Felonious torts: Merger of tort in felony
- J. Waiver of tort.

A. 'TORT' DEFINED

Much ink has been spilt in unsuccessful attempts at defining a '*tort*'. It is, therefore, *not* proposed to spill any more here. The term has so far defied all attempts at precise or scientific definition, the reasons for this being mostly historical in nature.

The *French* word '*tort*' means '*wrong*'. The derivation of the word may also be traced to the *Latin* term '*tortum*' (to twist). Thus, 'tort' implies conduct that is twisted or wrongful. The word also corresponds to the *Roman law* term *delict* and the *Spanish* term, *delittos*. A *tort* is the breach of some duty (independent of any contract) which gives rise to a civil cause of action and for which the civil courts award compensation.

The first reported case where the court used the word 'tort' is an old (1597) English case, *Boulton v. Hardy* (1597, Cro. Eliz. 547).

According to *Ratanlal and Dhirajlal*, the leading Indian authors on the Law of Torts, a tort may be defined as "a civil wrong independent of contract, for which the appropriate remedy is an action for damages".

Salmond, the leading English authority on the subject, defines a *tort* as a "a civil wrong for which the remedy is a Common Law action for unliquidated damages, and which is *not exclusively* the breach of a contract or the breach of a trust or other merely equitable obligation." This definition has received judicial approval in several English cases, and is adopted in S. 2 of the Limitation Act, 1963, which defines a 'tort' as "a civil wrong which is *not exclusively* the breach of a contract or the breach of a trust".

According to *Winfield*, "tortious liability arises from the breach of a duty fixed by law; this duty is towards persons generally, and its breach is redressable by an action for unliquidated

damages.”

The Supreme Court of India, in *Jay Laxmi Salt Works v. State of Gujarat* [JT (1994) 3 S.C. 492] has quoted with approval the definitions of the term given by *Salmond and Winfield* above.

Keeton and Keeton (in a book entitled *Cases & Materials on the Law of Torts*) define the term as follows: ‘Tort law is a body of law concerned with granting or denying claims of individuals or impersonal legal entities against each other for award of damages or other forms of legal relief.’”

Burdick defines a tort as “an act or omission which unlawfully violates a person’s right created by law and for which the appropriate remedy is a common law action for damages by the injured person.”

The definition of the term given by *Clerk and Lindsell* seems to be based on that of *Salmond*. Tort is defined by these authors as “a wrong, independent of contract, for which the appropriate remedy is a Common Law action”.

In the words of *Lord Denning*, “The province of tort is to allocate responsibility for injurious conduct.”

Many more definitions of the term can be given - but that may only land the reader in a maze of definitions, and definitions ought *not* to obstruct one’s true understanding of the subject. It will be seen that in all these definitions, the underlying reference is to an act or omission (not within the sphere of contract or trust) which prejudicially affects another person with respect to a legal right of that other person. Further, the appropriate remedy for such an act or omission is a *suit for damages*. The person who commits the wrong is called the *tort-feasor* and his wrongful act is termed a *tortuous act* or a *tort*.

A review of all the above definitions of the term leads to the *conclusion* that a *really satisfactory definition of the word “tort”* has yet to be found. The numerous attempts which have been made to *define* the term have resulted only in using language which is so broad that it covers wrongs other than torts - *or else* so narrow that it leaves out some torts.

B. NATURE OF THE SUBJECT: THE LAW OF TORT OR THE LAW OF TORTS

An interesting question arises when one considers the nature of the law of torts: Does the law of torts consist of a number of specific rules prohibiting only certain types of harmful activities, leaving all the rest outside its sphere? *Or* does it consist of a fundamental general principle that it is wrongful to cause harm to other persons? The *first alternative* has been championed by several leading English jurists like *Salmond* and *Sir Frederick Pollock* and is sometimes referred to as the *Pigeon-hole Theory*. The second Theory is the *Unity Theory* of *Winfield* and is reflected in several English decisions, some of which are more than a century old.

Salmond maintained that there is no English law of *tort*, there is merely an English law of *torts*. According to him, the law of torts consists of a number of specific rules prohibiting certain harmful acts. In other words, according to this school of thought, there is only a law of *torts* (that is, specific well-defined wrongs) and no general law of *tort*. This means that there is a list of acts and omissions which, in certain circumstances, are actionable in a Court of Law. Only that harm which falls within one of these categories entitles a person to file a suit under this branch of the law. Thus, just as there are specific crimes like murder, theft, forgery, *etc.*, so also, according to this theory, there are certain specific torts *and all other wrongs fall outside the law of torts*.

According to this view, which finds strong support of the eminent jurist, *Sir Frederick Pollock*, the law of torts may be said to consist of a *neat set of pigeon-holes*, each containing a specific tort. If the defendant’s act does *not* fit in any of these pigeon-holes, he has *not* committed any tort. This theory, also known as “*the pigeon-hole theory*”, was approved in an old English case *Allen v. Flood*, (1898, A.C. 1), where the Court observed that every plaintiff must bring his case under one or the other of the well-recognised heads of torts.

Salmond’s theory has, *however, been criticised by later writers* who have pointed out that if

this theory is to be accepted, the categories of liability in tort would be closed, and the Courts would be prevented from recognising any new torts. And yet, there is *not* a single case where the Court has refused to pass a judgment in favour of the plaintiff only on the ground that the case relates to a tort which the Courts have *not* recognised in earlier cases. Ever since the famous judgment, *Ashby v. White* (which is discussed below in detail), it has been clearly established that *mere novelty will not prevent a person from suing in tort*. On the contrary, as the Court observed in one English case, “torts are infinitely various, and *not* limited or confined”.

The *second theory*, the chief supporter whereof is *Sir Winfield*, adopts the view that all injuries done to another person are torts, unless there is some justification recognised by the law. The English Court has also followed this view in *Skinner v. Shaw*, where it observed: “At common law, there was a cause of action whenever one person caused damage to another willfully and intentionally, without just cause or excuse.”

In further support of this theory, it is also pointed out that the Courts have, from time to time, recognised “new” torts, namely, tortuous acts to which no specific names had been given earlier. Thus, it was only in 1964 that the House of Lords confirmed the existence of the tort of *intimidation*. To take another example, although in 1888, a claim for damages for a careless statement causing economic loss was dismissed, the House of Lords recognised the existence of such a tort in 1963. Similarly, a cyber tort, which was unheard of some decades ago, is today a recognised tort. *This creation of new torts clearly suggests that the categories of torts are never closed.*

In a landmark judgment, the Supreme Court of India has *held* that an enterprise which is engaged in hazardous or inherently dangerous industry owes an absolute duty to the community at large. (*M. C. Mehta v. Union of India*, AIR 1987 S.C. 1086, discussed at length in a later Chapter). This decision indicates that the Indian Courts will *not* hesitate to evolve *a new principle of tortious liability* if the occasion so demands, and in this respect, Courts in India appear to be even more progressive than English Courts.

As *Sahai J.* observed, in another landmark decision of the Supreme Court of India, “It would be primitive to classify strictly, or close finally, the ever-expanding and growing horizon of tortious liability.” (*Jay Laxmi Salt Works v. State of Gujarat*, referred to earlier.)

In *Ushaben Trivedi & Another v. Bhagyalaxmi Chitra Mandir & Others*, (A.I.R. 1978 Guj. 13), the Gujarat High Court, whilst endorsing the second theory, observed as follows:

“It is true that “tort” is *not* defined. Torts are infinitely various, and *not* limited and confined. The novelty of claim may arise and the Court may recognise a novel claim. India is a country where various religions are followed, and this has to be kept in mind while evolving a new tort.”

The Court *held* in the above case that hurt to religious feelings is *not* an actionable wrong (tort) in India.

In recent times, neither theory has been accepted in totality to the entire exclusion of the other. In conclusion, it may be said that whereas from the narrow practical point of view, *Salmond’s theory* would be acceptable, if one takes a broader outlook, *Winfield’s theory* appears to be more sound.

C. WRONGS WHICH ARE NOT TORTS

There are *four classes of wrongs* which fall outside the sphere of tort, namely:

(1) **Wrongs which are exclusively criminal**

The important word to be noted here is ‘*exclusively*’. Ordinarily wrongs are either *civil* or *criminal*. Thus, detention, conversion and wrongful dismissal are purely civil wrongs, that is, *torts*. On the other hand, dacoity, murder and forgery are *purely criminal wrongs*, that is, *crimes*. The remedy for a tort is a suit in a civil court for damages and compensation. In the case of crimes, the remedy is a criminal prosecution in a criminal court, with the primary object of punishing the offender.

There are, however, certain wrongs which are *both torts as well as crimes*, as for instance, assault, defamation and negligence. A civil suit and/or a criminal prosecution will lie in such cases.

(2) Civil wrongs which are exclusively breaches of contract

Several other civil wrongs fall outside the sphere of the law of torts, as they exclusively involve a breach of a contract. Thus, if X buys a car from Y, and after receiving the purchase money, Y fails to deliver the car to X, Y has done wrong to X; but this is a wrong arising out of a breach of a contract and is *not* a tort.

(3) Breaches of trust or other equitable obligations

A breach of trust is neither a breach of contract nor a tort. Trust is a matter of confidence and *not* a matter of contract or tort. It is an equitable wrong and *not* a tort.

(4) Wrongs which are quasi-contractual

Civil wrongs which create no right of action for unliquidated damages, but give rise to some other form of civil remedy exclusively, are *not* torts. A wrong, in order to be a tort, must have, as its remedy, a suit for unliquidated damages and *not* a claim for liquidated damages. Such claims for liquidated damages *not* arising out of an express contract are sometimes classified as *quasi-contractual*, but in truth, they belong neither to the category of contracts nor of torts, but a distinct category called *restitution*.

D. LAW OF TORTS IN INDIA

The law of torts has evolved - both in India and in England - out of *judicial decisions*. The subject is thus based on *case law*. There is no Act of the Legislature (like the Indian Penal Code or the Indian Contract Act) in India dealing with torts. The law of torts applicable in India is the English Law of Torts which, in its turn, is based on the Common Law prevailing in England. The rules of English law are to be applied so far as they are applicable to Indian society and circumstances. When in a given case, statutory or customary law does *not* exist, courts in India will be guided by *principles of justice, equity and good conscience*.

Jurists in England and in India have often suggested that the law of torts be reduced to a statutory form. The advantage of such a step would be that the law would become *definite and compartmentalised*. However, one must *not* forget that this branch of law has evolved out of judicial decisions and since its very basis is *case law* (both in England and in India), perhaps more harm than good may be done to the development of this branch of the law by reducing it to a statutory code.

In recent times, some parts of the law of torts have been codified, as for example, the Fatal Accidents Act, the Workmen's Compensation Act, the Employers' Liability Act, *etc.* However, the major portion of this important branch of the *law* is still based on *case law*, that is, *judicial decisions* or *precedents*.

E. CHARACTERISTICS OF A TORT

The following are *five* important characteristics of a tort:

(1) Civil wrong

A tort is a *civil wrong*, as opposed to a *crime* on the one hand, and a *breach of contract* or a *breach of trust*, on the other. It may be noted that breach of contract and breach of trust are civil wrongs, but they are not torts, inasmuch as the remedies afforded for such breaches are governed by statutes, whereas the remedies for a tort owe their origin to common law.

(2) Infringement of a right in rem

Secondly, a tort is an infringement of a *right in rem* and *not* a *right in personam*. A *right in rem* is a right vested in some determinate person (either personally or as a member of the community) and available against the world at large, that is, against everybody. Thus, one's right not to be defamed or assaulted are rights available against the *whole world*. Such rights are rights

in rem, and are, naturally, too numerous to be enumerated.

The opposite of a *right in rem* is a *right in personam*. A *right in personam* is a right available only against some determinate person or persons. Thus, X agrees to sell his house to Y for a certain sum, but does not honour his obligation. In these circumstances, Y will have a right to sue X, and only X (and not the world at large) for a breach of contract. Here, the mutual rights of X and Y against one another are created by their private agreement. These rights are personal to both of them. Outsiders are not concerned with them. Such rights are, therefore, called rights *in personam*.

(3) Right fixed by law

Thirdly, the right which is infringed in the law of torts must be a right which is fixed by law, independent of the consent of the parties.

(4) Common Law action

The remedy available in respect of the violation of such a right should be a Common Law action (that is, a suit filed under the English Common Law). Of course, there is nothing like Common Law in India. In England, there are numerous Common Law actions, of which actions for torts are a part. Such actions would also be actionable in India, that is, suits can be filed for such wrongs in civil courts in India.

(5) Remedy

Lastly, the remedy should be by way of damages, that is, compensation in money. A suit for *unliquidated damages* is a good test of tortious liability. However, it is not the only remedy, and a suit for *injunction* or a suit for *specific restitution of land or chattels*, and, at times, even self-help (as in ejecting a trespasser) are other remedies available in the case of torts.

F. CYBER TORTS

With the invention of the computer and the advent of the internet, a *new category of tort* has sprung into existence, namely, cyber torts. Such torts assume various forms such as cyber stalking, cyber breach of privacy, cyber obscenity and cyber defamation.

Cyber stalking

Cyber stalking is said to take place where the victim is followed *and pursued online*. It is a form of harassment wherein 75% of the victims are estimated to be women and children. Unlike an actual stalker, a cyber stalker achieves his objectives from the privacy of a home or a cyber-cafe. He could be a total stranger or just anybody - an acquaintance, a neighbour or even a relative. The core areas where cyber stalking takes place are:

- chat rooms
- e-mails
- discussion forums
- message boards, etc.

Cyber stalking can go a step further when the stalker obtains personal details of the victim online, as for instance, his or her telephone number or address, and then continues the act of stalking *in a physical form*.

Several countries of the world and many states of USA have enacted strict laws to deal with stalking, including cyber stalking. For instance, in USA, the first law against cyber stalking was passed in California in 1999. In India, the provisions of the Information Technology Act, 2000 and the Indian Penal Code, 1860 are, it is submitted, *quite inadequate* to deal with this problem of modern times.

Cyber breach of privacy

With internet facilities now easily available even to a common man, breach of privacy on the internet is certainly on the rise. Breach of privacy is a distinct violation of what *Justice Brandieries* described as “the right to be left alone.”

Several countries have enacted legislation to control this cyber tort. In India, the Information

Technology Act, 2000, deals with and makes punishable, *interception of e-mails* and getting access to another person's e-mail stored on a computer system.

Cyber obscenity

Cyber space offers ample opportunities for pornography and *obscenity*. *Children and women* are especially *vulnerable and adult* predators and pedophiles try to take the maximum advantage of their vulnerability.

India has no specific legislation to tackle this problem and it is widely felt that the provisions of the Information Technology Act and the Indian Penal Code are quite inadequate to curb this ever-growing menace.

Cyber defamation

Cyber defamation is said to take place when all the ingredients of the tort of defamation are present and the defamation is committed online. The publication of such defamation can take place at lightening speed and reach all corners of the world within seconds.

Once again, there is no specific legislation in India to deal with this tort and the general principles of defamation (discussed at length in a later chapter) would have to be evoked in case of defamation committed online, via e-mails, chat rooms, etc.

G. TORT AND CRIME DISTINGUISHED

Both a tort and a crime resemble each other in that both are violations of rights *in rem*, and in both, the rights and duties are fixed by law, irrespective of the consent of the parties. The following are the three points of distinction between the two:

(1) As to the nature of the wrong

A tort is a private wrong. It is an infringement of the private or civil rights belonging to an individual. A crime, on the other hand, is an invasion of public rights and duties affecting the whole society. Thus, murder is not only a crime against a particular person or his family; it is also a crime against society.

(2) As to the remedy available

In tort, the wrong-doer has to pay compensation to the injured party; in crime, he is punished by the state. The underlying principle of redress is, therefore, different in both. Crimes involve punishment of the offender in order to deter him from committing similar acts once again; in tort, compensation is awarded to the person injured.

It is true that in some cases, a Court may order a person convicted of a crime to pay a sum of money to the injured party by way of compensation. This, however, should not blur the essential distinction between a tort and a crime, for such compensatory sums do not form the principal subject-matter of the criminal suit; they are always in addition to some other punishment, as for instance, a jail sentence.

(3) As to the procedure

Under the law of torts, the suit is filed by the injured party himself. In criminal law, the proceedings are generally taken and conducted in the name of the State, inasmuch as the party injured by a crime is *the State*, which conducts the prosecution either on its own initiative or on the *complaint of a private party*.

Acts which are both torts and crimes

There are some acts which amount to a tort and also to a crime. For instance, *assault and libel* are torts as well as crimes. Thus, in the case of assault, the right which is violated is one which every man has and which guarantees that his bodily safety shall be respected. But the matter does *not* stop here. The act of violence is also a menace to the safety of society in general, and will, therefore, be punished by the State also. In such cases, both the rights, namely, *rights in rem* and *rights in personam* co-exist. In these cases, the wrong-doer may be ordered in a civil action to make compensation to the injured party and may also be punished by a criminal court and ordered to be imprisoned or fined.

H. TORT AND BREACH OF CONTRACT DISTINGUISHED

Both tort and breach of contract are alike, inasmuch as in both there is an infringement of private rights. Moreover, in both, action is taken by the person injured and the remedy is by way of compensation or damages. The following are, however, seven points of difference between the two:

1. Nature of right infringed

A tort is a violation of a right *in rem*, that is, a right exercisable against the whole world, whereas a breach of contract is an infringement of a right *in personam*, that is, a right exercisable against a definite person or persons.

A right *in rem* is a right available against the whole world. Thus, every person has a right *not* to be defamed or assaulted, and this right is available to him, *not* against particular persons like X, Y or Z, but against everybody in general. A tort is always a violation of such rights *in rem*.

As opposed to this, a right *in personam* is available and enforceable only against a particular person or persons. Thus if X enters into a contract with Y, and Y fails to fulfill the terms of the contract, X has a personal remedy against Y, and strangers to the contract are in no way concerned with the same. A contract always gives rise to a personal right, that is, a right *in personam*.

2. Duty

In the case of a tort, the duty is imposed by the law and is owed to the society in general; in the case of a contract, the duty is fixed by the free will and consent of the parties and it is owed to a definite person or persons. It must be remembered that when parties enter into a contract, they create rights and duties for themselves under such a contract.

3. Consent

In a contract, the obligation is founded on the consent of the parties. In a tort, the obligation arises independently of any consent, that is, a tort is inflicted against the will and without the consent of the other party. Thus, if X assaults Y, without any lawful cause or excuse, X commits a tort. Here, the duty *not* to cause unlawful harm to another person is a duty imposed by law. But if X agrees to sell 10 bales of cotton to Y, and later, fails to perform the contract, the case is one of a breach of contract. Here, X owes a duty only to Y, and *not* to the society at large.

4. Privity

In a contract, there must always exist privity between the parties, that is, a binding legal tie between them. No such privity exists in a tort, where the harm is always inflicted against the will of the party injured.

5. As to damages

So far as damages are concerned, there are *three* points of difference between a tort and a breach of contract.

(a) Measure of damages

In a tort, the measure of damages is *not* limited or fixed with precision. The Court may award any sum of money as it thinks fit and just. In other words, in case of a tort, the suit is for *unliquidated damages*. In a breach of contract, the measure of damages is determined according to fixed legal principles or by an agreement between the parties. The suit, therefore, is for *liquidated damages*.

(b) Remoteness of damages

The rules as to remoteness of damages in tort are different from those in contract. Thus, in tort, a man may be held liable for damages arising from special circumstances of which he had no knowledge. However, if there are special circumstances *under which a contract was made and they were* wholly unknown to the party breaking the contract, he is *not* liable for damages due solely to those special circumstances. (*Hadley v. Baxendale*, (1854) 8 Ex. 341)

(c) Exemplary damages

In a breach of contract, exemplary damages are normally *not* awarded, whereas in tort, exemplary damages can be given in a fit case. Exemplary or punitive damages are sometimes referred to (especially in the U.S.A.) as “smart money”.

6. Starting point of the period of limitation

In a contract, for purposes of considering whether a suit is time- barred, time runs from the date of breach; in tort, it usually runs from the date when the damage is suffered.

7. Motive

In the case of breach of contract, the motive of the defendant is generally immaterial, while in the case of a tort, it is *often, though not always*, taken into consideration.

Tort combined with a breach of contract

It sometimes happens that the same set of facts may give rise to an action in contract as well as in tort. In fact, there are certain cases of breach of duty which may give rise simultaneously to an action in tort and also to an action in contract, as for instance, a breach of duty arising in the course of the employment of an attorney or a surgeon or a carrier. In these cases, the injured party may, at his option, file a suit under the law of contracts for the breach of the particular undertaking or in tort for the injury caused. For instance, a physician who causes injury to a patient by negligently administering him a poisonous drug, is *liable both in tort and in contract*. In such a case, it is open to the patient to sue the physician either for the tort, or for the breach of contract, or for both.

Similarly, where a person goes to the defendant, a dentist, for having his tooth extracted by the defendant’s (so-called) painless process, and the defendant extracts the tooth so unskillfully that portions of the tooth are left in the jaw, with the result that the person suffers acute pain, an action will lie in tort for negligence, as well as in contract for breach of the undertaking.

Or, take the case of the father who employs a surgeon to treat his son, and the son is injured by the surgeon’s carelessness. Here, the father can sue the surgeon for breach of contract. However, as there is no contract between the son and the surgeon, the son can sue him only in tort.

But, when the relationship does *not* give rise to any duty of care to the plaintiff, no action in contract can be maintained. Thus, where a message is delivered by a telegraph company by mistake to a person for whom the message was *not* intended, and who in consequence suffers damage, no suit will lie, for there is no privity of contract between the receiver of the telegram and the telegraph company; nor is any duty of care cast upon the telegraph company independently of the contract.

In *Dickson v. Reuter’s Telegram Co.*, (1887) 3 C. P. D. 1, A sent a telegram to B for the shipment of certain goods. The telegraph company, mistaking the address of C for that of B, delivered the telegram to C, who acting on the telegram, sent the goods to A. A refused to accept the goods, stating that he had ordered the goods, *not from C, but from B*. C sued the telegraph company for damages for the loss suffered by him. In the circumstances, the Court *held* that C had no cause of action against the company, for the company did *not* owe any duty to C and no legal right of C had been infringed.

“In cases arising out of contract, equity steps in, and tort takes over and imposes a liability upon the defendant for unquantified damages for the breach of the duty owed by the defendant to the plaintiff”, as observed by the Supreme Court in *Maya Bhatia v. New Delhi Municipal Council*. In this case, a builder sold flats in a building, top four floors of which were demolished by the Municipal Council as they were constructed in violation of the Building Regulations. The purchasers of the flats which were demolished were *not* informed of the illegality by the builder. The Supreme Court *held* that each purchaser was entitled to a refund of the amount paid by him plus the escalation charges, and having regard to all the circumstances, each flat owner was further entitled to receive Rupees sixty lakhs from the builder.

An exemption clause in a contract will also be available to the defendant in an action under

the law of torts, provided it is widely worded and specifically excludes or limits liability due to negligence. A concurrent or alternative liability in tort will *not* be admitted if its effect would be to permit the plaintiff to circumvent or escape a contractual exclusion or limitation of liability for an act or omission that would constitute the tort. Such an exemption clause *cannot*, however, be against public policy.

I. FELONIOUS TORTS: MERGER OF TORT IN FELONY

As seen earlier, the same wrongful act may sometimes constitute both a tort and a crime, as for instance, assault, defamation, malicious prosecution, *etc.* Assault is a civil wrong, that is, a tort when looked at from the point of view of an individual, it being a violation of the right of every person to his personal safety being preserved unmolested. But, at the same time, such an act of violence is looked upon as a menace to the safety of society in general. It will, therefore, be punished by the State as a crime. In all such cases, there are *two* different kinds of remedies - civil and criminal. The wrong-doer may be punished criminally and he may also be compelled in a civil action to pay damages to the aggrieved party. Now, where an act is both a tort and a felony (crime), it is called a '*felonious tort*'.

It was at one time supposed that there could *not* be a double proceeding, civil *and* criminal, in respect of the *same* act. If the act was a felony, it was said that it *drowned the particular private wrong*. This *doctrine of merger of tort in felony* prevailed for a considerable time, but subsequently it was modified, and it was *held* that the civil remedy was suspended until the wrong-doer was prosecuted. (*Wills v. Abrahams*, (1872) 7 Q. B. 554)

Thus, the later view, which prevailed till 1967, was that an action for damages based on a felonious act of the defendant was *not* maintainable until the defendant was prosecuted, or alternately, a reasonable excuse was shown for his *not* having been prosecuted. Thus in *Smith v. Selwyn* [(1914) 3 K. B. 98], it was *held* that where a suit was filed without instituting a criminal prosecution against the wrong-doer, the civil proceedings (for tort) would have to be stayed. The *sole object of this rule* was to guard against stifling prosecutions.

Under this rule (*which prevailed prior to 1967*), the following *five exceptions* were made. In other words, in the following *five* cases of felonious torts, a civil suit for damages was maintainable, even in the absence of a criminal proceeding:

- (i) cases of misdemeanours;
- (ii) cases where the plaintiff was *not* the person injured by the felonious act of the defendant, as for instance, when a father *sues for the seduction of his daughter*;
- (iii) cases where the defendant himself is *not* the person *guilty of* the crime, as for instance, when stolen goods are recovered from an innocent purchaser, though the thief is *not* yet caught;
- (iv) cases where, despite the due diligence of the plaintiff, prosecution of the offender has *not* been possible, as *for instance*, when the latter has escaped and is *not* traceable;
- (v) suits filed in England under the Fatal Accidents Act, 1846.

However, *this common law rule was abolished in England by the Criminal Justice Act, 1967*. In other words, after 1967, it is no longer necessary to prosecute the felon before suing him in tort for damages.

Application of the doctrine in India

In India, this artificial rule (of merger of tort in felony) has *not* been accepted, and it has been *held* in many cases that an injured person can maintain an action for damages for a wrongful act, even though it amounts to a crime, without first instituting criminal proceedings against the offender. (See for instance, *Abdul v. Meera*, (1881) 4 Mad. 410.)

In India, there is no law which requires an injured person to institute criminal proceedings before bringing an action in tort. (*Jina v. Jodha*, (1863) 1 M. H. C. 1)

In fact it has rightly been observed that it is difficult to reconcile this artificial rule of English

law with the provisions of the Civil Procedure Code.

There is, however, an old case decided by the Calcutta High Court, where it was observed that where a person brings such a suit, he must show that he has done his best to procure a conviction on the criminal charge, before the Civil Court will entertain such a suit. (*Coonamull v. Sarno Raws*, 1867, 2 Industrial Court. Jus. N. S. 187)

J. WAIVER OF TORT

There are some cases in which a party is allowed to treat that which is purely a tort, as having created a contract between himself and the wrong-doer, and is allowed to waive his right to sue in tort, and instead, pursue his remedy for breach of the supposed contract. Thus, if a man is wrongfully deprived of his goods which are afterwards sold away, he may bring an action for damages in tort or he may file a suit for the price received by the defendant. Such cases are, however, *not* many, and when a man selects one remedy and waives the other, he is deemed to have made an election and he *cannot* afterwards pursue the remedy waived by him. Of course, it will be a question of fact in each case whether there is an act which amounts to a final election as to the remedy to be pursued.

Waiver may be *express or implied*. It is said to be *express*, when the person entitled to a right in terms gives it up; it is said to be *implied* when *such person does, or acquiesces in, something else which is inconsistent with that to which he is entitled*.

It may be noted that the expression “waiver of tort” does *not* mean that the tort itself is waived; it is only the *right* to recover damages *under the law of torts* that is waived.

CHAPTER 2

THE CONSTITUENT ELEMENTS OF A TORT

Questions in this chapter

1. Explain in detail the general elements of a tort citing relevant cases. April 2013.
2. Define tort and explain its ingredients. May 2012.
3. What is legal damage? 2 marks. November 2011, November 2014.
4. Explain “Damnum sine injuria” and “Injuria sine damnum”, citing relevant case law. April 2014, November 2014, November 2015, April 2016, June 2018.
5. Write a short note on: Damnum sine injuria. April 2013.
6. “Legal damage is neither identical with actual damage, nor is it necessary pecuniary.” Discuss this statement in the light of two maxims, with case law. November 2011.
7. Write a short note on: Injuria sine damnum. April 2011.
8. Write a short note on: Ubi jus ibi remedium. January 2017
9. What is express malice? 2 marks. January 2018.
10. What is motive? Is it necessary to determine liability in torts? April 2015.
11. What is meant by malfeasance and misfeasance? 2 marks. April 2013, November 2015, May 2017, June 2018.
12. What is non-feasance? November 2014. 2 marks.
13. What is malfeasance and non-feasance? 2 marks. January 2018.

The following *nine* topics are discussed in this Chapter:

- A. Three ingredients of a tort
- B. Two kinds of injury
- C. Two kinds of torts
- D. *Ubi jus ibi remedium*

- E. *Ex turpi causa non oritur actio*
- F. Malice
- G. Motive
- H. Intention
- I. Malfeasance, misfeasance and non-feasance.

A. THREE INGREDIENTS OF A TORT

In order that a particular act may amount to a tort, *three conditions* must be satisfied. In other words, there are *three main ingredients* which constitute a tort, which are as follows:

1. **A wrongful act by the defendant**

First of all, a wrongful act should have been committed by the defendant. An act is wrongful if it invades any of the *three* private rights of a person, namely, the right to (i) his reputation, (ii) his property and (iii) his right of bodily safety and freedom.

A wrongful act is an act contrary to the rule of *right and justice*. It may be of *two* kinds: (i) *a moral or natural wrong*, that is, an act which is contrary to the rules of *natural justice*; or (ii) *a legal wrong*, that is, an act which is contrary to the rules of legal justice and a violation of the law. A legal wrong is an act which is authoritatively declared to be wrong by a rule of law, and is therefore treated as a wrong for the purpose of the administration of justice by the State. The essential of a legal wrong consists in its recognition as a wrong *by the law*. It is synonymous with *injuria*, that is, the violation of a legal right. A mere loss without the violation of a legal right does *not* give rise to a cause of action. A wrongful act is actionable (that is, a suit can be filed for such an act) *only if* the wrong complained of is a *legal wrong* and *not* otherwise. [See the maxim, “*Injuria sine damnum*, discussed below.]

2. **Legal remedy**

The *second ingredient* of a tort is that such a wrongful act should give rise to a legal remedy in shape of a suit for damages. In other words, the act complained of must fall under the category of civil wrongs, for which the law allows a civil suit to recover damages.

As stated above, a tort is a civil injury. However, *all* civil injuries are *not* torts. The wrongful act must come under the category of wrongs for which the remedy is a civil action for damages. No doubt, the law of torts also recognises other remedies like *injunction* and *specific restitution of property*. However, it is principally the right to damages that brings such wrongful acts within the category of torts.

3. **Legal damage to the plaintiff**

Lastly, there must be *legal damage* to the plaintiff. Legal damage means an invasion of a person’s *legal right*. Unless and until a person’s *legal right* is violated, a tort does *not* arise. A person may be exercising his own right lawfully, and in the course of doing so, he may cause pecuniary loss to some other person. But if that loss is *not a* violation of a legal right, the act is *not* a tort. [See the maxim, ‘*Damnum sine injuria*’, below.]

As the Privy Council observed in *Rogers v. Rajendro Dutt* (1860) 8 M. I. R. 103, “The foundation of every action in tort is an act which is wrongful and which may be qualified legally as an injury.”

Thus the harm done to a *person in a moral sense will not* be enough, *unless* such harm or damage is *also recognised legally* as affording grounds for relief.

B. TWO KINDS OF INJURY

“*Damnum*” and “*Injuria*”

At the outset, *two important terms* used in the law of torts need to be clarified. By “*damnum*” is meant damage in the ordinary sense, that is, as the layman understands it. This may be a loss of money, physical hurt, loss of health or service, or the like. By “*injuria*” is meant a legal injury. This *injuria may or may not be accompanied by damnum, that is, actual loss or damage*.

Every possible form of harm or damage is *not* recognised by the law. The law takes no account of several forms of harm. Thus, for instance, a violation of the rules of ethics does *not* always amount to an infringement of a legal right.

In order to make a person liable in law, the plaintiff must, therefore, prove legal injury. Damage without injury (*damnum sine injuria*) is *not actionable*. There are many acts which, though harmful, are not wrongful in the eyes of law, and therefore, do not give rise to a right of action in favour of the person who sustains the harm. No one is to be considered a wrongdoer who merely avails himself of his legal rights, though his action may result in loss or damage to another. (See *Gloucester Grammar School case* and *Chasemore v. Richards*, discussed later.)

Damnum sine injuria

In case of *damnum sine injuria*, that is, actual and substantial loss without infringement of any legal right, no action lies, that is, no suit can be filed. Mere loss of money or money's worth does *not*, of itself, constitute legal damage. The most terrible harm may be inflicted by one man on another *without legal redress being obtainable*. There are many acts which, though harmful, are *not* wrongful and give no right of action. *Damnum* may be *absque* (that is, without) *injuria*. Thus, if X has a flour mill, and his neighbour sets up another mill adjacent to that of X, and thereby the profits of X's mill fall, X *cannot* bring an action against the neighbour; and yet X has suffered substantial financial loss (*damnum*). But if the other mill-owner hinders the water from running to X's mill or causes any other like nuisance (*injuria*), X will have a legal remedy against the other person.

Principle of the maxim

The cases which illustrate the maxim, *damnum sine injuria*, are many in number, but the underlying principle is that the exercise of one's common or ordinary rights within reasonable limits does not give rise to an action in tort, merely because it causes some loss or damage to another. The *reason* underlying the rule is simple, namely, that it would be impossible to carry on the common affairs of life without doing various things which are more or less likely to cause loss or inconvenience to others. In every civilised society, the exercise, however legitimate, by each member of his particular rights, or the discharge, however legitimate, by each member of his particular duties, can hardly take place without occasionally causing a conflict of interest which will be detrimental to some others.

As the Privy Council pointed out, in *ROGER v. RAJENDRA DUTT*, (1860) 8 M. I. A. 103, "it is essential to an action in tort that the act complained of, should under the circumstances, be *legally* wrongful as regards the party complaining, that is, it must precisely affect him in some *legal right*".

A few cases where the courts have recognised this maxim may now be discussed.

GLOUCESTER GRAMMAR SCHOOL CASE — (1410 Y. B. 11 Hen. 4) — The defendant, a schoolmaster, set up a rival school next to that of the plaintiff, with the result that the boys from the plaintiff's school flocked to the defendant's. The plaintiff sued the defendant for the loss. It was *held that* no suit could lie because *bona fide* competition can afford no ground of action, whatever damage it may cause.

It may be noted that although free and fair competition is allowed, a competition in which the legal rights of a rival are infringed, will be a good ground for action. Thus, an action lies against a person for causing injury to another by *illegally interfering* with the latter's trade, business or employment. Thus, in the *Gloucester Grammar School case* (above), if besides setting up a rival school, the defendant had interfered with the plaintiff by illegal means, as for example, by intimidating the students of the plaintiff's school, so that they cease to go there, *the defendant would have been liable*. In such a case, the plaintiff would be entitled to damages or injunction or both.

PROBLEM— "*Best Coaching Classes*" were started in the vicinity of "*Success Coaching*".

As a result, the latter had to close down their classes. Can Success Coaching Classes take any action in the *matter*?

Ans. — No. Free and fair competition does *not* amount to a tort, even if actual loss is caused thereby. It is a case of *damnum sine injuria*. (See *Gloucester Grammar School's case*, above.)

MOGHUL STEAMSHIP CO. v. MCGREGOR (1892) A. C. 25 (*Ship-owner's case*) - This case affords another interesting illustration of damage caused by fair competition. In this case A, B, C and D, ship-owners, who shipped tea from one port to another, combined together to drive F, a rival ship-owner, out of the trade, by offering special terms to customers who would deal with them to the exclusion of F. When F sued A, B, C and D for the loss caused to him by their act, it was *held* that F had no right of action, for no legal right of F had been infringed. Damage caused by competition in trade is *not* actionable.

[To-day, however, such trade combines are controlled by legislation relating to anti-competitive trade practices, as for instance, the Competition Act, 2002 in India.]

CHASEMORE v. RICHARDS, (1895) 7 H. L. C. 349 (*Watermill case*) — In this case, the plaintiff was the owner of an ancient watermill. For more than 60 years, the occupier of the mill had been using and enjoying the flow of a river for the purpose of working the mill. The Local Board of Health (whom the defendant represented) sank a well in its own land and pumped up large quantities of water, with the result that percolating underground water which would have found its way to the river and helped to work the plaintiff's mill, was obstructed. With the diminution of water in the river, the plaintiff found it impossible to work his mill. The plaintiff sought to make the defendant liable, but the Court *held* that the doing of an act which is otherwise lawful *cannot* give rise to an action in tort, however much it may be attended with loss to the party complaining.

In one interesting case decided by the Gujarat High Court, a suit was filed against the Producer, Writer, Director and Distributor of a Hindi film, "*Jai Santoshi Ma*", on the ground that certain scenes in the movie would hurt the religious feelings of persons believing in the Hindu religion and mythology. The Court *held* that the courts of law have not recognised hurt to religious feelings as a civil actionable wrong. It was therefore *held that no legal right of the plaintiffs was infringed*. The Court observed that the mere fact that the defendants' movie might have shocked the religious sentiments of the plaintiffs is *not* itself a matter which would give rise to a cause of action. (*Ushaben Trivedi & Another v. Bhagyalaxmi Chitra Mandir & Others*, A.I.R. 1978 Guj. 13)

In another case decided by the Allahabad High Court, the principal of a college, misinterpreting the regulations of the Board of Education, detained a student for shortage of attendance. Later, his detention was found by the Court to be illegal, but, by then, the student had already lost one year, and filed a suit for compensation for the loss of a year. The Court observed that every breach of a legal provision does *not* give rise to an action in tort, and the mere fact that the Principal had misinterpreted the regulations did *not* mean that he had committed an actionable wrong. It was, therefore, *held* that the suit was *not maintainable*. (*V. D. Sharma v. Board of High School & Intermediate Education & Others*, A.I.R. 1981 All. 46)

[The ruling of the Allahabad High Court in the above case is *not* free from controversy, because it is arguable that the student had, in fact, lost one year and thus sustained a legal injury on account of the wrong interpretation of the regulations by the college principal.]

EARL COWLEY v. COUNTESS COWLEY, (1901) A. C. 405. — Miss X, a commoner, married a peer, Earl Cowley, and thereby acquired the title of Countess. However, even after the marriage was dissolved by the Court at her instance, she continued to use the title. On a suit filed by her ex-husband, the Court *held* that although she did *not* have a right to do so, she did *not* thereby commit such legal wrong against her former husband which would entitle him to an injunction to restrain her from using the title.

BUTT v. IMPERIAL GAS COMPANY, (1866) L. R. 2 Ch. App. 158. — Mr. B carried on his

business in a shop which had a board to indicate the materials in which he dealt. Under certain statutory powers, a Gas Company erected a gas meter, which obstructed the view of this board. Mr. B sued the Gas Company, calling upon the court to restrain the company from *erecting the gas meter*. The court held that no injunction could be granted in the circumstances.

DHAHPHALE v. GURAV, (1881) 6 Bom. 122. — This was a case where the servants of a Hindu temple had a right to get food offered to the idol, but the person who was under an obligation to offer food, did *not* do so. The servants brought a suit against him for damages. It was held that the defendant was under no legal obligation to supply food to the temple's servants, and though his omission to supply food to the idol might involve a loss to the plaintiffs, it was a case of *damnum sine injuria*, and the plaintiffs could *not* therefore maintain the suit.

ROUSE v. GRAVEL WORKS LTD., (1940) 1 K. B. 489 (*Gravel case*) — The plaintiff owned a field which he cultivated. The defendants were the owners of adjoining land containing gravel, which they excavated in the course of their business as gravel merchants. The excavated area, which was close to the boundary of the plaintiff's land, became filled with water from rain and percolation, thus forming a pond. The water, by being blown against a strip of the plaintiff's land by wind, removed some material from the land, deprived the land of lateral support and prevented the plaintiff from making a profitable use of the strip. In an action by the plaintiff for damages, it was held that the defendants had a legal right to excavate the gravel on their land, and the accumulation of the water in excavation and its effects upon the plaintiff's land were caused, *not* by the direct action of the defendants, but by the natural agencies of rain, percolation and wind, over which the defendants had no control and for which they were *not* responsible.

DAY v. BROWNING, (1878) 13 Ch. D. 394 (*'Ashford Lodge' case*) — The plaintiff's house was called "*Ashford Lodge*" for sixty years and the adjoining house belonging to the defendant was called "*Ashford Villa*" for forty years. The defendant then altered the name of his house and called it *Ashford Lodge*. The plaintiff alleged that this act of the defendant had caused him great inconvenience and annoyance and had materially diminished the value of the property. It was held that the defendant was *not liable* as he had *not* violated any legal right of the plaintiff.

PROBLEMS

1. A was a manageress of Jay Ltd., a firm dealing in ladies' clothes. For several years, A was known to her customers as Miss Jay. A, after leaving the service of Jay Ltd., started a rival establishment in the name of Miss Jay. On seeing this, Jay Ltd. sued A for deceptive use of their trade name advise A.

Ans.: In these circumstances, Jay Ltd. will *not* succeed, as it is a case of *damnum sine injuria*: *Jay's Ltd. v. Geobi* (1933) 102 L. J. 130.

2. A University, through oversight, did *not* place the name of a student who had in fact passed the examination, in the list of successful candidates published by the University. Can the student sue the University for a declaration that he has passed the examination?

Ans.: The Allahabad High Court has held that, in such a case, the student *cannot* maintain such an action, on the ground that no action would lie to vindicate a right to mere dignity, unconnected to any fees or profits. (*Ram Sing v. Benaras Hindu University*, (1924) 47 All. 434

[It is indeed debatable if it can be said that the student had filed the suit to vindicate a right to mere dignity.]

Injuria sine damnum

This maxim is just the reverse of the maxim discussed above. This maxim refers to *injury without damage*. Whenever there is an invasion of a legal right, the person in whom the right is vested is entitled to bring an action and may recover damages, although he may have suffered no actual loss or harm.

Where a tort is actionable, although it has *not* been the cause of any actual damage, it is a

case of *injuria sine damnum* (that is, *infringement of a legal right without damage*). Actual perceptible damage need *not* be proved; it is sufficient to show the violation of a legal right, in which case, the law will presume damage. Thus, in cases of assault, battery, false imprisonment and trespass on land, the mere wrongful act is actionable without proof of any actual damage. Every invasion of private property, be it howsoever minute, is a trespass, though there may be no actual damage. Similarly, libel (written defamation) is actionable, even though the person defamed may *not* actually have suffered even the slightest loss.

ASHBY v. WHITE, (1703) 2 Ld. Raym. 938 (*Refusal to register vote*) — In this case, which is *the leading English case illustrating the maxim*, the defendant, a returning officer at a voting booth, *wrongfully and maliciously* refused to register a duly tendered vote of the plaintiff who was a qualified voter. The candidate for whom the vote was sought to be tendered was, however, elected, and no actual loss was suffered by the rejection of the plaintiff's vote. The Court *held* that nevertheless the suit would succeed. The suit was allowed on the ground that the violation of the plaintiff's statutory right was an injury for which he must have a remedy and *was actionable without proof of actual damage*.

In *Ashby v. White* (above), the returning officer had acted with malice. Where, however, the returning officer had acted *without any malice or improper motives* and had honestly refused to accept the vote of a genuine voter, it was *held* that he could *not* be sued in tort. (*Tozer v. Child*, 1857, 7 El & B 377)

The ruling in *ASHBY v. WHITE*, has been followed in India in *THE MUNICIPAL BOARD OF AGRA v. ASHARFILAL* (1921) 44 All. 202). In that case, it was *held* that if a voter's name is wrongly omitted from the electoral roll, he suffers a legal wrong for which he can file a suit.

Courts in India have taken the view that, in such cases, express malice need *not* be proved. If it is shown that the refusal to register a vote is *not* in good faith, the returning officer would be liable in tort. (*Draviam Pillai v. Cruz Fernandes*, AIR 1916 Mad. 569)

In an interesting American case (*Morningstar v. Fafayette Hotel Company*, 211 N.Y. 465, 105 N.E. 656), the plaintiff, who was a guest at the defendant's hotel, was fed up with the food served at the hotel. So, he purchased some spare ribs from outside and gave them to the hotel chef to be cooked and brought to his room. This was done, but the spare ribs were accompanied by a bill for one dollar, which the plaintiff refused to pay. The following morning, the plaintiff was *publicly informed at the breakfast table* that he would not be served. The plaintiff sued for wrongful refusal of service, including damages for humiliation and injury to his feelings. The Court *held* in favour of the plaintiff on the ground that his legal right had been infringed. *Cardozo J.*, in the course of the judgement, observed as follows:

"It is no concern of ours that the controversy at the root of this law suit may seem to be trivial. However, to enforce one's rights when they are violated is *never a legal wrong, and may often be a moral duty*"

MARZETTI v. WILLIAMS (1830 1 B. & Ad. 415) (*Bankers' case*) — An action will lie against a banker, having sufficient funds in his hands belonging to a customer, for refusing to honour the customer's cheque, although the customer may *not* thereby sustain any actual loss or damage. In this case, a banker, having such funds, refused to honour the customer's cheque. Although the customer did *not* suffer any actual loss, the Court *held* that he was entitled to damages.

Conclusion

The combined effect of the *two maxims* is that there are *moral wrongs* for which the law gives *no legal remedy* although they cause *great loss or detriment*. On the other hand, there are *legal wrongs* for which the law does give a *legal remedy*, although there is only a violation of a legal right without any actual loss or detriment.

C.TWO KINDS OF TORTS

Torts are of two kinds: those which are actionable *per se* (that is, without proof of any actual damage) and those which are actionable *only on proof of actual damage resulting therefrom*.

(a) Tort actionable *per se*

In the case of torts which are actionable *per se*, the defendant is liable merely because he does a particular act, even though the plaintiff has *not* suffered even the slightest harm. The act of trespassing on another's land is actionable, even though the plaintiff does *not* suffer any loss and no actual damage is done to the land. So is trespass to the person; even though it may be only a technical assault which causes no damage, it gives rise to a right of action. Similarly, libel is actionable *per se*. In these cases, the law conclusively presumes legal damage.

(b) Torts which are actionable only on proof of actual damage

However, in the case of torts which are actionable only on proof of actual damage, the defendant will be held liable only if, in consequence of his act, damage is inflicted on the plaintiff. Thus, the tort of slander is, in most cases, *not* actionable without proof of special damage.

D. UBI JUS IBI REMEDIUM

Closely connected with the topics of *damnum* (actual damages) and *injuria* (legal harm) is the maxim *ubi jus ibi remedium*. The maxim means that "whenever there is a legal right, there is a legal remedy" or as it is sometimes said, "there is no wrong without a remedy". '*Jus*' means the legal right to do or demand something, and '*remedium*' means the right of action in a court of law. The principle is that if a man has a right, he must, of necessity, have the means to vindicate or maintain it, and a remedy, if he is injured in the exercise or employment of it; and it is a vain thing to imagine a right without a remedy, for *want of right and want of remedy are reciprocal*. It must *not* be forgotten that in such a case, both the right infringed and the remedy sought should be *legal*.

In a way, the law of torts owes its development to this maxim. However, the maxim does *not* lay down that there is a legal remedy for *every* wrong. There are many moral and political wrongs which are *not* recognised by law and are therefore *not* actionable. A cruel war may raze houses to the ground, or oppressive legislation may reduce men to moral slavery, or a contract required to be made on a stamped paper may be made orally; in all these cases, irreparable harm may be caused, and yet, a legal remedy may *not* be available. Thus, the maxim does *not* mean that there is a legal remedy for every possible wrong. It has, therefore, aptly been remarked by *Justice Stephen* that the maxim would be more intelligently and correctly stated if it were to be reversed to say that "Where there is no legal remedy, there is no legal wrong".

E. EX TURPI CAUSA NON ORITUR ACTIO

As seen above, the damages sustained by the plaintiff must be a legal damage, that is, an *injuria*. If, however, the damage is in any manner tainted with immorality, no cause of action will arise.

The maxim *ex turpi causa non oritur actio* means that an action does *not* arise from an immoral or base cause. Thus, if P is infected by D, her paramour, with a venereal disease, the existence of which was concealed by D, P is *not* entitled to sue D, because an action does *not* arise from an immoral cause: *Hegarty v. Shine*, (1878) 1 Cox C. C. 145.

It must, however, be noted that despite the maxim *ex turpi causa non oritur actio*, the mere fact that the plaintiff is also a wrong-doer is no general defence. If it were otherwise, absurd consequences would follow. To take the example given by *Winfield*, if X stole a bottle of whiskey from Y, the latter would *not* be able to maintain an action, if it turned out that Y had purchased the bottle on a "dry" day.

It is one of the well-established maxims of equity that *he who seeks equity must come with clean hands*. However, this does *not* mean that the plaintiff should have led an absolutely blameless life. The plaintiff will not be barred from suing, unless, in the words of Sir Frederick Pollock, "some unlawful act or conduct on his own part is connected with the harm suffered by him as part of the same transaction."

F. MALICE

The word “malice” is a very slippery word, and its use in legal parlance is, at times, ambiguous. The term is used in *two* quite different senses in the Law of Torts:

- (1) In its ordinary sense, it means ill-will, spite or hatred. Such malice is called *express malice* or *actual malice* or *malice in fact*
- (2) *Legal malice* or *malice in law* means any wrongful act done intentionally without just cause or excuse.

As observed by Bayley, J. in *Bromage v. Prosser*, (1825) 4 B. C. 247, “Malice, in common parlance, means ill-will against a person, but in its legal sense, it means a wrongful act done intentionally, without just cause or excuse. If I give a perfect stranger a blow likely to produce death, I do it out of malice, because I do it intentionally and without just cause or excuse. If I maim cattle without knowing the owner, I do it out of malice, because it is a wrongful act done intentionally.”

(a) Malice in fact (express malice)

A lawful act does *not* become unlawful merely because it is done with a bad motive or with malice; conversely, a good motive is no justification for an act which is otherwise illegal. “Where a man has a right to do an act, it is *not* possible to make his exercise of such right actionable by alleging or proving that his motive was spite or malice in the popular *sense*.” (*Brown*)

In law, malice depends, *not* on the evil motive which prompted the doer of the act, but upon the unlawful character of the act committed. As *Cooly J.* once remarked. “Malicious motives make a bad case worse, but they *cannot* make that wrong which is, in its essence, lawful.”

Torts in which malice is an essential element are:

- (1) Defamation
- (2) Malicious prosecution
- (3) Wilful and malicious damage to property
- (4) Maintenance
- (5) Slander of title.

Thus, in an action of defamation, where the defendant pleads qualified privilege, the plaintiff can counter this defence by proving malice in fact. So, it is *not* correct to say that malice is *entirely irrelevant* in the Law of Torts. Moreover, damages may be aggravated by the bad motive with which the defendant has acted.

The following is an illustrative case on the above-mentioned principle, namely, that a *lawful* act does *not* become unlawful *merely* because it is done with a *bad motive or malice*.

MAYOR OF BRADFORD v. PICKLES, (1985) A.C. 587. — In this case, the defendant sunk a well on his land, and thereby cut off the underground water from the plaintiff, his neighbour. In consequence, the plaintiff’s well dried up. In a suit by the plaintiff, it was *held* that the defendant was *not liable*, however, improper and malicious his motive might be. It is *not unlawful* for a landowner to dig a well on his own ground, thus, drying up his neighbour’s, even though his motive in so doing may *not* be to benefit himself, but to *injure* his neighbour. A malicious motive *per se* (that is, by itself) does *not* amount to an *injuria* or a legal wrong.

(b) Malice in law (implied malice)

As stated earlier, malice in law (also called *implied malice*) refers to a wrongful act done intentionally, without just cause or excuse. Thus, if one knocks down a perfect stranger on the road without any excuse and without knowing who he is, he would be guilty of malice (in the legal sense), because here is an act done intentionally and without just cause or excuse. Such malice is implied in every case where a person inflicts injury upon another in contravention of the law and without just cause or excuse. A man may, therefore, be guilty of malice in law, even though he acts ignorantly or innocently, or even with a good motive, as in the following case.

QUINN v. LEATHEM, (1901) A. C. 495. — A, without just cause or excuse, induced Bs

workmen to discontinue their work in breach of their contract with *B*. *A* did this, prompted by a good motive to do good to both, *B* and *Bs* workmen. It was *held* that, nonetheless, *A* was liable, inasmuch as the procurement of a breach of contract without just cause is a tort, and therefore, actionable.

G. MOTIVE

As a general rule, motive, by itself, is *not relevant* in the law of torts. An act which is lawful *cannot* become unlawful merely because it is done with an evil motive: *Chasemore v. Richards*, discussed above. It is the act, and *not* the motive behind the act, that is relevant. If the act, apart from the motive, gives rise merely to damage without legal injury, the motive, however reprehensible it may be, will *not* supply the missing element.

In *Mayor of Bradford Corporation v. Pickles* (above), it was proved at the hearing of the case that in making the excavation, *X* was actuated solely by the malicious motive of doing injury to *Y*, and thereby to coerce *Y* into buying *X's* land. Nevertheless it was *held* that *X* was entitled to deal with his land as he liked and could lawfully make an excavation on it. *An act which is lawful cannot become unlawful, merely because it is done with a malicious motive.* No legal use of property can become illegal merely because it is prompted by a motive which is *improper* or even *malicious*. Therefore, the Court gave its judgement against *Y*.

Motive has been described as an *ulterior intent*. "Although the rule may be otherwise with regard to crimes, the law of England does *not* take into account motive as constituting an element of a civil wrong. An invasion of the civil rights of another person is, in itself, a legal wrong carrying with it a liability to redress its necessary or natural consequences, in so far as these are injuries to the person whose right is infringed, whether the motive which prompted it be *good*, *bad* or *indifferent*." (Lord Watson in *Allen v. Flood*)

On the other hand, a good motive will *not* excuse a person from liability, where the act is *prima facie* a legal injury, as is clear from a reading of *Quinn v. Leathern* (above) and the following case.

The case of Tithes' Imperilled— The plaintiff was a village peasant. Due to his carelessness, the tithes (a tenth of the harvest) had been left in the fields. Finding that the corn was being eaten by a horse, the defendant, solely with the benevolent object of helping the plaintiff, put the corn in the plaintiff's barn. The plaintiff sued the defendant for unlawfully interfering with his corn. The Court *held* that even a benevolent desire to protect another's property will *not* justify any interference with it. The judge observed that even though the defendant put the corn into the plaintiff's own barn, it might very well be that the plaintiff intended to reserve the barn for some other purpose.

The cases in which a bad motive may be relevant in law of torts are:

- (1) Malicious prosecution
- (2) Defamation
- (3) Conspiracy
- (4) Nuisance.

H. INTENTION

It is no defence to an action in tort for the wrong-doer to plead that he did *not* "intend" to cause damage, if damage has resulted owing to an act or omission on his part which is *directly* the effect of his action. When the doer of an act adverts to a consequence of his act and desires it to follow, he is said to intend the consequence. A person who does a wrongful act intentionally would be liable in law. Every man is presumed to *intend* the natural and ordinary consequences of his acts and this presumption is *not* rebutted by proof that he did *not think* of the consequences or that he *hoped or expected* that they would *not* follow. The defendant will be liable for the *natural or necessary* (and *not remote*) consequences of his act, whether he, in fact, contemplated them or

not. ,

To take the interesting example given by *Prof. Street*, if a man throws a stone at a woman, his act is *intentional*. If it turns out that he did so because she had jilted him, he would still be liable in tort, as that would only show his *motive*.

WILKINSON v. DOWNTON, (1892) 2 Q.B. 57 (*The Grey Hair Case*). —The defendant played a practical joke by falsely informing the plaintiff that the plaintiff's husband had met with a serious accident whereby both his legs were broken. The plaintiff suffered a severe shock. She fell seriously ill, her hair turned white, and she was for some time in great danger of her life. In a suit by the plaintiff for damages for nervous shock, the defendant argued that he had intended only to play a practical joke and never intended the consequences. The Court did *not* accept the defence, and *held* that every man must be presumed to intend the *natural and probable consequences* of his act, and if what followed from the defendant's words was the natural and probable consequence, the defendant could *not* escape liability. As a result, the plaintiff was awarded damages.

That hot-air ballooning can become a dangerous activity from the legal angle is illustrated by the following two cases, one American and the other English. Interestingly, these cases also reflect the difference in approach of the American and English courts.

GUILLE v. SWAN, (1822) 18 Johns, 381 N.Y. (*The Balloon in the Garden Case*). — In this American case, the defendant, a balloonist, crash-landed in the plaintiff's vegetable garden in New York. At the time of his descent, his body was hanging out of the balloon in a very perilous situation. When the balloon descended, it also dragged along over potatoes and radishes over thirty feet. When the balloon came down, a crowd of more than 200 persons broke into the garden to help him out, and in the process, considerable damage was done to the plaintiff's vegetables and flowers, both by the balloon and the crowd.

It was argued on behalf of the defendant that, if at all, he would be liable only for the damage caused by himself and *not* for the damage caused by the crowd. However, the Supreme Court of Judicature of New York *held* that the defendant's descent was a trespass, and he was therefore *liable for the damage caused by the balloon and also by the crowd*, although he may *not* have intended to cause any such damage. The Court observed that the balloonist had put himself in a situation which invited help - and it would be equivalent to a direct request to the crowd to follow him - although the crowd was perhaps impelled by the dual motive of rendering help and of gratifying a curiosity which the balloonist himself had evoked.

SCOTTS v. MOSS (1889) 17 R. 32 (*The Aeronaut in the Field Case*). In this English case, the defendant had arranged a balloon flight by "the world-renowned scientific aeronaut, Prof. Baldwin". The advertisement indicated that the Professor would descend by parachute and land over the ground rented by the defendant. In fact, however, the Professor missed his target and landed in a turnip field owned by the plaintiff, causing considerable damage to the turnips. When a crowd rushed to the scene, further damage was caused to the fences and to the turnips.

Although the plaintiff's counsel argued that the principle of the American case, *Guille v. Swan* (above) would apply, the English court did *not* agree, holding that in such cases, the *test of foreseeability* would apply. The plaintiff would be entitled to damages only if the action of the crowd was "the *natural and probable consequence*" of the defendant's activity. The court refused to apply the rule of strict liability in such a case. The suit was, therefore, dismissed.

I.MALFEASANCE, MISFEASANCE AND NON-FEASANCE

Malfeasance is the *commission of an unlawful act*. The term is generally applicable to those unlawful acts which are actionable *per se*, and do *not* require proof of negligence or malice. For example, trespass is malfeasance and is actionable *per se*.

Misfeasance is the *improper performance of some lawful act*. So, if a local body which is authorised to construct a road, leaves heaps of stones after such construction, without any signs of

warning, it would be a case of *misfeasance*. Even if a person has undertaken to do something gratuitously (that is, without any charge or fees), if he commits a *misfeasance*, he becomes liable. (*Elsee v. Gatward*, (1763) 5 T. R. 143)

Non-feasance is the *failure or omission to perform an obligatory act*. Non-feasance of a gratuitous undertaking does *not* impose any liability. But where there is an obligatory duty and the failure or omission to do such duty causes injury to a person, it gives rise to a cause of action in favour of the individual towards whom the duty exists. In this respect, misfeasance and non-feasance give rise to a cause of action to the same extent.

Generally speaking, *statutory bodies* are liable *only for malfeasance and misfeasance*. However, if a statutory obligation is imposed on such a body, as for instance, the obligation to repair and maintain roads, it can also become liable for *non-feasance*

Chapter 3

DISABILITY TO SUE AND BE SUED

Questions of this chapter are:

1. Who are persons who can and cannot be sued in torts? January 2017.

This Chapter is discussed under the following *two* heads:

- A. Who *cannot sue*
- B. Who *cannot be sued*

A. **WHO CANNOT SUE**

Ordinarily, *all persons* are entitled to sue in tort. But there are *seven exceptions* to this rule. These *seven classes of persons cannot sue or can sue only subject to certain limitations* discussed below:

1. An alien enemy
2. Felons or convicts
3. Bankrupts
4. Husband and Wife
5. Corporations
6. A child in the womb
7. A foreign State.

1. An alien enemy

An “alien enemy” is any person of enemy nationality or a person (whatever his nationality) residing in enemy territory. Such a person’s right to sue for a tort is subject to certain conditions. *In England*, he *cannot* maintain an action, except when allowed by an Order-in-Council *or* unless he comes into British Dominions under a flag of truce. *In India*, an alien enemy *cannot* sue unless he obtains the permission of the Central Government under S. 83 of the Civil Procedure Code.

2. Felons or convicts

A felon or convict is a person against whom a judgement of death or penal servitude has been pronounced on any charge of treason or felony. *In England, before 1948*, a convict whose sentence was in force and unexpired and who was *not* lawfully at large could *not* sue for any damage to his property or for recovery of a debt. However, this disability was removed by the Criminal Justice Act, 1948.

In India, until 1921, certain offences entailed forfeiture of the property of the offender, disabling him from suing for any injury inflicted on his property (as he had none). But forfeiture has now been abolished except in three cases (referred to in Ss. 126, 127 and 169 of the Indian

Penal Code). Today, a convict in India may sue for torts both to his person and his property.

3. Bankrupts

A bankrupt is also under a disability to sue for wrongs in respect of his *property*, for, in bankruptcy, all his property vests in a Trustee in Bankruptcy according to *English Law*, and the Official Assignee or the Official Receiver (as the case may be) under *Indian Law*. So, under either system of law, the right of action for a *tort or injury to property* will vest in the Trustee, Assignee or the Receiver for the benefit of the insolvent's creditors. But in the case of *personal wrongs* (as for instance, assault, defamation, or seduction of servants), the right to sue is *not* taken away.

Where, however, a tort causes injury *both to the person and property*, the right of action will be split, and will pass, so far as it relates to property, to the *Trustee or Official Assignee* or the *Official Receiver*, as the case may be, and will remain in the bankrupt so far as it relates to his person.

4. Husband and Wife

Formerly, in England, a wife could *not* sue her husband for a tort; nor could a husband sue his wife, following the principle of English law that husband and wife are, in the eyes of the law, one person. By virtue of the Married Women's Property Act, 1882, a wife could sue her husband for the protection and security of her separate property. But the husband had no such corresponding right against the wife. A wife could *not* sue her husband for his ante-nuptial tort; nor could she sue him for a personal wrong such as assault, libel or injury caused to her by her husband's negligence. So, in those days, it was rightly said that a husband may, with impunity, break his wife's wrist, but *not* her wrist-watch! So also, a divorced wife could *not* sue her husband for a personal tort committed during coverture (that is, whilst married).

The Law Reform (Husband and Wife) Act, 1962, made drastic changes in the English Law on the point and under this Act, both husband and wife now have the same rights of action in tort against the other as they would have if they had *not* married each other.

In India, the notion of the legal identity of husband and wife does *not* apply, and therefore, an action in tort by one spouse against the other is maintainable.

Suit by one spouse against a third party for injury caused to the other spouse. — In 1974, the Supreme Court of California laid down that a married partner can sue a third party for damages if the injuries to a spouse deprive him or her of conjugal fellowship and sexual relations. Overruling its earlier decision of 1958, the Court *held* that a wife can sue for the loss which she personally suffered because of injury to her husband. In this case, the 22-year old husband was paralysed for life when a 600-pound pipe fell on him. His 20-year old wife was *held* entitled to sue the third party (who was responsible for the mishap) for loss of earnings as a secretary and the value of nursing care she had to provide for her husband.

5. Corporations

A corporation *cannot* maintain an action for personal wrongs, for, by its very nature, such injuries *cannot* be inflicted on a corporation. But, a corporation *can* sue for a libel affecting its property or business.

In general, a corporation may sue for any tort in the same way as an individual. The only qualifications are:

- (i) The tort must *not* be a kind which is impossible to commit against a corporation, for example, assault or false imprisonment.
- (ii) In case of defamation, it must be shown that the defamatory matter has a tendency to cause actual damage to the corporation in respect of its property or business. Thus, a trading corporation may maintain a suit if it is charged with insolvency or with dishonest management.

A corporation may sue for a libel or any other wrong affecting its property or business. It

cannot, however, maintain an action for personal wrongs, as for instance, a libel charging the corporation with corruption, for it is only individuals, and *not* the corporation in its corporate capacity, who can be guilty of such an offence. (*Mayor of Manchester v. Williams*, (1891) 1 Q. B. 94)

The case of the *Mayor of Manchester* (above) has however been distinguished, and its ruling doubted in a later English case, where it has been *held* that a corporation has a right to sue, *not only* for a libel affecting its property, *but also* for one affecting its personal reputation. (*Bognor Regis UDC v. Champion*) (1972) 2 All E. R. 61

A corporation can, however, sue for defamation if the words, spoken or written, are defamatory when directed against an individual and damage, actual or threatened, is suffered by the corporation. If a libel or slander affects the management of its trade or business, the corporation itself can sue. Thus, a corporation can sue for defamation if it is charged with insolvency or with dishonest or incompetent management. In short, a corporation can sue for any tort, except one of a purely personal nature.

Unincorporated Associations and Trade Unions

An unincorporated association of persons is *not* a legal entity and *cannot* sue or be sued as such. No action against a trade union, whether of workmen or masters or against any members or officials thereof in respect of any tortuous act alleged to have been committed by or on behalf of the trade union can be entertained in any court. (S. 4, Trade Disputes Act, 1906). This provision confers immunity on Trade Unions in respect of any tort, whether connected with a trade dispute or *not*, but the individual tort-feasors remain personally liable. It is to be noted, however, that this immunity does *not* extend to a strike or lock-out. (S. 1, Trade Disputes and Trade Unions Act, 1927)

6. A child in the womb

An infant *can* sue for any tort committed against him, subject to the procedural rule that he must sue by his 'next friend' or guardian; but he *cannot* maintain an action for injuries sustained *en ventre sa mere* (that is, when he was in his mother's womb).

WALKER V. GREAT NORTHERN RAILWAY, (1890) 28 L. R. Ir. 69. — In this case, a pregnant woman was injured in a railway accident, as a result of which the child was born deformed. The Court *held* that the child could *not* maintain an action for damages. The decision appears to be based on the ground that there was no duty of care to an unborn person.

It may, however, be noted that when a similar case arose in Canada, the Supreme Court of Canada granted compensation to the infant.

7. A foreign State

In *England*, a foreign State *cannot* sue in any Court, *unless* such State has been recognised by Her Majesty.

In *India*, under Sec. 84 of the Civil Procedure Code, a foreign State may sue in any Court in India, provided that such State has been recognised by the Central Government and provided that the object of the suit is to enforce a private right vested in the head of State or in any officer of such State in his *public capacity*.

B. WHO CANNOT BE SUED

The following *nine* classes of persons *cannot* be sued in tort, subject to certain exceptions discussed below:

1. The Crown (or Government)
2. Foreign sovereigns
3. Ambassadors
4. Public officials
5. Infants (Minors)
6. Lunatics and drunkards

7. Corporations
8. Trade Unions
9. Married women.

1. The Crown (or Government)

ENGLISH LAW

Earlier, an action for a personal wrong would *not* lie against the sovereign under the outdated and severely criticised English maxim, “*The King can do no wrong*” It followed, therefore, that the Crown *could not* be sued for the tortuous acts of its servants *acting in the course of their employment*.

The historic and jurisprudential support for the doctrine of State immunity can be found in the following famous words of *Blackstone* in 1887:

“The King can do no wrong. The king, moreover, is *not only* incapable of doing wrong, *but even of thinking wrong*; he can never mean to do an improper thing; in him is no folly or weakness.”

In the early twentieth century, the chief proponent of the doctrine of sovereign immunity was *Mr. Justice Holmes*, who (in *Kwanakoa v. Polybank*, (1903) 205 U. S. 349) observed as follows: “A sovereign is exempt from suits, *not* because of any formal conception or obsolete theory, but on the logical and practical ground that there can be no legal right as against the authority that makes the law on which the right depends.”

Today, the ground of exemption stated by *Justice Holmes* (above) appears neither logical nor practical, and total immunity of the State from tortuous liability is *not acceptable* in the modern context. The legal position in this respect has been drastically modified by the provisions of the Crown Proceedings Act passed in 1947.

Effect of the Crown Proceedings Act

The Crown Proceedings Act, 1947, has been effected the *two* main changes: *Firstly*, the Crown is made liable in all cases in which, if it were a private person of full age and capacity, it would have been liable on the ordinary principles of vicarious liability. The law of contributory negligence also applies in proceedings against the Crown. *Secondly*, petitions of right are abolished. Liability in tort also extends to a breach by the Crown of any statutory duty. The law as to indemnity and contribution as between joint tort-feasors is also enforceable by or against the Crown.

INDIAN LAW

Under Article 361 of the Constitution of India, the President, Governors and *Rajpramukhas* of States are *not* answerable to any Court (1) for the exercise and performance of the powers and duties of their office or (2) for any act done by them in the exercise of those powers and duties.

Though the general rule in India is that State is immune in the field of torts, this principle of immunity is subject to certain qualifications. The Constitution of India provides that the Government of India or of a State may sue or be sued in relation to their respective affairs in the like cases as the Dominion of India and the corresponding Provinces of Indian States might sue or be sued, if the Constitution had *not* been passed (Art. 300). Therefore, the law which prevailed on the subject before 26th January, 1950, continues to remain in force, though it may be modified by legislation.

The following *five* rules can be stated regarding the liability of Government:

- (i) The Government is liable for the torts of its servants in the course of a transaction which any private person can engage in. This principle was upheld by the Privy Council in *Peninsular and Oriental Steam Navigation Co. v. The Secretary of State of India in Council* (1868-69), 5 Bom. H. C. R. App. Cases, 1). In this case, it was *held* that the East India Company could be sued for the torts of its servants committed in the course of the transactions which it, as a trading company, engaged in.

In a later case (*Secretary of State for India in Council v. Shivranji*, I. L. R. (1949) Nag. 875), the Government was *held* liable for the loss caused by an improper interference of a Forest Range Officer in the removal of timber by the plaintiff who had purchased a forest.

- (ii) The Government *cannot* however be sued in respect of acts done by the servants *in the exercise of its sovereign powers*. This principle has consistently been followed by the Indian Courts. It has been *held* that a suit will *not* lie against the Government as regards matters such as declaring a or making a treaty, annexation of a Native State, commandeering goods during a war, the use of land as a practice bombing ground by the army, *etc.*
- (iii) The Government is liable for injury to any of its subjects resulting from an act done by itself or by its servants if such act is done under colour of municipal law. For example, suits have been allowed against the Government for illegal levy of customs-duty under the Customs Act, illegal acquisition of land under the Land Acquisition Act, *etc.*
- (iv) The Government is liable to restore property or money wrongfully obtained or detained by it or by its servants on its behalf.
- (v) The Government is *not liable* for any wrong done by its servants in the course of their duty, unless the wrong was expressly authorised or ratified by it. It has been *held* that the Government is *not liable* for an improper arrest or seizure of property by a Police Officer. The principle involved is that the act done by a servant of the Government is done in exercise of the authority or discretion vested in him by the law or statute, and *not* in pursuance of any implied authority of the Government. (*District Board of Bhagalpur v. Province of Bihar*, (1954) Pat. 429)

Case law

In a leading Indian case, *State of Rajasthan v. Vidyawati* (A. I. R. 1962 S. C. 933), a motor-driver was employed on probation by the State of Rajasthan. While he was driving a jeep car to a workshop for repairs, he knocked down Jagdishlal, who was walking on the footpath by the side of the public road. On account of multiple injuries received in the accident, Jagdishlal died three days later. The widow of Jagdishlal filed a suit against the driver and the State of Rajasthan, claiming Rs. 25,000/- as damages for the tort.

In this case, the Supreme Court *held* that the State was liable for the tortious acts of its servants like any other employer, and that *the maxim, "The King can do no wrong", has no place in the Constitution of India*. It was observed that the immunity of the Crown was based on a feudal concept *not* accepted or recognised in India.

However, in *Kasturilal v. State of U. P.* (A. I. R. 1956 S.C. 1039), the Supreme Court *held* that the State was *not liable* for the tortious acts of its servants where such acts were referable to *the exercise of sovereign power*. In the judgement, it was observed that the law on the question needed immediate reform.

In *Kasturilal's case* (referred to above), the police officers of the State of U. P., acting in exercise of their statutory powers, seized gold from the appellant, and as a result of their negligence in dealing with its safe custody, the gold was *not* returned to him. In a suit filed by him against the State for return of the gold or its value, it was *held* by the Supreme Court that the act was committed by the employees of the State during the course of employment, and the employment in question being of a category which could have the special characteristics of sovereign power, the appellant's claim could *not* succeed.

In *Kasturilal's case* (above), the distinction between acts done in the exercise of sovereign powers and acts *not* referable to the delegation of any sovereign powers was emphasised, and the Court observed as follows:

"If a tortious act is committed by a public servant, and it gives rise to a claim for damages,

the question to ask is: Was the tortuous act committed by the public servant in discharge of statutory functions which are referable to, and ultimately based on, the delegation of the sovereign powers of the State to such public servant? If the answer is in the affirmative, the action for damages for the loss caused by such tortuous act will *not* lie. On the other hand, if the tortuous act has been committed by a public servant in discharging of the duties assigned to him *not* by virtue of the delegation of any sovereign power, an action for damages would lie.”

It may be noted that although the decision of the Supreme Court in *Kasturilal's case* (above) has *not* been overruled, subsequent decisions of the court have greatly undermined its authority and attenuated the sphere of sovereign immunity. As recently observed by a three-member Bench of the apex court, “much of its efficacy as a binding precedent has been eroded.”

The High Court of Jammu and Kashmir has reiterated the principle that the State is liable for the tortuous acts of its employees if such act is in discharge of a statutory function and is *not* referable to delegation of any sovereign powers. In this case, a head-on collision took place between a private vehicle and a water-tanker of the Border Security Force, due to the negligence of the driver of the tanker, and the Union Government was *held* liable for damages. (*Union of India v. Abdul Rehman*. A.I.R. 1981 J & K 60)

In one case, A, a military driver of a School of Artillery, was transporting in a truck, a machine for locating enemy guns. Due to his rash and negligent driving, he knocked down and killed B. A suit was filed against the Government of India by B's widow. The Government pleaded that the driver was doing a duty in discharge of the Government's sovereign power. However, this plea was rejected. The Court observed that the transport for the machine could even have been arranged through a private carrier. The Government was, therefore, *held* liable for the tortuous act of A. (*Union of India v. Sugrabai*, 70 B. L. R. 212)

The Madhya Pradesh High Court has *held* that the powers of the State Police to regulate processions and to quell riots are sovereign functions. Hence, when regulating a procession, if the Police make a *lathi-charge* in which the Respondent's property is damaged, the State Government would *not* be liable. (*State of M.P. v. Chironjit Lal*. A.I.R. 1981 M.P. 65)

The Allahabad High Court has observed that the onus of establishing that a particular act was committed in the course of an employment which is referable to the exercise of sovereign power is upon the state. (*State v. Hindustan Lever Ltd.*, A.I.R. 1972 All. 486)

The Supreme Court of India, in *State of Bihar v. Abdul Majid* (1954 S. C. R. 786), held that the English rule that a civil servant cannot maintain a suit against the State for recovering his arrears of salary, is not applicable in India.

In one case decided by the Madras High Court, X took his newly born infant to a Government hospital for treatment. A few days later, the nurse in charge of the children's ward informed X that the child was fine, and that it should be taken away. However, she advised X to buy a rubber apparatus for the child before taking it away. X went to buy the apparatus, and on returning to the hospital, was shocked to see that someone had already come and taken the child away. X made frantic efforts but was unable to find the child.

In a suit by X against the Government for the negligence of the hospital authorities, the Court *held* that the Government was *not liable* for the torts of the hospital employees because in running the hospital, the Government was merely discharging a governmental function and was *not* engaged in any commercial business. (*Etti v. Sec. of State of India* (1939) Mad. 843)

The courts in USA have, however, taken a different view. In one American case, the plaintiff was admitted to a State Hospital in a pregnant condition. Later, she gave birth to a baby, who began to lose blood. Although the baby's blood was “A-Negative”, it was negligently administered “B-Positive” blood, resulting in the baby's death. The plaintiff alleged that the negligence of the doctors could be imputed to the hospital, which denied all liability in the matter on the ground of government immunity. The Supreme Court of North Carolina *held* that the operation of a public hospital is *not* one of the “traditional services” rendered by local

governmental units in the U.S.A. Hence, such hospitals, like other corporate employers, are liable in tort for the negligent acts of their employees committed within the course and scope of their employment. (*Sides v. Cabarrus Memorial Hospital Inc.*, 287 N.C. 14)

In another case, some military *jawans* in the employment of the Union of India lifted some drift wood belonging to the plaintiff and carried it away in army vehicles for the purpose of their camp-fire, presumably under a belief that the wood did *not* belong to anyone. The Court *held* that the action of the *jawans* was in the course of employment, and therefore, the Union of India was *liable* to make good the loss to the plaintiff.

The Allahabad High Court has *held* that where an accident occurred due to the negligent driving by a *sepoy* of a Government truck when he was going with the truck for imparting training in motor driving to new recruits, the driver, as well as the Union of India, would be *liable* in damages. Such an act *cannot* be said to be an act in the exercise of the sovereign power of the Government. (*Smt. Iqbal Kaur v. Chief of Army Staff*, AIR 1978 All. 417)

An interesting exposition of the law on this subject is contained in a case decided by the High Court of Jammu and Kashmir, where *jawans* were transported in an army vehicle and the negligence of the driver resulted in an accident with a private tempo. The occupant of the tempo was injured and he filed a suit for damages against the Government. The Court rejected the Government's contention that the act was performed in the exercise of delegated sovereign powers. It *held* that, even if it is conceded that the driver of the truck was driving the vehicle to the Railway Station to bring the *jawans* to the headquarters, it could *not* be said that the statutory duty which he was performing was referable to the exercise of sovereign powers. Here, the *jawans* could have been transported to the headquarters in a private bus or a truck or in any vehicle whatsoever. The act of so transporting the *jawans* could be said to be done in exercise of sovereign powers only if it could be shown that such an act could *not* have been performed by private individuals. It was, therefore, *held* that the State was *liable* for damages arising out of the negligence of the driver. (*Union of India v. Miss Savita Sharma*) A. I. R. 1979 J & K. 6.

In one case, the Government was vicariously *held* liable to compensate the heirs of the deceased, where a Government servant was travelling in a Government jeep with his father and other family members, and the government servant and his father died in the accident. The father's heirs were also *held* entitled to claim damages, although the father was an unauthorised occupant in the jeep. (*State of Orissa v. M. Ray*, A. I. R. 1981 NOC 223)

In *State of Gujarat v. Memom Md.*, certain goods seized under the Sea Customs Act were *not* properly kept and were disposed of by order of a Magistrate. On a suit filed for the value of the goods against the State, the Supreme Court *held* that when the seizure was illegal, there arose a bailment and a statutory obligation to return the goods. The suit was therefore maintainable.

Similarly, in *Smt. Basava Kom Dyamogonda Patil v. State of Mysore*, certain articles seized by the police were produced before a Magistrate who directed the Sub-Inspector to keep them with him in safe custody to get them verified and valued by the goldsmith. The articles were lost while they were kept in the police guard-room. In a proceeding taken under the Code of Criminal Procedure, the Supreme Court *held* that "there is no *prima facie* defence made out that the State or its officers had taken due care and caution to protect the property." The Court ordered the State to pay the value of the property to the owner. The court also observed: "As the seizure of the property by the police amounts to a clear entrustment of the property to a Government servant, the idea is that the property should be restored to the original owner after the necessity to retain it ceases."

In *State of Andhra Pradesh v. Challa Ramakrishna Reddy*, a prisoner in jail as an under-trial died as a bomb was thrown by some miscreants in the cell where he was lodged. In a suit by the defendants of the deceased against the state, it was found that the jail authorities were negligent in *not* properly guarding the jail in spite of warnings that some miscreants were likely to make an attempt on the life of the prisoner. On these facts, the doctrine of sovereign immunity was *held* to

have no application, as this was a case of a violation of fundamental rights under Article 21. It made no difference that the claim was made through a suit and *not* under Article 32 or Art. 226. [Note. - The Law Commission has recommended changes in the law which would remove some of the restrictions of the liability of the Government as an employer. These recommendations have, however, *not* been implemented.]

2. Foreign sovereigns

Foreign sovereigns *cannot* be sued unless they themselves submit to the jurisdiction of the local Court and waive the privilege. Even by residing in a foreign country, a sovereign does *not* waive his privilege or submit to the jurisdiction of the local Courts. This rule extends to all acts of the foreign sovereign, including those done in his private capacity. The only remedy that is available against a foreign sovereign would be action at a governmental or diplomatic level.

Under S. 87B of the Civil Procedure Code, foreign sovereigns can be sued in Indian Courts only with the previous consent of the Central Government.

3. Ambassadors

Foreign ambassadors, their families and servants also *cannot* be sued, unless they waive their privilege by submitting to the jurisdiction of the Court. An ambassador *cannot* be sued during his term of office. Thus, the right to sue him in tort is *not* non-existent; it is merely suspended as long as he holds the office. Of course, it is open to such a person to waive his privilege, but this may *not* be inferred unless he actually appears in Court and thus submits to its jurisdiction.

4. Public Officials

No action lies against public officials in their official capacity in respect of torts committed by them - for they are representatives of the Crown. But public officials are liable in damages for tortious acts committed by them in their *private capacity*. The command or *authority* of Crown is no defence to the ordinary liability for one's own acts.

Thus, if an act is done by an officer of the Government and such act is found to be done under lawful sovereign power, no action will lie against the Government on the principle of *respondeat superior*. Let the superior be responsible.

However, it must be noted that if the act is unlawful in itself, the order of the superior is no defence. The principle of *respondeat superior* is *not* applicable to such unlawful acts. It is a fundamental principle of English law that every public officer acts on his own responsibility. If his act is unlawful, the order of the superior does *not* protect him.

The Madhya Pradesh High Court has *held* that a suit for damages can be filed against the Union of India for torts committed by its servants *in connection* with *an* undertaking if the act in question was *not* done in exercise of its sovereign powers. (*Union of India v. Bhagwati Prasad*, A. I. R. 1957 M.P. 43)

Public officials are *not* personally liable for the wrongs of their subordinates, unless expressly authorised or ratified by them, because the subordinates are *not their* servants. *They are both* servants of the Government, and there is no relationship of master and servant between the superior officer and his inferior.

5. Infants (Minors)

The general rule as to liability of minors for their torts is that ordinarily, infancy *per se* is no defence to an action for tort. Infants are liable for wrongs of omission as well as for wrongs of commission. Thus, minors have been held liable for assault, false imprisonment, libel, slander, seduction, trespass, wrongful detention of goods, fraud, embezzling money, and for nuisances and injuries to their neighbours arising from the negligent use and management of their property. In other words, a minor is, in general, liable for his torts in the same manner and to the same extent

as an adult.

But where intention, knowledge, malice or some other condition of the mind of the wrongdoer forms an essential ingredient of liability (as for instance, deceit), extreme youth is a good defence. If, however, there is a sufficient maturity of understanding in an infant, he will be liable.

On the same principle, before a child is made liable for negligence, it must be proved that he failed to show the amount of care which can reasonably be expected from a child of that age. Thus, in a Canadian case, *Walmsey v. Humonick* (1954 2 D. L. R. 232), two little boys, both aged about five, were playing "cowboys and Indians". One of them was hurt in the eye by an arrow from the other boy's bow. The Court *held* in favour of the defendant, observing that he had *not* aimed at the plaintiff - and that even though it might amount to negligence if adults were similarly involved - the defendant could *not* be held to be liable.

Cases where the child's act amounts to tort and a breach of contract

It is, however, possible that the act of an infant may amount *either to a tort or a breach of contract*. In such cases, the law will *not* permit a suit based on a contract to be converted into a suit under the law of torts, nor permit an infant to be used for tort, if such an action is only an indirect way of enforcing a contract on which he is *not* otherwise liable. In other words, an action against an infant will *not* lie if it is nominally in tort, but in substance, in contract. Hence, a minor *cannot* be sued for a tort which is so connected with his contract as to be part of the same transaction. In other words, "*You cannot convert a contract into a tort to enable you to sue an infant.*"

JENNING V. RUNDALL, (1799) S. T. R. 335. — An infant hired a mare. He killed it by overriding it, and an action was filed in tort. The Court *held* that it was, in essence, an action for a breach of contract, and that it could *not* be converted into an action in tort merely to fasten a liability upon the infant. As *Lord Kenyon* observed, if it were in the power of a plaintiff to convert that which arises out of a contract into a tort, there would be an end of that protection which the law affords to infants.

But if the tort is independent of a contract and *not* contemplated by the contract, the infant will be liable, as in the following case.

BURNARD v. HAGGIS, (1893) 14 C. B. N. 45. — An infant hired a mare for riding. He was expressly told that the mare was *not fit for jumping*. But the infant gave the mare to a friend for jumping over fences, and the mare was killed while trying to clear a fence. The Court *held* that there was a tort wholly independent of the contract for which the infant would be answerable. The act of the infant was *not* within the object and purpose of hiring.

Likewise, an action for deceit will *not* lie against an infant where he has procured a contract by means of fraudulent representations either as to his age or to any matter. If an action in tort for deceit were to be allowed, it would defeat the rule against suing a minor in contract. No action, therefore, lies for the tort of deceit where an infant, by a false representation that he is of full age, procures a loan. If, however, the infant obtains property through fraud, and the property is still in his possession, he is liable to restore that property to the other party, the principle being that an infant will *not* be allowed to take advantage of his own fraud.

A, a minor, falsely representing himself to be a major, hires a motor-car at a daily charge of Rs. 500. He fails to pay the hire charges amounting to Rs. 1,500, and also by his negligent driving, causes damages to the extent of Rs. 2,000. The minor is sued for the recovery of Rs. 1,500 and Rs. 2,000. Now, a minor is *not* liable in contract, and, therefore, A *cannot* be made to pay the hire charges. But, as regards a minor's liability in tort, different considerations come in. As a rule, he is liable for his torts, except in few cases, as for instance, where the action is nominally in tort but is in substance in contract, or where the tort is founded on contract. In the case of hire, reasonable care of the goods is an implied term of the contract. Damage due to negligent driving is a breach of this term. So damage to the car, though a tort in this case, *cannot* be said to be independent of contract. Therefore, A is *not liable* also for the damage to the car.

Liability of parent for child's tort

As a rule, a father, as such, is *not* liable for the torts of his children, even while they are under-age and living with him. However, a father may be liable for the acts of his child in the following circumstances:

- (1) When the child is acting as the servant of the father, the father's liability will be the same as that of any other employer. Thus, for instance, if the son is driving the car of the father, the son's negligence will make the father liable.
- (2) A father may be liable for his own personal negligence in affording or allowing his child an opportunity of doing a mischief. Thus, when a father negligently left his 12-year old son with a rifle, without giving him proper instructions for handling it, the father was *held liable*. (*Newton v. Edgerley*, (1959) 1 W. L. R. 103)

6. Lunatics and drunkards

Ordinarily, *lunacy* is *no* answer to an action in tort. But a lunatic will *not* be liable for those torts in which some mental condition forms an essential ingredient. A person who is sane enough to be accountable under the criminal law would probably also be liable for any kind of tort.

Akin to lunacy is drunkenness. *Drunkenness* is no excuse for the commission of a *crime*; it will hardly therefore, excuse a tort. It is otherwise (as it is in the case of criminal law) if the intoxicant is administered against his will or by fraud or mistake. The rule as to drunkenness applies also to acts of an epileptic person.

7. Corporations

A corporation or a company *cannot* be sued, unless (i) the act done was within the scope of the agent employed by it, *and* (ii) the act done was within the purpose of the incorporation. The same principles which govern the vicarious liability of a principal for the torts of his agents or of a master for the torts of his servants, govern the liability of a corporation for the torts of its *agents and officials*.

A corporation can be sued for torts like defamation, deceit and malicious prosecution. When the suit is against the corporation for any of these torts, the plaintiff, in addition to the necessary ingredients, must prove that the servant or agent was acting in the course of the employment, and the act complained of was done by him for the benefit of the corporation and within the scope of his authority. If the act is *ultra vires*, the corporation will *not* be liable.

A corporation is liable for torts committed by its agents or servants to the same extent as a principal is liable for the torts of his agent or an employer for the torts of his servant, provided that the tort is committed in the course of doing an act which is within the scope of the powers of the corporation. It may thus be liable for assault, false imprisonment, trespass, conversion, libel or negligence. A corporation, however, will *not* be liable if the act of its servant is *not* authorised by the Articles of its incorporation.

The leading case on the subject is *Poulton v. London and S. W. Rly. Company* (1867 L. R. 2 Q. B. 534). In that case, a station-master in the employment of the defendant railway company, arrested the plaintiff for refusing to pay the freight for a horse that had been carried on the defendant's railway. The railway company had authority under an Act of Parliament to arrest a person who did *not* pay his fare, but none to arrest a person for non-payment for the carriage of goods. It was *held* that the railway company was *not liable*. The company itself having no power to arrest for such non-payment, it could *not* give the station-master any power to do so. The plaintiff's remedy for the illegal arrest in such a case would be against the station-master only.

It was thought, at one time, that a corporation could *not* be held liable for wrongs involving malice or fraud, on the ground that to support an action for such a wrong, it must be shown that the wrongdoer was actuated by a motive in his mind, and that "a corporation has no mind". But it is now settled that a corporation is liable for wrongs even of *malice and fraud*. A corporation,

therefore, may be sued for *malicious prosecution* or for *deceit*.

In this connection, it may be noted that, in India, an *idol* of a Hindu temple stands in the same position as a corporation. So also does a *mosque*. They are recognised as juristic persons capable of owning property. An idol can, therefore, be sued in respect of a tort committed by its *shebait*, *manager* or *trustee*.

8. Trade Unions

English law

In *Taff Vale Rly. Company. V. Amalgamated Society*, (1901) A. C. 406, the House of Lords held that a trade union could be sued in its registered name. To nullify the effect of this ruling, the Trade Disputes Act, 1906, was passed, which provided that no suit could lie against a trade union or its members for torts committed by them on behalf of the union. This rule was subsequently modified in 1927, and a trade union was *held liable* for promoting a general strike. *Indian law*

The position in India is similar in that the Indian Trade Union Act, 1926, on the analogy of the English Act, provides that a registered trade union *cannot* be sued, or its funds proceeded against, in respect of any act done by its officers in contemplation or furtherance of a trade dispute. A subsequent enactment of 1939 has made provision for the creation of Conciliation Boards of settlement of trade disputes on the lines of the English Act. Thus, under the Indian Trade Unions Act, a trade union can be sued in its registered name. A registered trade union and its officers and members are exempt from liability for certain torts only.

9. Married women

English law

Under the English law of torts *prior to 1935*, a married woman could sue and be sued, but her husband had to be joined with her, as under the former English procedural law, she had no separate existence apart from him. However this was subject to the following *three* qualifications:

- (i) A married woman was *not* liable beyond her separate property. (This lacuna was removed by the Law Reform (Married Woman and Tortfeasors) Act, 1935.
- (ii) Actions in tort between the husband and wife were *not* possible under common law. Under the Married Women's Property Act, 1882, she was given limited right to sue her husband in tort "for the protection and security of her property." However, the rule that spouses could *not* generally sue each other in tort was abolished in 1962. Today, both husband and wife have the same right of action in tort against each other, as if they were *not* married.
- (iii) At common law, a husband was liable for his wife's torts. However, this scandalous rule was abolished in 1935, and today a husband is *not liable* for the torts of his wife. Of course, if he has participated in such a tort, he would be liable as a joint tort-feasor.

From what is stated above, it will be seen that today, under English Law, a married woman is exactly in the same position as any unmarried woman and can sue and be sued under the law of torts.

Indian Law

In India, a husband is *not liable* for the torts of his wife. Under the Married Women's Property Act, 1874, a married woman (*not* being a Hindu, Mohamedan, Buddhist, Jain or Sikh) may sue and be sued in her own name.

Chapter 4

FOREIGN TORTS

A foreign tort means a tort which is committed abroad, that is, a tort, the cause of action

regarding which has arisen in a foreign country. Such a tort may be:

1. A *tort to realty*, that is, an injury to land situated outside the country; or
2. A *personal tort*, that is, an injury to the person or movable property of another.

1. Torts to realty

When a tort is committed with respect to immovable property in a foreign country, no suit can be filed in England, though the wrongdoer is a British subject resident in Britain.

In *British South Africa Co. v. Compania de Mecambique* (1953 A. C. 602), the plaintiffs sued the defendants in England for trespass to their mines which were situated in South Africa. The House of Lords *held* that the suit was *not* maintainable.

2. Personal torts

Where, however, the tort is committed with respect to movable property *or* against the person of the plaintiff, an action is maintainable, provided that the following *two conditions* are fulfilled:

Condition No. 1

(1) The wrongful act must be actionable in the country where it is committed. Thus, the act complained of must *not* be justifiable according to the law of the place where it was committed. No action will lie in respect of an act, which though tortious if committed in England, is lawful in the country of its commission. The best illustration of this rule is afforded by the following case:

PHILIPS v. EYRE, (1870) 6 Q. B. 1. (*The Jamaica Governor's Case*) — In this case, the plaintiff filed a suit against the Governor of Jamaica for false imprisonment. The Governor pleaded that the arrest was made in connection with the suppression of a rebellion and that he was authorised to do so by an Act of the Jamaica Legislature. It was *held* that the plaintiff could *not* succeed. The Court observed: "It appears to us clear that where, by the law of another country an act complained of is lawful, such act, though it would have been wrongful by our law if committed here, *cannot* be made the ground of an action in an English Court."

In the above case, it was also observed that if the foreign law merely related to the *procedure* for enforcing a right, as for instance, by prescribing a particular period of limitation, it *cannot* be a bar to a suit filed in England. It would, however, be otherwise, if the foreign law extinguishes the right itself.

In another case, pursuant to a proclamation issued by the Sultan of Muscat, goods on board a British ship within the territorial waters of Muscat were seized. It was *held* that no suit could be filed by the owner of the goods since the seizure was lawful by the law of Muscat. (*Carr v. Francis Times & Co.*, (1902) A. C. 176)

But if the cause of action is *not* of a merely local nature, a suit will lie in an English Court for a tort committed abroad. The following case illustrates this principle:

MOSTYN v. FABRIGAS, (1774) 1 Cowp. 161 (*The Minorca Governor's Case*). — Fabrigas, having rendered himself obnoxious to Mostyn, the Governor of Minorca, the latter, without any lawful excuse, locked him up while in Minorca for a few days. Fabrigas sued the Governor of Minorca in England. The Court *held* that the suit was maintainable in an English Court as the cause of action was *not* merely local in nature.

But take a case like this: A publishes a libel against B in Brazil. When A comes to India, B sues him for damages. Can he do so? (According to Brazilian law, libel is *not* a cause for civil action, but exclusively a criminal offence.) It would be *held* that B can sue A for damages. It is no defence to B's suit that, in Brazil, libel is a crime but *not* a civil injury. It was *held* in *Machado v. Fontes*, (1892) 2 Q. B. D. 231, that it would be sufficient even if the act is *not* legally justifiable and is punishable. In that case, even a crime in a foreign country, which was *not* actionable in civil law, was *held* to be actionable before an English Court.

But the rule in *Machado v. Fontes* has been overruled by the House of Lords in *Boys v. Chaplin* (see below). Therefore, the present rule is that the act must be actionable *both* in the

country where the tort was committed *and also* in the country in which the suit is filed.

BOYS v. CHAPLIN, (1969) 2 All. E. R. 1085. — In this case, the plaintiff was injured in a motor accident in Malta, caused by the negligence of the defendant. Both the plaintiff and the defendant were British nationals, domiciled and resident in England. According to Maltese law, the damages to be awarded by the Court could *not* include compensation for pain, suffering and loss of amenities of life (which heads of damage are recognised by English law), but only compensation for monetary loss. The Court *held* that damages ought to be assessed in accordance with the English law.

Condition No. 2

(2) The second condition is that the act complained of must be of such a character that it would have been actionable if committed in England.

The *reason* for this is obvious. If the wrong complained of it *not* actionable according to the English law, to permit a civil action because it is actionable according to the *law of the place in which it was committed*, will be to administer, *not* the English law, but the foreign law. Therefore, the English Courts do *not* recognise the idea of enforcing liability for a wrong *not* recognised as redressible under English law.

THE HALLEY, (1868) 2 R C. 193. — The maritime case of *The Halley*, (1868) 2 P. C. 193, illustrates this aspect. In that case, an English steamer plying in Belgian waters with a compulsory pilot on board ran down a Norwegian barge. Under the Belgian law, the English steamer was liable, but *not* under the English law, where the defence of compulsory pilotage was open. It was *held* that the suit was *not maintainable* in the English Court.

RED SEA INSURANCE COMPANY, LTD v. BOUYGUES, (1994) 3 All E.R. 749. — In this case, a suit was filed in Hong Kong for a tort committed in Saudi Arabia. The tort was actionable in both the countries. However, under the law of Hong Kong, the Insurance Company could not sue the tortfeasor unless it had first paid the party which was insured. However, according to the law in Saudi Arabia, it could sue the tortfeasor even though the insured was *not* yet paid. The Court *held* that the Insurance Company could exclude the *lex fori* (that is, the law of Hong Kong) in favour of the *lex loci delecti* (that is, the law of Saudi Arabia, the place where the tort was committed).

TORT ON SHIPS

The relevant law in cases of torts committed on the high seas will be the *law of the country whose flag the ship is flying*.

INDIAN LAW

The law prevailing in India is based on the same principles as have been discussed above and may be summed up as follows:

1. A suit for trespass to land situated outside India *cannot* be filed in India.
2. As regards torts to movable property, the following *three conditions* must be satisfied:
 - a) The defendant should be in India.
 - b) The act should be unlawful in the country where it was committed.
 - c) The act should be actionable under the laws of India.

Chapter 5

GENERAL DEFENCES TO AN ACTION IN TORT

Questions in this chapter are:

What are the general defences available in an action for tort? November 2012, April 2014,

April 2015, June 2018.

What does “Salus populi supreme lex” mean? 2 marks. May 2012.

Write a short note on: Volenti non fit injuria. April 2016, January 2017.

What does “Volenti non fit injuria” mean? November 2011, 2012, 2014, April 2014, June 2018.

What is inevitable accident? 2 marks. April 2013.

Write a short note on: Act of God. April 2014, November 2015.

Define “vis major”. 2 marks. April 2011, November 2015, May 2017.

Write a short note on: vis major. November 2011, 2012.

Write a short note on: Inevitable accident. November 2013.

Write a short note on: Plaintiff as a wrong-doer. April 2011.

There are *fifteen* general defences which are available in a suit under the law of torts. They constitute what may be called “justifications” or “grounds of immunity” from liability to an action in tort. They are classes of wrongs which stand outside the sphere of tort. There are, as it were, the various conditions which will prevent an act from being wrongful, which in their absence, would be an actionable tort. They are, what *Sir Fredrick Pollock* calls, “the rules of immunity which limit the rules of liability”.

In other words, there are various conditions which will prevent an act from being wrongful which, in their absence, would be a wrong. Under such conditions, the act is said to be *justified or excused*. And when an act is said in general terms to be wrongful, it is *assumed* that no such qualifying condition exists. These justifications from civil liability for acts which are *prima facie* wrongful are based principally upon *grounds of public policy*.

The *general defences* discussed in this Chapter should *not* be confused with *particular defences* available for particular torts. Thus, for instance, *absolute or qualified privilege* would be a good defence in a suit for *defamation*. Likewise, *contributory negligence* of the plaintiff may be pleaded by the defendant when he is sued for the *tort of negligence*. However, such defences are *not general defences available for all torts* and are therefore discussed in the Chapter relating to that particular tort.

The following are *fifteen* general justifications (or defences) in an action in tort:

1. Act of State
2. Judicial acts
3. Quasi-judicial acts
4. Executive acts
5. Acts done under parental or quasi-parental authority
6. Authorities of necessity
7. Necessity
8. Acts done under statutory authority (Acts authorised by statute)
9. Leave and licence: *Volenti non fit injuria*
10. Inevitable accident (Act of God)
11. Mistake of fact
12. Exercise of common rights
13. Private defence
14. Plaintiff a wrong-doer
15. Acts causing slight harm.

1. ACT OF STATE

English law

The first important defence or justification with reference to a tort is that the act complained of is an act of State. An act of State is “an act injurious to the person or property of some person

who is *not*, at the time of the act, a subject of Her Majesty, and which is done by any representative of Her Majesty's authority, civil or military, and is either *previously sanctioned or subsequently ratified* by Her Majesty".

Thus, an act of State is an injury -

- (i) done against an alien,
- (ii) by a servant of the Crown,
- (iii) which act is either previously authorised or subsequently ratified by the Crown on State Policy, *and*
- (iv) which would otherwise, constitute a wrong, but being done under State policy, is *not* cognizable by any municipal Court.

In short, it is an arbitrary act, which is done, *not* under colour of any legal title, but in the exercise of sovereign power, intending that no remedy should lie. A good illustration of an act of State is to be found in the following case:

BURNIN v. DENMAN, (1848) 2 Ex. 167. — The commander of a battleship, in pursuance of a treaty made by him with native chiefs and afterwards ratified by the Crown, confiscated slaves and burnt the plaintiff's plantation. It was *held* that it was an act of State for which the commander was *not* liable.

It must be noted, however, the term "act of State" applies to aliens only and *not* to British subjects. *As between the sovereign and his subjects, there can be no such thing as an act of State.* So if a British subject suffers damage from any wrongful act done by a British officer, he has a remedy against that officer personally, even if the act was expressly authorised by the Crown. The authority of the Crown is no defence to a public official in an action of tort brought by a British subject. *The King can do no wrong*; nor can he authorise any wrong, and the wrong-doer is personally responsible for it.

Indian law

The same principles generally apply in India also. To be an act of State, the act must be one which is *not* purported to be done under colour of a legal title at all, but which must rest for its jurisdiction on considerations of external politics and internal duties and rights. (*Jehangir v. Secretary of State*, (1903) 6 Bom. L.R. 131). For example, seizure or acquisition of a territory by a Government as a sovereign power or an act done by an agent of the Government in his political capacity, *cannot* be complained of in civil courts. (See *Etti v. Sec. of State of India*, discussed in an earlier Chapter.)

In the following circumstances, the plea of an act of State will, however, *not* be available to the State:

- (1) Where the sovereign act is towards its own subjects, the plea of an act of State is *not* available. [*In the matter of Amir Khan*, (1870) 6 Beng. L.R. 392] In this case, a citizen was arrested under a warrant of the Governor-General-in-Council, taken to the Mofussil, and detained in jail. It was *held* that such an act did *not* constitute an act of State.
- (2) Where the act complained of is done under the sanction of municipal law and in the exercise of the powers conferred by the law, the fact that it is done by the sovereign power, and *not* an act which could possibly be done by a private individual, does *not* make it an act of State. [*The Secretary of State for India v. Hari Bhanji*, (1882) 5 Mad. 273] In this case, a Government officer had illegally extracted a sum of money from the plaintiff as import duty. The plaintiff successfully sued to recover that amount.
- (3) The doctrine of act of State is *not* applicable to a case where a citizen of the Republic of India goes to the Court for redress of his grievances against the officers of the Republic interfering with his rights. [*Madangopal Kobra v. Union of India*, (1951) 1 Raj. 96]

However, in the following *three cases*, the Government *can* be made liable, even though the acts complained of may be acts of State:

- (a) Trespass to immovable property;

- (b) An obligation imposed by a Statute; *and*
- (c) Cases where it can be shown that some benefit has resulted to the Government from the tort of its servants.

2. JUDICIAL ACTS

The second defence to an action in tort is that the act done by the defendant was a “judicial act”. No suit will lie against a Judge for any act done or words spoken in his *judicial capacity*.

This rule of judicial immunity is founded on *the principle of public benefit*, namely that Judges should be at liberty to exercise their functions with independence and without fear of consequences. And this is so even if a Judge’s motive is malicious, for the remedy for judicial errors is in the form of an appeal to a higher Court, and the remedy for judicial corruption is criminal prosecution or removal of the judge; but in neither case, can he be called upon to defend his judgement in a Civil Court.

The same immunity which is enjoyed by Judges is extended to Members of Naval and Military Courts-Martial and Courts of Inquiry, arbitrators, jury-men and coroners.

Thus, if a Judge gives a wrong verdict, an action will *not* lie against him. So also, a coroner is a judicial officer and no suit lies against him for any matter done by him in the exercise of his judicial functions. Likewise, if an arbitrator acts honestly, he is *not* liable for errors in judgement or for negligence in the discharge of the duties entrusted to him, although he would be liable if he is guilty of misconduct or corruption.

Under English Law, there is an important distinction between superior and inferior courts as to proof of jurisdiction. If the plaintiff is suing a Judge of a superior court for exceeding his jurisdiction, the burden of proof is on the plaintiff to show that the Judge has no jurisdiction; but the rule is reversed in an action against an inferior judge, for the Judge must prove that he had jurisdiction (*Peacock v. Bell* (1967) 1 Saund. 73)

In India, the principle of immunity has been enacted in the Judicial Officers’ Protection Act, 1850, but no distinction has been made in this Act between superior and inferior Courts. This Act lays down that no Judge or other person acting judicially can be sued in any Civil Court for any act done by him in the discharge of his judicial duty, *whether or not* within limits of his jurisdiction, provided that he, at the time, in good faith believed himself to have jurisdiction to do or order the act complained of. Thus, if a Magistrate fails to act reasonably and carefully, and by reason of such failure, does something for which he has no legal authority, it *cannot* be said that he, in good faith, believed that he had jurisdiction to do that act.

LAW v. LLEWELLYN (1906) 1 K. B. 487.— A magistrate, on allowing a prosecutor to withdraw a charge, said that he considered it a gross attempt to blackmail and that if the prosecutor found himself in gaol for twelve months, it would probably do him good. The court *held* that the magistrate was *not* liable for slander.

ANDERSON v. GORRIE (1895) 1 Q. B. 668. — A Judge acted oppressively and maliciously to the prejudice of the plaintiff and committed the plaintiff for contempt of court and asked for excessive bail. Nevertheless, the plaintiff was *not* entitled to damages as the judge had acted in his *judicial capacity*.

3. QUASI-JUDICIAL ACTS

Various persons and bodies such as Universities, Colleges, Committees of Societies and Clubs, *etc.*, often exercise quasi-judicial authority in the management of their respective institutions, either by virtue of the conventional rules of these bodies or of Parliamentary statutes creating them. The general rule is that persons or bodies exercising quasi-judicial powers are protected from civil liability if they observe (i) rules of natural justice and (ii) the particular statutory or conventional rules (if any) which prescribe their course of action. Thus, a man *cannot* be removed from office or membership, unless the persons exercising such powers have (1) acted

in good faith, (2) given him a fair and sufficient notice of his offence and (3) given him an opportunity of defending himself. The same principles apply in the case of expulsion of a member from a caste.

Rules of natural justice

In a broad sense, rules of natural justice prescribe that (i) No man can be judged without giving him an opportunity to be heard and (ii) No man can be a judge in his own case. If these conditions are satisfied, the Court will *not* interfere, even if the ultimate decision is wrong. Otherwise, the act complained of will be declared void.

Thus, in *Dawkins v. Antrobus* (1881) 17 Ch. D. 615, the plaintiff, a member of a club, sent a pamphlet which reflected on the conduct of S, another member of a club, to S enclosed in an envelope on the outside of which was printed "Dishonourable conduct of S". The Committee, being of the opinion that this action was injurious to the character and interests of the club, called upon the plaintiff for an explanation which he refused to give. They then called on him to resign, and as he did *not* comply with their recommendation, they duly summoned a general meeting at which a resolution was passed by the requisite majority expelling the plaintiff from the club. It was *held* that Court would *not* interfere to restrain the Committee from excluding the plaintiff from the club.

In *Devchand v. Ghanashyam* [(1935) 37 B. L. R. 417], the plaintiff was a member of a caste, whose members resolved that all persons of that caste who followed a particular religion would be excommunicated. As the plaintiff was following that religion, he was excommunicated. On a suit filed by him, it was *held* that the caste had the jurisdiction to excommunicate its members and that the court would not interfere in the matter.

In another case, a member of a society spoke to another using menacing language. Thereupon, a majority of the society voted at a general meeting that he should no longer be considered a member of the society. The Court *held* that the expulsion was *invalid*, as the member was *not* given an opportunity to defend himself, and that therefore, he was still a member of the society. (*Innes v. Wylie*. (1884) 1 C & K. 257)

4. EXECUTIVE ACTS

Executive officers in India, in general do *not* enjoy any protection except that conferred by legislature enactments. The State and its officers are, however, *not liable* when the wrongful act falls within the purview of an act of state. Subject to the above, the executive officers are always liable for torts committed or authorised by them. The State is also vicariously liable for torts committed by its officers in the course of their employment, except when they are committed while discharging traditional sovereign functions.

Valid orders of a public authority form a good defence to a tort committed by its officers in executing them, as for instance, orders of a Court of Justice. But if an officer maliciously arrests a person or takes his goods, he will be liable. If the public officer is guilty of misfeasance in the exercise of the powers entrusted to him by law, he is liable in a suit for any damage resulting from that act, without proof of malice or want of probable cause.

In India, the Judicial Officer's Protection Act (referred to earlier) protects officers of the Court as well. Police officers are protected in the performance of their executive duties by express legislative enactments in India, like the various Police Acts.

5. ACTS DONE UNDER PARENTAL OR QUASI-PARENTAL AUTHORITY

Parents or persons *in loco parentis* may, for the purpose of correcting what is bad in the child, inflict corporal punishment, always however to the extent that such punishment is *moderate and reasonable*.

Quasi-parental authority

The authority of a schoolmaster, is, while it exists, the same as that of a parent. The *earlier view* was that a parent, when he places his child with a schoolmaster, delegates to him all his authority, so far as it is necessary for the welfare of the child. The teacher can, therefore, inflict a moderate chastisement on his pupil or apprentice, as for instance, a couple of smacks on the cheek. However, the *modern view* is that a schoolmaster has his own independent authority to act for the welfare of the child. This authority is *not* limited to offences committed by the pupil upon the premises of the school but may extend to acts done by such pupil while on the way to and from the school.

REX v. NEWPORT (SALOP) JUSTICES, (1929) 2 K.B. 416. — A schoolmaster caned a student who had, contrary to the school regulations, been smoking in the street during term after having returned home. It was *held* that the father of the boy, by sending him to the school, was deemed to have authorised the schoolmaster to administer reasonable punishment to the boy for any breach of a school rule and that the punishment administered was quite reasonable.

6. AUTHORITIES OF NECESSITY

The master of a vessel on the high seas or in a foreign port has disciplinary powers, *not* only over the crew, but the passengers also. Such powers are based upon necessity and are limited to preservation of necessary discipline and safety of the ship. The English Courts have also observed that this authority of the captain to inflict moderate punishment is *not* confined to a case where the ship is at sea beyond the reach of other assistance.

7. NECESSITY

There are many cases in which individuals sustain an injury for which the law gives no action, as where private houses are pulled down to stop a fire or goods cast overboard to save a ship or the lives of those on board. *The welfare of the people is the supreme law: Salus populi est suprema lex*. Individual welfare must, in cases of necessity, yield to that of community; and a person's property, liberty and life, may be placed in jeopardy, or even sacrificed, for the public good.

Thus, a person is fully justified in driving away a swarm of locusts from his land, and is *not* liable to his neighbour because the locusts enter the neighbour's land and damage his crops. (*Greyvensteyn v. Hattingh*, (1911) AC 355)

To take another example, suppose a fire originates in A's house through some unknown defect in the electrical installation. In extinguishing the fire, B's adjoining property is damaged by water. B brings an action against A, claiming damages for the damage done to his property. B *cannot* succeed, since A was acting under sheer necessity.

In one English case, on the death of Xin a state of *delirium tremens*, his sister-in-law removed Xs jewellery from the room where he lay dead to another room, where she thought it would be safer. However, the jewellery was stolen by some unknown persons. The Court *held* that she was *liable*, as there was no proof that her interference was reasonably necessary. (*Kirk v. Gregory* (1876) 1 Ex. D. 55)

In another case, where 150 Negro slaves were ordered, by the Captain of a ship, to be thrown overboard owing to a shortage of water, the Court *held* that no sufficient necessity was shown to justify the Captain's inhuman act. (*Gregson v. Gilbert* (1783) 3 Dougl. 232)

In *Cope v. Sharpe* (1912 1 K.B. 496), a fire broke out on A's land. While A's servants were trying to put off the fire, the gamekeeper of C entered A's land and began to burn the heather growing thereon to prevent the spread of the fire. When A sued the gamekeeper for trespass, it was *held* that he was *not liable*, for there was a real and imminent danger at the moment at which he acted, and that what he did was reasonably necessary.

Apart from the above, there also exists a distinct group of cases where some act is committed as a matter of necessity against a person, but without his consent. This would happen, for

instance, if A forcibly drags away B, a stranger, from the path of a speeding bus to save B from a fatal accident or where a surgeon performs an emergency operation on an unconscious person to save his life. In these cases too, necessity is a good defence.

8. ACTS DONE UNDER STATUTORY AUTHORITY (ACTS AUTHORISED BY STATUTE)

If the Legislature has authorised the doing of an act, no action can be maintained for that act. The person injured by such an authorised act can have no remedy, except the one (if any) provided by the statute itself. Thus, in *Vaughan v. Tall Vale Rly.*, (1860) 5 H & N. 679 (*Engine Spark Case*), the defendant company, having statutory authority to use steam locomotives, was held *not liable* for a fire caused by escaping sparks, it being proved that the engines were constructed with all due care and skill and that it was impossible to totally prevent the escape of sparks.

It may be noted that if the Legislature directs that a thing *shall*, in all events, be done, the right of action is taken away. If, however, the terms of a statute are *permissive*, and *not imperative*, the powers conferred by the legislature should be exercised with due regard to the common rights of others. Thus, in *Metropolitan Asylum District v. Hill* (1818 6 App. Cases 193) (*Small-pox Hospital Case*), a local authority having statutory authority to erect a small-pox hospital, was restrained from erecting one in a place where it would have been a danger to neighbouring residents; the authority was construed as conditional only, namely, to erect the hospital, and the authorities could obtain a suitable site where no nuisance would result.

Ram Gopal v. Govt. of U. P (1951) 1 All. 135 (*Ornaments case*). — The plaintiff's ornaments were exhibited in a theft case. By a strange coincidence, they were once again stolen when in custody of the court. The plaintiff sued the government for the ornaments or their value. The court held that the government was *not liable* as the alleged tortuous act was performed in discharge of an obligation imposed by law.

A gas company had statutory powers to place mains and pipes under certain highways within the jurisdiction of the defendants who were, by virtue of a statute, bound to repair the highways. The defendants began to use steam-rollers of considerable weight for the purpose of repairing the highways, and thereby damaged the pipes belonging to the company under the highways. The gas company sued the defendants for an injunction restraining the defendants from using such rollers. The defendants pleaded that the damage complained of was incidental to an authorised act. The court held that the gas company was entitled to an injunction. The defendants had the power to use steam-rollers for repairing the highways, but that did *not* mean that they were obliged to use such heavy rollers as would damage the gas pipes. (*Gas Light Coke v. Vestry of State Government. Mary Abbots, Kensington*, (1885) Q. B. Div., 1)

9. LEAVE AND LICENCE : VOLENTI NON FIT INJURIA

The maxim, *volenti non fit injuria*, means that an act is *not* actionable as a tort at the instance of any person who has expressly or impliedly consented to it. When a person has voluntarily given up or waived a right against a person, he *cannot* enforce the same right against that person. If an act is done with the consent of the plaintiff or the plaintiff has freely and voluntarily, with full knowledge of the nature and extent of the risk, agreed to an act, he *cannot* later complain about that act.

The maxim applies in *two ways*. *Firstly*, the maxim applies to intentional acts, which would otherwise be tortious, as for instance, consent to physical harm which would otherwise be an assault or consent to entry on a land which would otherwise be a trespass. Such an act would be excusable only if it is within the scope of the consent. Moreover, no amount of consent can legalise an unlawful act, much less a crime. No person can license another to commit a crime - even against himself.

Secondly, the maxim applies to consent to run the risk of accidental harm, which would otherwise be actionable as due to the negligence of the person who caused it. In such a case, the plaintiff agrees, expressly or impliedly, to exempt the defendant from a duty to take care which the latter owed to him. On this ground, a master is *not liable* for an injury inflicted on a servant who has undertaken the service knowing the risks incidental thereto. So also, spectators at a cricket or football or hockey match are presumed to undertake the risks which may reasonably be expected to occur at such events.

The maxim is based on sound *principles of justice and good sense*. It protects the surgeon who undertakes a difficult operation and the sword-fencer, boxer or football player, so long as they follow the rules of the game.

However, *mere knowledge* of an impending wrongful act or existence of a wrongfully caused danger does *not* amount to consent of the plaintiff, even though he made no attempt to prevent or avoid that act of danger. It may be noted that the maxim is “*Volenti non fit injuria*”, and *not* “*Scienti* (knowledge) *non fit injuria*”. The maxim comes into operation only when there is an express or implied agreement to run the risk. In all cases, the person injured must have knowledge of the risk and must voluntarily undertake it.

In an American case, the plaintiffs were injured by the explosion of a bomb during a display of fireworks conducted by the defendant in a square falling on a public highway. It was proved that the defendant, in firing the bomb, had in fact exercised reasonable care. It was also shown that the plaintiffs were present at the fireworks display as voluntary spectators and were of ordinarily intelligence. The Court *held* in favour of the defendant, observing that a voluntary spectator, who is present merely for the purpose of witnessing the display, must be held to the consent to it, and he suffers no legal wrong if he is accidentally injured without any negligence on anyone’s part. If, of course, an ordinary traveller on the highway had been similarly injured, different considerations would have applied. (*Scalon v. Wedgor*, 156 Moss. 462)

In another *American* case, the defendant operated an amusement park, where a “flopper” was installed for those who might be amused by a contest between their reactions and an undulating moving belt. The plaintiff, after watching it operate upon others, took a try himself, in the process of which he was thrown away, resulting in a knee fracture. The Court *held* in favour of the defendant, observing that one who takes part in such a sport accepts the dangers inherent in it, so far as they are obvious and necessary, just as a fencer accepts the risk of a thrust by his opponent, or a spectator at a ball game, the chance of being hit by the ball. (*Murphy v. Steeplechase Amusement Co.*, 250 N. Y. 479)

HALL v. BROOKLANDS AUTO-RACING CLUB, (1933) 1 K.B. 205 (*Racing car case*). — A racing car shot over the railing and killed two spectators. It was proved to the Court that this was the first time that such an accident took place. It was *held* that there was no negligence and that this type of danger to spectators is inherent in car racing. The defendants were, therefore *not liable*.

CULTLER v. UNITED DAIRIES, (1933) 2 K. B. 297 (*Holding restive horse case*). — A horse belonging to the defendants and attached to one of their vans was seen by the plaintiff running past his house without a driver. It entered the field adjoining the plaintiff’s garden, and the driver, who had followed it, was trying to pacify it, but as it continued to be restive, the driver shouted for help. The plaintiff went and attempted to hold the horse, but it threw him on the ground causing him injuries in respect of which he sued the defendant. The Court *held*, dismissing the suit, that the plaintiff must have known that his attempt to hold the horse was attended with risk, and therefore, the maxim *volenti non fit injuria* applied.

Implied consent

Although consent is sometimes manifested by words, it may often be implied by conduct or by acts which speak louder than words. If the plaintiff is proved to have said, “Oh! It’s all right

with me”, he will, of course *not* be permitted to deny that he did *not* consent. But even silence and inaction may manifest consent where a reasonable person would speak if he objected. As observed by one American author, the girl who makes no protest at a proposal to kiss her in the moonlight may have mental reservations that it is without her consent, but the man who kisses her is nonetheless protected.

Exceeding consent

It is to be remembered that this defence available to the defendant is limited to the conduct to which the plaintiff consents and to acts of a substantially similar nature. Thus, permission to dump “a few stones” upon another’s property is *not* a permission to cover it with boulders. So also, consent to operate on the left eye is *not* consent to operate on the right one, and consent to a minor operation on one’s nose does *not* imply consent to a spinal puncture or the removal of one’s tonsils.

Consent under mistake

If the plaintiff manifests consent to the defendant’s act under a *mistake* as to its nature or character, the consent will still be effective, *unless* the defendant is aware of the mistake and takes advantage of it, as for instance, where he himself misrepresents the matter to the plaintiff.

However, such a mistake must extend to the essential character of the act itself, rather than to some collateral matter which merely operates as an inducement. Thus, consent to sexual intercourse by a call girl will still be consent, and if it later turns out that counterfeit money was received for this favour, the disappointed girl will *not* be able to sustain an action for battery, if she subsequently decides that she has been raped.

Four limitations (or exceptions) to the maxim

The following are *four* important limitations to the application of the maxim, *Volenti non fit injuria*:

- (a) No consent - no leave or licence - can legalise an unlawful act, as for instance, a duel with sharp swords, where such a duel is prohibited by law.
- (b) The maxim has no validity against an action based on a breach of a statutory duty. Thus, the maxim is no answer to a claim made by a workman against the employer for injury caused through a breach by the employer of a duty imposed by law.
- (c) The maxim also does *not* apply to cases of rescuing where the plaintiff has, under an exigency caused by the defendant’s wrongful misconduct, consciously and deliberately faced a risk, even of death, to rescue another from imminent danger of personal injury or death. In such cases, it is immaterial whether the person endangered is one to whom he owes a duty of protection (as a member of his family) or is a mere stranger to whom he owes no such special duty.

BRANDON v. OSBORNE, (1914) 1 K.B. 548 (*Skylight case*). — While the plaintiffs, husband and wife, were in a shop as customers, a skylight in the roof of the shop broke owing to the negligence of the contractors engaged in repairing the roof, and a portion of the glass fell and struck the husband causing him a severe shock. His wife, who was _ standing close to him was *not* injured by the falling glass, but I reasonably believing her husband to be in danger, she instinctively clutched his arm and tried to pull him from the I spot. In doing so, she strained her leg in such a way as to bring a recurrence of thrombosis. In an action to recover damages from the contractors, it was *held* that the wife was also entitled to damages along with the husband, inasmuch as what she did was, in the circumstances, a natural and proper thing to do.

BAKER v. T. E. HOPKINS & SONS LTD., (1959) 1 W. L. R. 966. — A doctor went down a well to rescue two men overcome by fumes caused by the defendant’s negligence, and in doing so, himself lost his life. The Court rejected the defendant’s plea of *volenti non fit injuria* and *held* that the defendant was liable.

(d) The maxim does *not* apply to cases of negligence. The *reason* behind *not* applying this maxim to cases of negligence is that one gives consent to the risk arising out of certain acts, but *not* to the risk of negligently doing such acts. For example, one would give consent to the risk arising out of surgical torts. But such a person can never be deemed to give consent for such operations being conducted negligently.

Thus, in the course of gymnastic training, A, a schoolboy, was required to vault over a horse. For some reason, A landed in a stumble and was injured. The master in charge did nothing to assist A in landing properly. A sues (i) the master and (ii) the school authorities for damages. Will he succeed?

It will be observed that this is a case of pure negligence, and therefore, the maxim, *Volenti non fit injuria*, does *not* apply. The master is liable for the negligence and the school authorities are also vicariously liable for the master's negligence. Therefore, A will succeed.

HAYNES v. HARWOD, 1 K.B. 146 (*The Police Constable's case*).— The defendant's horses, negligently left unattended in a crowded street, bolted when a boy threw a stone at them. The plaintiff, a constable on duty inside a police station, saw that persons were in grave danger, ran out, stopped the horses, and was severely injured in doing so. It was *held*, in the circumstances, that he was entitled to recover. The defendant was negligent in keeping the carriage unattended in the public street. Therefore, the defence of a subsequent wrongful act of a third person and also the defence of voluntarily incurring the risk, would *not* be open to him. He could have foreseen the consequences.

DANN v. HAMILTON (1939) 1 K. B. 609. (*Drunken driver's case*). —The plaintiff, knowing that the driver of a motor-car was under the influence of drink and that consequently the chances of an accident were thereby increased, chose to travel by that car, although there was no compulsion or necessity to do so. She was injured in an accident caused by the drunkenness of the driver, in which the driver was killed. In an action against the personal representative of the driver, the defendant raised the defence of *volenti non fit injuria*. The Court *held* that, except perhaps in extreme cases, the maxim did *not* apply to the tort of negligence and that the plaintiff was entitled to recover.

[*Note*: In *Dann v. Hamilton* (above), the contributory negligence of the plaintiff was *not* pleaded in defence. In a subsequent case, *NETTLESHIP v. WESTON* (1971 2 Q.B. 691), it was observed that a passenger going with a drunken driver may be unable to sue because he is aiding and abetting the offence. *Dann v. Hamilton* was also *not* followed by the High Court of Australia in *Insurance Commissioner v. Joyce* (1948 77 C. L. R. 39).]

WHILE v. BLACKMORE, (1972) 3 W. L. R. 296. — The defendants had organised a "Jalopy" racing (old-car racing), in which the plaintiff's husband had entered as a competitor. Notices warning the public were displayed, in which it was stated that the defendants were absolving themselves from all liabilities from accident, howsoever caused to the spectators. The plaintiff's husband was also given a programme in which there was a warning in small print on an inside page. After taking part in his race, he stood just outside the spectator's rope, close to a pole to which the spectator's rope and two safety ropes were tied. During the next race, the wheel of a car got entangled in a safety rope, and in the accident that followed, he was catapulted about twenty feet and died from his injury. In a claim by the plaintiff for damages in negligence, it was *held* that since the deceased did *not* have full knowledge of the ropes, he had *not* willingly accepted the risk of the injury arising from the defendant's default, and therefore, the doctrine of *volenti non fit injuria* did *not* apply.

10. INEVITABLE ACCIDENT (ACT OF GOD)

An *inevitable accident* is that which could *not* possibly have been prevented by the exercise of ordinary care, caution and skill. It means an accident which is *physically unavoidable*. In other words, it is an accident which is *not* capable of being prevented by ordinary skill and diligence.

As observed in *Fardon v. Harcourt* (referred to above), “People must guard against *reasonable probabilities* but they are *not* bound to guard against *fantastic possibilities*” If, in the prosecution of a lawful act, a purely accidental casualty arises, no action can be supported for any injury arising therefrom. But if the act done is unlawful, an action lies.

Inevitable accident may be caused by:

- (a) factors beyond the control of man, that is, those caused by forces of nature (termed *acts of God* or *vis major*); or
- (b) factors which are *within human control*, that is, those independent of the forces of nature.

HOLMES v. MATHER, (1875) L.R. 10 Ex. 261 (*Runaway horses’ case*). — The defendant’s horses, while being driven by his servant in the public highway, ran away by the barking of a dog and became so unmanageable that the servant could *not* stop them, though he tried to guide them as best as he could. At last, he failed to turn them clear around a sharp corner and they struck the balcony of the plaintiff’s house. The plaintiff who was standing on the balcony was injured. It was *held* that no action was maintainable by the plaintiff as the servant had done his best under the circumstances.

BROWN v. KENDALL, (1850) 6 Cush, (60 Mass.), 292 (*Fighting dogs’ case*). — In this American case, the plaintiff’s and the defendant’s dogs were fighting. The defendant was beating them in order to separate them and the plaintiff was looking on. In so doing, the defendant accidentally hit the eye of the plaintiff, inflicting upon him a severe injury. When the plaintiff filed a suit, it was *held* that the action of the defendant was a lawful and proper act in itself, which could be done by proper and safe means. Now, if in doing this act, he inadvertently hit the plaintiff in the eye and wounded him, it was the result of a pure accident and the defendant was *not liable*.

NITRO-GLYCERINE CASE. (1872) 15 Wallace 524. — The defendants, who were carriers, received a wooden case for transmission, without being informed of the nature of the contents. As the contents were found to be leaking, the defendants took the case to their office for examination. While the case was being opened, the nitro-glycerine contained in the case exploded and the building was damaged. In an action by the owner of the building against the carriers, it was *held* to be a case of sheer accident; the defendants were *not* in fault, as they were *not* bound to know the nature of the contents, unless the appearance excited suspicion. As the Court observed, “No one is responsible for injuries resulting from unavoidable accident whilst engaged in lawful business. The measure of care against accidents which one must take to avoid responsibility is that which a person of ordinary prudence and caution would use if his own interest were to be affected and the whole risk were his own.”

FARDON v. HARCOURT, (1932) 48 T. L. R. 215 (*Barking dog’s case*). The defendant parked his saloon motor-car in a street and left his dog inside. The dog had always been quiet and docile. As the plaintiff was walking past the car, the dog, which had been barking and jumping about in the car, smashed a glass panel and a splinter entered the plaintiff’s left eye, which had to be removed. In an action for damages, it was *held* that the plaintiff could *not* recover, as a *motor-car with a dog in it was not a thing which was dangerous in itself*, and such an accident was so unlikely, there was no negligence in taking such precautions against it. As the Court observed, “People must guard against *reasonable probabilities*, but they are *not* bound to guard against *fantastic possibilities*.”

STANLEY v. POWELL, (1891) 1 Q.B. 86 (*Pellet case*). The defendant, who was with a shooting party, fired at a pheasant. One of the pellets from his gun glanced off the bough of a tree and accidentally wounded the plaintiff, who was engaged in carrying cartridges and game for the party. It was *held* that the defendant was *not liable*.

(The *ratio decidendi* in this case has been criticised as erroneous, though the decision itself can be supported on the ground of *volenti non fit injuria*.)

11. MISTAKE OF FACT

A mistake of fact is no excuse, except in the cases where motive is an essential ingredient constituting the wrong.

In *Consolidated Company v. Curtis & Sons* (1892) 1 Q. B. 425, the owner of certain household furniture assigned it by a bill of sale to the plaintiffs. Subsequently, the assignor employed the defendants, a firm of auctioneers to sell it by auction at her residence. The defendants, who had no notice of the bill of sale, accordingly sold the furniture and delivered it to the purchasers. The defendants pleaded that they had acted under a mistake as to the true ownership of the property. But the Court *held* that the mistake of fact was no excuse for trespassing or interfering with the plaintiff's property so wrongfully sold and delivered.

The above decision has been profusely criticised. The reason underlying the rule is said to be that, if it were otherwise, it would be difficult for Courts to decide whether the mistaken belief was in fact honest and reasonable. However, there is little force in such an argument, because a similar inquiry is made in matters of criminal law, where mistake of fact is generally a good defence. Even in the law of tort itself, the Courts are often required to ascertain whether a person has acted "reasonably", as for instance, in the case of negligence.

12. EXERCISE OF COMMON RIGHTS

The exercise of ordinary rights for a *lawful purpose* and in a *lawful manner* is no wrong *even if it causes damage*. It will be a case of *damnum sine injuria*. Men are free to seek their own advantage in the ordinary pursuit of business or use of property, though a probable or intended result may be to diminish the profit or convenience of others.

Thus, competition in trade or business is, in itself, no cause of action, whatever damage it may cause. Even selling at unremunerative prices to attract customers or offering advantages to customers who will deal with oneself to the exclusion of a rival, are *not* torts. On the same principle, it has been held that the removal of soil from a man's own land, though it may result in drying up his neighbour's spring or well, does not constitute an invasion of a legal right and will *not* sustain an action. Even proof of malice will *not* improve the plaintiff's position. These are cases of *damnum sine injuria*.

(A reference may be made to the cases discussed under the head, "*Damnum sine injuria*" in Chapter 2.)

13 PRIVATE DEFENCE

It is human instinct to repel force by force and this instinct is allowed, nay, even approved, by law as a natural right. Every person has a right to defend his own person and property against an unlawful harm. This may even be done for a wife or husband, a parent or child and a master or servant. The force employed must *not*, however, be out of proportion to the apparent urgency of the occasion. The necessity, moreover, must be proved.

In *Morris v. Nugent* [(1836) 7 C. & P. 572], the defendant shot the plaintiff's dogs *after* the dog attempted to bite him. The Court *held* that the right of private defence was *not* available to the defendant. The shooting would be justified if the dog was actually attacking the person at the time it was shot. But, in *Turner v. Jagmohan Singh* (below), where a horse *continued* injuring the defendant, who was compelled to disable him with a spear, it was *held* that the defendant could successfully plead the right of a private defence.

In *Turner v. Jagmohan Singh*, [(1905) 27 All. 531], a vicious stallion attacked a pair of mares of the carriage in which the defendant was riding and continued doing so in spite of the defendant's efforts to calm it. Ultimately, the defendant got hold of a spear and inflicted a wound on its hind quarters. Subsequently, the stallion died of the spear-wound and its owner sued the defendant. It was *held* that the defendant's act was justifiable and the owner of the stallion was *not* entitled to any damages.

It has been held that the owner of agricultural land can protect his own land from a swarm of locusts and turn away the pests, although such locusts may then go to his neighbour's land. (*Shanker v. Laxman*, 1938 ILR Nag. 289)

However, the means which are used to protect one's property must always be reasonable, that is, proportionate to the injuries that are likely to be inflicted. Thus, trespassers may be kept away by using broken glass or spikes on the boundary wall - or even by keeping a fierce dog. However, the use of deadly implements like spring-guns or live electric wires of high voltage would not be justified.

The Orissa High Court has also confirmed that self-defence is a permissible defence in a suit for torts. The Court added that although the general exceptions of the Indian Penal Code do *not*, in terms, apply to a suit based on a tort, the principle of self-defence is applicable in such cases. (*Debendra Bhoi v. Meghu Bhoi*, A.I.R. 1986 Ori. 226)

14. PLAINTIFF A WRONG-DOER

(*Ex turpi causa non oritur actio*)

A person is disabled from recovering damages for an injury caused to him by reason of himself being a wrong-doer when some unlawful act or conduct on his own part is connected with harm suffered by him *as part of the same transaction*. This defence is based on the maxim, *Ex turpi causa non oritur actio* or *Ex dolo malo non oritur actio* No action arises from an immoral cause. This defence is available when the plaintiff's act is unlawful in itself.

Thus, a person *cannot* recover damages for an accident in cases where he himself was careless in his driving or drove far in excess of the statutory speed limit or in an intoxicated condition or in violation of the rules of the road.

In one case, Lord Asquith gave an interesting example of the application of this defence. Suppose A and B, two burglars, set out to rob a safe by using explosives to open it. However, because of A's negligent handling of the explosives, B is injured. In such a case, B would not succeed if he sued A for negligence. But, if A picks B's pocket or steals his watch on the premises where the safe is kept, B could perhaps sue A under the law of torts, as A's theft is totally unconnected with the intended burglary.

The author of a copyrighted book which is banned as indecent or immoral, *cannot* maintain an action against a person who has pirated a version of the book or has otherwise interfered with its sale. (*Stockdale v. Onwhyn*, 5 B & C, 173)

Likewise, if a person fraudulently mixes his goods with those of another loses his legal right to such goods, and has no remedy against the person who appropriates the entire mixture of such goods. (*Stephenson v. Little*, (1862) 10 Mich. 434)

Although this principle is universally recognised, there is a lot of practical difficulty in applying it. The best judicial minds have often differed upon the question in a given case, as to whether the illegal conduct of the plaintiff was a direct and proximate *cause* of his own injury or was merely a *condition* of such injury.

This ground of defence was disallowed in *BIRD v. HOLBROOK* (1828) 4 Bing. 628 (*Spring Gun Case*), where the plaintiff climbed over the defendant's wall in pursuit of a fowl. While in the defendant's garden, an injury was caused to him by a spring gun set up by the defendant without any notice. It was *held* that even though the plaintiff was a trespasser, he was entitled to recover damages, although the injury would *not* have occurred if the plaintiff had *not* trespassed on the defendant's land.

In one English case, *Saunders v. Edwards* (1987 2 All E.R. 651), the court observed that the conduct and relative moral culpability may be relevant in determining whether the defence of *ex turpi causa* is or is not to be allowed.

In the above case, the defendant had sold the lease of a flat to the plaintiffs, fraudulently representing that the lease included the terrace roof of the flat. Although the purchase price was

45,000 pounds, both parties agreed to reflect it in the document as 40,000 pounds in order to reduce the stamp duty payable on the transaction. The balance 5,000 pounds was shown as the price of the furniture and fixtures, although both parties knew that these were worth far below that figure.

When the plaintiffs discovered that the flat did *not* include the terrace, they sued the defendant for damages for fraudulent misrepresentation. In defence, it was argued that the plaintiffs had no right to sue, because they were themselves a party to the illegal evasion of stamp duty. The court, however, disallowed this defence because -

- this was no answer to the plaintiffs' claim for fraudulent misrepresentation;
- the moral culpability of the defendant far outweighed that of the plaintiffs;
- the illegal apportionment of the purchase price was wholly unconnected to the plaintiffs' suit for the tort and the loss suffered by them as a result of the fraudulent misrepresentation.

An old but interesting example of the application of this rule is the "Sunday law", which existed in some States of USA several years ago and prohibited travelling on Sundays - except in cases of emergency. In places where this law was in force, if the plaintiff was injured by reason of a defect in a highway whilst he was driving for pleasure on a Sunday, he could *not* recover damages as there was "a fault on his part that concurred in causing the damage complained of". (*Bosworth v. Swansey*, (1845) 10 Met. (Mass.) 363)

As Justice Morton observed in *Lyons v. Desotelle* (1878 124 Mass, 387), "Whoever travels on the Lord's Day, except for necessity or charity, is acting in violation of the law. Such act of travelling itself is unlawful and if the course of such travelling, he sustains an injury, he *cannot* recover."

15. ACTS CAUSING SLIGHT HARM

(*De minimis non curat lex*)

The law does *not* take account of trifles: *De minimis non curat lex*. Nothing is a wrong of which a person of ordinary sense and temper would *not* complain. The principle is also recognised in S. 95 of the Indian Penal Code.

COWARD v. BRADDELEY, (1859) 4 H & N 478. — A bystander touched a fireman on the arm to attract his attention to another part of the building where a fire was raging. On a suit filed by the fireman for battery, the Court *held* that the bystander was *not liable* for battery.

PROBLEM — A is driving along a dusty road and the wheels of his motor-car throw a little dust on the clothes of B, a pedestrian, which does him no harm. Is A liable in tort?

Ans. — A is *not liable*. This is a case of *de minimis non curat lex*.

However, the maxim has no application where there is an *injury to a legal right*. Thus, A walks across B's land (without B's permission), *not* thereby damaging, in any way, the soil of B. This will amount to a tort, because, if repeated, such an act would establish A's right of way across B's land.

Likewise, X casts and draws a net in water where Y has the exclusive right of fishing. Now, whether any fish is caught or *not*, X has committed a tort against Y, because the act, if repeated, would tend to establish a claim or right to fish in that water. (*Holford v. Bailey*, (1849) 18 L. J. Q. B. 109)

6 DISCHARGE OF TORTS

Questions in this chapter are:

Write a short note on: Discharge of torts. April 2015.

Write a short note on: Actio personalis moritur cum persona. November 2011, January 2017.

What does “Actio personalis moritur cum persona” mean? 2 marks. November 2012, 2013, April 2014.

What is meant by waiver? 2 marks. April 2013.

Write a short note on: Accord and satisfaction. April 2013.

What does accord and satisfaction mean? 2 marks.

There are *seven* different modes in which a tort is discharged. These are cases in which no remedy will lie for a tort. Where there is a vested right of action for a tort, such a right of action may be discharged in the following *seven* ways:

1. Death of either party
2. Waiver
3. Accord and satisfaction
4. Release
5. Acquiescence
6. Judgment recovered
7. Bar of Limitation

1. Death of either party

(a) Death of the person wronged, that is, the *plaintiff*

Actio personalis moritur cum persona. This important maxim means that a personal right of action dies with that person. At Common Law, if an injury was done either to the person or property of another for which *damages only* could be recovered, the action died with the person to whom, or by whom, the wrong was done. This was embodied in the maxim, *Actio personalis moritur cum persona*. Earlier, a personal action did *not* survive on the death, either of the person who sustained or the person who committed the wrong. The Law Reform (Miscellaneous Provisions) Act, 1934, has, however, virtually abolished this maxim.

Exceptions to the maxim, ‘*Actio personalis moritur cum persona*’

There are, in *English law*, four statutes which provide that the right of action *does* survive to the heirs or legal representative of a deceased party. These are, therefore, the *four exceptions* to the above maxim.

- a) *The Law Reform (Miscellaneous Provisions) Act, 1934*. - Since the passing of this Act, the maxim, *actio personalis moritur cum persona*, no longer holds. Under this Act, on the death of any person, all causes of action vested in him survive for the benefit of his estate, *except* actions for (i) defamation, (ii) seduction, (iii) inducing one spouse to leave or remain apart from the other and (iv) claim for damages for adultery.
- b) *The Fatal Accident Act, 1846*. - This Act enables the executor or administrator of a person whose death is caused by the wrongful act or default of another, to bring an action for the benefit of the widow, husband or child of the deceased.
- c) *The Employer’s Liability Act, 1883*. - This Act empowers the legal representatives of a workman who dies of injuries sustained whilst in the employer’s service, through any of the causes mentioned in the Act, to bring an action for compensation against the employer.
- d) *The Workmen’s Compensation Act, 1925*. - Under this Act, the dependant of a workman can claim compensation in cases where the workman dies of injury which, if he had survived, would have given him a claim to claim compensation.

Indian law - In India, there are *three* Acts which constitute the exceptions to the above maxim, namely:

- i. *The Legal Representatives' Suits Act, 1855*. - Under this Act, an action may be maintained by the executors or administrators or the representatives of a deceased person for any wrong committed in the lifetime of the deceased person which has occasioned pecuniary loss to the estate of such a person.
- ii. *The Fatal Accidents, 1855*. - This Act enables the legal representative of a person whose death is caused by the wrongful act, neglect or default of another, to bring an action for the benefit of the widow, husband or child of the deceased. Such a suit is to be brought within one year from the date of the death of the deceased person.
- iii. *The Indian Succession Act, 1925*. - Under S. 306 of this Act, all rights to prosecute any action existing in favour of a deceased person survive to his executor or administrator, except an action for (i) defamation, (ii) assault, as defined in the Indian Penal Code and (iii) personal injuries *not* causing the death of the party.

(The words "personal injuries" refer to corporeal or bodily injuries to the person, as distinguished from injuries to a person's property or reputation.)

(b) Death of the wrong-doer, that is, the *defendant*

It is a general principle of the Common Law that an action in tort abates on the death of the wrong-doer and the personal representatives *cannot* be sued in respect of torts committed by the deceased, except where the deceased has committed a tort which involves the wrongful appropriation of the plaintiff's property and has added it (or its proceeds) to his own estate, in which case an action can be maintained.

To the above mentioned principle, there is one important statutory exception in England, namely, the *Law Reform (Miscellaneous Provisions) Act, 1934*. This Act practically abolishes the maxim, *actio personalis moritur cum persona*. Under this Act, on the death of any person, all causes of action subsisting against him survive against this estate, except actions for (i) defamation, (ii) seduction, (iii) inducing one spouse to leave or remain apart from the other and (iv) claims for damages for adultery.

Indian law

- (i) *Legal Representatives' Suits Act*. - Under this Act, an action may be maintained against the executors or administrators or representatives of any deceased person for any wrong committed by him for which he would have been subject to an action.
- (ii) *The Indian Succession Act*- Under S. 206 of this Act, all rights of action existing against a person at the time of his demise survive against his executors or administrators, except an action for (i) defamation, (ii) assault, as defined in the Indian Penal Code, and (iii) personal injuries *not* causing the death of the party.

The Orissa High Court has *held* that where a money-decree was passed against a Hindu in respect of the amount received by him from the decree-holder by misrepresentation of facts, the liability would be personal and could *not* be extended to his son under Hindu law. It was further *held* that whatever relief the decree-holder had against the father under the law of torts did *not* subsist against his son, as it ended with the father's death. (*Prusti v. Mohanty*, AIR 1978 Oris. 217)

2. Waiver

The second factor which will discharge a tort is waiver. In waiver, it is *not* that a person waives or gives up his legal right altogether. Rather, the doctrine of waiver applies in cases where a man has more than one remedy for the same wrong and elects to pursue one of them, abandoning the others. In such cases, he must stand or fall by his election. The other remedies are said to have been *waived* by him. In short, a waiver is simply an election between remedies. For instance, if the injured person had remedies in both tort and breach of contract, and he elects to sue under the law of contracts, the cause of action in tort is waived and he *cannot* revert to it later.

Instances of torts which can be waived are conversion, trespass to land or goods, deceit and extorting money by threats. In these cases, the injured party may waive his remedy in tort in favour of some other remedy, and if he does so, this extinguishes his right of action in tort.

Waiver may be *express or implied*. It is express when a person, in terms, gives up the alternate remedy, and in this, it closely resembles a release. Waiver is implied when the person does or acquiesces in anything which is inconsistent with the alternate remedy to which such a person is entitled.

The *principle underlying* the doctrine of waiver is *twofold*. The *first* is to avoid multiplicity of proceedings, and the *second* is that if a person reasonably gives the impression that he has waived a particular remedy, it would *not* be equitable to allow him to go back to that alternate remedy.

The process of waiver is, however, *not* applicable to certain torts like defamation and assault.

3. Accord and satisfaction

The third ground for discharge of a tort is what is known as ‘accord and satisfaction’. *Accord* means a mutual agreement to pay or to do something as compensation and *satisfaction* means the actual payment of the sum or the doing of the thing agreed upon. When such an agreement is executed and satisfaction has been made, the agreement is called *accord and satisfaction* and operates as a bar to the right of action. “Accord” signifies consideration which makes it operative and the “satisfaction” may be either executed or executory.

Just as a civil obligation can be discharged by accord and satisfaction, so also, tortious liability can be discharged by accord and satisfaction, that is, it can be extinguished by an agreement for valuable consideration between the injured party and the tort-feasor.

Thus, if a person is injured in a train accident, he may agree to accept a specific sum of money as compensation and agree *not* to sue the Railway authorities at any time in the future for injuries suffered by him in that accident.

Thus, in this mode of discharge of a tort, there is an agreement (*accord*) between the injured party and the tort-feasor to accept a certain sum of money or the performance of some other act in discharge of the claim of the injured party and the subsequent payment or performance (*satisfaction*) of what was agreed to. When an accord has been arrived at and there is full satisfaction, the accord can be used to negate any further claim of compensation made later by the injured party in respect of that tort - unless the accord itself is vitiated by fraud, coercion or mistake.

Generally speaking, accord and satisfaction manifest themselves in an agreement wherein the injured party accepts something less than what he could have claimed. Thus, A and B are involved in a car accident. As A has lost his wife only a few weeks ago, he is *not* in a mental state to proceed against B to claim Rs. 5 lakhs, which he thinks is justly payable to him by B. In these circumstances, a common friend brings about a mutually acceptable settlement between them under which B agrees to pay a sum of Rs. 3 lakhs in full and final settlement of A’s claim in respect of that accident. Such an arrangement, that is, the *accord* (agreement to pay Rs. 3 lakhs) and the *satisfaction* (the actual payment of this amount) is beneficial to both the sides. A gets the money (though a lesser amount) immediately and without going through the long-drawn process of litigation, and B in turn benefits by parting with Rs. 3 lakhs as against the amount of Rs. 5 lakhs claimed by A.

Needless to state, an accord *without* satisfaction is useless and the claim of the injured party for the tortious act is kept alive.

In the case of a libel, a civil action in tort and criminal proceedings for libel are *distinct and different remedies*. Therefore, any compromise made in the criminal proceedings would *not* operate as an accord and satisfaction in the civil suit - unless it is shown that the compromise in the criminal proceeding was also to operate as an accord and satisfaction in the civil action.

(Govinda v. S. Rao, 1941 2 MLJ 674)

4. Release

A release means the surrender of a right of action against the wrong-doer. It is open to the injured party to release the wrong-doer from liability. Release closely resembles accord and satisfaction (discussed above) with the difference that a release is usually embodied in a formal document.

According to English Law, however, the release of right must be either supported by consideration or by a formal document which is signed, sealed and delivered. A covenant *not* to sue the tort-feasor would operate as a release and may be put up in defence in an action of tort. However, a release which is executed under mistake or in ignorance of one's rights or obtained by fraud is *not* binding.

Further, a mere covenant *not* to sue one of the joint tort-feasors, does *not* operate as a release so as to discharge the others. Thus, if a tort is committed against A by X and Y, and A agrees with X *not* to sue him, this will *not* operate to discharge Y from liability.

5. Acquiescence

Where a person who knows that he is entitled to enforce a right, *neglects* to do so for a length of time, the other party may fairly infer that he has *waived or abandoned* the right. The law helps the active and the diligent, and *not* those who sleep or slumber over their rights.

But, to deprive a man from his legal remedies, there must be something more than merely delay. Direct acquiescence takes away a right of action. If an injured person, with full knowledge of his rights to bring an action for tort, neglects to do so for a long time, it may fairly be inferred that he has waived or abandoned the right and the tort is discharged.

Thus, in one case, it was *held* that the right to a house was taken away by acquiescence after it was dedicated as a house of prayer. (*Sufroo v. Futteh Shaikh*, (1871) 15 W.R. 505)

(Today, the statutes of limitation categorically lay down the period after which the legal remedy of recovering damages for various torts would become time-barred. See under the heading, "Bar of Limitation", below.)

6. Judgement recovered

The damages resulting from one and the same cause of action must be assessed and recovered once and for all. When a suit is filed and a judgement pronounced, the original right of action is merged therein and the plaintiff will *not* be permitted to agitate the matter again. A second suit based upon the *same* cause of action will be barred on the principle of *res judicata*, which prevents a Court from hearing the same matter which has been adjudicated upon by a competent Court in a previous suit. The plaintiff who has sustained a broken arm and a broken leg by one and the same assault must sue for *both* the injuries in the same action.

In one case, the plaintiff was assaulted by the defendant and was awarded damages in a suit against the defendant. Long after obtaining such damages, he discovered that he would require further surgery. So, he sued again for further damages. The Court *held* that damages are recoverable only once for the same injury. Accordingly, it was *held* that he was *not* entitled to file the second suit. (*Fitter v. Veal*, 1701 12 Mod. Rep. 542)

Exceptions

The above rule admits of the following *four* exceptions:

- a) Where two or more distinct rights are violated, a fresh suit can be filed for violation of each right.

PROBLEM—The plaintiff, a cab-driver, had in an action already recovered compensation for damage done to his cab by a collision with the defendant's van. He brings another action in respect of personal injuries suffered by him in consequence of the same accident. The defendant objects to the second suit brought on the same cause of action. Discuss.

Ans. — Here, two distinct rights are violated, namely, damage to property and damage to person. The cab-driver is, therefore, entitled to bring a second action for his personal injuries for they were caused by the violation of a different right. (*Brunsdon v.*

Humphrey, (1884) 14 Q. B. D. 141)

- b) Secondly, in cases in which damage is *not* of the essence of the action (as in trespass), a fresh cause of action arises *de die in diem*, that is, every time the tort is committed.
- c) Thirdly, in cases in which damage is of the essence of the action (as for instance in nuisance), a fresh cause of action arises as often as fresh damage accrues. In cases of continuing nuisances, successive actions may, from time to time, be brought in respect of the continuance.
- d) Lastly, where the injury is of a continuing nature, the bringing of an action and the recovery of damages for the reparation for the original wrong do *not* prevent the injured party from bringing a fresh action for the continuance of the injury.

7. Bar of limitation

Actions for tort must be brought within the prescribed statutory periods; otherwise the right to sue is barred.

In *India*, the Limitation Act has laid down the various periods within which one must sue for different torts. For instance, suits to recover compensation for *false imprisonment* or for *libel* become time-barred after one year and a suit for compensation for *trespass* upon immovable property *cannot* be filed after *three years*.

7 LIABILITY FOR WRONGS COMMITTED BY OTHERS (VICARIOUS LIABILITY)

Questions in this chapter are:

What is meant by liability by ratification? 2 marks. November 2011, 2012, 2013, 2014. January 2018.

Write short note on: liability by ratification. April 2014.

Who is a master? Who is a servant? When is the master held responsible for the torts committed by his servant? April 2011.

Discuss contracts of services with reference to vicarious liability. January 2018.

Explain the concept of vicarious liability, with the help of relationship. January 2018.

Discuss in detail the principles of vicarious liability with respect to master and servant. November 2015.

What is the meaning of “Qui facit per alium facit per se”? 2 marks. April 2011, 2013.

What are the two maxims on which the principle of vicarious liability based? 2 marks. April 2015, 2016.

Vicarious liability means liability which is incurred for, or instead of, another. Every person is responsible for his own acts. But there are circumstances where liability attaches to a person for wrongs committed by others. As *Salmond* has observed, “In general, a person is responsible only for his own acts, but there are exceptional cases in which the law imposes on him vicarious responsibility for the acts of others, however blameless himself.” The most common instance of vicarious liability is the liability of a *master* for wrongs committed by his *servant*. In such cases, the liability is *joint as well as several*. The wrong-doer himself is liable, be he a servant or an agent, as much as his master or principal.

Now, liability for another’s wrongful acts or omissions can arise in the following *three* ways:

- I. Liability by *authorisation* or *ratification*, that is, where the defendant has authorised or ratified the particular wrongful act or omission.
- II. Liability arising out of a *special relationship*, that is, where the defendant stands to the wrong-doer in a relationship which makes him answerable for wrongs committed by the latter, though *not* specially authorised, for instance, a master and his servant.
- III. Liability by *abatement*, that is, where the defendant has induced another to commit a wrong.

Instances of vicarious liability are discussed in this Chapter under the following heads:

- I. Liability by authorisation or ratification
- II. Liability arising out of a special relationship
 1. Master and servant
 - A. Liability of the master to third persons
 - B. Liability of the servant to third persons
 - C. Liability of the master to the servant
 - D. Liability of the servant to the master
 2. Owner and independent contractor
 3. Principal and agent
 4. Company and its directors
 5. Firm and its partners
 6. Guardian and ward

III. Liability by abetment.

I. LIABILITY BY AUTHORISATION OR RATIFICATION

Any person who authorises or procures a tort to be committed by another is responsible for that tort *as if* he had committed it himself. The maxim underlying this doctrine is *Qui facit per alium facit per se. He who does an act through another does it himself*. In such a case, the person authorising is liable, *not only* for the tort actually authorised, *but also* for its direct consequences.

An act done by A, *not* for himself, but for B, though without the authority of B, becomes the act of the principal B, if subsequently B *ratifies* the Act, that is, assents to that act and approves it. If one person commits a tort, purporting to act on behalf of another, but without his authority and that other person subsequently ratifies and assents to that act, he thereby becomes responsible for it. The person ratifying the act is bound by the act, whether it be to his advantage or detriment. Such an act becomes the act of the principal in the same way as *if* it were done with his previous authority, according to the maxim, *Omnis ratihabitio retrotrahitur et mandato priori asquiparatur*. Every ratification of an act relates back and becomes equivalent to previous authorisation in the eyes of law.

The following *four conditions* must be satisfied before one person can be held liable for another's tort on the ground of ratification:

1. Only such acts bind a principal by subsequent ratification as were done at the time on his behalf. What is done by a person on his own account *cannot* be adopted by another person later on.
2. The person ratifying the act must have full knowledge of its tortious character.
3. Further, ratification must take place at a time when the person ratifying the act could himself have done that act.
4. Acts which are illegal or otherwise void *cannot* be ratified.

II. LIABILITY ARISING OUT OF A SPECIAL RELATIONSHIP

It may be noted that normally, the person who is liable for a wrong is he who does the wrong. This rule, however, admits of the following *six exceptions*. Vicarious liability can arise where the doer of the act and the person sought to be held liable are related to each other as:

1. Master and servant
2. Owner and independent contractor
3. Principal and agent
4. Company and its directors
5. Firm and its partners
6. Guardian and ward.

1. MASTER AND SERVANT

A servant is a person who voluntarily agrees, *whether for wages or not*, to subject himself at

all times during the period of service to the lawful orders and directions of another in respect of certain work to be done. A master is the person who is legally entitled to give such orders and have them obeyed. The relation of master and servant exists where the employer can *not only* direct what work the servant is to do, *but also* control the manner of doing such work. A son, for example, is *not*, in the eyes of law, a servant of his father.

HEWITT v. BONVIN, (1940) 1 K. B. 188 (*Son driving father's car*). - A son obtained from his mother, who had authority to grant it, permission to drive his father's car. The son wanted the car to drive two girlfriends to their home. Neither the father nor the mother knew the girls and it was no concern of either of them that the girls should be driven to their home. On the way back, due to the negligent driving of the son, the car met with an accident and a friend who had accompanied them was killed. In an action by the legal representative of the deceased friend against the father as the owner of the car, it was *held* that the son was *not* driving the car as his father's servant or agent or for the father's purposes, and therefore, the father was *not liable* for the tortious acts of his son.

It has been *held* that when the owner of a motor-car leaves his vehicle at a workshop for repairs, the relationship between the owner and the proprietor of the workshop is *not* that of a master and servant. In such cases, the proprietor is in the position of an independent contractor, and if he takes the vehicle out, and there is an accident, the owner is *not* vicariously liable. (*Devinder Singh v. Mangal Singh*, A.I.R., 1981 Pun. & Har. 53)

Principle on which vicarious liability is based

As seen above, a master is held liable for his servant's wrongful acts or omission, a *principal* for his agent's wrongful acts, and so on. The *reason* for this rule is that he who does a thing through another, does it himself. *Qui facit per alium facit per se*. The second principle on which a master's liability is fixed is that of *Respondeat superior*. *Let the superior be responsible*.

(a) *Qui facit per alium facit per se*

The master's responsibility for his servant's act has its origin in the maxim, *Qui facit per alium facit per se*. *He who does an act through another, is deemed in law to do it himself*. A person who puts another in his place to do a class of acts in his absence, necessarily leaves him to determine, according to circumstances that arise, *when* the act is to be done and trusts him for the *manner* in which it is to be done. Consequently, he is answerable for the wrongs of the person so entrusted, *either* in the manner of doing such an act or in doing, such an act under circumstances in which it ought *not* to have been done, provided that what is done is *not* done from any caprice of the servant in the course of his employment.

(b) *Respondeat superior*

The master is answerable for every such wrong of the servant or agent as is committed *in the course of the service*, though no express command or privity of the master is proved. The rule is based on the maxim, *Respondeat superior*: Let the superior be responsible. Its origin lies in the legal presumption that all acts done by the servant *in and about his master's business* are done by his master's express or implied authority and are in truth the acts of the master.

The *two main reasons* for the recognition of this rule are: (a) the difficulty in proving actual authority; and (b) the fact that employers usually *are*, while their servants *are not*, financially capable of bearing the burden of civil liability. In the absence of such a rule, a rich man who employs a poor servant to commit a wrong would go scot free. Thus, the imposition of such liability on the master helps to prevent accidents because the master himself would be more careful in choosing the servant than he would have been if the rule were otherwise.

In an American case, the issue before the Court was whether, under the doctrine of *respondeat superior*, a client is liable for the tortious conduct of his lawyer, which causes injury to a third party. In the present case, the plaintiff sustained serious injuries in a collision due to negligence of the lawyer, Mr. H, who was in an intoxicated condition at the relevant time. Mr. H was returning home after representing his client's case when the accident occurred. The client

denied any vicarious liability on his part. The Court *held* that even though the relationship between the client and Mr. *H* was one of the agency, Mr. *H* was *not* engaged in the furtherance of the client's business to such a degree that it could be said that the client had the right to direct and control the physical conduct of Mr. *H*. Accordingly, it was *held* that the client was *not vicariously liable* (under the doctrine of *respondeat superior*) for the consequences of Mr. *H*'s misconduct. (*Brinkly v. Farmers Elevator Mutual Insurance Co.*, 485 F 2d 1283)

FOUR KINDS OF LIABILITIES

It may be noted that the relation between a master and servant gives rise to *four* kinds of liabilities:

- A. Liability of the master to third persons
- B. Liability of the servant to third persons
- C. Liability of the master to the servant
- D. Liability of the servant to the master.

A. LIABILITY OF THE MASTER TO THIRD PERSONS

Torts committed in the servant's course of employment

A master is liable to third persons for every wrong of his servant *committed in the course of his employment*. A wrongful act is said to be done "*in the course of employment* if it (i) is authorised by the master or (ii) is a wrongful and *unauthorised* mode of doing some act *authorised* by the master. Thus, although the particular act which gives rise to the cause of action may *not* be authorised, still if the act is done *in the course of employment which is authorised*, the master becomes *liable*.

In other words, to hold a master liable for the wrongful act of a servant, it must be shown that such an act was committed in the course of the master's business, so as to form part of it, and *not* merely coincidental in time with it. For torts committed in any manner beyond the scope of employment, the master is liable only if he has expressly authorised or subsequently ratified such an act. The Supreme Court in *Dhawandadhara Chemical Works Ltd. v. State of Saurashtra* laid down that the existence of the right in the master to supervise and control the execution of the work done by the servant is a *prima facie* test.

In an American case, *Birmingham Electric Co. v. Hawkins* (37 Ala. App. 282, 67), the defendant's bus-driver, *D*, apparently angered because he was unable, for several blocks, to get ahead of the plaintiff's automobile, blew his horn loudly. Later, he told the plaintiff to stop, and when he did so, *D* followed him and assaulted him with a revolver. Holding that *D*'s employer was *not* liable, the Court observed that *D* was *not* acting within the scope of his employment, but was performing an act entirely personal to himself.

ROBERTS v. SHANKS, (1924) 27 Bom. L. R. 548 (*Chauffeur's case*). — On alighting from his car, the defendant ordered his chauffeur to take the car directly to the garage. The chauffeur, however, drove the car to his own residence, negligently drove it into the plaintiff's car and *caused* damage to it. The Court *held* that the defendant was liable in damages, for at the time of the accident, the chauffeur was acting in the course of his employment.

CENTURY INSURANCE CO. LTD. v. NORTH IRELAND ROAD TRANSPORT BOARD, (1942) A. C. 509 (*Petrol fire case*). — *A*, a driver of a petrol lorry belonging to *B*, whilst transferring petrol from the lorry to an underground tank, struck a match to light a cigarette and threw it on the floor, and thereby caused fire and an explosion which caused damage to the property of *C*, who sued *B* for damages. It was *held* that *B* was liable, as *A* was clearly negligent in the discharge of his duty. It was observed that although the act of lighting a cigarette was done by the driver for his own comfort, the careless act was done in the course of the driver's employment and was a negligent mode of conducting his work.

According to the Bombay High Court, the course of employment normally begins when the employee reaches his place of work. To extend it to the journey to and from work, it must be shown that, in travelling by that particular route and at that particular time, the employee was

fulfilling an express or implied term of his contract of service. According to the Court, the *test* is whether the employee was exposed to the particular risk by reason of his employment *or* whether he took the same risk as those incurred by any member of the public using the highway. (*Gajanan Bhav v. E.S.I. Corporation*, 75 B. L. R. 637)

In a case decided by the High Court of Punjab and Haryana, the deceased was a passenger in a goods truck, and was allowed to board the same by the driver of the truck in contravention of the Punjab Motor Vehicles Rules, 1940. The accident in which the passenger succumbed to his injuries took place due to the negligence and carelessness of the driver. The question before the Court was whether the owner of the truck could be made vicariously liable on the ground that the driver was acting in the course of his employment. Answering this question in the negative, the Court *held* that the owner of the truck had *not*, in any way, authorised or acquiesced in the carriage of the deceased as a passenger in the truck. In the circumstances, it could *not* even remotely be said that the driver was acting in the course of his employment, as no employer can be deemed or assumed to authorise the contravention of the law or the commission of an offence. (*Jiwan Class Roshan Lal v. Karnail Singh and Others*, A. I. R. 1980 Punj. & Har. 167)

In another case, the master had ordered the driver to take the car for servicing, specifically permitting him to allow one police constable (known to the master) to travel with him, and expressly forbidding him from picking up other passengers *en route*. However, intending to make some money *for* himself, the driver picked up some other people on the way, and in the accident that followed, these unauthorised passengers were killed. The Court *held* that the master could *not* be held liable in the circumstances. In picking up other passengers, the driver had done something for himself which was *not* part of his job and which his master had expressly forbidden. The Court also observed that the master could *not* be made liable for the wrongful act of his servant, simply because the accident occurred when the latter was engaged in the course of his master's business. (*Machiraju Vishlekshi v. The Treasurer, Council of Indian Mission of Lutheran Church*, A. I. R. 1978 A.P. 310)

DEATONS PROPRIETARY LTD. v. FLEW (1949) 79 CLR 370. In this Australian case, X entered the defendant's hotel and spoke to a barmaid, who threw a glass of beer in his face. According to X, he had asked her a polite question, but the barmaid said that he had insulted her. The Court *held* that although the barmaid was *liable*, the defendant (that is, the owner of the hotel) was *not liable*, as the barmaid's act was an independent personal act *not* connected to the work she was employed to perform.

HEASMANS v. CLARITY CLEANING CO. LTD. (1987 ICR 949). —An office-cleaning contractor company employed a cleaning lady to clean the office after office hours. It was discovered that she had used the office telephone to make personal calls worth 1,500 pounds in all. The owners of the office sued the contractor as vicariously liable for the tort of the cleaning lady. The Court of Appeal *held* that the contractor was *not liable* for the lady's torts. The calls were *not* made in the course of employment, as telephoning was *not* part of her duties, although cleaning the phone was.

MAKANJUOLA v COMMISSIONER OF POLICE (1989 The Times 8). - A Nigerian student was found to have undertaken part-time work in contravention of her visitor's permit. A policeman called at her house and told her that she was liable to be deported. He added that he would *not* report her if she granted him sexual favours, which she did to avoid deportation. In a suit filed against the policeman and the Commissioner of Police, the Court awarded exemplary damages against the policeman himself but *held* that the Commissioner was *not vicariously liable*.

JOSEPH v. CRAIG, (1919) 1 Ch. 1. (*Refuse case*). — X employed his servants to carry refuse and to deposit it in a certain place set apart for the purpose. *In order to save themselves* trouble, and *not for* the benefit of X, the servants wrongfully deposited *the refuse* upon P's premises, instead of carrying it further to its proper destination. P sued X for trespass. In this case, what the

servants did was *not only contrary* to express orders, but it was done *not* for the benefit of X, the master, but in order to save themselves the trouble of carrying the refuse for a longer distance. Therefore, the master was *not* liable for what the servants did. If X had asked his servants to deposit the refuse *wherever they liked*, he would have been liable.

KEPPEL BUS COMPANY LTD. V. SA'AD BIN AHMAD, (1974) 2 All. E. R. 700. — In this case, the Appellant was a Bus Company and the Respondent was a passenger on one of its buses. In the course of the journey, the conductor, who was employed by the Appellant, was rude to an elderly lady who wished to get off the bus. Thereupon, an altercation broke out between the conductor and the Respondent but the other passengers prevented them from coming to blows. After the old lady got off, the conductor began to abuse the Respondent and struck him in the eye, breaking the Respondent's glasses and causing the loss of sight of his eye.

In a suit filed by the Respondent in the *High Court of Singapore* against the bus company and the conductor, it was *held* that when he hit the Respondent, the conductor was acting in the course of his duties, inasmuch as he was maintaining order amongst the passengers. It was, therefore, *held* that the bus company was vicariously liable for the act of the conductor. However, on appeal to the *Privy Council*, it was *held that the bus company was not liable*. The Court observed that even if it was assumed that one of the duties of the conductor was to keep order amongst the passengers, there was no evidence of any disorder amongst the passengers. Nor were there any circumstances from which it could be inferred that there was an emergency situation calling for forcible action on the part of the bus conductor.

In *Rajasthan State Road Transport Corporation v. Kailash Nath Kothari*, a bus which met with an accident was hired along with the driver by the corporation from a private owner. Although the driver continued to be under the payroll of the owner, his services were transferred along with complete control to the corporation under whose directions, instructions and commands the driver was to ply or *not* to ply the bus on the road for which a permit was held by the corporation. In these circumstances the corporation, and *not* the owner, was *held* vicariously liable for the tort committed by the driver. Laying down the principle applicable to the case, ANAND J. observed:

“The general proposition of law and presumption arising therefrom that an employer, that is, the person who has the right to hire and fire the employee, is generally responsible vicariously for the tort committed by the concerned employee during the course of his employment and within the scope of his authority, is a *rebuttable presumption*. If the original employer is able to establish that when the servant was lent, the effective control over him was also transferred to the hirer, the original owner can avoid his liability and the temporary owner or the hirer, as the case may be, must be held vicariously liable for the tort committed by the concerned employee in the course of his employment while under the command and control of the hirer, notwithstanding the fact that the driver would continue to be on the payroll of the original owner.”

PROBLEMS

1. A's driver, after dropping him at his office, goes to buy some cigars for his master. The driver, however, wanting to meet a friend of his, takes a longer route to the shop than the one which A was accustomed to buy cigars, and while on his way to his friend's house, negligently runs down B and causes injury to B. Will B succeed in getting damages from A? Give reasons.

Ans.: Here, A's driver was acting in the course of his employment. B will succeed.

2. A sends his chauffeur with his car to meet a guest at a railway station. The chauffeur, desiring to do some private business of his own, take a circuitous route to the station, and while thus deviating from the usual route, by his negligence, injures a pedestrian. Is A liable?

Ans.: In this case, the servant, being on master's business, takes a circuitous way in order to do some private work of his own. Owing to this deviation, the servant does *not* cease to be in the employment of the master, so as to divest the latter of all liability. Therefore, A is *liable*:

Storey v. Asthon, (1860) L. R. 4 Q. B. 476.

If the servant was going on a frolic of his own, without being at all on his master's business, then of course, the master would *not* be liable: *Joel v. Morison*, (1834) 6 C & P. 502.

3. The defendant, a garage company, hired out a car to take the plaintiff on a journey and also provided a driver. The car was filled with luggage, but before the plaintiff got into the car, an air-raid warning obliged him to take shelter, and thereupon the driver drove off with the luggage. The plaintiff sues the garage company for damages for the loss of luggage. Advise the garage company.

Ans.: The driver was acting in the course of his employment. So, the garage company is liable.

MASTER WHEN LIABLE FOR HIS SERVANT'S TORTS

A master becomes liable for the wrong done by a servant in the course of his employment in the following six ways:

1. The wrong may be the natural consequences of something done by the servant with ordinary care in execution of the master's specific orders.

GREGORY v. PIPER, (1829) 9 B & C. 591 (*'Rubbish Case'*). — The defendant and the plaintiff were neighbours and there was a dispute between them as to a right of way. In order to obstruct the plaintiff from using the way, the defendants ordered his servant to place rubbish across the pathway, but to put it carefully so that it should *not* touch the plaintiff's wall. The servant executed the orders of the master carefully, but the heaped-up rubbish began to slide down in course of time, with the result that a portion of it touched the plaintiff's wall. The plaintiff sued the defendant for trespass. The Court *held* that if what the servant did was what he was authorised to do, and if the wrong was the natural consequence of something done by a servant, however carefully it might have been done, the defendant would be answerable.

However, an act of a servant, which is *not* in discharge of his duty, will *not* make the employer *liable*. Thus, in *one English case*, X, a truck driver was allowed by his employer to stop for refreshments when undertaking a long journey. One day, he parked the truck and was crossing the road to reach a cafe, when, partly due to his own negligence, he collided with the plaintiff who was on a motor-cycle. The plaintiff was injured and he sued X's employer for his injuries on the ground that, at the time of the accident, X was acting in the course of his employment. The Court *held* that X's employer was *not liable*, because although he was permitted to obtain refreshments on long journeys, the obtaining of refreshments was *not* something he was specifically employed for, and that he could *not* be said to be discharging his duty towards his employer at the time when the accident occurred. (*Crook v. Derbyshire Stone Ltd.*, 1956 2 All. E. R. 447).

2. The wrong may be due to the servant's want of care or negligence in carrying out the work or business in which he is employed.

BAYLEY v. MANCHESTER S. & L. RLY., (1873) L.R. 8. C.P. 148 (*Porter's Case*). — It was one of the duties of the porters of the defendant Railway Company to prevent passengers from getting into the wrong train. The plaintiff, a passenger, was in fact in the right train, but a porter, under an erroneous belief that the plaintiff was in the wrong train, violently pulled him out of the carriage. Now, when a master authorises his servant to do a particular class of acts, he is liable for the servant's errors of judgement or improper acts in exercising such authority. The act of the porter was merely a wrongful or mistaken way of doing the work entrusted to him. Thus, the act was done in the course of the servant's employment and the defendant Company was therefore *held liable*.

MILNER v. GREAT NORTHERN RLY., (1884) 5 L.T.N. 367 (*The Cloak-room Clerk's Case*). — A cloak-room clerk in the defendant's employment used to take up parcels of the passengers from the cloak-room to the train as part of his duty. A passenger asked him to take a parcel to the train which he did, and he was running back, he ran against another porter, who in his turn dashed against the ticket-collector and the ticket-collector collided with the plaintiff's wife, causing

injuries which resulted in her death. The plaintiff sued the Railway Company. The Court *held* that the Railway Company was *liable in damages*. The *reason* is that the master is liable for the injury caused by the servant's want of care or negligence in executing the work in which he is employed. At the time of the accident, the cloakroom clerk was acting within the scope of his employment and hence the defendants were *liable*.

RADLEY v. LONDON PASSENGER BOARD, (1942) 1 All. E. R. (*Infant passenger's case*). - The infant plaintiff was a passenger on the upper deck of an omnibus belonging to the defendant. While the omnibus was proceeding along a country road, its upper part brushed against the branches of a tree over-hanging the road and some of the windows were broken. A splinter of glass penetrated the infant plaintiff's eye and necessitated its removal. The accident occurred at mid-day and the tree was clearly visible along the road. It was *held* that it was the duty of the driver to keep a lookout for obstructions, and he had failed to perform that duty. The defendant, that is, the bus company, was, therefore, *liable*.

But if the servant, instead of doing that which he is employed to do, does something he is *not* employed to do at all, the master *cannot be said to do it through his servant*, and therefore, is *not* responsible for the negligence of the servant in doing it, as will be dear from the cases discussed below.

WILLIAMS v. JONES, (1865) 3 H & C. 602 (*Carpenter's Case*). — The defendant employed his servant, a carpenter, to make signboards. The carpenter, while lighting his pipe, negligently set fire to a shed. The Court *held* that the defendant was *not liable*. There was no negligence in making the signboard (the master's business) but only in smoking the pipe (the servant's business), and mere contemporaneity did *not* make it part of a single transaction done on the master's behalf. True, he was negligent in taking care of the shed, but the only business the master employed him for was to *make a signboard*.

POULTON v. LONDON AND S. WEST RLY., (1847) L. R. 2 Q.B. 534 (*Station master's case*). — A station master, having demanded payment for the carriage of a horse conveyed by the defendant railway company arrested and detained the plaintiff for non-payment until it was ascertained by telegraph that all was right. The railway company had no power to arrest for non-payment of carriage of a horse. Here, the implied authority of a station master did *not* extend to the doing of acts which are *ultra vires* the company. In the absence of any proof of express authority, the station master was acting beyond the scope of his employment and the company was therefore *not liable* for the act of its servant.

NALINI SEN GUPTA v. CORPORATION OF CALCUTTA, 52 Cal. 983. — A and B were employed by C, as chauffeur and cleaner respectively of his car. One day, A and B were sent by C with his car for repairs to a workshop. The road leading to the workshop being closed to traffic, A had to leave the car at some distance from the workshop, in charge of B, the cleaner, whose duty was only to clean the car and who was instructed *not* to drive the car. During A's absence, B drove the car and negligently dashed against a municipal lamp-post and damaged it.

It was *held* that C was *not liable* for the act of B, the cleaner, which lay outside the scope of his employment. Neither would he be liable for the act of A, the chauffeur, as in leaving the car with the cleaner he was *not* guilty of negligence under the circumstances. However, in such cases, the municipality can successfully sue B, the wrongdoer.

BEARD v. LONDON GENERAL OMNIBUS CO. (1900) 2 Q. B. 530 (*Conductor driving bus case*). - At the end of a journey, C, a conductor of an omnibus company, in the temporary absence of the bus driver, began to drive the bus for the purpose of turning it around for the return journey. In doing so, he negligently caused a collision with B's car and damaged it. B sued the company for the damages done to his car. In this case, as driving *not* being part of the work which C, the conductor, was employed to do, it was *held* that the Omnibus Company was *not* responsible for his negligent driving.

WARREN v. HENLEYS LTD., (1948) 5 All. E. R. 935 (*Petrol pump attendant's case*). —

Erroneously believing that the plaintiff had evaded paying for the petrol just filled into his car, the attendant of the petrol pump used violent language with him. The plaintiff gave him bills, and on the attendant continuing to abuse him, he called a policeman, whereupon the attendant assaulted the plaintiff. In these circumstances, the Court *held* that the defendant petrol company was *not liable* for the attendant's unauthorised acts.

3. The servant's wrong may consist of excess or mistaken execution of a lawful authority.

In cases where the wrong committed by the servant consists of excess or mistaken execution of a lawful authority, it must be shown -

- (a) that the servant intended to do, on behalf of his master, something which he was, in fact, authorised to do; *and*
- (b) that the act, if done in a proper manner, or under the circumstances erroneously supposed by the servant to exist, would have been lawful.

BAYLEY v. MANCHESTER S. & L. RAILWAY, (1873) L. R. 8 C. P. 148. — In this case (discussed earlier), the plaintiff was a passenger on the defendant's railway. He sustained injuries in consequence of being violently pulled out of a railway carriage by one of the defendant's porters, who acted under wrong impression that the plaintiff was in the wrong carriage. The Court *held* that the defendant Railway Company was *liable*.

POLAND v. JOHN PARR AND SONS, (1927) 1 K. B. 236 (*Carter's case*). — A carter in the employment of X & Co., on his way home in the middle of the day, was following behind a wagon laden with sugar in bags, belonging to X & Co. He saw a boy walking beside the wagon with his hand upon one of the bags. Honestly and reasonably thinking that the boy was stealing sugar, he gave him a blow with his hand on the back of the neck. The boy fell and the wheel of the wagon injured his foot. The boy sued X & Co. for the damages in respect of the injuries sustained by him. X & Co. repudiated all liability. The Court *held* that the carter has implied authority to make reasonable efforts to protect the defendant's property, that the violence exerted was *not* so excessive as to take his act outside the scope of the authority. X & Co. was therefore *liable*.

4. The wrong may be a wilful wrong done on the master's behalf and with the intention of serving his purpose.

A master is responsible for the act of his servant, even if such act is wilful, reckless or improper, provided that the act is an act of the servant done *within the scope of his employment*.

LIMPUS v. LONDON GENERAL OMNIBUS CO., (1861) 1 H. & C. 526. — The driver of the defendant company's omnibus, wilfully and contrary to the company's express orders forbidding racing with and obstructing other omnibuses, drove across the road in order to obstruct the plaintiff's omnibus and caused it to upset. The Court *held* that the company was *liable*, because "the act of driving was *not* inconsistent with the employment, when explained by his desire to get before the other omnibus".

JAFFERSON v. DERBYSHIRE FARMERS LTD., (1921) 2 K. B. 281 (*Fire by spirit*). — The defendants were using the plaintiff's premises as a garage. Their servant, engaged on their business, poured out motor spirit from a drum and while doing so, lit a cigarette and threw away the match, whereby the spirit ignited and burned down the garage. The Court *held* that the defendants were *liable*. To pour out spirit while smoking is a negligent way of working, that is, it amounted to negligence of the servant in *performing the master's business*.

PETTERSON v. ROYAL OAK HOTEL LTD. (1948) N. Z. I. R. 136 — An intoxicated customer was refused a further drink, whereupon he threw a glass at the barman. Not to be outdone, the barman picked up a piece of glass and flung it back on the customer. A splinter of this glass struck the plaintiff in the eye. The Court *held* that the barman's employer was *liable*.

5. The wrong may be due to the servant's fraudulent act.

A master is liable, *not only* for the wrongful acts of the servants, whether done carefully,

bona fide, negligently, intentionally, wilfully or even contrary to express orders, *but also fraudulently*.

LLOYD v. GRACE SMITH & CO., (1912) A.G. 716 (*Solicitor's clerk case*). — In this case, the plaintiff, a widow, owning a small cottage and some money due on a mortgage to the extent of 1,000 pounds, approached the manager of the defendants, a firm of solicitors, for advice on how to improve her income. She was advised by the manager to sell the cottage and call in the mortgage money. She authorised the manager to sell the cottage and to collect the money. The manager absconded with the money and the plaintiff sued to recover the amount from the defendants. The court *held* that an employer would be liable for all frauds committed by the servant, whether for the benefit of the employer or for his own benefit, so long as he was acting within the scope of the employment entrusted to him.

CHESHIRE v. BAILEY, (1905 1 K. B. 237) (*Silversmith's case*). - The plaintiff, a silversmith, hired the defendant's motor car and driver, for the purpose of being driven around Bombay with samples of silverware to be shown to his customers. While the plaintiff was temporarily absent from the car in the course of business, the driver, acting in collusion with certain thieves, drove the car into a corner, where some of the samples were stolen by the thieves. The plaintiff sued the defendant for the value of the goods. It was *held* that the defendant, namely, the driver's employer, was *not liable*, because the driver, in so conspiring with thieves, was no longer acting within the scope of his employment.

UXBRIDGE BUILDING SOCIETY v. PICKARD, (1939) 2 K.B. 249 (*Managing Clerk's fraud case*). — P was a solicitor practising in London with a branch office at S, which at all material times was managed by his managing clerk, C. A & Co. were induced by a fraud, to which C was a party, to advance money to a person alleged by C to be a client of the S branch, on a mortgage of freehold property. The supposed title to the property was fictitious and the title deeds were forgeries. Though there were no allegations against P, A and Co. filed a suit against P, claiming damages for fraud.

Here, so long as a servant acts within the scope of the employment entrusted to him, his employer is liable for all frauds committed by that servant, whether for the benefit of the employer or for his own benefit. Although it is *not* within the actual authority of a clerk to commit a fraud, it is within the scope of his ostensible authority, and so long as he is acting within the scope of his ostensible authority, the employer will be bound, whether he is acting for his own purpose or for his employer's purpose. Therefore, notwithstanding the fact that the persons defrauded were *not P's* clients and that C's fraud involved the committing of a forgery, P was *held* to be answerable in damages.

6. The wrong may be due to the servant's criminal act.

A master is liable, though *not* in criminal proceedings, yet in civil action, even in respect of criminal acts of his servant, provided they are committed in the course of his employment. (See *Uxbridge Building Society v. Pickard*, above.)

In certain circumstances, a servant may delegate his duty to another. Where a servant has his master's authority to delegate, or happens to delegate in a real emergency when it is impossible to communicate with the master and obtain his instructions, the person to whom he so delegates becomes the servant of master, so that the master becomes responsible for the *negligence of such a servant by delegation*.

But in cases where a servant, *not* being authorised to delegate, does so, or delegates when there is no emergency, or in an emergency without communicating with the master though there was time to obtain his order, the master will *not* be liable for the conduct of the servant's delegate, though in some cases, he might be liable for the servant's negligence in so delegating.

Thus, in *Ricketes v. Thos. Tilling*, (1915) 1 K.B. 644, the driver of the defendant's omnibus allowed the conductor to drive the bus, and in doing so, the conductor injured the plaintiff. It was *held* that though the defendant was *not liable* for the conductor's negligence, yet he would be

liable for the driver's act in wrongfully delegating his duties to the conductor. In this case, the driver was sitting by the side of the conductor, and so it was *held* to be an unauthorised mode or method of doing an authorised thing, namely, the driving of the omnibus.

MASTER WHEN NOT LIABLE FOR HIS SERVANT'S TORTS

In the following *three cases*, a master will *not* be liable for the torts of his servant.

1. When he has temporarily lent his servant to another person

When a master lends his servant to another person, in a general sense, he is a servant of the master who lends him. But from the practical point of responsibility, when he is doing the work of, and under the orders or control of, the other employer to whom he is lent, he is the servant of the *latter* and the *latter* is, in the eyes of the law, his *employer*.

2. Where he has been obliged by law to employ a particular person, as for instance, a compulsory pilot

In cases where a master has been obliged by law to employ a particular person, (as for instance, a compulsory pilot), as he does *not* have any freedom of choice of his servant, he is *not* responsible for the conduct of the servant whom he was compelled to employ.

Similarly, where the law itself enjoins a duty to be performed by a certain person, the employer will *not* be liable for torts committed by such person in the course of such employment.

3. Where the relation between the parties is that of a head of a Government Department and an employee in that Department

The head of a Government Department is *not* liable for the wrongful acts of his subordinates. The rule of master's liability does *not* apply here. Thus, the Postmaster General will *not* be liable for the negligent act of a telegraph cable repairer.

B. LIABILITY OF THE SERVANT TO THIRD PERSONS

Whoever commits a wrong is liable for it himself and it is no excuse that he was acting as an agent or servant on behalf, and for the benefit of, another person. Indeed, *not* even the command of the king himself can excuse the doing of an illegal act. In such cases, the injured party will have his remedy against both the master and the servant *or* either of them at his option.

C. LIABILITY OF THE MASTER TO THE SERVANT

The liability of a master to his servant for injuries caused to *the servant during service* can be examined from the following two angles:

1. At Common Law

2. Under the Workmen's Compensation Act.

1. Master's liability to his servant at Common Law

At Common law, a master is *not liable* to his servant for injuries received from any risk which is *ordinary or incidental* to the service, including the acts or defaults of any other person employed in the same service. He will not be liable if the servant assented to undertake the risk of injury. The maxim governing this doctrine is *volenti non fit injuria*. It is *not* enough for the master to show that the servant knew about the danger. The master is also bound to take all reasonable precautions to secure the safety of his workmen, and to carry on his operation so as *not* to subject those employed by him to any unnecessary risk.

The Common law imposes the following *four* duties on a master:

(i) He must provide proper and competent fellow-servants.

(ii) He should *not* be guilty of personal negligence.

(iii) He must take reasonable care to provide proper appliances and to maintain them in a proper condition.

(iv) He must take all reasonable precautions to secure the safety of his servants.

SMITH v. BAKER (1891) A. C. 325 (*Stone quarry case*). — A was employed as a workman in the stone quarry of B, and worked there for some months, with full knowledge of the fact that he was exposed to danger by reason of the negligent practice prevailing in the quarry of swinging stones over the quarrymen's heads by means of a crane. A was injured by the fall of a stone and in

consequence sued B.

Now, a master is *not liable* to his servant for injuries from any ordinary risk of, or incidental to, the service. A, knowing of the danger to which he was exposed, was willingly working in the quarry. But, the master is bound to take all reasonable precautions to secure the safety of his workmen and to carry on his operations so as *not* to subject those employed by him to unnecessary risk. Again, a negligent system or a negligent mode of using perfectly sound machinery may make the employer liable. In this case, there was a negligent practice of swinging stones over the workmen's heads by means of a crane, which unnecessarily exposed them to danger. Under these circumstances, it was *held* that A could successfully sue B.

PARIS v. STEPNEY BOROUGH COUNCIL, (1951) A. C. 367 (*Goggles case*). — The plaintiff, a workman, had, to the knowledge of his employers, only one good eye. While at work, where he was *not* supplied with goggles (to protect his eye) a metal chip flew off, seriously injuring his good eye. He claimed damages from his employers, for having failed to provide him with goggles. He was *held* entitled to succeed.

2. Master's liability to his servant under the Workmen's Compensation Act

English Law — The Workmen's Compensation Act, 1925, provides for compensation to workmen by employers, in cases to which the Act extends, for accidental injuries and death. The obligation to compensate is *independent* of any negligence on the part of the employees or fellow-servants. The Act, in effect, compels *employers* to insure their servants against accidental injuries and death. Such insurance is *not* compulsory, but it is obvious that having regard to the obligation imposed upon them by the Act, the employers have no option but to insure their workmen against such risks.

Under this Act, the workman is in a more favourable position than a stranger. Where a workman sues his employer for injuries sustained by him in the course of an accident arising out of and in the course of his employment, the employer *cannot* set up the defence of (1) *volenti non fit injuria* or (2) inevitable accident or (3) contributory negligence on the part of the workman.

Indian Law. — In India, under the Workmen's Compensation Act, 1923, if personal injury is caused to a workman by an accident arising out of any work in the course of his employment, his employer is liable to pay compensation.

Additionally, the Personal Injuries (Compensation Insurance) Act, 1963, imposes on the employers of factories, mines, major ports, plantations and essential services, the liability to pay compensation in respect of personal injuries and provides for a scheme of insurance with the Government in respect of this liability.

The Act makes special provisions for Government employees. Section 7 of the Act lays down the amount of compensation whereas Section 8 describes the scheme of insurance and Section 9 makes insurance compulsory for the employers of various categories mentioned above. Exemption from compulsory insurance is granted to small establishments whose total wage-bills do *not* exceed specified monetary limits.

The Doctrine of 'Common Employment'

Legal position prior to the Law Reform (Personal Injuries) Act, 1948

Formerly, the Courts took the stand that a master was *not responsible* for negligent harm done by his servant to another servant engaged on a *common employment* with him. This rule often led to unjust and inequitable results, and was widely criticised before it was ultimately abolished in 1948.

Prior to 1948, the doctrine of common employment afforded a good defence to a master when sued by a servant. A master was *not* liable to his servant for injuries received from any ordinary risk of, or incidental to, the service, including acts or defaults of a fellow servant in the course of their common employment. All persons engaged under the same business, however different in detail those purposes may be, were fellow-servants in a common employment, as for instance, a carpenter doing work in the room of an engine shed and porters moving an engine on a turn-table.

Thus, in *Priestly v. Fowler* (1837) 3 M. & W. 1, the master was *held not liable* for an injury sustained by a servant owing to the breaking down of an overloaded carriage in which the servant was riding in his master's business.

If the person causing and the person suffering the personal injury were fellow-workmen engaged in a common employment and under a common master, such a master was *not* responsible for the results of the injury. In other words, a master was *not liable* for one servant for the negligence of another in the same employment. This was known as the *doctrine of common employment*.

Common employment did *not* necessarily imply that both servants were engaged in precisely the same or even *similar* acts. All persons engaged under the same employer for the purposes of the same business, however different in detail those purposes may be, were regarded as fellow-servants in a common employment. The employment had to be common in the sense that the safety of one servant, in the ordinary and natural course of things, depended on the care and skill of other. The injured servant and the servant causing the injury had to be engaged in common employment, that is, in the service of common master.

The doctrine of common employment was extended even to a person who was only temporarily, or for a particular occasion, in the service of another or where a person volunteered to assist the servant of another in his work.

DEGG. v. MIDLAND RLY. CO. (1857) 1 H & N. 773. — Railway servants were working a turn-table. A stranger, noticing their difficulty in doing so, voluntarily assisted them, and, while so assisting, was killed by an engine negligently driven by another railway servant. It was *held* that the company was *not liable*.

Two conditions had to be fulfilled in order that the defence of common employment might be available. *Firstly*, the servant injured and the servant causing the injury had to be fellow-servants; they had to be in the service of a common employer. Unless there was a common master, it could *not* be said that there was a common employment. The term "fellow-servant" included persons who *gratuitously or temporarily* assisted a servant in his work. *Secondly*, the servant had to be engaged in a common engagement, in the sense that the safety of one servant would, in the ordinary and natural course of things, depend on the care and skill of the others. Thus, the captain of a vessel has been *held* to be in common employment with a seaman on board the ship.

RADCLIFFE v. RIBBLE, (1939) A.C. 215. — A and B were motor drivers employed by defendants to take parties by motor coaches from Liverpool. B had been told to return to the defendant's garage, the particular route of his return being left to his own discretion. On the return journey, B, for some unknown reason, stopped in a street in Liverpool. A happened to be returning by the same route and pulling out to pass B's vehicle, he negligently knocked over and injured B, who was standing near his own vehicle. B filed a suit for damages against the defendants. It was *held* that A and B were *not* in common employment when the accident took place at Liverpool. B was no more interested in the skill of A than in that of the drivers of the dozens of other vehicles in whose vicinity he might happen to drive. The risk was the general risk of the highway and not the specific risk of the fellow-servant's negligence. Therefore, the defendants were liable; they could *not* rely on the plea of common employment as excluding their liability.

Legal position after the Law Reform (Personal Injuries) Act, 1948

It may be noted that the doctrine (or rather the defence) of common employment is *not* available after the passing of the Law Reform (Personal Injuries) Act, 1948. Under this Act, it is not a defence to an employer who is sued in respect of personal injuries caused by the negligence of a person employed by him, to show that the other person was, at the time of the injuries were caused, in common employment with the person injured. Any provision contained in a contract of service or apprenticeship or in an agreement collateral thereto, including a contract or agreement entered into before the commencement of this Act, is declared *void* in so far as it would have the

effect of excluding or limiting any liability of the employer in respect of personal injuries caused to the person employed or apprenticed *by the negligence of a person in common employment with him*. This Act thus makes *void* any provision in a contract of service which attempts to make the doctrine of common employment applicable.

Indian Law as to common employment. — According to the Allahabad and the Calcutta High Courts, the doctrine of common employment applies in India; according to the Nagpur and Bombay High Courts it does *not*. The Privy Council has *held* that although the doctrine is applicable, its scope has been reduced by the Employer's Liability Act, 1938. Further, the Personal Injury (Compensation Insurance) Act, 1963, imposes a liability on employers to pay compensation to workmen who sustain personal injuries and provides for the insurance of employees against such liability. Thus, in actual practice, these two Acts have almost nullified the applicability of the doctrine in India.

D. LIABILITY OF THE SERVANT TO THE MASTER

A servant is, no doubt, liable to his master (though *not* to others) for the consequences of his *non-feasance* or *wrongful omissions*. If damages have been recovered from the master by reason of the servant's negligence in doing the master's work or in executing his order, such damages can be recovered *by the master from the servant*.

2. OWNER AND INDEPENDENT CONTRACTOR

An independent contractor is one who undertakes to produce a given result *without being in any way controlled* as to the method by which *he attains that result*. The essential distinction between a *servant* and an *independent contractor* is the existence of the right to control. An independent contractor can use his own discretion as to the manner in which the work is to be executed, whereas a servant is under the supervision and discretion of his master as to the manner in which he is to execute his work.

General rule as to independent contractor

The general rule is that, for the acts and omissions of an independent contractor (except those actually authorised), his employer is *not liable* for the wrongs of servants engaged by the contractor to do the work. He who controls the work is answerable for the workman; the remote employer who does *not* control is *not* answerable.

Exceptions to the rule

There are, however, *eight* important exceptions to the rule that a person employing an independent contractor is *not liable* for the contractor's wrongful act. Thus, the employer will be liable for the wrongs of an independent contractor in the following *eight cases*:

1. Where the thing contracted to be done is itself unlawful

If the thing contracted to be done is itself unlawful, the employer is liable for the wrong-doing authorised by him. Thus, a Gas Company was *held* liable for the negligence of its contractor employed to lay down pipes in the streets, because the Gas Company was *not* authorised to interfere with the streets. (*Ellis v. Sheffield Gas Consumers Co.*, (1863) 2 E. & B. 767)

2. Employer retaining control

Where the employer retains his control over the contractor and personally interferes so as to make himself a party to the act which occasions the damage, the employer becomes liable.

BURGESS v. GREY, (1845) 1 C. B. 578 (Gravel case). — The defendant employed a contractor to construct a drain. In doing the work, the contractor left a heap of gravel on the road. The defendant was warned by a constable to remove the heap of gravel and he undertook to cart the gravel away. Meanwhile, the plaintiff, a passer-by, slipped upon the heap of gravel and was injured. In an action for damages, the defendant pleaded that he was *not* liable and that the negligence was that of an independent contractor. The Court, however, *held* that the defendant, by his own conduct, had interfered with the work of the independent contractor, and therefore, he became liable for the negligence of the contractor.

3. Legal duty

Where a legal or statutory duty is imposed on the employer to carry out a particular work efficiently, and the contractor either omits or improperly performs such duty, the employer is liable.

4. Damage to another

The employer is liable where the thing contracted to be done, though lawful in itself, is likely to damage another's property unless preventive means are adopted and the contractor omits to adopt such means.

Thus in one case, the defendants were *held liable* where the plaintiff was injured by reason of the negligence of a servant of an independent contractor employed by them to execute certain work upon the highway, in leaving a heap of stones unlighted and unfenced. (*Penny v. Wimbledon Urban District Council*, 1899 2 Q. B. 72)

So also, the occupier of a house was *held liable* for personal injuries caused to a passer-by on account of the fall of a lamp suspended over his door-way although he had recently employed an independent contractor to repair the lamp. (*Tarry v. Asthon*, (1876) 1 Q. B. 314)

5. Implied warranty

The employer is also *liable* where there is an *implied warranty by the employer*. In such a case, the employer is liable for the negligent act of his independent contractor.

Thus, in one case, the defendant got a race-stand erected by competent builder, but in fact it was negligently constructed and it fell and injured the plaintiff who had paid for his seat. It was *held* that the defendant was *liable*. (*Francis v. Cockrell*, (1870) L. R. 5 Q. B. 184)

6. Incompetent contractor employed

Where the employer entrusts the work to an independent contractor known to be incompetent or fails to give proper instructions to the independent contractor, he *cannot* escape liability for the negligence of the latter. Here, the liability of the employer is more for his own negligence rather than for the negligence of the contractor.

7. The Rule in *Rylands v. Fletcher*

Under this rule, the employer is, in certain cases involving absolute liability, responsible for the acts of the independent contractor. (This is discussed in Chapter 19.)

8. Under the provisions of the (English) Workmen's Compensation Act, 1925

In England, under the provisions of the Workmen's Compensation Act, 1925, if the 'principal' (as *therein defined*) employs a contractor, such contractor's servants are able to recover compensation *from the principal* without prejudice to the principal's right to be indemnified by the contractor, if the contractor is himself liable under the Act. There are similar provisions *in India* in Ss. 12 and 13 of the Workmen's Compensation Act, 1923.

3. PRINCIPAL AND AGENT

The law attaches liability to a principal for the wrongful act of the agent on the ground that it is the principal who has selected the agent. The liability is *joint as well as several*. The injured party may sue only the principal *or* only the agent *or* both.

To make a principal responsible for a wrongful act of his agent, it is necessary to show:

- (i) that the act was committed by the agent in the course of his employment, although the principal did *not* authorise or justify or participate in the act, or even if he forbade it or disapproved of it; *or*
- (ii) if the act was beyond the scope of the agency, that it was expressly authorised by the principal or subsequently ratified by him.

In *DINBAI R. WADIA v. FARUKH MOBENDJINA*, (1957) 59 Bom. I. L. R., it was *held* that the test of agency is *not* physical control but the right to control. When a person does an act with the consent of the principal and the principal is interested in the performance of the act, the principal would be liable for the act. The criterion is *not* whether the principal had physical control or *not*. Even if the principal had the right to control, and *not* actual physical control over

the agent in respect of that act, he would be held responsible.

4. COMPANY AND ITS DIRECTORS

Companies are liable for torts committed by their servants in the course of their employment. But the wrongful act complained of should be *intra vires* and *not ultra vires*, (that is, it should be within the power of the company) and should be done for the company. Directors are personally responsible for any tort which themselves commit or direct others to commit, although it may be for the benefit of the company.

5. FIRM AND ITS PARTNERS

The relation of partners *inter se* is that of principal and agent, and each partner is, therefore, liable to third persons for the neglect or fraud of his fellow-partner. The neglect or fraud complained of must have been committed in the ordinary course of the partnership business and while a partner is acting within the scope of his authority, his co-partner's complete innocence being irrelevant. *Whether or not the act of a partner is one done in course of the business of the firm is a question to be determined on the same considerations as those which determine the responsibility of a master for the act of his servants.*

In one case, acting on behalf of a firm, a partner bribed the clerk of the plaintiff, a competitor in the same line of business and induced him to communicate some secret information with regard to the plaintiff's business, as a result of which the plaintiff sustained a loss. It was *held* that the firm was *liable*. (*Hamlyn v. Houston & Co.*, (1903) 1 K.B. 81)

6. GUARDIAN AND WARD

Guardians are *not* personally liable *for* torts committed by minors *under* their charge. But they can sue for personal injuries to minors under their charge.

II. LIABILITY BY ABETMENT

In the law of torts, those who abet a tort are as much liable as the tort-feasors themselves. A person who procures the act of another is legally responsible for its consequences:

- (i) if he knowingly induces that person to commit the wrong for his own ends; *or*
- (ii) when the act complained of is within the right of the person actually doing it but is detrimental to a third party, and the person inducing it procures his object by the use of illegal means directed against such third party.

In cases of unlawful interference with contractual relations, if a person procures a breach of contract by illegal means or with a malicious intent, he becomes liable to the person who suffers injury thereby.

8 REMEDIES AVAILABLE WITH RESPECT TO A TORT

Questions for this chapter are:

What are judicial remedies? 2 marks. November 2012.

Write a short note on: Damages. May 2017.

Discuss the law relating to remoteness of damages with the help of leading cases. November 2012, April 2013.

Explain the theories of remoteness of damages. January 2018.

Write a short note on: *Re Polemis*. November 2013.

Write a short note on: The wagon mound case. May 2012, 2017, April 2016, November 2014.

What is “novus actus”? 2 marks. April 2011.

What is the measure of damages? What are the different kinds of damages? November 2013, May 2017, April 2016.

What is meant by “nominal damages”? November 2011.

Write a short note on: nominal damages. May 2012.

What are exemplary damages? April 2011, 2016, November 2015, January 2018.

What is mandatory injunction? 2 marks. April 2013.

What are extra-judicial remedies? 2 marks. April 2014, 2015, June 2018.

Name any two extra-judicial remedies in law of torts. 2 marks. November 2014.

Write a short note on: extra-judicial remedies. January 2018.

What is distress damage feasant? 2 marks. January 2018.

The remedies available with respect to a tort are of *two* kinds:

A. Judicial remedies

B. Extra-judicial remedies.

Judicial remedies

Remedies are said to be judicial when they are granted by the Court in a suit filed by the injured party against the wrong-doer. The Court then normally awards *damages* to the injured party. This is the usual remedy. The other two judicial remedies in the law of torts are the granting of an *injunction* and the *restitution of property*.

Extra-judicial remedies

Extra-judicial remedies are those which an injured party adopts when he takes the law into his own hands, as it were, and helps himself in the matter, as for instance, the expulsion of a trespasser, re-entry on the land, abatement of a nuisance, *etc.*

The following is a tabular analysis of the remedies available in the law of torts:

REMEDIES

Judicial:

1. Damages

- Contemptuous
- Nominal
- Substantial
- Exemplary

2. Injunction

- Interim (temporary)
- Perpetual (permanent)
- Mandatory
- Prohibitory

3. Specific restitution of property.

REMEDIES

Extra-judicial:

- Self-defence
- Expulsion of trespasser
- Re-entry on land
- Re-capture of goods
- Abatement of nuisance
- *Distress damage feasant*

A. JUDICIAL REMEDIES

Judicial remedies which are available for redressing torts fall under *three* heads:

1. Damages
2. Injunction
3. Specific restitution of property.

1. LAW AS TO DAMAGES

Legal damage

In ordinary parlance, “damage” means the physical effect of the defendant’s act. But legal damage or damage that constitutes liability in tort, is *neither* identical with actual damage *nor* does it necessarily mean any pecuniary loss. Every invasion of a person’s legal right or unauthorised interference with his property amounts to legal damage. In other words, although the injured person may *not* suffer any pecuniary loss by the wrongful act of the defendant, yet if it is shown that there was a violation of some legal right, the law will presume damage. This is known as *legal damage*. (This has already been discussed under ‘*Injuria sine damnum*’ in an earlier Chapter.)

General and special damage

Damage is either general or special. *General damage* is that kind of damage which is presumed by the law to flow from the wrong complained of. *Special damage* means the actual and temporal loss which has, in fact, occurred. Special damage is that which the plaintiff is ordinarily bound to prove and without which his action will *not* be maintainable. In this class of cases, the law insists upon proof of damage before giving redress for the violation of the right. Damage in the sense of actual loss is, in such cases, an ingredient which goes to make up the legal injury and is said to be the gist of the action.

Special damage must be actually proved in actions for:

1. Seduction
2. Slander
3. Deceit
4. Conspiracy
5. Waste
6. *Distress damage feasant*
7. Nuisance consisting of damage to property.

Damage and damages

The word ‘*damage*’ must *not* be confused with the word ‘*damages*’. These two words are *not* equivalent terms. Damage means and included loss of money, comfort, health, property and the like. *The term ‘damages’ is not the plural of “damage”*. It means the money compensation claimed by the injured party and awarded by the Court. In short, ‘*damage*’ means the loss inflicted by the wrongful act of the defendant, for which the Court awards pecuniary compensation or ‘*damages*’. In other words, damages constitute the compensation in the form of a sum of money which the Court awards for every legal injury.

In the law of torts, the damage must be the *direct and natural cause* of the defendant’s act. Thus, in *Scott v. Sheperd* (1773 3 W. B. I 892), Shepherd tossed a lit squib into a crowded market, where it landed on the table of a gingerbread merchant named Yates. Willis, a bystander, grabbed the squib and threw it across the market to protect him and the gingerbread.

Unfortunately, the squib landed upon the goods of another merchant named Ryal. Immediately, Ryal grabbed the squib and tossed it away, accidentally hitting the plaintiff, Scott, in the face just as the squib exploded, blinding him in one eye. The court *held* (Blackstone J. dissenting) that the plaintiff was entitled to succeed.

Similarly, where the defendant ran with an axe after a boy who dashed against the plaintiff's cask of wine which was spilt, it was *held* that the plaintiff could succeed. [See also *Guille v. Swan, the Balloon Case*, discussed below.]

Remoteness of damage

As seen above, the damage suffered by the plaintiff must be the *direct and natural cause* of the defendant's act. The law will *not* permit damages to be recovered, except such as are the natural and legal consequences of a wrongful act. *In jure non remota causa sed proxima spectatur* (In law, the immediate and proximate, *not* the remote cause must be considered). A man is presumed to intend the *natural*, but *not* the *remote* consequences of his act.

Damage is said to be too remote when, although arising out of the cause of action, it does *not* immediately and necessarily flow *from it or* is such which could *not* have reasonably been foreseen. *A man is not liable for all the consequences of his wrongful act or default.* Liability must be founded on the act which is the immediate or direct cause of the harm or injury which is complained of. Where the causal connection between the wrongful act and the injury is *not* sufficiently direct, that is to say, when the two *cannot* be connected as cause and effect, there is no liability for the damage is too remote. The rule of law is that the wrongful act, to render the defendant liable, must be the *causa causans* or the proximate cause of the injury, and *not* merely the *causa sine qua non*, that is, the indirect or *remote* cause of the injury.

'*Causa causans*' and '*causa sine qua non*'. - The expression *causa causans* means the real cause or the cause of causes, while the expression *causa sine qua non* means that cause without which the event or the consequence would *not* have happened. To take an instance, A pushes B, who falls upon a stone negligently left by C, and is injured thereby. While A's *pushing B is the causa causans*, that is, the effective cause or real cause, the presence of the stone which occasioned the injury, is the *causa sine qua non* or that cause without which the event (that is, the injury) would *not* have happened.

VENDENBURG v. TRAUX. (Chasing with pick-axe case). — The defendant, quarrelling with the plaintiff's servant, chased him with a pick-axe, and the latter fled into the plaintiff's store. In running behind the counter for shelter, knocked down a cask of wine whereby the wine was spilt. It was *held* that the defendant was responsible for the loss of the wine.

GUILLE v. SWAN, (1882) 19 Johns. 381 N.Y. (The Balloon in the Garden case). — The defendant, a balloonist, crash-landed in the plaintiff's vegetable garden in New York. At the time of his descent, his body was hanging out of the balloon in a very perilous situation. When the balloon descended, it also dragged along over potatoes and radishes over thirty feet. When the balloon came down, a crowd of *more* than 200 persons broke into the garden to help him out, and in the process, considerable damage was done to the plaintiff's vegetables and flowers, both by the balloon and the crowd.

It was argued on behalf of the defendant that, if at all, he would be liable only for the damage caused by himself and *not* for the damage caused by the crowd. However, the Supreme Court of Judicature of New York *held* that the defendant's descent was a trespass, and he was therefore *liable for the damage caused by the balloon and also by the crowd*, although he may *not* have intended to cause any such damage. The Court observed that the balloonist *had put himself in a situation which invited help* - and it would be equivalent to a direct request to the crowd to follow him - although the crowd was perhaps impelled by the dual motive of rendering help and gratifying a curiosity which the balloonist himself had evoked.

[See also, *Scotts v. Moss*, discussed in Chapter 2.]

PIGNEY v. POINTERS TRANSPORT SERVICES LTD. (1957 2 All E.R.807). P, an employee of a

company was injured in an accident, for which the company was liable to P in damages. As a result of this injury, P developed anxiety neurosis, and after a year, committed suicide. P's widow sued the company for damages. *The Court held that P's widow was entitled to succeed, as it could be said that P's death was directly traceable to his injury in the accident for which the company was responsible. Thus P's act of taking his own life could not be said to break the chain of causation and the company was held liable in damages.*

Damages when said to be remote

So far as the question of remoteness of damages is concerned, *three further questions* need to be answered:

- (i) Is there a breach of legal duty? Or has the defendant committed a tort? This question deals with the initial liability of the defendant. There is no dispute that this question must be answered on the basis of the foresight of a reasonable man.
- (ii) For what consequences or the loss can the plaintiff recover? This question relates to the remoteness of damage and will be discussed in detail below.
- (iii) The third question is: How much compensation can be recovered for the loss which has already been established *not* to be remote? This is the problem of the *measure of damages*.

Theories of remoteness of damage

Historically, there have been *two views* regarding the remoteness of damage:

- (i) According to the *first view*, consequences are too remote if a *reasonable man* would *not* have foreseen them. This view was held in *Ryggby v Hewitt* (1850 5 Ex 240)
- (ii) The *second view* is that once the defendant is held to be liable for a tort, he is liable for *all its direct consequences*, whether a reasonable man would have foreseen them or *not*, that is if they are directly traceable to the act and are *not* due to the operation of independent intervening causes. This view was first put forward in *Smith v. L & S.W. Railway*, (1870 L. R. 6 C. P. 14).

In *Smith's case* referred to above, during a very dry summer, the Railway Company's servants cut the grass and trimmed the hedge bordering a railway line. They left the trims and the *cuttings* in *heaps* between the line and the hedge for a fortnight. A fire caused by sparks from a railway engine ignited these heaps and spread over a neighbouring field. From there, a high wind carried the fire across a road to the plaintiff's cottage situated 200 yards from the spot where the fire began and the cottage was burnt down. The question to be decided by the Court was whether the burning of the cottage *was or was not* a remote consequence arising out of the negligent act of the defendant Railway Company's servants. It was argued, on behalf of the defendants, that no reasonable man could have foreseen the consequences. The court nevertheless held that *as the burning* of the cottage was the direct consequence of the act of the defendants, they were liable.

The view taken in *Smith's case* (above) was adopted by the Court of Appeal in *Re Polemis and Furness Withy & Co. Ltd.* (1921) 3 K. B. 577, the facts whereof are as follows:

A ship was hired under a charter which exempted both the ship-owners and the charterer from liability for loss caused by fire. The charterers loaded a quantity of benzene amongst other cargo. During the voyage, the tins containing benzene leaked and thus there was a lot of petrol vapour in the hold. At a port of call, the servants of the charterer negligently let a plank drop into the hold while they were shifting the cargo. A rush of flame at once followed and the ship was totally destroyed. The question was whether the test of "a reasonable man being able to foresee" or "the direct consequences test" ought to be applied. The Court of Appeal adopted the direct consequences test and *held* that the defendants were *liable* for the loss of the ship.

But in 1933, the House of Lords took the opportunity of reviewing the earlier decision in *Re Polemis* (above), while delivering the judgment in *Liesbosch Dredger v. Edison* (1933) A. C. 449, the facts whereof were as under:

Due to negligent navigation, a steamship, *Edison*, sank a dredger, *Liesbosch*. The owners of

the dredger were under a contract with a third party to complete a piece of work within a given time. They were *not* able to buy a substitute for the dredger. Consequently, they were put to a great deal of expense in fulfilling the contract which they had entered into with the third party. They sued the owners of the Edison for the market price of the dredger comparable to the *Liesbosch* and also for the extra expenses which they had to incur in fulfilling their contractual obligation to the third party. The plea of the plaintiff was that they had to incur extra expenses as a direct consequence of the negligent acts of the defendants. In their judgment, the House of Lords distinguished *Re Polemis* on the ground that the injuries suffered were *not* the immediate physical consequence of the negligent acts. In the instant case, the extra expenses had to be incurred by the plaintiffs, *not on account of* the immediate physical consequence of the negligent acts, *but on account of* the intervening financial problems faced by the plaintiffs. Thus, the direct consequences test of *Re Polemis* was modified in the *Liesbosch case*.

The rule in *Re Polemis* was also *not* followed by the Privy Council in the *Wagon Mound case* (1961 A. C. 388). In this case, *the Wagon Mound*, a vessel chartered by the appellants, was taking in oil at the Sydney Port. A large quantity of the oil was allowed to spill into the harbour due to the carelessness of the servants of the appellants. The escaped oil was carried away by the wind and the tide to a wharf (about 600 ft. away) owned by the respondents. Soon after the oil had spread itself on the water, the *Wagon Mound* left the harbour. After two days, the oil caught fire and thereby serious damage was caused to the property of the respondents. The Privy Council *held*, in appeal, that the defendants were *not liable*. In this case, the Privy Council laid down two *principles* as under:

- (a) The only applicable test was the foreseeability of the damage complained of, which in this case was damage caused by the fire.
- (b) The respondents could *not* be held liable for unforeseeable damage.

In view of the above, it appears that the direct consequences test laid down in *Re Polemis* is no longer to be followed.

The House of Lords in *Hughes v. Lord Advocate*, *Jolly v. Sutton London Borough Council*, and the Court of Appeal in *Doughty v. Turner Manufacturing Co.* accepted the decision of the Privy Council in the *Wagon Mound Case*. These cases also lay down that the test of foreseeability is satisfied if the damage suffered is similar in kind though different in degree, and that the precise sequence of events or the extent of the damage need *not* have been foreseeable. But if the damage suffered is altogether different in kind, the test of foreseeability is *not* satisfied and the plaintiff *cannot* recover. As once observed, “What must have been foreseen is *not* the precise injury which occurred, but injury of a given description. The foreseeability is *not* as to particulars but as regards the genus.”

There is, however, some doubt as to the effect of the rule in the *Wagon Mound's case*. In *Salmond's Law of Torts*, the following *four principles* governing liability have been formulated:

1. Y suffers foreseeable damage as the result of X's activities. X is liable for that damage, whether it is a direct or an indirect consequence of his acts.
2. Y suffers foreseeable damage as the result of X's activities. That damage is much greater in amount than could have been foreseen, but is still in general the kind of damage that could have been foreseen. X is liable for it.
3. Y suffers foreseeable damage (as for instance, personal injuries) as the result of X's activities. Y also suffers unforeseeable damage as the direct result of those same activities (as for instance, he is forced into bankruptcy). Y can recover the former head of loss but *not* the latter.
4. Y suffers foreseeable damage as the result of X's activities. Z also suffers direct but unforeseeable damage as the result of those activities. X is liable to Y, but *not* to Z.

When damage can be said to be too remote

Generally speaking, damages will *not* be granted on the ground of being too remote in the

following *four* cases:

1. Where *not* a necessary result

Where the damage is neither the necessary nor the probable result of the defendant's act, nor is it such as can be shown to have been in his contemplation when he committed the act, it can be said to be too remote.

SHARP v. POWELL—The defendant's servant, in breach of a Police Act, washed the defendant's van in the street and allowed the waste water to run down the gutter towards a grating leading to the sewer, about twenty-five yards off. In consequence of the extreme severity of the weather, the grating was obstructed by ice and the water flowed over a portion of the causeway which was ill-paved and uneven and froze there. The plaintiff's horse which being led past the spot, slipped upon the ice and broke its leg. It was *held* that this was a consequence *too remote* to be attributed to the wrongful act of the defendant.

GLOVER v. LONDON & S.W. RLY. (1867) 3 Q.B. 25. — A railway passenger misplaced his ticket, and could *not* produce it when demanded by the ticket collector. Thereupon, he was removed from the carriage without any undue force. When so removed, he left his race-glasses in the carriage and lost them. It was *held* that the loss of the race-glasses was *not* the necessary consequence of the removal of the passenger from the carriage, but was owing to that passenger's negligence or carelessness. The loss was too remote and the passenger could *not* recover it.

In another case, the defendants found the plaintiff's cow straying in their field and seized it. While the cow was in their custody, it died. The plaintiff sued to recover the value of the cow. It was *held* that the defendants were *not liable*, because the death of the cow was *not* a natural or probable result of the seizure. *Mi Taw v. Nga Ket* (1904 U. B. R. 1)

2. Plaintiff's own act

Damage will also be said to be too remote if it is caused wholly or principally by the act of the plaintiff himself. (See *Glover v. London & S. W. Rly.*, discussed above.)

3. Wrongful act of third party (*novus actus i.e. new act*)

Where the damage is the wrongful act of a third party, such as could *not* naturally be contemplated as likely to spring from the defendant's conduct, it will be considered to be *too remote*.

4. Interference of a third person

In those cases in which an accident is partly caused by the interference of a third person, the defendant will be responsible only if it is found that his negligence is the effective cause of the accident.

In *SCOTT v. SHEPHERD* (discussed above), Shepherd tossed a lit squib into a crowded market, where it landed on the table of a gingerbread merchant named Yates. Willis, a bystander, grabbed the squib and threw it across the market to protect himself and the gingerbread. Unfortunately, the squib landed in the goods of another merchant named Ryal. Immediately, Ryal grabbed the squib and tossed it away, accidentally hitting the plaintiff, Scott, in the face just as the squib exploded, blinding him in one eye. The court *held* (*Blackstone J. dissenting*) that the plaintiff was entitled to succeed.

Principle for estimating damages (Measure of damages)

The expression "measure of damages" means the footing upon which the *quantum* or *amount* of damages to be awarded in a given case may be calculated. The law has *not* prescribed any arithmetical standard to measure damages in a suit under the law of torts; nor can it possibly do so. Thus, the measure of damage depends upon a variety of causes, facts and circumstances. Accordingly, damages may rise to almost any amount *or* they may dwindle down to a very nominal sum.

The assessment of damages is in the *discretion of the Court* and the actual assessment is based on a consideration of various factors. In cases of seduction, assault, defamation or

malicious prosecution, for instance, the position, rank or feelings of the party injured, as well as the wrong-doer, must be considered as *aggravating or mitigating factors*. Moreover, as stated above, the wrong-doer will be liable only for the direct consequences of his act, and in no case will remote factors be considered in estimating damages. Again, if damage has resulted from two to three causes, as from an act of God as well as from a negligent act of party, then the award of damages should be apportioned to compensate only the injury caused by the negligent act.

It must be borne in mind, however, the same principle that determines the existence of liability also determines the measure of damages to be awarded. The wrong-doer will be liable only for direct consequences of his act and in no case will remote factors be considered in estimating damages.

The “egg-shell skull rule”

The “*egg-shell skull rule*?” (or the “*thin skull rule*”), a doctrine developed by the law of torts, lays down that a person is liable for *all* consequences resulting from his act leading to any injury to another person, *even if the victim suffers an unusually high level of damage*, as for instance, due to a pre-existing vulnerability or a medical condition. The term “egg-shell” is used to convey the idea that if a person had a skull as delicate as the shell of an egg, and another person, who did *not* know of that condition, were to hit that person on the head, causing the skull to break unexpectedly, such a person would nevertheless be liable for the damage resulting from his wrongful conduct, even though he did *not*, and perhaps could *not*, foresee such damage. As stated by Lawton L. J. in *R. v. Blaue*, “the defendants must take their victims as they find them.”

The doctrine applies in all areas of torts like assault, battery, negligence and strict liability cases. There is *not* even a requirement of physical contact with the victim. Thus, if a trespasser’s wrongful presence at the victim’s property so terrifies the victim that he has a fatal heart attack, the trespasser will be liable for the damage stemming from his original tort. This rule is broad-based on grounds of public policy. The law will *not* allow the person committing the tort to rely on the victim’s own vulnerability to avoid liability.

In *Smith v. Leech Brain & Co.*, (1962 2 Q. B. 405), an employee in a factory was splashed with molten metal, and as a result of the burns, he developed cancer and died. It was argued that he had a pre-existing disposition to cancer and that he would have suffered from cancer at some stage of his life, even without such burns. However, this contention was dismissed, holding that such circumstances were irrelevant.

The decision in *Smith’s case* (above) was followed in *Robinson v. Post Office* (1974 2 All E. R. 737), where the plaintiff slipped when descending from a ladder and it was shown that the ladder had become slippery because of the negligence of the employer.

In U.S.A., this doctrine was applied by the Wisconsin Supreme Court in *Vosburg v. Putney* (80 Wis. 523). In that case, the defendant, a boy of 11 years, kicked the plaintiff, another boy of 14 years, in the shin while at school. It turned out that the victim was recovering from a previous injury on the same leg. The kick resulted in the boy entirely losing the use of his leg, and no one could have predicted the level of the injury before the kicking took place. Nevertheless, the court *held* that since the kicking was unlawful and as it occurred during school hours, the boy who gave the kick was liable for the injury. Accordingly, a sum of \$2,500 was awarded to the plaintiff.

An interesting defence sometimes put forward against the eggshell skull rule is the “*crumbling skull rule*”. This defence rebuts the egg-shell rule by arguing that the harm incurred by the victim was, in any case, inevitable and that the defendant’s acts only had a minimal or trifling effect upon the already deteriorating circumstances. For instance, if a dying patient is improperly treated by a doctor, it is arguable that the doctor *cannot* be held responsible for the death of the patient, because the patient would have died in any case, regardless of whether the doctor had acted properly or improperly.

Difference between the measure of damages for breach of contract and for tort

(1) In a tort, the damages claimed are necessarily *unliquidated*. In a contract, it is possible that

parties may fix beforehand the damages payable by one to other in case of a breach (that is, *liquidated damages*).

- (2) Vindictive or exemplary damages are recoverable in tort, but generally *not* for a breach of contract.
- (3) The rules as to remoteness of damages in tort are different from those in contract. Thus, in tort, a person may be held liable for damages arising from special circumstances of which he had no knowledge. On the other hand, if there are special circumstances under which a contract was made and they were wholly unknown to the party breaking the contract, he will *not* be liable for damages due solely to those special circumstances. (*Headley v. Baxendale*, (1854) 9 Ex. 341)

KINDS OF DAMAGES

The different kinds of damages can be discussed under the following heads:

- I. Contemptuous / nominal / substantial / exemplary damages
- II. General and special damages
- III. Prospective and continuing damages: Rule of double action

I. Contemptuous / nominal / substantial / exemplary damages

Contemptuous damages are awarded where, technically, a legal wrong is committed, but where the circumstances disclosed are such that Court feels that no action should have been brought. They are awarded usually in actions of defamation. Where the Court finds that the defendant is at fault, but the plaintiff's conduct and character are such that he does *not* deserve to be compensated, the Court, in order to vindicate the law, grants damages, but at the same time reduces them to such a small or contemptuous amount, as to indicate its disapproval of the plaintiff's claim or conduct. In such cases, one pence in English Law, or one *paisa* in Indian Law, may sometimes be awarded. Contemptuous damages are also called *ignominious damages*.

Nominal damages are awarded by the Court to the plaintiff, *not* by way of compensation, but by way of recognition of some legal right of his which the defendant has infringed, as for instance, trespass, invasion of a right of easement, *etc.*

Substantial damages are a sum of money awarded to the plaintiff as fair and equitable compensation for the injury suffered by him. They are also called *ordinary* or *compensatory* damages. Such damages are awarded in a great majority of actions in tort.

Exemplary damages are awarded in cases where there has been great injury by reason of aggravating circumstances accompanying the wrong. A heavy amount is awarded as an expression of indignation at the conduct of the defendant, whenever he has shown a conscious disregard of the plaintiff's rights. Thus, exemplary damages may be awarded in cases of seduction of a man's daughter with deliberate fraud or of gross defamation actuated by sheer spite or jealousy. Such damages are intended to offer solatium to the plaintiff and to serve as a punishment to the defendant. The *object* of giving exemplary damages is to make a public example of the defendant in order to deter other persons from the commission of a similar act. Exemplary damages are also known as *punitive* or *retributive damages*.

II. General and special damages

Damages may also be general or special. *General damages* are such as the law will presume to be the natural consequences of the defendant's acts. *Special damages* are such as the law will *not* infer unless proved at the trial. Thus, in false imprisonment, general damages are recoverable for inconvenience, indignity, and discomfort and the defendant will *not* be heard to say that, in fact, none were suffered.

III. Prospective and continuing damages: Rule of double action

Damages resulting from the same cause of action must be recovered once for all. More than one suit will *not* lie on the *same cause of action*. If A beats B, and breaks B's arm and rib, B must sue for injury to both his arm and his ribs. He *cannot* split up his actions into two: one for damages to his arm and another for damages to the ribs. Damages, when given, are taken to

embrace all the injurious consequences of the wrongful act, unknown as well as known, those which may arise thereafter as well as those which have arisen, so that the right of action is satisfied by one recovery.

FITTER v. VEEL, (1901) 12 Mod. 542. — The plaintiff, after recovering damages for battery, discovered that his injuries were more serious than was at first supposed and a surgical operation became necessary. On a second action for additional damages, the Court dismissed the suit as *not maintainable*. The plaintiff had only one cause of action which had been wholly extinguished by the judgement recovered in the first suit.

Exceptions to the rule of double action

The rule that more than one action will *not* lie on the same cause of action admits the following *four* important exceptions:

1. *Where the same act violates two rights*

If the same wrongful act violates *two or more rights*, successive suits may be brought in respect of each of them. Thus, two actions can be maintained for one blow which may break B's arm and his watch.

BRUNSDEN v. HUMPHREY, (1883) 14 Q. B. D. 141 .—The plaintiff, a cab-driver, in an action, had already recovered compensation for damages done to his cab by collision with the defendant's van. He brought another action in respect of personal injuries suffered by him in consequence of the same accident. The defendant objected to the second suit brought on the same cause of action. The Court *held* that the plaintiff was entitled to do so. When the wrongful act of the defendant has violated two distinct rights vested in the plaintiff, a separate action can lie to recover the damage suffered in respect of each of these rights. The cab-driver was entitled to bring the second action for his personal injuries for they were caused by the violation of a different right.

2. *Where the cause of action is continuing one (continuing injury)*

Where the cause of action is a continuing one, separate actions can be brought for each unlawful act causing fresh injury. A continuing cause of action is a cause of action which arises from the repetition of acts or omissions of the same kind as that for which the action was brought. Thus, in trespass, a fresh cause of action arises every time such act of breach or injury occurs and it is open to the plaintiff to file a fresh suit every time. So also, in case of a continuing nuisance, successive actions can be brought for every fresh injury. This is, therefore, an exception to the rule mentioned above, namely, that more than one action will *not* lie on the same cause of action.

3. *Two distinct acts violating the same right*

The third exception to the rule is where the defendant has committed two distinct acts, even though the violation is of the same right, as for instance, if the same libellous statement is published to two or more persons at different times, a separate action can lie for each publication.

4. *Where damage occurs at different times*

A fresh suit can be filed where the tort is actionable only on proof of actual damage and it produces damage at different times. Thus, by reason of a slander published by *D*, *P* the person defamed, loses employment with *A*, and after obtaining employment with *B*, loses that too. *P* has a separate cause of action for *both*.

DAMAGES FOR NERVOUS AND MENTAL SHOCK

Nervous shock

Nervous shock literally means shock of the nerves and the brain structures of the body. An action lies for damages for illness due to nervous shock caused without any physical impact or injury. The nervous shock may be caused by words or acts of the defendant. It may be the result of an immediate bodily fear induced by some accident due to the defendant's negligence or of a false statement wilfully made or of intimidation. In such a case, the question is whether the shock and illness are in fact the *natural and direct consequences* of the wrongful act or default; if they are, the illness, and not the shock, furnishes the measurable injury.

WILKINSON v. DOWNTON, (1897) 2 Q. B. 57. — The defendant, by way of a practical joke, falsely represented to the plaintiff that her husband had met with a serious accident, whereby both his legs were broken. By reason of his misrepresentation, the plaintiff suffered a violent shock, her hair turned white and her life was for some time in great danger. The Court *held* that the damage was *not too remote* and that damages for the illness could be recovered in an action for fraudulent misrepresentation.

DULIEU v. WHITE & SONS, (1901) K. B. 689. — Where the wife of a publican who was standing behind the bar suffered severe illness on account of the shock which she sustained at seeing the defendant's horse and cart enter the public bar as a result of the defendant's negligent driving, it was *held* that she could recover damages for negligence.

JANVIER v. SWEENEY, (1919) 2 K. B. 316. — The defendant, a private detective, after false statements to the plaintiff, used threats to her, with the result that she became seriously ill. It was *held* that the defendant was *liable*.

VICTORIAN RAILWAYS COMMISSIONERS v. COULTAS (1888 13 App. Cases 222). — The gate keeper of a railway company negligently invited the plaintiff's, a husband and his wife, to drive over a level crossing when it was dangerous to do so, and their vehicle was nearly, but *not* quite, run down by a passing train. The wife fainted and received a serious nervous shock leading to a severe illness. On a suit filed by the plaintiffs for damages, the Court *held* that the damage was too remote to be recovered.

However, the ruling in *Victorian Railway's* case has *not* been followed in subsequent cases like *Hambrook v. Stokes* and *Schneider v. Eisovitch* (discussed below).

HAMBROCK v. STROKES, (1925) 1 K. B. 141. — The defendant's servant left a motor lorry at the top of a steep street unattended, with the engine running. The lorry started off by itself and ran violently down the incline. The plaintiff's wife, who had been walking up the street with her children, had just parted with them a little below a point where the street made a bend, when she saw the lorry rushing round the bend towards her; she became very frightened for the safety of her children, who by that time were out of sight round the bend. She was immediately informed by by-standers that a child answering the description of one of hers had been injured. In consequence of her fright and anxiety, she suffered a nervous shock which eventually caused her death. In an action by the husband under the Fatal Accidents Act, it was *held* that, on the assumption that the shock was caused by what the woman saw with her own eyes, as distinguished from what she was told by by-standers, the plaintiff was entitled to recover, notwithstanding that the shock was brought about by fear for her children's safety and *not* by fear for her own.

SCHNEIDER v. EISOVITCH, (1960) 2 Q. B. 430. — In this case, *Mr. S* and *Mrs. S* were involved in an accident caused by *Mr. E's* negligent driving. *Mr. S* was killed in the accident and *Mrs. S* was injured and rendered unconscious. After regaining her consciousness, when *Mrs. S* was told of the death of her husband, she suffered nervous shock on hearing the news. The Court *held* that she could recover damages for shock as well as for other injuries.

KING v. PHILLIPS, (1952) 2 All. E. R. 459. — A taxi-driver backed his taxi (without looking behind) and ran into a child who was on the tricycle behind the taxi, causing a minor injury to the child. The child's mother, who was in the house several yards away, heard the scream, and saw from her window that a taxi had backed into the tricycle. In an action by her for the shock suffered, the Court *held* that the tax- driver was *not liable* for the shock suffered because he could *not* reasonably have known that he might cause such injury to the mother of the child.

Mental shock

By mental shock is meant a shock to the moral or intellectual sense. *Formerly*, the trend of judicial thinking was that no suit could be filed for mere mental pain or sorrow or any other injury to feelings and emotions. The view taken was that the law *cannot* value mental pain or anxiety

and therefore *cannot* pretend to redress the same. It was, therefore, felt that no action would lie for mere mental anguish or suffering or emotional distress, without visible and provable illness, as it was *not* capable of being assessed as a measurable damage.

But the trend of later judicial decisions is in favour of regarding mental shock as actionable, on the principle that mental or nervous shock, if in fact caused by the defendant's negligent act, is as real a damage to the sufferer as a broken limb, less obvious to a layman, but now-a-days equally ascertainable by a medical expert.

OWNS v. LIVERPOOL CORPORATION, (1939) 1 K. B. 394. — A funeral procession was going along a road, when a tram car, negligently driven by a servant of the defendants, violently collided with the hearse, damaged the hearse and caused the coffin to be overturned, with the result that the mourners at the funeral, who were relative of the dead man, suffered severe mental shock. It was *held* that the mourners were entitled to recover damages for mental shock, in an action brought by them for negligence against the defendants, although there was no apprehension of, or actual injury to, any human being.

[*Lords Wright and Porter* have however disapproved of the above view in *Bourhili v. Young*, (1943) A. C. 92.]

2. INJUNCTION

An injunction means an order of the Court (i) restraining a person from doing, continuing or repeating a wrongful act or (ii) enjoining him to do some positive act which will put an end to a wrongful state of things created by him, or which will discharge his legal obligation. In the former case, the injunction is said to be *prohibitory*, whilst in the latter, it is called *mandatory*.

A *mandatory injunction* is an order requiring the defendant to do some positive act for the purpose of putting an end to a wrongful state of affairs created by him, or otherwise in fulfilment of his legal obligation, as for example, an order to pull down a building which he has already erected resulting in an obstruction of the plaintiff's rights of light and air.

Likewise, an injunction may be *temporary (or interim)*, that is, for a specified period only, as for instance, until the suit is finally disposed of by the Court, or *perpetual*, that is, for all time.

Before a court grants an injunction -

- (a) it must be satisfied that the apprehended injury will be very serious or continuous or of a repetitive nature;
- (b) it must weigh the damage likely to be caused to the plaintiff if the injunction is refused against the damage that may be caused to the defendant if the injunction is granted;
- (c) it must ascertain if the interests of third parties are likely to be affected.

Injunctions have been granted by the courts -

- to prevent waste or trespass;
- to prevent the continuance of a nuisance to a dwelling house;
- to prevent the infringement of patents, trade-marks or copyrights;
- to prevent the publication of trade secrets;
- to prevent the publication of a libel or the utterance of a slander;
- to prevent the disclosure of confidential communication, papers, etc.

In India, the law relating to permanent injunctions is contained in the Specific Relief Act and the grant of temporary injunctions is governed by the provisions of the Code of Civil Procedure.

3. SPECIFIC RESTITUTION OF PROPERTY

The third kind of judicial remedy is the specific restitution of property. It is granted where the plaintiff has been wrongly dispossessed of his land or goods. Thus, a person who is wrongfully dispossessed of immovable property, or of some specific movable property, is entitled to recover such property.

Forms of action in English Law

Under the English law, there were *three* different classes of action: *real, personal and mixed*. In real actions, the plaintiff claimed his right to recover lands, tenements and hereditaments. In

personal actions, the plaintiff claimed a debt, or sought to recover a chattel, or claimed damages for injury done to his person or property. Mixed actions partook of the nature of both.

The most common personal actions were: Debt, covenant, assumpsit, trespass, trespass the case, detinue, replevin and trover.

Detinue was the form of action for the recovery of specific goods wrongfully detained, or their value, and also damages occasioned by their detention.

Replevin was the action to recover specific goods which had either been wrongfully distrained from the plaintiff or had been wrongfully taken out of his possession.

An *action of trover* was originally the remedy to recover damages against the person who had found goods and refused to deliver them up on demand to the plaintiff. In course of time, it became the form of action where the plaintiff sought to recover damages from the defendant who had converted the plaintiff's goods to his own use and came to be known as an action of *conversion*.

B. EXTRA-JUDICIAL REMEDIES

Extra-judicial remedies are those which are open to an injured party to adopt, when he takes the law into his own hands, so to say, and helps himself in the matter, as for instance, expulsion of a trespasser, re-entry on land, abatement of a nuisance, etc. Extrajudicial remedies are of *five* kinds:

1. Self-defence

It is lawful for a man to defend his person or property and to use reasonable force towards another for this purpose. (See also Ss. 96 to 100 of the Indian Penal Code.)

2. Expulsion and re-entry

A person who is entitled to the immediate possession of immovable property may expel the trespasser therefrom and re-enter it, provided that the force used by him is reasonable and does not transgress the reasonable limits of the occasion.

3. Re-capture

A person entitled to the immediate possession of chattels (that is, movables) may recover them from any person who has them in his actual possession and detain them, provided that such possession was wrongful in its inception.

Re-capture of chattels is an *extra-judicial remedy*. The plaintiff may help himself by his own act and strength without recourse to any Court of justice or the sanction of any judicial declaration of his rights. Specific restitution of property, on the other hand, is a *judicial remedy*, that is, a remedy by way of an action at law.

4. Abatement of nuisance

In cases of nuisance, private or public, under certain circumstances and subject to certain limitations, the injured party has the right to remove the nuisance. (This is discussed in detail in Chapter 14.)

5. Distress damage feasant

Where one man's beasts are on another man's grounds without licence (that is, without the owner's permission) and spoil his corn, grass, etc., the owner is entitled to take possession of the beasts until he is compensated for the injury he has sustained. The distress must be taken at the time when damage is done and while the beasts are on the land.

Distress damage feasant is thus a remedy by which, if cattle or other things are on a man's land, encumbering it or otherwise doing damage there, he may summarily seize them without legal process and retain them for the redress of the injury he has sustained.

Anything animate or inanimate, which is wrongfully on the land of another and is doing damage, may be distrained for such damage. For instance, greyhounds or ferrets chasing and killing rabbits may be *distrained damage feasant*. The distrainer must, however, supply the distrained animals with sufficient food and water. A locomotive was once distrained where it was used on a railway line of a company without a certificate of the company as required by a statute.

The right is founded on the *principle of recompense*, which justifies a person in retaining that which occasions injury to his property till amends are made by the owner. The right does *not* give a right of sale. It can be exercised only by a person who has a sufficient possession of land to entitle him to maintain an action for trespass. The distress must be taken at the time of damage is done; if the damage was done yesterday, and the distress taken today, that would be illegal.

It is doubtful whether the common law right of *distress damage feasant* can be said to exist in India under the general law. However, - there are express enactments may allow such distress, as for example, *the Cattle Trespass Act*, which provides for compounding of cattle trespassing and doing damage.

9 JOINT TORT-FEASORS

Questions in this chapter are:

What is meant by joint tort-feasors? 2 marks. November 2015, May 2017.

Definition

When several persons join in committing a tort, they become *joint tort-feasors*. All persons who, in the eyes of the law, are responsible for the same tort are deemed joint wrong-doers. Of course, there must be some connection between the act of one alleged tort-feasor and that of the other. As *Sargent L.J.* put it, “There must be a concurrence in the act or acts causing damage, *not* merely a coincidence of separate acts, which, by their conjoined effect, cause damage”.

Thus, in one case, there was a collision between two buses, as a result of which a passenger in one of the buses died. In a suit under the Fatal Accidents Act by the representative of the deceased, it was *held* that *the owners of both the bus companies were liable*. (*Palghat Coimbatore Transport Co. v. Narayanan*, A.I.R. 1939 Mad. 306)

Three propositions as to joint feasors

As regards joint tort-feasors, the following *three* prepositions may be noted:

1. The circumstances under which joint liability arises.
2. The nature of the joint tort-feasors' liability.
3. Contribution between joint tort-feasors.

1. Circumstances under which joint liability arises

The following are *three principles* on which the liability of joint tortfeasors is based:

(a) Agency

Whenever one person employs, authorises or procures another to commit a tort, the law imputes the wrong to both of them and the principal and the agent are jointly and individually responsible for the act of the agent.

ARNEIL v. PATERSON, (1913) A. C. 560. — Two dogs acting in concert but belonging to different owners, attacked a flock of sheep and injured many of them. In an action for damages brought against the owners of the dogs, one of them put in a defence claiming that he was liable for only one-half of the damage. It was *held* that, in law, each of the dogs occasioned the whole of the damage as the result of the two dogs acting together, and that consequently, *each* owner was responsible for the *whole* damage.

(b) Vicarious liability

Where a person commits a tort under circumstances which make another person vicariously liable for the wrong, both are deemed to be joint tort-feasors. (The law relating to vicarious liability has already been discussed in Chapter 7.)

(c) Joint or common action

Persons who join together in some form of common action become responsible together for the tort committed in the course of such action, irrespective of what part each may play, so long as there is concerted action.

2. The nature of joint tort-feasors' liability

The nature of joint tort-feasors' liability is reflected in the following *three* propositions:

- (a) The liability of the wrong-doers is a *joint and several liability*, so that each is liable for the *whole* damage. The injured party may sue any one separately or he may sue them jointly and a decree obtained against them jointly may be executed against any one. (See *Arneil v. Paterson*, discussed above.)
- (b) A release of one of several tort-feasors releases all the others. The *reason* is that the cause of action, which is one and indivisible, having been released, all persons otherwise liable therefore are, *ipso facto*, released also. This release operates irrespective of the intention of

the parties. However, a mere covenant *not* to sue one of the wrong-doers must be distinguished from an actual release given to him.

- (c) *Earlier*, the view taken was that the cause of action as against the wrong-doer being one and indivisible, a judgement obtained against one or more of the wrong-doers would be a bar to a future action against the others, even though the judgement may *not* be satisfied.

However, *after 1935*, the nature of the tort-feasor's liability has been modified by the Law Reform (Married Women and Tort-feasors) Act, 1935, under which judgement recovered against one joint tort-feasor is *not a* bar to an action against another joint tort-feasor in respect of the *same* damage. However, the sum recoverable by way of damages *cannot* exceed the amount of damages awarded by the first judgement.

3. Contribution between joint tort-feasors

At Common Law, there was no contribution among joint tort-feasors, and a tort-feasor who was forced to pay the whole or more than a proportionate share of the damages had no claim against the other or others for their shares. This principle was based on the maxim *Ex turpi causa non oritur actio*: No cause arises from an illegal act.

MERRYWEATHER v. NIXON, (1873) 8 T. R. 186. — *M* and *N* jointly destroyed the machinery of one *S*, who brought an action against both and obtained a judgement of 840 pounds, which he levied wholly on *M*. *M* brought an action against *N* for contribution of one-half of the amount. It was *held* that *M* could *not* recover.

Thus, the rule in *Merryweather v. Nixon* (above) laid down that the defendant could get neither an indemnity for the whole of what he had paid, nor a contribution for a part of it. In other words, this rule laid down that *there is no contribution between joint tort-feasors*.

In another interesting English case, the plaintiff and the defendants were in partnership as highway robbers. The partnership realised about 2,000 pounds by way of stolen articles. The plaintiff filed a partnership suit for an account of this sum. As may be expected, the Court dismissed the claim as scandalous and impertinent. The Court also fined the Plaintiff's two Solicitors 50 Pounds each for contempt. Interestingly enough, at a later date, the plaintiff got into trouble and was convicted and hanged, whereas three years later, the defendant too met the same fate. More interesting was the fact that, later on, one of the two solicitors was also convicted for having committed robbery. (*Everet v. Williams*, (1725) (1893) 9 C. Q. R. 197)

Five exceptions to the rule that there is no contribution between wrong-doers

The application of the above rule came to be limited in course of time only to such cases as revealed *willful* and *conscious* wrongdoing. Thus, the rule did *not* extend to:

1. Cases of negligence or unintentional breach of the law.
2. Cases of indemnity, where one man employed another to do acts, *not unlawful in themselves*, for the purpose of asserting a right.
3. Cases where one party induced another to do an act which was *not legally supportable*, and yet which was *not* clearly in itself a breach of the law. The party so inducing would be answerable to the other for the consequences.
4. Admiralty actions in cases of collision. In such actions, the damage caused to a vessel by the collision of another is to borne equally by the two vessels.
5. Right of contribution between directors or promoters of a Company who are jointly and severally liable for misrepresentations contained in a prospectus.

Abolition of the rule in Merryweather v. Nixon

Finally, the Law Reform (Married Women and Tort-feasors) Act, 1935 abolished the above rule. The Act provides, *inter alia*, as follows:

- (i) A tort-feasor may recover contribution from any other tort-feasor, whether joint or otherwise, who is liable in respect of the same tort.
- (ii) The amount of contribution recoverable from a tort-feasor shall be *just and equitable*, having regard to extent of his responsibility for the tort.

(iii) The Court may, in a given case, exempt a joint tort-feasor from liability to contribute. Whether the rule in *Merryweather v. Nixon* applies in India

There have been several cases in India which have followed the rule in *Merryweather v. Nixon*. The rule has been freely applied to cases where the parties knew (or ought to have known) that they were doing a wrongful act.

On the other hand, the High Courts of Nagpur, Calcutta and Allahabad have *held* that the rule does *not* apply in India. According to these Courts, a tort-feasor *may* recover contribution from the other joint tort-feasor who would, if sued, be liable for the same tort.

It is submitted that the rule in *Merryweather v. Nixon*, which does *not* appear to be in conformity with equity, justice or good conscience, has already been abolished in England, and has rightly been rejected in several well-considered decisions of the Indian Courts.

10 TRESPASS TO PERSON

Questions in this chapter are:

Define “assault”. 2 marks. May 2012.

Explain the ingredients of assault and battery, citing relevant cases. November 2011.2012. May 2012.

Write a short note on: Assault and battery. April 2013. 2016, November 2015.

Define battery. 2 marks. November 2011.2014. May 2017.

What is Mayhem? 2 marks. January 2018.

What is false imprisonment? 2 marks. April 2011, 2016, November 2013, 2015, May 2012.

Write a short note on: false imprisonment. November 2011, January 2018.

Wrongs affecting personal safety and freedom are often styled as “trespass to person”. The *four* main forms of trespass to persons are:

1. Assault
2. Battery
3. Mayhem
4. False Imprisonment.

1. ASSAULT

Definition

An assault is the unlawful laying of hands on another or an attempt to do a corporal hurt to another, *coupled with a present ability and intention to do the act*. Thus, the essence of the wrong is putting a man in present fear of violence, so that any act fitted to have that effect on a reasonable man would be an assault. But mere verbal threat is *not* assault, nor is a threat consisting only of gestures, unless there is an *immediate intention* and a *present ability* to carry it out.

In assault, the intention of the offender is an important factor. Thus, if X meets his old friend Y on the road and strikes him on his back, saying “Hi I How’s life?”, it is certainly *not* assault. But, if in a heated argument between X and Y, X attempts to strike Y, but is stopped in nick of time by Z, it would amount to assault.

As observed by one writer, an unwanted kiss is as much actionable as a blow, although in the former case, the defendant might find it easier to show that he reasonably believed that the recipient of his attention would *not* object to it.

So also, the threat, “Your money or your life”, *whether or not* it does anything to allay the anxiety of the plaintiff, is an obvious invasion of his rights, and an action for assault can be maintained. (*Keefe v. State*, 1857, 19, Ark. 190)

In India, assault is also a criminal offence, punishable under S. 351 of the Indian Penal Code.

Its ingredients

In an action for assault, the plaintiff must prove:

- (i) That there was some gesture or preparation which constituted a threat of force;
- (ii) That the gesture or preparation was such as to cause a reasonable apprehension of force;
and
- (iii) That there was a present ostensible ability on the defendant's part to carry out the threat into execution immediately.

It will be seen that there need *not* be an actual intention or power to use violence; it is enough if the plaintiff reasonably apprehends the danger. Thus, *X* can maintain an action against *Y*, if the latter threateningly points a gun at *X*, even though *Y* knows (but *X* does *not*) that the gun is *not* loaded.

PROBLEM — *A* points a gun at *B*, who thinks that the gun is loaded. In fact, the gun is *not* loaded, and *A* is aware of this fact. Has *A* committed any offence?

Ans.- Yes, *A*'s pointing a gun at *B* would amount to an assault. [*R. v. James*, (1844 1 Collector & K 530)]

In an *American case*, the defendant leveled a rifle (which was *not* shown to have been loaded) at the prosecutor, who did *not* see the defendant until the latter had been practically disarmed. This was *held not* be assault, since the prosecutor, *not* knowing of the defendant's conduct, could *not* be said to have been put in fear of his safety. (*State v. Barry*, 48 Mont. 598)

STEPHENS v. MYERS, (1830, 4 C & P. 349). — In the *leading case* on this point, the plaintiff was the chairman of a parish meeting. The defendant having been very vociferous, a resolution was passed carried by a large majority, that he should be turned out. Upon this, the defendant said he would rather pull the chairman out of the chair than be turned out of the room, and immediately advanced with his fist clenched towards the chairman. He was thereupon stopped by the church-warden (who sat next to the chairman) at a time when he was *not* near enough for any blow he might have meditated to reach the plaintiff, but the witnesses said that it seemed to them that he was advancing with an intention to strike the chairman. The jury fined the defendant with one shilling damages. *Tindal, C. J.* observed in this case as under:

"It is *not* every threat, when there is no actual personal violence that constitutes an assault; there must, in all cases, be the means of carrying the threat into effect. The question I shall leave you will be whether the defendant was advancing at the time, in a threatening attitude, to strike the chairman, so that his blow would almost immediately have reached the chairman, if he had *not* been stopped. Then, though he was *not* near enough though at the time to have struck him, yet if he was advancing with that intent, I think it amounts to an assault in law. If he was so advancing that, within a second or two of time, he would have reached the plaintiff, it seems to me that it is an assault in law."

READ v. COKER, (1853, 13 CB 850). — When the plaintiff refused to leave the defendant's premises, the defendant collected together some of his workmen, who mustered around the plaintiff, tucking up their sleeves and threatened to break his neck if he did *not* leave. The Court *held* that the plaintiff could successfully sue for assault.

LATTER v. BRADDEL, (1881) 50 L. J. Q. B. 166. — The plaintiff, a housemaid, was suspected by her mistress of being pregnant. A doctor was called by the mistress and the plaintiff submitted to a medical examination, which was accompanied by her sobs and protests. The doctor found that she was *not* pregnant. The plaintiff later sued the mistress and the doctor for assault. Deciding against the plaintiff, the Court *held* that there was no evidence of any force or violence, nor of any illegal act done or threatened by her mistress. The plaintiff had it entirely in her own power physically to comply or *not* to comply with her mistress's orders. There was, therefore, no evidence of want of consent (as distinguished from reluctant obedience) on the part of the plaintiff. In the circumstances, she could *not* succeed.

MORRIS v. MARSDEN, (1952) All E. R. 925. — In this case, the plaintiff was assaulted by a

lunatic. As it was proved that the defendant knew the nature and quality of his tortious act, though he did *not* know that what he was doing was wrong, it was *held* that the defendant was *liable*.

In an *American case*, the defendant approached the plaintiff in a hotel dining room, stood with a walking-stick in his arm, and threatened to “whip the hell out of” the plaintiff unless the latter signed an apology prepared by the defendant. The defendant was *held guilty of assault*. (*Trodden v. Terry*. 172 N. C. 540)

In another American case, the facts of which are rather interesting, the plaintiff had invited the defendant to her house one evening saying that her husband would *not* be home in the evening. Soon after the defendant arrived, he put his arm around the plaintiff. Suddenly, the husband stepped out of an adjoining room and grabbed the defendant. In a suit against the defendant for assault, the Court *held* that no suit lay, as the plaintiff’s invitation, under the circumstances, carried with it the insinuation suggestion that the defendant’s advances would *not* be offensive. The defendant’s conduct had *not* exceeded the bounds of the invitation, and there was, therefore, no basis for the recovery of damages. (*Kirschbaum v. Lowrey*, 174 Minn. 107)

In yet another *American case*, the defendant (who called himself a “magnetic healer”) treated the plaintiff, a young girl of 18, for some nervous trouble at her request and with the sanction of her father. At the defendant’s direction, she removed all her clothes, and he then massaged her all over and took liberties with her body. When charged for assault and battery, it was *held* that, if the defendant had done all this in good faith for curing the patient, the suit would fail. However, in this case, he had needlessly caused the girl to expose herself to his view for his evil purposes, to which she submitted because of her ignorance. He was therefore, guilty of assault and battery. (*Bartell v. State*, 106 Wis. 342)

Whether mere words amount to assault

It is to be noted that *mere words* do *not* amount to an assault. However, the words used by a person may give to his gestures such a meaning as may make them amount to an assault. Likewise, such words may even prevent his gestures from being an assault. Thus, in one case, A laid his hand on his sword and said to B, “If it were not assize time, I would not take such language from you”, it was *held* that this was not an assault. It was indeed assize time, and the words showed that A did *not* then and there intend to use violence against B. (*Tubarville v. Savage*, (1669) 1 Mod. 3)

Similarly, the words “Were you *not* an old man, I would knock you down” negatives the threatening gesture, and there is, therefore, no assault.

Explain the ingredients of assault and battery, citing relevant case laws.

M. U. Nov. 2011 May 2012 Nov. 2012

PROBLEM. — A abuses B, who takes out his sword, and says to A, ‘The next time you use such language, I will kill you.’ Is B guilty of assault?

Ans. — In this case, although there is a menacing gesture, the words accompanying the gesture would prevent A from reasonably apprehending that B was, *then and there*, about to use violence. Therefore, B is *not* guilty of assault. (*A. C. Cama v. H. F. Morgan*, 1864 1 Collector & K 530)

2. BATTERY

Definition

Define battery.

(2 marks) M. U. Nov. 2011 Nov. 2014 May 2017

Battery is the actual striking of another person or touching him in a rude, angry or insolent manner. It consists in touching another person in a hostile manner or against his will, however slightly. It is the actual application of force to the person of another, done without justification, in a rude, angry, insolent or revengeful manner. In other words, the intentional application of force to another without lawful justification, however trivial the amount or nature of the force may be, constitutes the wrong of battery; for instance, the least touching of a man in anger is battery. So

also, spitting on someone's face or cutting another's hair without his consent or snatching a paper from another's hand or removing his hat, would be instances of battery.

Likewise, carelessly firing a gun and hitting another person, would also be battery.

In *Cole v. Turner* (1704 6 Mod. 149), *Holt C. J.* remarked as follows:

“*Firstly*, the least touching of another in anger is a battery. *Secondly*, if two or more meet in a narrow passage, and without any violence or design of harm, the one touches the other gently, it will be no battery. *Thirdly*, if any of them uses violence against the other, to force his way in a rude, inordinate manner, it will be a battery.”

In order to constitute the tort of battery, it is *not* essential that the plaintiff should be conscious of the contact at the time it occurs. Trespass to person is, in any case, entitled to protection, although the plaintiff is asleep, or is under an anesthetic, or otherwise unaware of what is going on. As rightly observed, the girl who is kissed in her sleep is likely to be affronted quite as much (and perhaps, more) when she later discovers it, as when she knows it at the time it takes place.

COWARD v. BADDELEY, (1859) 4 H. & N. 478. — A bystander touched a fireman on the arm to attract his attention to another part of the building where a fire was raging. On a suit filed by the fireman for battery, the Court *held* that the bystander was *not liable for battery*. In such a case, the defence of *de minimis non curat lex* is available to the defendant. The law does *not* take account of trifles.

In one case, the plaintiff had purchased a ticket for a seat at a cinema show. However, he was forcibly turned out of his seat under the directions of the theatre manager, who was under the mistaken belief that the plaintiff had *not* paid for the seat. The Court *held* that the plaintiff was entitled to recover substantial damages. The purchaser of a ticket at a theatre has a right to stay and witness the whole performance, provided he behaves himself and complies with the theatre's rules. (*Hurst v. Theatre Ltd.*, (1915) 1 K. B. 1)

PROBLEM. Being irritated by a painful injection administered to X by Dr. A, he spat on the face of Dr. A. Has he committed any tort?

Ans. Yes spitting on the face of another amounts to battery in the eyes of law. X is, therefore, liable to pay damages to Dr. A for this tort. [*The Queen v. Cotesworth*, (1704) 6 Mod. 172]

Ingredients

In an action for battery the plaintiff must prove:

1. The use of force to him, either to his body, as for instance, slapping or pushing, or by bringing an object into contact with his body as for instance, throwing water on him; and
2. That the use of force was intentional. Thus, touching a man merely to call his attention, or jostling one another in a crowd, is *not* battery.

Battery, like assault, is also a criminal offence. (See S. 350 of the Indian Penal Code.)

Assault and battery distinguished

As an American writer once observed, assault and battery go together like ham and eggs. However, the two may be distinguished as follows: In both, motion is necessary, but while the application of unlawful force to another constitutes battery, an action which puts another in instant fear of unlawful force, though no force may be actually applied, would amount to assault. In other words, physical contact is necessary in battery; whereas in assault, mere fear of physical violence is enough.

Thus, assault may be described as “inchoate battery”. Battery in fact, includes assault. Where the wrongful act falls short of actual physical contact but causes a reasonable apprehension that the party threatening intends immediately to offer violence, it is an assault, as for example, if A lifts up his cane (or his fist) in a threatening manner at B.

Winfield, in an interesting example, has said that pulling away a chair when a person is about to sit on it, is probably an *assault* till the moment the person reaches the floor (for as long as he is falling, he reasonably expects to get hurt). But as soon as he comes into contact with the floor, it

will be *battery*. Similarly, to throw water towards a person is *assault*, but if some drops fall on him, it would also be *battery*.

Defences to an action for assault and battery

Assault and battery may be justified in the following *eight* cases:

1. Self-defence: *Son assault demesne*

Self-defence or defence of one's wife or husband, children, parents or one's master, is always permissible. Self-defence is technically known as "*son assault demesne*", which means that the act complained of was the effect of the plaintiff's own attack.

But the use of force in self-defence is *not justifiable* unless it conforms to *two* general conditions, namely that (i) it was necessary, and (ii) it was *not* disproportionate to the harm to be prevented. For instance, hitting a man a light blow with a little stick on the shoulder is *not* good reason for him to draw a sword and cut and hew the other.

2. Defence of one's property

If one enters the house of another with force and violence, the owner is justified in turning him out in defence of the possession of the house or goods and chattels.

3. To prevent a forcible entry or seizure of chattels

The rightful owner (or his servant by his command) may justify an assault in order to re-possess himself of land or goods which are wrongfully in the possession of another or to prevent a forcible entry into his land or premises, as long as no unnecessary violence is being used.

4. In exercise of parental or quasi-parental authority

Force may be used for the chastisement or correction of a pupil, child or apprentice, provided the force is *not* excessive or unreasonable. A husband, however, has no corresponding power over his wife, and of course, *vice versa*.

5. Leave and licence

A man *cannot* complain of harm to which he has exposed himself with knowledge and of his free will, as for example, boxing, fencing, hockey, foot-ball, *etc.*

6. Preservation of public peace

A person who disturbs a public worship or meeting may be removed by using reasonable force. However, the force used should *not* be more than what is necessary.

7. Legal process

Assault may be justified on the ground that it was committed in serving any legal process, including a search warrant under any law.

8. Misadventure (inevitable accident)

Inevitable accident is a good defence for a trespass to person if the act is lawful in itself, and is done in a reasonable and careful manner. If, however, the act is done in a negligent manner, inevitable accident *cannot* be pleaded.

TIMOTHY v. SIMPSON (1885) 1 CR. M & R. 757. — A shopkeeper had marked prices on his goods and a customer entered and insisted on having the goods. Now, in law, the shopkeeper is *not* bound to sell goods at the marked prices as that is merely an invitation to offer. Therefore, if the customer refuses to leave the shop, necessary force may be used to remove him.

3. MAYHEM

Definition

Among the personal injuries *not* causing the death of the person, the most serious is what is known as "mayhem" or "maim". An action for this tort is maintainable *when a person has been deprived of any fighting limb*. Where it is *not* a fighting limb which a person has been deprived of, then the action would *not* be for mayhem, but only for battery. It has been *held* that loss of teeth, hands, legs, finger (or even castrating) would give rise to an action for mayhem, while the cutting of the ears or the nose would amount to disfigurement and *not* the loss of a fighting limb, and would therefore, give rise only to an action for battery only.

It will therefore, be seen that the only test of a mayhem is hurt on any part of a man's body

whereby he is rendered less able in fighting or defending himself or in annoying his adversary.

General points to be noted regarding *assault*, *battery* and *mayhem*

The following points may be noted regarding the plaintiff's right in assault, battery and mayhem:

1. In all the above three wrongs, an action will lie without proof of actual damage, as they violate a right of the person. It may also be noted that assault, battery and mayhem are criminal offences as well. The plaintiff can sue in tort as well as prosecute the wrong-doer under the Indian Penal Code.
2. Prosecution of the wrong-doer is *not* a bar to a civil action filed against him for the tort.
3. The conviction for assault, battery or mayhem can be no evidence in a civil suit for damages.
4. A plea of guilty in a criminal Court may, but a verdict of conviction *cannot*, be considered in evidence in a civil court.

4. FALSE IMPRISONMENT

Definition

False imprisonment is a *total restraint of the liberty of a person*, for however short a time, without lawful excuse. The word 'false' means 'erroneous' or 'wrong'. It is a tort of strict liability and the plaintiff need *not* prove any fault on the part of the defendant.

Two things are necessary to constitute this wrong:

- (1) The total restraint of the liberty of the person.

The detention of the person may be either (a) actual, that is, physical, as for instance, laying hands upon a person; or (b) constructive, that is, by mere show of authority, as for instance, by an officer telling a person that he is wanted and making him accompany him.

- (2) The detention must be unlawful. The period for which the detention continues is immaterial.

But it must *not* be lawful.

False imprisonment (also sometimes called *false arrest* in American law) thus consists in the imposition of a total restraint for some period, however short, upon the liberty of another, without lawful and sufficient cause or excuse. Such a restraint may be either physical or by a mere show of authority.

Winfield defines false imprisonment as the infliction of bodily restraint which is *not* expressly or impliedly authorised by law.

The deprivation of the plaintiff's liberty must be complete, that is to say, the restraint must be such as to limit the freedom of motion in all directions. It is no imprisonment if a person is prevented from going in one or more of several directions in which he has a right to go, so long as it is open to him to go, as far as he pleases, in some other direction.

In the leading case of *Bird v. Jones*, (1845) 7 Q. B. 742, 744) *Coleridge J* observed:

"A prison may have its boundary, large or narrow, visible or tangible, or though real, still in conception only; it may itself be movable or fixed; but a boundary it must have; and that boundary the party imprisoned must be prevented from passing; he must be prevented from leaving that place, within the ambit of which the party imprisoning would confine him, except by prison breach. Some confusion seems to me to arise from confounding imprisonment of the body with mere loss of freedom; it is one part of the definition of freedom to be able to go whithersoever one pleases; but imprisonment is something more than the mere loss of this power; it includes the notion of restraint within some limits defined by a wall or power exterior to our own."

As pointed by *Winfield*, both the terms "false" and "imprisonment" are rather misleading. False does *not necessarily* signify fallacious or mendacious; rather, it is used in the less common sense of erroneous or wrong. Similarly, this tort can be committed without the "imprisonment" of a person in the commonly understood sense of the term. Thus, if a Professor locks up one of his students in the class-room after the usual lecture hours or if a man is restrained from leaving his own house, it would amount to the tort of false imprisonment.

Ingredients

As stated earlier, in an action for false imprisonment, the plaintiff must prove the following two things:

1. A complete deprivation of liberty

In order to succeed, the plaintiff need *not* prove an actual imprisonment in the sense of imprisonment in a jail. He must prove, however, that there is a complete deprivation of his liberty. Thus, no action lies where the plaintiff is unlawfully prevented from going in a particular direction.

BIRD v. JONES, (1845 7 Q. B. 742).—A portion of a bridge, generally used as footway, was appropriated for seats to view a boat-race. The plaintiff insisted upon passing along the part so appropriated and attempted to climb over the enclosure. The defendant pulled him back but the plaintiff succeeded in climbing over. Two policemen were then stationed by the defendant to prevent him from passing onwards in the direction in which he wished to go. The plaintiff was told to go back into the carriageway and proceed to the other side of the bridge, if he wanted to. He refused to do so and remained where he was obstructed for about half an hour. The Court *held* that this was no imprisonment.

HERD v. WEARDALE, (1915 A. C. 67). — A miner descended a coal mine at 9.30 a.m. for the purpose of working therein. He was entitled to be raised to the surface at the conclusion of his shift at 4 p.m. On arriving at the bottom of the mine, he was ordered to do certain work which he wrongfully refused to do, and at 11 a.m. he requested to be taken to the surface in a lift. His employers refused to permit him to use the lift until 1.30 p.m., although it had been available for the carriage of men to the surface from 1.10 p.m. and in consequence, he was detained in the mine against his will for twenty minutes. In an action for damages for false imprisonment, it was *held* that the action could *not* be maintained on the principle of *volenti non fit injuria*.

MAHARANI OF NABBA v. PROVINCE OF MADRAS, (1942 Mad. 696). — In this case, a Sub-Inspector, misunderstanding a message sent to him, prevented the *Maharani of Nabba* from boarding a train, and also posted two policemen to prevent her car from being taken out of the railway compound. In a suit filed on these facts, it was *held* that there was no false imprisonment, because she was *not* restrained or confined; only the liberty to go in the conveyance in which she wished to go was affected.

JOHN LEWIS CO. LTD. v. TIMS, (1952) A. C. 676. — A house detective arrested a suspected shop-lifter and detained her whilst the manager's authority to prosecute was being obtained. The suspect was then handed over to the police to be brought before a magistrate. The charge was, however, withdrawn later on. The Court *held* that there was no false imprisonment, as the suspect had, in the circumstances, been brought before the magistrate within a reasonable time.

It is *not necessary* to prove that there is an actual physical restraint. There is an imprisonment where a man threatens or declares his intention of arresting another with a show of authority to which the other submits.

Thus, in *Merring v. Graham White Aviation Co. Ltd.*, (1919) 122 L. T. 44, the plaintiff who was suspected of theft, was asked by two aviation officers to accompany them to the defendant company's office where he was kept under guard. It was *held* that the defendant company was liable for false imprisonment.

ROBINSON v. BALMAIN NEW FERRY CO. LTD., (1910) A. C. 295. —The plaintiff, who intended to cross a harbour in the defendant's ferry, paid one penny to enter the defendant's wharf. Between the wharf and the street was a barrier with two turnstiles and a notice stating that a penny must be paid on entering or leaving the wharf, *whether or not* the passenger had used the ferry. Thus, the practice of the defendants was to collect fares on one side of the harbour only. The plaintiff, who had already gone in from the entry turnstile, discovered that he would have to wait for 20 minutes for the next steamer, and therefore, went to the exit turnstile, so that he could

go away. When he refused to pay a penny at the turnstile, he was prevented, for some time, from forcing his way out by two of the defendant's officers. The plaintiff sued for damages for assault and false imprisonment.

The Privy Council *held* that the plaintiff could *not* succeed. The Court observed that there was no complaint that there was any excessive violence; nor was there any false imprisonment at all. The plaintiff was merely called upon to leave the wharf in a manner in which he had contracted to leave it. The payment of a penny was a fair condition and the defendants were entitled to resist a forcible passage through the turnstile.

2. The detention must be unlawful

Secondly, the detention must be unlawful. Thus, if the detention is made in pursuance of powers vested in the defendant by law, no action lies. The *period* for which the detention continues is *immaterial*. But, for an action to lie, the detention must be by the defendant or by his orders.

It has also been *held* that in the case of false imprisonment, it is *not necessary* for the plaintiff to prove malice or negligence on the part of the defendant. It is sufficient if he proves that the false imprisonment was carried out by the defendant and if the defendant *cannot* establish sufficient justification, he would be liable. (*Garikpati Ramayya v. Araza Bikshan*, A. I. R. 1979 A. P. 31)

Should the plaintiff be aware of the imprisonment?

An interesting question arises in this connection is: Can a man be said to have imprisoned, if he was not aware of the fact? For example, suppose A's door is locked up (from outside) whilst he is asleep and opened before he wakes up, would this amount to false imprisonment? The Court of Appeal in England has *held* (in *Merring v. Graham White Aviation Co. Ltd.*, discussed above) that a man may be imprisoned without even knowing it. *Lord Atkin*, in his judgement, observed: "A person can be imprisoned while he is asleep, while he is in a state of drunkenness, while he is unconscious and while he is a lunatic."

It is interesting to note that in the U.S.A., the American Restatement of the law of Torts lays down that before there can be any liability for false imprisonment, the person confined (a) should be conscious of the confinement or (b) should be harmed by such confinement.

Wrongfully obtaining the court's order of imprisonment

It may be noted that an action for false imprisonment does *not* lie for wrongfully obtaining an order or, judgment for imprisonment from a court, though erroneous, irregular and without jurisdiction. The *reason* is that in tort a man is liable only for the acts of himself or his agent and a court is no man's agent but acts in its own judicial discretion. Thus, when two persons are before a Magistrate and one makes a charge against the other, whereupon the Magistrate orders the person charged to be detained until the matter is investigated, the person making the charge will *not* be liable in tort.

Damages

In a suit for false imprisonment, the plaintiff is entitled to compensation for his loss of time, for physical discomfort or inconvenience and for any resulting physical illness or injury to his health. Since the injury is often also mental, he may also be entitled to damages for his mental suffering, humiliation and the like.

False imprisonment distinguished from assault

In most cases of false imprisonment, there is an assault also, but *not necessarily* so. Locking up a man in a room in which he already is by his own volition, amounts to false imprisonment, but is *not* assault. In other words, the element of force which is always present in the tort of assault, *may or may not be* present in false imprisonment.

Defences to an action for false imprisonment

In order to effectively counter liability in a suit for false imprisonment, the defendant must show that his action was justifiable. In other words, he must show either

- (a) that he acted under a lawfully executed warrant issued by a competent tribunal; or
- (b) that his act was one of those which are justified without a warrant.

Right to arrest

The law gives certain persons the right to arrest. The right to arrest without a warrant differs according as the person arresting is a private person or a police officer.

A *private person* may arrest without a warrant (i) one whom he reasonably suspects to have committed, and who has actually committed, a felony; and (ii) a person whom he sees committing, or about to commit, a breach of public peace.

A *police officer* may arrest without a warrant (i) any person whom he suspects to have committed a felony; or (ii) in order to prevent a breach of the peace, or whenever a breach of the peace has been committed in his presence and (iii) under certain statutes.

11 WRONGS AFFECTING REPUTATION : DEFAMATION

Questions for this chapter are:

What is libel and slander? 2 marks. April 2015.

Write a short note on: libel. April 2016, June 2018.

What is defamation? Explain libel and slander citing relevant case laws. January 2017.

Define slander. 2 marks. April 2011, November 2015.

Write a short note on: difference between libel and slander. November 2013.

What is defamation? Distinguish between libel and slander. April 2014.

What is meant by defamation? Explain its ingredients, citing relevant cases. April 2013, November 2013.

State the requisites of defamation along with its defences. January 2018.

Write a short note on: Innuendo. January 2017.

What is meant by “innuendo”? 2 marks. May 2012, November 2013.

Define innuendo with reference to the tort of defamation.

What is defamation? Discuss the various defences in the tort of defamation. April 2015.

What is defamation? Discuss in detail absolute privilege and qualified privilege. November 2011.

What is meant by “qualified privilege”? 2 marks. April 2011.

The following *four topics* are discussed in this Chapter:

I. Two forms of defamation: *Libel* and *Slander*.

II. Requisites of defamation

III. Defences

IV. Miscellaneous topics.

I. TWO FORMS OF DEFAMATION : LIBEL AND SLANDER

A. LIBEL

Definition

A libel is a publication of a *false and defamatory statement in some permanent form*, tending to injure the *reputation* of another person, *without lawful justification or excuse*.

Ingredients

In order to establish the tort of defamation, the following *three conditions* must be satisfied:

1. *The statement must be false*

The falsity of the statement is presumed in the plaintiff's favour. The plaintiff need *not* prove it to be false, and the burden is on the defendant to prove that it is true.

2. *It must be in a permanent form*

The statement must be in writing. It may be in print or even conveyed by means of a cinema film or a gramophone record. Thus, Princess Irina of Russia succeeded in a suit filed by her against the MGM (Metro Goldwyn Mayer) Pictures in whose film entitled “*Rasputin the Mad Monk*”, she was represented as Princess Natasha and as having been seduced by Rasputin. (See *Yousoupoff v. Metro Goldwyn Mayer Pictures Ltd.*, below.)

3. *It must be defamatory*

[See ‘Requisites of Defamation’, below.]

Libel is actionable *per se*

Libel is, in all cases, actionable *per se*, that is, *without proof of actual damage*. When the statement is made in a *permanent form*, the law presumes that, of necessity, the person defamed has suffered legal damage.

Cases

MONSON v. TUSSAUDS, (1894) 1 Q.B. 671. — The exhibition of a wax effigy of a person

who has been tried for murder and acquitted, in the company of the effigies of notorious criminals, is defamatory because this shows that although *not* found guilty, he was in fact a criminal.

GARBETT v. HAYELL, (1943) 2 All E. R. 359. — The defendants published in their magazine on a left hand page a photograph of the plaintiff carrying on his business of an outdoor photographer, in which he was depicted with his camera and showing pictures to two women. On the opposite page was a photograph of a naked woman. Commencing under the first photograph and ending under the second were words stating that for an extra payment a customer could have a photograph like that of the naked woman. The plaintiff brought an action for libel claiming that the juxtaposition of the photographs and the letter-press thereunder implied that he dealt in indecent pictures. It was *held* that the photographs and the lettering were arranged in such a manner as to be capable of a defamatory meaning, and were in fact defamatory of the plaintiff.

MITHA v. NUSSERVANJI (1941) 43 Bom. L. R. 631. — The defendant published in a newspaper about a lady, who was an instructress in physical culture and dancing, and who also ran an industrial institution for poor Parsi girls, that she was unfit to carry on her profession and that by carrying it on, she would be in a position to ruin the future of the girls taking their training in her classes. It was *held* that this was gross libel.

YOUSOUPOFF v. METRO GOLDWYN MAYER PICTURES LTD., (1934) 50 T. L. R. 581. — The defendant produced and exhibited a film in which a woman of good character and social position was represented as having been forcibly ravished by a man of a very bad character. Circumstantial details in the picture pointed to the plaintiff as the wronged woman and several of her acquaintances believed that the film referred to her. When the plaintiff sued the defendants in damages for defamation, she succeeded without proof of special damage. The film constituted a libel and the plaintiff was likely to be shunned by society.

B. SLANDER

Definition

A slander is a false and defamatory *verbal or oral statement in some transitory form*, tending to injure the reputation of another, without lawful justification or excuse. By reputation is meant the opinion of the world in general. Slander is *not actionable without proof of special damage*, that is, it is *not* actionable *per se*, except in the *five* cases mentioned below.

Ingredients of slander

The following are the *six ingredients of slander*.

(1) The matter complained of must be defamatory.

A matter is defamatory when it lowers the plaintiff in the esteem of others or causes him or her to be shunned by members of the society. Thus, to say that Z is suffering from leprosy is defamatory, but *not* when Z is said to be suffering from small-pox. (See below, under “Accusation of a virulent disease”.)

A statement is also defamatory when it exposes the plaintiff to hatred, contempt, ridicule or obloquy. It is equally so when the statement tends to injure him in his profession or calling. Thus, calling a lawyer a dunce or ignorant of the law is defamation. [See “Requisites of Defamation”, below.]

(2) It must be false and must *not* be privileged or in the nature of a fair and *bona fide* comment.

(3) It must refer to the plaintiff.

(4) It must be published.

(5) It must be published by the defendant.

(6) There must be special damage to the plaintiff, except in the *five* cases below where special damage is *not* required to be proved.

How far special damage is requisite in slander

As seen above, slander is *not* actionable *per se*. Except in the *five* cases mentioned below, slander is actionable only on proof of special damage. Mere loss of reputation is *not* sufficient to

constitute an action for *spoken* words. There must be loss of some material advantage, some loss which is pecuniary, or at any rate, capable of being estimated in money.

Slander when actionable *per se*

In the following *five cases*, however, slander is *actionable per se*, that is, special damage need *not* be proved by the plaintiff:

1. Accusation of a criminal offence

Slander is actionable *per se* if the words charge the plaintiff with the commission of a criminal offence punishable corporally and *not* by fine only, as for example, murder, robbery, theft, arson, *etc.* Thus, if X falsely says that Z was convicted for breaking a parking rule under the Motor Vehicles Act, it is no defamation, but *not* so, if the false charge is one of rape or murder.

2. Accusation of virulent disease

Slander is likewise actionable *per se* if the words contain an imputation of a contagious disease. Venereal disease and leprosy come within the rule; small-pox, however, does *not*. However, the imputation must be that the plaintiff was suffering from the disease at the time the words were spoken, and *not* at some time in the past.

Thus, where the defendant told others that his son-in-law was suffering from venereal disease, it was *held* that the son-in-law could succeed, even though he was unable to prove any special damage. (*Blood-wroth v. Gray*, 1844 7 Man. & G. 334)

3. Imputation against office, profession or trade

Slander is actionable *per se* where the words are spoken of the plaintiff in relation to his office, profession or trade, as for instance, to accuse a barrister or a medical man of incapacity or of infamous practices in the discharge of his professional duties. It may be noted that the defamatory words, although calculated to injure a person in his office, profession or trade, but *not* relating to his conduct therein, are *not actionable per se*. Thus, it is *not actionable per se* to make an imputation of immorality against the headmaster of a school in his private capacity and without any relation to his position. (*Jones v. Jones*, (1916) 2 A. C. 481)

Similarly, where a physician was accused of adultery but the accusation was *not* connected with anything done by him in his professional capacity, it was *held not to be actionable per se*. (*Ayer v. Craven*, (1834) 2 A. & E. 2)

Thus, it is *not* defamatory, without proof of actual damage, to say that a gas company clerk has been seen with prostitutes, because he still might be a good clerk, or that a stenographer does *not* pay her bills, since she might nevertheless be good at her stenography, and so on.

Thus, if during a conversation, A says to B that C, an architect, is of immoral character, C *cannot* sue A, unless C proves special damage. It is only when the defendant makes an imputation against the plaintiff in the way of his business or office that slander is actionable *per se*.

4. Unchastity in woman or girl English law

At common law, words imputing unchastity to a woman were *not* actionable without proof of special damage. However, by virtue of the Slander of Woman Act, 1891, words imputing unchastity or adultery to any woman or girl are now actionable *per se* in England. In an old case, it has been *held* that to call a woman a 'lesbian' amounts to defamation. (*Kerr v. Kennedy*, (1642) 1 K. B. 409)

Indian law

The Calcutta High Court has *held* (in a case arising in the town of Calcutta) that words imputing unchastity to a woman are *not* actionable in the absence of proof of special damage. However, in a case which arose in the *mofussil of Calcutta*, the same High Court *held* that such an imputation was actionable without proof of special damage.

The Madras High Court has, however, *held* that such a suit is maintainable without proof of damage. The Bombay High Court has *held* that though Parsis are governed by Common Law, yet words imputing adultery to a Parsi married woman are actionable without proof of special damage as adultery is an offence under the Penal Code. (*Hirabai v. Dinshaw*, (1962) 28 Bom. L.

R. 1334)

5. Aspersions on caste

The trend of modern Indian decisions is that it is defamatory to say of a high caste woman that she belongs to a lower caste. It is defamatory, *not only of her, but also of her husband*, he having married a woman of a lower caste. Such an allegation is thus actionable without proof of special damage. (*Gaya v. Mahabir*, (1926) 1 Luck. 386)

Slander and libel distinguished

1. Written or oral

Libel is defamation in a *written and permanent form*, normally addressed to the *eye*; slander is defamation in an *oral, transient form*, normally addressed to the *ear*. Defamation through a *parrot* would thus be slander.

2. Permanent or transient

Libel is defamation in a permanent form, whether exhibited to the eye (as in the case of a statue, effigy, caricature and the like) or only to the ear (as in the case of a phonographic record or audio cassette). Slander, on the other hand, is defamation in a transient form, whether audible, as in spoken words, or visible, as in the case of a gesture.

3. Tort or crime

In England, libel is both a civil wrong and a criminal offence, whereas slander is a civil wrong only. Spoken words may, however, fall within the criminal law if they are blasphemous, seditious or obscene or if they amount to a solicitation to commit a crime or a contempt of court. There is, however, no crime of slander under English law. *In India*, both libel and slander are torts as well as crimes.

4. Whether actionable per se

Libel is actionable *per se*, that is, without proof of actual damage, whereas slander is *not* - except in the *five cases* mentioned above.

5. Presence of malice

Libel shows greater deliberation and raises a suggestion of malice. Slander, on the other hand, may be uttered in the heat of the moment and under a sudden provocation.

6. As to the publisher

The actual publisher of a libel may be an innocent person and therefore not liable in law, whereas in every case of publication of a slander, the publisher acts consciously and voluntarily and is, therefore, liable.

7. Limitation

Under English law, an action of libel is barred after *six years* whilst that of slander is time-barred after *two years*. *In India*, the period of limitation is *one year* for both.

Defamation via radio, television

Defamation *via* radio or television has *not yet* been considered extensively by the courts and there is a conflict of opinion in this regard. In some cases, it has been *held* to be libel and in some others, slander. Yet other cases have laid down that it would be libel if the broadcaster reads from a script and slander if he does *not*. One American Judge has even coined the word 'defamacast' - perhaps to avoid calling it by either name.

II. REQUISITES OF DEFAMATION

As stated earlier, defamation is a generic term, covering both libel and slander. The *four* requisites common to both are as follows:

1. The statement must be defamatory.
2. The statement must refer to the plaintiff.
3. The statement must be published.
4. The statement must be false.

1. The statement must be defamatory

A statement will be defamatory if it (i) exposes the plaintiff to hatred, contempt, ridicule or obloquy or (ii) tends to injure him in his profession or trade or (iii) causes him to be shunned or avoided by his neighbours or by members of the society.

Defamation is thus an invasion of one's reputation and good name. Defamation is that which tends to injure one's 'reputation' in the popular sense, to diminish the esteem, respect, goodwill or confidence in which a person is held, or to excite adverse, derogatory or unpleasant feelings or opinions against him.

Drawing on American law, it can be said that in the absence of special circumstances which add another meaning to the words, it is *not defamatory* to say that a man is dead, or that he is over-cautious with his money, or that he has led an eventful life, or that he has no permanent address, or that he is a labour agitator. However, it would be defamatory to say that a person is immoral or unchaste or that he refuses to pay his just debts or that he has 'wife-trouble' and is about to be divorced or that he is a 'skunk' or a 'bastard'.

Humour can also be made an instrument of defamation. It is, of course, possible that humour may be understood by all who hear or read it as good-natured fun, *not* to be taken seriously or in any defamatory sense. But when it carries a sting and causes adverse rather than sympathetic merriment, it may become defamatory. Thus, a speech made after dinner may be understood by all present as a harmless after-dinner joke, perhaps inspired by a few round of drinks. However, if it is published in a newspaper on the next day and reaches those who do *not* understand the comments which are published out of their context, it may amount to a libel.

Relevancy of intention or motive

Where the words are defamatory, the question of intention or motive with which they are used is *quite immaterial*. Good faith or ignorance of the defamatory nature of the statement is no defence - for a man utters defamatory statements at his peril. Liability for libel does *not* depend on the intention of the person who defames, but on the fact of defamation. In an action for defamation, the falsity of the charge is presumed in the plaintiff's favour. The burden of proof that the words are false does *not* lie upon the plaintiff.

NEWSTEAD v. LONDON EXPRESS, (1940) 1 K. B. 377. - A newspaper published an account of a trial for bigamy and referred to the prisoner as "Harold Newstead, thirty-year old Camberwell man". The account was true as regards a Camberwell barman of that name but was *not* true as regards the plaintiff, Harold Newstead, aged about thirty, who assisted his father in a business at Camberwell. In an action against the proprietors of the newspapers, it was *held* that, assuming the fact that the words complained of were capable of a meaning defamatory of the plaintiff, the fact that they were true of another person did *not* afford a good defence to the defendants. Proof of intention may, however, be material on the question of damages. Thus, in this case, the jury awarded to the plaintiff damages of one-fourth pence only.

Innuendo

Sometimes defamation is *not apparent* or *prima facie*. It is often couched in subtle language. Words which are *not* defamatory in the ordinary sense may nevertheless convey a defamatory meaning owing to the particular circumstances in which they are spoken. When a statement is thus *prima facie* innocent, but the plaintiff alleges that it has a defamatory significance, he must, in his pleadings, set forth the circumstances which make it actionable. In technical language, he must prove an *innuendo*. By innuendo is meant this explanatory statement that, though the words were *not* libelous in their ordinary meaning, they had, in fact, a specified libelous meaning in the circumstances of the case. Thus, if X says, "Mr. Z is a very honest man. He never stole my watch", the statement is defamatory. The innuendo or the underlying (or real) meaning is that Z did, in fact, steal the watch, he being dishonest. The following cases will clarify this point.

CASSIDY v. DAILY MIRROR, (1929) 2 K. B. 33. — The defendants published in a newspaper a photograph of one M. C. and a Miss X, together with the words "Mr. M. C., the racehorse owner and Miss X, whose engagement has been announced." In an action by the

plaintiff, the wife of *M. C.*, it was *held* that the publication was capable of conveying a meaning defamatory of the plaintiff, namely, that she was not the lawful wife of *M. C.*, and was living with him in immoral cohabitation.

CAPITAL AND COUNTRIES BANK v. HENTY, (1882) 7 App. Cases, 741. — The defendants, H & Sons, having a dispute with one of the branch managers of the plaintiff bank, sent a circular notice to their own customers containing the following sentence: “H & Sons hereby give notice that they will *not* receive in payment cheques drawn on any of the branches of C & C Bank”. The circular was followed by a run on the bank and it suffered loss. In an action brought by the bank, alleging that the notice was libelous inasmuch as it amounted to an imputation of insolvency, it was *held* that the natural meaning of the words was *not libelous*, and the inference suggested by the innuendo to the effect that the plaintiffs were insolvent was not the inference which reasonable persons would draw. Hence, the circular was *not libelous*.

In another case, *X* made a tom-tom in the following words: “*Y*’s goods are being sold by public auction”. *Y* sued *X* on the ground that these words suggested an innuendo that *Y* was insolvent. It was *held* that *X* was *not liable*, as there was no suggestion that the goods were being sold *because* the owner of the goods did *not* pay his debts.

BYRNE v. DEAN, (1937) 1 K.B. 818. — In this case, the plaintiff was suspected of having informed the police that there were unauthorised gambling machines on the premises of a club. Subsequently, an anonymous lampoon was pinned on the club’s notice-board, with the following lines:

“But he who gave the game away May he burn in hell and rue all day.”

The Court *held* that this was *not defamatory*. The members of the club would *not* be “right-thinking” if an attempt to suppress crime lowered a person in their estimation.

American cases

In one interesting case, a retail clothing store, in order to promote its sales, mailed a series of post-cards to its prospective customers, one of which was Mr. *X*. The post-card, written in feminine handwriting read as follows:

“Please call W. Abash 1943, and ask for Carolyn.”

According to Mr. *X*, when his wife read the card, she concluded that he was having a clandestine love affair and left him. In fact, Carolyn was only the name of the sales employee in charge. In a suit by Mr. *X* against the store, it was *held* that Mr. *X* could *not* succeed, as the words could *not* reasonably be construed to have any salacious meaning as alleged. (*Perry v. Moskin Stores*, 249 S. W. 2d 812)

In another case, the defendant accused the female plaintiff of being a prostitute and called her a vagabond. Thereupon, the plaintiff’s brother, who had promised to give her funds to migrate to Australia, retracted his promise till the truth or falsity of the defendant’s charges was established. The Court *held* that special damage was shown, since the plaintiff could *not* get the expected financial assistance (which she otherwise would have received), and she was, therefore, entitled to succeed. (*Corrosan v. Corcoran*, 7 C.L. 272)

In yet another interesting American case, the defendant (who was a portrait painter) was employed by a person to paint his portrait. Upon completion, the customer refused to accept and pay for the portrait on the ground that the job was *not* done well. Thereupon, the defendant painted a pair of donkey’s ears on the portrait and put it up for sale. The Court *held* that there was an *actionable libel*. (*In Re Francis Mezzora*, 2. N. Y. City Hall Records, 113)

2. The statement must refer to the plaintiff

The second requisite of defamation (whether libel or slander) is that the statement alleged to be defamatory must refer to the plaintiff. In every action of defamation, the plaintiff must prove that the statement refers to him. It is, however, *not necessary* to show that the defendant intended it to refer to the plaintiff. The question in each case is *not* whether the defendant intended any such reference, but whether any person to whom the statement was published reasonably thought

that the plaintiff was the person referred to. The question is *not who was meant, but rather who was hit*. In other words, the question is *not* what the defendant really intended, but what the words mean when fairly construed along with the relevant circumstances.

E. HOULTON & CO., v. JONES, (1910) A. C. 20. — The appellants, in their newspaper, published an article in which one “Artemus Jones” described as a churchwarden, was accused of living with a mistress in France. The article was written as a fiction and the writer of the article and the owners of the newspapers were ignorant of the existence of any person with that name. Unfortunately, however, the name so chosen was that of a real person, an English barrister and journalist (who was *not* a churchwarden), and those who knew him supposed that the article referred to him. It was *held* by a majority of the House of Lords that *the defendants were liable*, notwithstanding the absence of any intention to defame the plaintiff.

In *T.Y.R. IYER v. MOHIDEEN*, (1972) A. I. R. Mad. 398, the Madras High Court has *held* that the rule laid down by the majority judgment in *Houlton’s case* (above) is *not* in accordance with justice, equity and good conscience and is, therefore, *not* applicable to India.

[See also *NEWSTEAD v. LONDON NEWSPAPER LTD.* (1940) 1 K. B. 377, discussed above.]

HAYWARD V. THOMSON (1981, 3 W L R 470). - In this case, the plaintiff sued the editor, the correspondent and publishers of The Sunday Telegraph, for an article which connected the plaintiff to an alleged murder plot. The plaintiff was *not* named in the article, which referred to him as “a wealthy benefactor of the Liberal party”. The plaintiff was, in fact, a wealthy philanthropist, who had given more than two million pounds to the Liberal party. In a subsequent article published by the same newspaper, he was named and it was stated that the Police wanted to interview him. The defendants, having made no apologies for the publication, the plaintiff sued them for damages. Awarding 50,000 pounds as damages, the court *held* that the first article was defamatory and was understood by many to be aimed at the plaintiff. Moreover, the second article could be looked at to see whom the first article referred to. In the circumstances, one lump-sum award for both the publications was made in favour of the plaintiff.

[Note: The rule that it is no defence to an action for libel or slander to show the absence of any intention to defame is now modified in England by the Defamation Act, 1952. According to this Act, if a person who has published words alleged to be defamatory of another person claims that the words were published by him innocently in relation to that other person, he may make an offer of amends. In such a case, he would *not be liable*.]

3. The statement must be published

“Publication”, in the present context, means making the matter known *to some person other than the plaintiff*. It is publication and *not* the mere speaking or writing of defamatory words which is the gist of the tort of defamation. Thus, no action can be maintained for libel or slander, unless there is a publication. Therefore, no action in tort will lie if the defamatory words are communicated only to the person allegedly defamed - as that *cannot* injure his *reputation*, although it may injure his *self-esteem*. Thus, there must be a communication to at least one third person before the defamer can be sued. In short, publication of defamatory matter means the making known of the statement to any person other than the person defamed. Communication to a single third person can thus constitute defamation. It may also be noted that communication need *not* be intentional; it may even be negligent.

The following are a few instances of publication: defamatory matter transmitted in telegrams or post cards, letters usually opened by clerks of the plaintiff, defamatory pictures or films, *etc.*

In one case, the defendant sent a registered notice to the plaintiff at his home address. The letter was written in the Urdu script and contained certain defamatory allegations against him. The plaintiff, *not* being conversant with Urdu, took it to another person to read it and that person read it out in the presence of other persons. The court *held* that, since it was neither pleaded nor proved that the defendant had written it, knowing that the plaintiff did *not* understand that

language and would have to get it read by another person, the defendant was *not liable*. (*Mahendra Ram v. Harnandan Prasad*, AIR 1958 Pat. 445)

Although the English rule provides that every sale or delivery of a newspaper is a distinct publication, the majority of American courts have preferred the “single publication rule” under which an entire edition of a newspaper or a book is treated as one publication, and the plaintiff is permitted to plead and prove merely a general distribution of the libel and show the extent of the circulation for the purpose of calculating the quantum of damages.

The law of the State of California, USA, provides that in any suit for libel through a newspaper or a slander by a radio broadcast, the plaintiff is entitled to recover only special damages (that is, damages actually suffered by him) unless he has demanded a correction and such correction has *not* been published or broadcasted. The constitutional validity of this law has been upheld in *Warner v. Southern California Associated Newspapers*, 35 Cal. 2d. 121)

4. The statement must be false

Lastly, the defamatory statement must be false. No civil action lies for the publication of a defamatory statement which is true. The plaintiff need *not* prove that it is false; falsity of a defamatory statement is presumed in favour of the plaintiff and the burden is thrown on the defendant to prove that it is true. *Truth is an absolute defence to an action for defamation*.

In one case, a news item was published in a Telegu daily that the plaintiff, an advocate, had raped a Harijan woman. Although the episode was *not* totally false and even a First Information Report had been filed with the police in the matter, exaggerated versions were given in the news item, with several deviations and improvements. The Court *held* that such a publication did amount to defamation and could *not* be excused under the guise of freedom of expression or freedom of the press. In the circumstances, the plaintiff’s claim was partly allowed and he was awarded compensation of Rs. 10,000. (*Salenadandasi v. Gajjala Malta Reddy*, AIR 2008 (NOC) 299 A. P.)

III. DEFENCES

The following *three defences* available to a defendant in an action for defamation:

1. Justification (or truth)
2. Fair and *bona fide* comment
3. Privilege.

1. Justification (or Truth)

It is a complete defence to an action for libel or slander to show that the words complained of are true in substance and in fact, for the law will *not* permit a man to recover damages in respect of an injury to a character which he does *not*, or ought *not* to, possess.

It is immaterial in law that the defendant made a defamatory statement without knowing of its truth, as long as it turns out to be true when made. If the statement is true, the publisher’s purpose or motive is irrelevant. Mere belief in the truth of the statement, however, is no defence, for a man attacks the reputation of another at his own peril, and mistake, howsoever innocent or inevitable, can be of no help.

In one case, a suit for damages was filed against the printer and the publisher for having printed a defamatory news item under the caption “Theft of elephants’ tusks”. The defendants took the plea of justification by truth, and the Kerala High Court ruled in favour of the defendants, adding that the plea of justification by truth is a well- established defence in India in a suit for defamation. (*N. Achuthan v. The Deshabhimani Printing & Publishing House*, A. I. R. 1986 Ker. 41)

A libel, which is also a crime, has a tendency to provoke a breach of the public peace, and all the more so, when it reflects the truth. Therefore, it is said that *the greater the truth, the greater the libel*. So, in India, under Exception 1 of S. 499, Indian Penal Code, and in England under the Libel Act, 1943, the accused *in a criminal proceeding* is required to prove *not* only that the statement complained of was true, but also that it was made in public interest.

2. Fair and *bona fide* comment

The second defence or justification to an action for defamation is that of fair and *bona fide* comment. A fair and *bona fide* comment on a matter of public interest does *not* attract any liability, however severe it may be in its terms, unless it is written intemperately and maliciously. The word 'fair' in the expression 'fair comment' embraces the meaning of 'honest' and 'relevant'. The views expressed must be honest and such as can fairly be called criticism. But the comment, in order to be fair, must be based upon true facts. If the facts are mis-stated, the defence of fair comment will be of no avail.

Moreover, the comment must be *bona fide* and must *not* be made a cloak for malice. Legitimate criticism is *not* a tort. If it is no more than fair, honest, independent, bold, even exaggerated criticism, then the verdict will be for the defendant. Mere exaggeration, or even gross exaggeration, would *not* make the comment unfair.

Liberty of criticism must be allowed, or one would neither have purity of taste nor of morals. The words published must be (i) fairly relevant to some matter of public interest; (ii) they must be the expression of an opinion, and *not* the allegation of a fact; (iii) they must *not* exceed the limits of fair comment; and (iv) they must *not* be published maliciously.

Examples of matters of public interest are affairs of State, public acts of ministers and officers of the State; the administration of justice; public institutions and local authorities; theatres, concerts and other forms of entertainment; *etc.*

A writer in a public paper may comment on the conduct of a public man in the strongest terms, but if he imputes dishonestly, he must be prepared to justify it. The privilege does *not* extend to calumnious remarks on the private character of the individual. The defence *cannot* be sustained if the facts on which the comment purports to be made do *not* exist.

A journalist like any other citizen, has the right to comment fairly, and if necessary, severely, on a matter of public interest, provided the allegations of facts he has made are accurate and truthful, however defamatory they may be otherwise. Since his right to comment on matters of public interest is recognised by the law, the journalist obviously owes an obligation to the public to have his facts right. Where the journalist himself makes an investigation, he must be sure that all his facts are accurate and true, so that if challenged, he would be able to prove the same. Public interests are better served that way. (*Rustom K. Karanjia v. Krishnaraj*, 72 Bom. L. R. 94)

Rolled up plea

In a civil action of defamation, the plea that words complained of are true in substance and in fact, is a good justification which can be pleaded by the defendant. Similarly, that the alleged material is in the nature of fair and *bona fide* comment is also a defence. Sometimes, a plea is advanced that, in so far as the words complained of consist of allegations of fact, they are true in substance and in fact, and in so far as they consist of expressions of opinion, they are fair comment made *bona fide*. Such a plea is known as a *rolled-up plea*. Salmond, however, observes that "it is a plea of fair comment only."

4. Privilege

The third defence is that of privilege. When a person stands in such a relation to the facts of the case that he is justified in saying or writing what would be slanderous or libelous in the case of anyone else, he is said to have a privilege, and the occasion on which the privilege is exercised is known as a '*privileged occasion*'

There may be circumstances under which it is *right* that one should speak out about another, and state fully and freely what he honestly believes to be the truth as to his character and conduct. Such circumstances are deemed in law to constitute a *privileged occasion*.

It has been observed that an occasion is privileged only if it can be fairly stated that the person who has made the communication has a *duty* or an *interest* in making it, and the person to whom it has been made has a corresponding duty or interest in receiving it. Only if these two factors co-exist, an occasion can be said to be "privileged occasion". (*Dr. Daniel v. K. N. Krishna*

Iyer, A. I. R. 1982 Ker. 95)

Privileged occasions are of two kinds: (i) those that confer an *absolute privilege* and (ii) those that confer only a *qualified privilege*.

(a) Absolute privilege

A statement is absolutely privileged when no action lies for it, even though it is false, defamatory and made with express malice. Absolute privilege arises when, on grounds of public policy, a man should speak out his mind freely and without fear of consequences. No action lies in such cases, however false the statement may be. The existence of malice is entirely irrelevant in these cases.

Absolute privilege attaches to the following *four* kinds of proceedings:

1. Parliamentary proceedings

No action lies for statements made by members of either House of Parliament in their places in the House, however injurious they may be to the interest of third persons. However, this privilege does *not* extend to anything said outside the House.

CHURCH OF SCIENTOLOGY v. JOHNSON SMITH, (1972) 1 ALL E. R. 378. — The plaintiffs sued the defendant who was a Member of Parliament, for alleged defamatory remarks made by the defendant during a television interview. The defendant claimed the defences of fair comment and privilege. The plaintiffs, in reply to his argument, alleged that the statement was made maliciously, and in support, sought to adduce evidence of what the defendant had done and said in Parliament on the same issue. It was *held* that what was done or said in Parliament *cannot* be examined outside Parliament, and therefore, the evidence sought to be given had to be excluded.

2. Judicial proceedings

Every statement made in the course of judicial proceedings is absolutely privileged. “The authorities establish beyond all question that no action of libel or slander lies, whether against a judge, counsel, witnesses or parties, for words written or spoken in the course of any proceedings before any Court recognised by law, and this is so though the words were written or spoken maliciously without any justification or excuse and from personal ill-will and anger against the person defamed.”

The privilege extends to all pleadings and affidavits, and to all statements made by an advocate, counsel, solicitor or the party in person, no matter how false, malicious or irrelevant the words complained of may be. So also, every statement made by a witness in the box is absolutely privileged, even if it is volunteered, provided that it is relevant to the enquiry before the Court. No privilege, however, attaches to a matter wholly unconnected with the matters in issue and made entirely to serve the witness’s own ends.

It should be noted that although no action for defamation lies against a witness for false statements made by him in the witness- box, a criminal prosecution will lie for perjury if the witness intentionally gives false evidence.

In a case decided by the Calcutta High Court, the interesting question before the Court was whether the immunity which a lawyer enjoys in a judicial proceedings is also available to him as regards a statement made by him on behalf of his clients in the course of arbitration proceedings. The Court observed that, on the one hand, public policy demands that lawyers and advocates must be given full freedom for the vindication of the rights of their clients. On the other hand, however, a lawyer is *not* like a loose cannon which inflicts any discriminatory damage whenever he announces that he is acting within his professional capacity. A balance is, therefore, to be struck, and it was *held* by the Court that if, on such occasions, the lawyer is acting in his professional capacity on the instructions of his client, then his statements *cannot* amount to defamation, unless express malice is pleaded and established. (*Majumdar v. Ghosh & Co.*, A. I. R. 1979 Cal. 68)

3. Military and naval proceedings

All acts done in the honest exercise of military or naval authority, reports made in the course of military or naval duty and statements (whether false or malicious) made before a military or naval Court-martial, are also absolutely privileged.

4. State proceedings

Communications relating to affairs of State made by one officer of the State to another in the course of duty are likewise absolutely privileged on the ground of public policy.

(b) Qualified privilege

In the case of a qualified privilege, no suit will lie upon a statement, even though it is false and defamatory, *unless the plaintiff proves express malice*.

The following are the *three* chief instances of qualified privilege:

1. Statements made in performance of a duty

The circumstances of a case may be such as to cast on the defendant the duty of making the communication to a third party. This duty may be legal, social or moral. Communications made pursuant to a duty owed to society relate to the character of servants, confidential and private matters, information as to crimes, *etc.*

It is *not sufficient* to attract the protection of qualified privilege that the subject-matter is one of general public interest. The person or the newspaper who wants to communicate to the general public must also have a duty to communicate and the person to whom the communication is made must have a corresponding duty or interest to receive it. The principle on which the privilege is based is that such communications are protected for the common convenience and welfare of the society.

Thus, in *Winstanley v. Bampton*, (1943) 1 K.B. 319, a letter was written by the creditor of a junior officer to his commanding officer to secure payment of a debt. It was *held* that the occasion was privileged.

WHITE v. J. AND F. ETC., (1939) 2 K.B. 827. — C, a director of the defendant company, said to the plaintiff: “What have you done with the money, White? You are 120 pounds short.” These words were overheard by T, a co-employee of the plaintiff, who happened to be in a cellar below the room in which the statement was made. Later, C said to the plaintiff, in the presence of P, another employee: “You understand on what conditions I am dismissing you. You find 120 pounds short and I will give you your week’s money.” In an action for slander based on these statements, the question raised was whether the occasion was privileged.

It was *held*, decreeing the suit in plaintiff’s favour, that in order to constitute a privileged occasion, the person to whom the defamatory statement is published must be a person who has an interest or a duty, legal, social or moral, to receive it, and where a statement is made to the plaintiff, as here, in the presence of a third person, the occasion was *not* privileged, unless the third person has such an interest or duty. Neither T nor P had such interest or duty. C was, therefore, *liable*.

BOXSIUS v. GOLBERT, (1894) 1 Q. B. 842. — A solicitor, under the instructions from his client, dictated to his typist, a letter addressed to B, containing defamatory statements about B. The letter was press-copied by another clerk. The question arose whether B could sue the solicitor for defamation. It was *held* that the privilege protecting a business communication made on a privileged occasion covers “all incidents of its transmission and treatment which are in accordance with the reasonable and usual course of business.” Thus, the publication to his clerks by the solicitor was covered by a qualified privilege, and therefore, B could *not* successfully sue the solicitor for defamation.

2. Statements made in protection of common interest

Every communication made *bona fide* upon any subject matter with the object of protecting one’s interest common to the writer or speaker and the person to whom it is made, is privileged. Thus, a master warning his servants against undesirable companions is protected by his interest in their honesty. Similarly, complaints of a landlord concerning disreputable sub-tenants,

communications between partners or joint-owners furthering or defending common interests, are privileged.

3. Fair and accurate reports

- (i) *Reports of judicial proceedings.* — Such reports must be fair and a substantially correct account of what took place in the court. A ‘report’ is to be distinguished from a ‘comment’. If they are mixed, there is no privilege.
- (ii) *Extracts or abstracts from report of parliamentary proceedings.* — Under the Parliamentary Papers Act, 1840, extracts or abstracts from reports ordered by Parliament to be published possess qualified privilege.
- (iii) *Fair reports of parliamentary proceedings.* — A fair and accurate report of any proceedings or debate in either House of Parliament or in the Legislature of States or in any Committee of such Parliament or Legislature, is privileged, even though it contains matter defamatory of an individual. If the subject-matter of such proceedings is in the public interest, legitimate criticism, made in a newspaper, is also protected.
- (iv) *Reports of quasi-judicial proceedings.* — True, accurate, fair and *bona fide* reports of the proceedings published by quasi-judicial bodies enjoy a qualified privilege. Speeches made at meetings of local or any other bodies are also privileged.

Absolute and qualified privilege distinguished

The following are the *four* points of distinction between absolute and qualified privilege:

1. Express malice

Absolute privilege is *not* affected by the presence of express malice. A qualified privilege, however, is a privilege which is rebuttable by proof of express malice on the part of the defendant. The plaintiff must prove that the defendant was actuated by malice.

2. As to occasion

In the case of absolute privilege, it is the occasion which is privileged, and when once the nature of the occasion is shown, it follows as a necessary inference, that *every* communication on that occasion is protected. But, in the case of a qualified privilege, the defendant *cannot* prove privilege until he has shown how the occasion was used. It is *not* enough to have an interest or a duty in making a communication; the interest or duty must be shown to exist in making the communication complained of.

3. As to enquiry

Absolute privilege is a complete defence. However, in the case of qualified privilege, the person making a statement is *not* exempt from enquiry altogether, but the question of liability will be determined by consideration of malice or otherwise on his part.

4. Whether rebuttable

Lastly, a qualified privilege is a privilege which is rebuttable by proof of express malice on the part of the defendant, whereas cases of absolute privilege are protected in *all* circumstances, independently of the presence of good or bad faith.

Summary of defences to an action for defamation

- 1. Justification (or truth)
- 2. Fair and *bona fide* comment
- 3. Privilege:
 - (a) Absolute privilege:
 - 1. Parliamentary proceedings
 - 2. Judicial proceedings
 - 3. Military and naval proceedings
 - 4. State proceedings
 - (b) Qualified privilege:
 - 1. Statement made in performance of duty

2. Statement made in performance of common interest
3. Fair and accurate reports.

IV. MISCELLANEOUS TOPICS

Defamation of a deceased person

It is *not* a tort to defame the dead. But a criminal prosecution can lie for defaming the dead if it would have amounted to defamation if the deceased were alive and if it is capable of hurting the feelings of his living relatives.

Defamation of a class

If a libel is made in the name of a class, a particular individual can bring an action only if he can show that it applied to himself. Thus, if a man wrote that all lawyers were thieves, no particular lawyer could sue him, unless there was something to point to that particular individual.

In an American case, a statement made in the presence of third persons that “one of you has stolen the dress” was *held not* to be a slander of either of the three women to whom the statement was addressed. (*Wright v. Rosenbaum*, 344, S. W. 2d 228)

Whether a corporation can sue for defamation

A corporation, being a fictitious person, *cannot* in the nature of things, be brought into hatred, ridicule or contempt by any manner of falsehood. When a libel has been made against a corporation, it is, in fact, the individuals composing it, and *not* the corporation in its aggregate capacity, whose reputation has been injured. A corporation, therefore, *cannot* sue for defamation affecting personal reputation only. It is the individual members only who have such a cause of action.

Thus, in *Mayor of Manchester v. Williams*, (1891) 1 Q.B. 94, the plaintiff corporation failed to recover damages in respect of a statement containing charges of corrupt practices in the administration of municipal affairs, for such statements did *not* injuriously affect the reputation of the corporation as such.

But a corporation can sue for defamation when it affects its business and property, even though the charge is leveled against individual members. In order that a corporation may sue for defamation, two *conditions* must exist: (i) The statement must be of such a nature that it would be defamatory if directed against an individual, (ii) It must be of such a nature that its tendency is to cause actual damage to the corporation in respect of its property and business.

Thus, in *South Hetton Coal v. North-Eastern News Association*, (1894) 1 Q.B. 133, the plaintiff company recovered damages in respect of statements charging it with failing to provide decent and sanitary accommodation for its workmen and their families, for such statements were calculated to injure it in the way of its business.

Defamation by or to husband and wife

According to the age-old doctrine that husband and wife are one in the eyes of the law, communication of a defamatory matter concerning a third person by a husband to his wife or by a wife to her husband does *not* constitute publication.

But where defamatory matter concerning a husband is published to his wife by a third person or defamatory matter concerning the wife is published to her husband, the husband and wife are regarded as distinct and different persons and an action can be maintained.

According to the Madras High Court, a husband *cannot* maintain a suit for defamatory words imputing unchastity to his wife. However, according to the Calcutta High Court, he can.

Repetition of defamatory matter

Every repetition of a defamatory matter is a new publication and a distinct cause of action. A man who receives from the hands of another a libel on any person is *not* justified in publishing it. *Tale-bearers are as bad as tale-makers.*

When slanderous words are *not actionable per se*, but damage arises from the repetition, the originator will *not* be liable except - (i) where the originator authorised or intended the repetition or (ii) when the repetition was the natural and probable consequence of his act or (iii) where there

was a moral obligation on the person in whose presence the slander was uttered to repeat it.

Liability of a news-vendor.— A street news-vendor is *not* supposed to know the contents of the newspaper which he sells. Ordinarily, therefore, he is *not liable* for defamation. But it is otherwise where he shouts the libelous matter contained in the newspaper with a view to attract customers.

Remedies for defamation

A *suit for damages* is the commonest form of remedy in cases of defamation. Further, the publication of defamatory matter may also be restrained by an *injunction* under the provisions of the Specific Relief Act, 1963. As defamation is also a crime, the wrong-doer can also be punished under the Indian Penal Code.

Aggravating circumstances

For the aggravation of damages, the plaintiff must prove aggravating circumstances, as for instance, malice, gross recklessness, violence of language, or a wantonly harmful imputation calculated to outrage the feelings and to cause mental pain to the plaintiff, excessive publicity, repetition of libel, publishing fresh libels before or after the suit, refusal or neglect to retract or apologise, conduct of the defendant during the trial of the action, *etc.*

In one case, a Municipal Council, out of ill-will and malice, served a notice of distraint warrant on a practising Advocate and seized his furniture and books. The Court *held* that he was entitled to substantial damages, although no evidence was adduced as regards the damages suffered by him. (*G. Sreedharamurthy v. Bellary Municipal Council*, A. I. R. 1928 Kar. 287)

Mitigating circumstances

For the mitigation of damages, the defendant must prove mitigating circumstances, as for instance, an apology by the defendant at the earliest opportunity, facts showing absence of malice or of gross negligence, like an inadvertent publication, innocent repetition of a libel, provocation by the plaintiff, bad reputation of the plaintiff, *etc.*

Apology

English Law.—Tendering an apology is a good defence in English Law under the Libel Act, 1843, and the Defamation Act, 1952.

Indian Law. - If an apology is tendered by the defendant and accepted by the plaintiff, the former can resist the plaintiff's suit for defamation. However, publishing a contradiction and expressing regret over the mistake does *not*, by itself, amount to an apology.

12 TORTS TO DOMESTIC RELATIONS

Torts in respect to domestic relations are:

- A. Torts to marital rights
- B. Torts to parental rights
- C. Torts to a master's rights.

A. TORTS TO MARITAL RIGHTS

A violation of marital rights can take place in the following *three* ways:

1. Abduction or taking away a man's wife
 2. Adultery
 3. Causing physical injuries to a man's wife.
1. Abduction

The Common Law gives a husband a right of action against any person who takes away his wife by force or fraud. Similarly, he can sue anyone who persuades or entices the wife to live away from him without sufficient cause. The gist of the action is the loss of consortium of the wife, which term implies an exclusive right, against an invader, to her affection, companionship

and aid. *Per quod amisit* (whereby he had lost the benefit of her society) is the ground of action in all such suits.

A wife has similarly a right of action for deprivation of her husband's society. The right of consortium is a mutual right of husband and wife, and if anyone violates it, either the husband or the wife can sue for that wrong.

2. Adultery

In the medieval period, adultery was actionable by means of a writ of trespass *vi et armis*, the action being known as the action for *criminal conversation*. But this action has been abolished by the Divorce and Matrimonial Causes Act, 1957. To-day, when adultery is committed, a husband has a claim for damages against the wrongdoer under the said Act. The claim may be made either in a petition for dissolution of the marriage, for judicial separation, or in a petition, presented only to claim damages. Interestingly, a wife *cannot* bring an action against the wrong-doer for damages solely in respect of adultery committed with her husband.

3. Causing physical injuries to a wife

The Common Law allows a husband to bring an action for physical injury caused to his wife. If, by maltreatment, the husband is deprived, for any time, of the company and assistance of his wife, the Common Law gives him a separate remedy by an action or for damages for such maltreatment. The wife can sue for injury caused to her and the husband for the loss of her society and service (*consortium et servitium*). These two actions may be brought separately or together.

Where the injuries result in the death of the wife, the husband can claim compensation under the Fatal Accidents Act. The gist of the action being loss of society and services, it follows that a husband whose wife is living separately from him will *not* be entitled to damages.

B. TORTS TO PARENTAL RIGHTS

A parent has a right of the custody, control and services of his or her children. This right is vested in him or her, *not* in the capacity as a parent, *but* in the capacity as the employer of the child. The fiction of service is the foundation of the capacity. A person *in loco parentis* (that is, in the position of a parent) has a similar right of action. Proof of living under the father's roof is ordinarily sufficient evidence of service.

Seduction of a daughter or child

In the case of female servants, the employer, and in the case of female children, the father or guardian, has a right of action for seduction, that is, for the debauching of such servant or child.

To support an action for seduction, two things are necessary: (i) Proof of actual service of some kind, however slight, at the date of seduction; and (ii) The child or servant must have been rendered ill and incapable of rendering service in consequence of the seduction.

In case of parents, the action is based upon a bare fiction of service, and in the case of a master, upon an actual contract of service. Loss of service must be distinctly alleged and proved by the plaintiff.

A girl under twenty-one years will be presumed to be in the service of her father or guardian whenever she is *not* actually in the employment of another. Thus, in the leading case of *Terry v. Hutchinson*, (1868) L. R. 3 Q.B. 599, it was *held* that the plaintiff could maintain an action for the seduction of his daughter, who was seduced in a railway train while on her way home from employment from which she had been dismissed.

A daughter does *not* cease to be in her father's service because she is away on a visit, nor because she is employed elsewhere for part of the day only, so that during the remainder of the day she is free to render service to her father. But if she is in the service of another, service with the father is *not* presumed merely from minor household services such as might be given on a visit.

Where the daughter, *whether of full age or not*, is, at the time of the seduction, actually in another man's service, so that no part of her services was at her parent's disposal, the parent has

no ground of action, for the foundation of the action is *not* the seduction itself, *but* the loss of service of the daughter, in which the parent is supposed to have a legal right or interest.

PROBLEM. — *X*, the daughter of *Y*, was acting as housekeeper to *D*. *X* was a minor at the time. Whilst in service, she was seduced by *C*. At the time of seduction, she had no intention of returning to her father's house. However, after the seduction, she went to her father's house and was maintained by him. Can *Y*, the father, successfully sue *C*, for seduction?

Ans. - *No*. The daughter *X* was in *D*'s service at the time of seduction.

In the case of a parent and a major daughter, the basis of the suit filed by the parent is the loss of *de facto* service. If the daughter is a major, then the father must prove some actual service, though the acts of service rendered may be slight. The service may be quite trivial in value; yet, it will suffice for an action in tort. Any participation in household affairs or performance of trivial domestic duties will afford sufficient evidence of service to support an action; even making tea has been held to be an act of service.

A person standing in the relation of *loco parentis* or a putative father, even though he is *not* married to the girl's mother, can recover damages for an injury of this nature.

BEETHAM v. JAMES, (1937) 2 K. B. 527. — In an action for which the seduction of the plaintiff's daughter aged 22, it was admitted in cross-examination that the plaintiff and the girl's mother were *not* married. They had, however, lived together as man and wife for many years. The girl lived with the plaintiff and her mother, and although she was out working during the day, she assisted the plaintiff and her mother in the household duties.

The Court *held* that any person standing in *loco parentis* can recover in an action for seduction; thus the plaintiff succeeded, even though he and the girl's mother were *not* married, if, as here, loss of service is proved. It is also immaterial *whether the child is or is not of full age*.

A married woman had separated from her husband and was living with her father, acting as his servant. It was *held* that the father *could* maintain an action against a person by whom she was debauched.

It may be noted that no action can be maintained by the woman in respect of her own seduction, for the foundation of the action is the relationship of master and servant. So also, a mother *cannot* herself maintain an action, if the seduction took place during her husband's lifetime, as her right is merged in that of her husband under the Common Law.

Damages how assessed

In an action by the father for seduction of his daughter, damages are usually *exemplary*. They are *not* restricted to loss of service only, but the father is entitled to compensation for his distress and anxiety of mind, for the disgrace and dishonour which he and his daughter are subjected to, for the loss of the society of his daughter, and for expense of maintaining a bastard child. The social position of the parties concerned is also to be considered. The means of the defendant ought *not* to be inquired into, and this factor would *not* affect the amount of damages. It is an aggravation that the seduction was effected under the guise of honorable addresses.

Where the plaintiff is the master of the person seduced, the measure of damages is the actual pecuniary loss to him.

C. TORTS TO A MASTER'S RIGHTS

At Common Law, a master has a right of action against anyone who deprives him of the services of his servant by:

- (i) injuring or imprisoning him so as to prevent performance of service by the servant; or
- (ii) inducing the servant to leave the master's service wrongfully, that is, before the expiry of the stipulated period.

In addition to the above, a master may sue for loss of service caused by the seduction of a female servant. The relationship of master and servant must have existed both at the time of seduction and at the time of the illness causing the loss of service.

The word "seduces" appears also in the Bombay Children Act, 1948. The Bombay High

Court has interpreted it as meaning to lead a girl astray in conduct or to draw away a girl from the right course of action. It would also include inducement to indulge in immoral behaviour. (*Narassappa v. The State*, 75 B. L. R. 221)

Service of female servants

In a master's action for seduction of his female servants, the following *three* facts must be proved:

- (i) That contractual service of some kind was rendered by the servant at the time of seduction.
- (ii) That the servant was incapacitated from rendering service in consequence of the seduction.
Usually, the incapacity referred to above results from pregnancy and confinement. But it is sufficient even if the servant is taken ill because she is mentally upset. Where, however, the seduction takes place before the relation of the master and the servant was established, the master would have no cause of action. Where the servant is at the time in the service of two different masters, each may sue in respect of the seduction.
- (iii) That the plaintiff suffered a special damage by reason of the injury inflicted on the servant.

13 WRONGS AFFECTING STATUS

The following *four* torts are discussed in this Chapter:

1. Expulsion from membership of a club or association
2. Expulsion from caste
3. Invasion of right to an exclusive office or title
4. Exclusion from worship.

1. Expulsion from membership of a club or association

In the case of a social club or association which is open to membership on certain conditions and which gives its members certain privileges and amenities, the law notionally vests a right of property in each member, and treats any wrongful expulsion from membership of the club or association as a subsidiary form of infringement of the right of property itself.

Persons or bodies in positions of quasi-judicial authority are required to act in consonance with the principles of natural justice and in accordance with the rules regarding the regulation of the affairs of such club or association. Therefore, where a member of a club is wrongfully expelled, he can sue for damages for the injury to his status as a member of the club.

2. Expulsion from caste

In India, great importance is attached to cases of excommunication from the caste for caste offences. In regard to this matter, it may be observed that the *Caste Panchayats* are invested with certain rights of inquiring into and punishing offences by any of the members against the sanctity of the caste regulations. The membership of a caste is regarded as a privilege, and expulsion therefrom (except for proper reasons) is an actionable wrong.

It may also be mentioned that the requirement in English Law with regards to clubs, namely, that the association must have some property, does *not* apply in Indian Law, so that though the caste, as such, may *not* be possessed of any property or other amenity, the plaintiff can sue for having been wrongfully excommunicated from the caste. Such wrongful expulsion or exclusion from the caste communication furnishes a cause of action in itself. It may, in a given case, also constitute an actionable libel.

3. Invasion of right to an exclusive office or title

The invasion of an exclusive right to an office or dignity to which emoluments are attached is also a ground for an action. A suit for a declaration of the plaintiff's right to a religious office can lie, although no emoluments are attached to it. No action will, however, lie to vindicate a right, *not* to an office, but to a mere dignity unconnected with any fees, profits or emoluments.

Use of a title by a peeress after dissolution of marriage is *not* such an invasion or disturbance of the right to dignity as to entitle the holder of the title to maintain an action for injunction. (See *Earl Cowley v. Countess Cowley*, discussed in Chapter 2.)

4. Exclusion from worship

Every person has a right to worship at the public places of worship for the use of people belonging to his particular religion. The law recognises, protects and enforces such a right as a civil right falling within the cognizance of a Court of Law, as distinguished from a privilege pertaining to the autonomy of a caste or polity.

14 TORTS RELATING TO IMMOVABLE PROPERTY

Questions in this chapter are:

Write a short note on: Trespass and trespass ab initio. April 2015.

What is meant by trespass ab initio? 2 marks. April 2016, January 2017.

Write a note on 'trespass to property'. April 2016.

Name the defences available to defendant. January 2017.

Write a short note on: The six carpenters' case. April 2014, June 2018.

What is nuisance? 2 marks. May 2012, 2017.

What is nuisance? State defences available for tort of defamation. May 2017.

What is public nuisance? 2 marks. April 2011, 2014, November 2011.

What is private nuisance? 2 marks. January 2017.

Torts affecting immovable property fall into the following *seven* categories:

1. Trespass
2. Trespass *ab initio*
3. Dispossession
4. Injury to reversionary rights
5. Waste
6. Damage to natural rights and easements
7. Nuisance.

1. TRESPASS

Definition

Trespass to land is an unwarranted entry upon the land of another or any direct and immediate act of interference with the possession of such land. To constitute the wrong of trespass, neither force, nor unlawful intention, nor actual damage, nor breaking of any enclosure, is necessary. *Every invasion of private property, be it ever so minute, is a trespass.*

Moreover, trespass is actionable *per se*, that is, without proof of actual damage. Thus, driving a nail into the wall of another person or shooting over his field or land, are instances of trespass to land.

A public road is to be used only for the passage of the public. A person using it for any other purpose, as for instance, for loitering, commits a trespass. (*Harrions v. Duke of Rutland*, (1893) 1 Q. B. 142)

In *Hickman v. Maisey* (1900 1 Q. B. 752), a trainer of race-horses had agreed with the plaintiff for the use of some of his land for the training and trial of race-horses. A view of the land so used could be obtained from the highway on the plaintiff's land. The defendant, the proprietor of a publication which gave accounts of the doings of racehorses in training, walked forwards and backwards on a portion of the highway on the plaintiff's land for about fifteen yards for an hour and a half, watching and taking notes of trials of race-horses on the plaintiff's land. In an action for trespass, it was *held* that the defendant had exceeded the ordinary and reasonable user of the highway to which the public are entitled and was, therefore, *liable* for trespass.

Trespass to land is a *continuing wrong* which lasts so long as the injury to the land continues, and gives rise to actions *de die in diem*, that is, *from day to day*, so long as it lasts. Thus, if a man throws a heap of stones or builds a wall on his neighbour's land and leaves it there, the right to sue him will continue from day to day until the thing is removed. A continuation of every trespass is, in law, a new trespass. *Trespass to land is also an offence under S. 441 of the Indian Penal Code.*

In a case decided by the Bombay High Court, the interesting question before the court was: If a tenant of a building with a compound parks his car in that compound, would it amount to

trespass? Answering this question in the negative, *Vaidya J.* observed as follows:

“I have looked into all the books on the Law of Torts, which are available, and I called upon the Learned Advocates to find out any authority under the Law of Torts where the parking of cars in a compound of a building by the tenants of the building was held to be a trespass or an invasion of the right to property. Neither could they cite any authority, nor could I find any to support the proposition that the parking of a car in the compound of a building by the tenant of a flat in the building would be a trespass on the part of the tenant.”

In the circumstances, it was *held* that *no trespass was committed* by the tenant. (*Madhav Kudwa v. Madhadas Vallabhdas*, A. I. R. 1979 Bom. 49)

Trespass to land may be committed in one of the following three ways:

1. Trespass by wrongful entry

The most common form of trespass is a wrongful personal entry by the defendant on the plaintiff's land. The slightest crossing of the boundary is sufficient, as for instance, putting one's hand through another's window or sitting on a fence.

2. Trespass by remaining on the land

A person who has lawfully entered on the land in the possession of another commits a trespass if he remains there after his right of entry has ceased. Thus, a person who has entered by leave or license of the occupier will be liable as a trespasser if, after a request, he fails to leave the premises.

3. Trespass by placing things on the land

It is a trespass to cause any physical object to cross the boundary of the plaintiff's land, or even to come into physical contact with the plaintiff's land, even though there may be no crossing of the boundary. For instance, throwing a stone upon the plaintiff's land or piling rubbish against his wall would technically amount to trespass.

In an action for trespass, the plaintiff must prove the following two things:

- (i) That he was in actual possession of the land at the time of trespass; he must have *effective possession, and not mere user*. It is immaterial whether his possession is *rightful* or *wrongful*.
- (ii) That there was direct interference with the possession of his land, though there is no need to prove actual damage, since trespass is *actionable per se*.

It has been *held* that if a person exceeds the ordinary and reasonable user of a highway to which the public is entitled, he would be liable for trespass. Public streets, including pavements, are primarily dedicated for public use for the purpose of passage and *cannot* be used for private residence or for carrying on private trade or business or as a prayer ground by any community. The municipal corporation has, in such cases, statutory power to remove the obstruction which amounts to trespass. (*Dr. P. Navinkumar v. Municipal Corporation for Greater Bombay*, AIR 1989 Bom. 88)

Trespass by animals

Trespass by a man's cattle, sheep, poultry, *etc.*, is similar to trespass committed by the owner himself. Such a person will be responsible for the trespass and consequential damage caused by his animal, unless he can prove that the neighbour was under a duty to fence his land and failed to do so.

Ellis v. Loftus Iron Co., (1874 L. R. 10 C. P. 10). - The defendant's horse injured the plaintiff's mare by biting and kicking her through a fence belonging to the defendant. It was *held* that this constituted a trespass for which the defendant was *liable*.

Plaintiff's remedies

A person whose land is trespassed upon has the following remedies:

1. He may bring an action against the wrong-doer.
2. He may forcibly defend his possession or forcibly eject the trespasser.
3. He may obtain an injunction from the court to restrain a continuing or a threatened trespass.

Aerial trespass

Under S. 17 of the Indian Aircraft Act, no suit can be instituted in respect of trespass or nuisance by reason only of the flight of aircraft over any property at a height above the ground which, having regard to the wind, weather and all circumstances of the case, is reasonable or by reason only of the ordinary incidents of such a flight. But whoever willfully flies an aircraft so as to cause damage to the person or property of another may be punished with imprisonment for six months or a fine of Rs. 1,000 or with both. In view of this Act, there is no civil liability for trespass unless the plaintiff establishes intention or negligence on the part of the person causing the damage.

DEFENCES

The following are *nine defences* available to a defendant in an action for trespass:

1. Prescription

A defendant may plead that he was justified by reason of prescription, as by showing a right of common or a right of way over the land which he has enjoyed *for a period of twelve years or more*.

2. Leave and license

A license makes an act lawful which, without such permission, would be unlawful. It is a voluntary suspension of the licensor's right to treat certain acts as wrongful, as for instance, to hunt on his land or to come into his house. License may be (i) express, as in the case of a guest in a house or a person who purchases a ticket to attend a cinema, or (ii) implied, as in the case of a customer entering a shop or a person who is habitually allowed to use the plaintiff's land as a short-cut.

Thus, where the plaintiff had purchased a ticket for a cinema, but was turned out of the cinema-house forcibly under a mistaken impression that he had *not* bought a ticket, it was *held* that substantial damages ought to be awarded to the plaintiff. (*Hurst v. Picture Theatre Ltd.*, (1915 1 K. B. 1)

3. Authority of law

Authority of law is a good defence in the following *three* cases:

(a) Execution of legal process

Entry under a legal process is justified. Persons who execute legal processes like a warrant of arrest, attachment or search, are protected by the warrant from liability in respect of the acts authorised by it. But they can claim this immunity only if (i) the warrant is *not illegal* on the face of it; (ii) they do not exceed the authority given under the warrant; *and* (iii) they conform to the procedure prescribed by law.

SEMayNE v. GRESHAM, (1604 5 Coke 91). - *B* and *G* lived together in a house at Blackfairs as joint tenants. *B* contracted heavy debts and one of his creditors was Semayne to whom he acknowledged his debt in a recognizance. *B* died and *G* became the owner of the house by right of survivorship. *B*'s goods being in the house, Semayne accompanied the Sheriff and they set off for Blackfairs. But when they came to the house, *G* shut the door on their faces, whereby the execution was disturbed. In an action brought by Semayne, it was *held* that *G* had done nothing wrong in locking the front door, and that when the King is a party, the house-holder must be requested to open the door before the Sheriff can break his way in.

(b) Distress

Distress is the remedy for the satisfaction of a demand, which consists in the taking of a personal chattel from the possession of the defaulter as a pledge for the required performance. It is the usual remedy for recovery of rent.

(c) Distress damage feasant

Distress damage feasant is a remedy by which, if cattle or other things are on a man's land, encumbering it or otherwise doing damage there, he may summarily seize them and retain them as a pledge for the redress of the injury sustained by him. Anything animate or inanimate which is

wrongfully on the land of another and is doing damage may be distrained for such damages.

This right exists under English law and is founded on the principle of recompense. It can be exercised by a person who has sufficient possession of land to entitle him to maintain an action for trespass.

It does *not*, however, give him any right of sale. The distress must be taken at the time when the damage is done. So, if the damage was done yesterday and the distress is taken today, it would be illegal. One may distrain even in the night, but a distress for rent can be made only during the day. *Distress damage feasant* is *not* allowed against a party who purports to exercise his right.

SORREL v. PAGET, (1949 2 All E. R. 609). - The plaintiff's heifer strayed into the defendant's field. The latter impounded it and demanded money (for the damage suffered) when the plaintiff came to claim it. The heifer died in the meantime and the plaintiff claimed compensation for conversion of the heifer. It was *held* that the defendant was *not liable*, as he had a right to distrain the animal *damage feasant*.

In India, the right of *distress damage feasant* does *not* exist. However, the Cattle Trespass Act makes a provision regarding the impounding of cattle which damage the property of another. (The topic of *distress damage feasant* has also been discussed in Chapter 8.)

4. Act of public necessity

Entry on the land of another person without his consent is justifiable on the ground of public necessity, as for instance for putting out a fire for public safety, defence of the realm, *etc.*

5. Self-defence

A trespass may be excused as having been done in self-defence or in defence of a man's goods, chattels or animals. Force used in such cases must be reasonable, that is, it must be necessary for the purpose and proportionate to the damage to be prevented. If a person has actual possession of goods and another wrongfully attempts to take the same from him, he is justified in using such force as is necessary for the purpose of defending his own possession. Under these circumstances, self-defence is a valid plea in an action for trespass.

6. Re-entry on land

An owner who has been wrongfully dispossessed can re-enter on his land, and if he does so, he *cannot* be sued for trespass by the person who was there wrongfully.

7. Re-taking of goods and chattels (Re-capture)

If a person takes away the goods of another upon his own land, he gives to their owner an implied license to enter the land for the purpose of re-capture. Similarly, if the goods are on the land of another in pursuance of a felonious act of a third person, the entry will be justifiable. But it will be otherwise if the goods or chattels are on the land of another owing to some negligent or wrongful act of the owner himself.

8. Abatement of nuisance

An occupier of land may, after previous notice, enter upon another's adjoining land for the purpose of removing a nuisance upon it.

Abatement, that is removal, of the nuisance by the party injured by it must be (i) peaceable, (ii) without danger of life or limb, and (iii) after giving notice to remove the same, if it is necessary to enter another's land to remove a nuisance, or where the nuisance is a dwelling house in actual occupation, unless it is unsafe to wait.

Thus, the occupier of land may cut off the overhanging branches of his neighbour's trees or even roots which have spread from these trees into his own land. But he cannot cut the branches if the tree stands on the lands of both the parties.

(The law as to abatement is discussed under 'Nuisance', below.)

9. Special property or easement

A person who enjoys an easement may enter upon the servient tenement in order to do necessary repairs.

***Jus tertii* is no defence**

Jus tertii means “the right of a third person”. Where a person who is *prima facie* liable to another, sets up a defence that the paramount title is vested in a third person, he is said to set up the defence of *jus tertii*. This defence is, however, *not* allowed in cases of trespass. Thus, in an action for trespass, the wrong-doer *cannot* set up the plea of *jus tertii*, that is, that the plaintiff himself did *not* have the right of possession over the land where the trespass took place.

(*Jus tertii* is also discussed in the next Chapter.)

2. TRESPASS AB INITIO

Definition

When a person enters upon the land of another by authority of law and is subsequently guilty of an abuse of his authority by an act of misfeasance, his misconduct relates back, so as to make his original entry tortious, and he is liable in damages, *not* only for the entry itself, but also for subsequent acts. When, in an entry, authority or license is given to any one by the law and he abuses it, he becomes a trespasser *ab initio*, that is to say, the authority or justification is *not* only terminated, but is treated as if it has never existed. For example, the law gives authority to a person to enter into a common inn, but if a person enters the inn and steals something, the law presumes that he entered for that very purpose, and holds him liable for the original entry itself.

Conditions

The following *two conditions* must be satisfied before applying the doctrine of *trespass ab initio*:

1. Authority must be given by law

The authority which is abused must have been given by law, and *not* by an individual. When a person who has entered by consent or license of the owner, subsequently abuses that license, he is, no doubt, liable for that abuse, but *not* as a trespasser *ab initio*.

2. Subsequent act must be a misfeasance

The subsequent abuse must amount to a positive wrongful act or misfeasance, as opposed to a mere omission or non-feasance.

A mere non-feasance does *not* amount to such an abuse as to render a man a trespasser *ab initio*. Thus, in *the Six Carpenters' Case* (below) it was *held* that a man was *not liable* as a trespasser *ab initio* by reason of his refusal to pay for food and wine consumed at an inn.

SIX CARPENTERS' CASE (VAUS v. NEWMAN) (1610) 1 Sm. L. C.134. — The proprietor of an inn brought an action for trespass against six carpenters, who entered an inn, drank a quart of wine and paid for it. They then ordered one more quart of wine and some bread, for which they refused to pay. The question was, whether in such circumstances, their failure to pay for the wine could be treated as a misfeasance, which would make their original entry into the inn unlawful as a trespass. It was observed that “*not doing something cannot make the party who has authority or license by the law, a trespasser ab initio, because not doing is no trespass. So, in the case at the Bar, the denying to pay is no trespass, and therefore, they cannot be trespassers ab initio.*”

This leading case lays down *three* points:

- (i) If a man abuses an authority given to him by law, he becomes a trespasser *ab initio*.
- (ii) In an action of trespass, if an authority is pleaded, the subsequent abuse of that authority can be proved.
- (iii) A mere non-feasance does *not* amount to such an abuse as renders a man a trespasser *ab initio*.

ELIAS v. PASMORE, (1934) 2 K. B. 164. — In order to effect the arrest of a person, the defendants, being police-officers, entered the plaintiff's premises. While there, they seized and carried away documents found on the premises. Amongst the documents, there were some which constituted evidence for the trial of the person arrested, but there were others which did *not* so constitute, and were subsequently returned. In an action for trespass, it was *held* that the defendants were only trespassers *ab initio* as regards the documents that were seized and

returned, but were *not liable* for any damages in respect of the entry on the premises for the purpose of arrest.

3. DISPOSSESSION

Definition

Dispossession or ouster is wrongfully taking possession of land from its rightful owner. An owner is said to be dispossessed of his land where, by the act of the defendant, he has been deprived altogether of his dominion over the land or the receipt of its profits.

Remedy

The party dispossessed can bring an action of ejectment to recover possession of the land. In India, S. 6 of the Specific Relief Act allows a person who is dispossessed otherwise than in due course of law, to sue for recovery of possession, irrespective of any question of title, provided he files a suit within a period of six months. Under this section, even a person in wrongful possession can sue the real owner, provided he was dispossessed otherwise than in due course of law.

Defences

The defences to such suits are mainly two-fold: (i) that the defendant has a better title than the plaintiff; and (ii) that the defendant having held the immovable property or enjoyed the interest for twelve years and upwards, the plaintiff's title has thereby become extinguished and the defendant has acquired a good title (that is, the defence of prescription).

The defence of *jus tertii* (that is, that the legal right vests in a third person) *cannot* be set up in cases between:

- (a) landlord and tenant; and
- (b) licensor and licensee.

4. INJURY TO REVERSIONARY RIGHTS

Injuries to reversionary interests are done either by strangers or by tenants. The owners of a life-interest will *not* be allowed to destroy, consume or impair the corpus of the subject-matter, so as to injure the rights of the remainderman.

5. WASTE

Definition

Where a person who is entitled only to remain in possession of immovable property, does unlawful damage to such property to the detriment of the reversionary interest of the owner, he is said to commit waste. Conversion of land from one species to another, as for example, turning arable land into pasture-land, is waste. Questions of waste generally arise between a tenant for life and those in remainder or between a landlord and his tenant.

Kind of waste

Waste is of two kinds, voluntary waste and permissive waste.

(a) Voluntary waste

Voluntary waste is a tort of commission. It consists in actively doing something which alters the nature of the property to the prejudice of the reversion.

(b) Permissive waste

Permissive waste is a tort of omission only. It consists of a mere passive act, as for instance, allowing a house to go to ruin by reason of non-repair. In the absence of an express covenant to that effect, neither a tenant for life nor a tenant-at-will is liable for permissive waste.

6. DAMAGE TO NATURAL RIGHTS AND EASEMENTS

A person is *not* only entitled to remain in undisturbed possession of his immovable property, but he has certain other rights pertaining to the enjoyment of the property. Such rights which are necessary for the enjoyment of immovable property (and interference with which is actionable) may be classified as follows:

1. Right to support
2. Right to water

3. Right to light
4. Right to air
5. Right of way
6. Right of privacy
7. Right of prospect
8. Right of common
9. Profits-a-prendre.

There are certain natural rights and easements attached to every land. The most important natural rights and easements, the invasion of which is treated as wrong, are the right to support, the right of water, the right to light, the right to air and the right of way. Consequently, there is a corresponding duty on the owners of neighbouring lands *not* to interfere with these rights.

A man can use his land in any way he chooses, but *not* so as to infringe the legal rights of others. Every owner of land has a natural right to undisturbed support from subjacent or adjacent soil belonging to another. The co-relative duty is on the part of every owner *not* to cause a subsidence of the land above or adjacent to his by any act done on his own land. Subject to this condition, he can do what he likes on his own land; he may dig trenches or mines, or he may cut and carry away earth or minerals from it. Similar is the case of other natural rights and easements.

A man *cannot* increase the liabilities of his neighbour by applying his own property to special use, whether for business or for pleasure. The person who, for his own purpose, brings on his land and collects and keeps there anything likely to do mischief if it escapes, must keep it in at his peril; and if he does *not* do so, he is *prima facie* answerable for all the damage which is the natural consequence of its escape. (See *Rylands v. Fletcher*, discussed at length in a later Chapter.)

1. Right to support

The right to support may be of (1) land by land; (2) buildings by land; (3) building by buildings.

(1) *Rights to support land by land.* — Every piece of land is entitled to a natural right to support from the adjacent or subjacent land. The former is called the right to lateral support and the latter, the right of vertical support.

Every proprietor of land is entitled to such an amount of lateral support from the adjoining land of his neighbour as is necessary to sustain his own land in its natural state, *not* being weighed by walls or buildings. This is a natural right, the invasion of which is treated as a wrong. A right of support in extension of the natural right may be acquired by prescription or grant. The right of lateral support is however *not* an absolute right and its infringement is *not* a cause of action without appreciable damage.

(2) *Right to support of buildings by land.* — This right may be *two* kinds: (i) lateral support of buildings by adjacent soil, and (ii) vertical support of buildings by subjacent soil.

(3) *Right to support buildings by buildings.* — The right to support one building from an adjoining building is *not* a natural right. However, it may be acquired by grant or prescription.

It may, however, be noted that the mere fact of contiguity of buildings imposes an obligation on the owner to use care and skill in removing one building, so as *not* to damage the other, even though no right to support has been acquired.

2. Right to water

Infringement of rights to water may be divided into the following *three* classes:

(1) *Wrongful obstruction of water.* — Every owner or occupier of riparian land (that is, land by which a stream passes) has a natural right entitling him to the continued undiminished flow of a natural stream, subject only to reasonable use by others for the purpose of their riparian property. The owner of the source has no higher rights

Obstruction by any person for a purpose unconnected with the use of riparian land is

actionable *per se* by any riparian owner who is affected. A riparian owner may acquire this right by prescription or grant, but strangers can only use such water by statutory authority.

CHASEMORE v. RICHARDS(1859) 7 H. L.C. 349. — A landowner and a mill-owner who had, for more than sixty years, enjoyed the use of a stream which was chiefly supplied by percolating underground water, lost the use of the stream after an adjoining owner had dug on his own ground, an extensive well for the purpose of supplying water to the inhabitants of the district, many of whom had no title as landowners to the use of water. In an action brought by the landowner, it was *held* that the principles regulating the rights of owners of land in respect of water flowing in known and defined channels, whether upon or below the surface of the ground, do *not* apply to underground water, which merely percolates through the strata in known channels, and the plaintiff had therefore no right of action.

(2) *Wrongful pollution of water.* - The pollution of underground water is on a different footing and is actionable as a nuisance. No one has the right to pollute the water percolating under his own land by an underground channel into another's land, so as to poison the water which that other has a right to use.

BALLARD V. TOMLINSON. - A and B were neighbours, each having a deep well on his own land. A allowed sewage to go into his own well with the result that B's well became polluted on account of underground percolation as it was on a lower level. When B sued A, it was *held* that allowing sewage to escape into another's property is an actionable wrong and that A would be *liable*.

(3) *Wrongful obstruction by a stream.* - Obstruction in the bed of a stream may cause diminution of supply to lower riparian owners or excessive supply to opposite or upper owners. It is only such obstruction that constitutes an actionable wrong. An obstruction that has no such effect is *not actionable*.

3. Right to light

An owner of ancient lights is entitled to sufficient light according to the ordinary notions of mankind for the comfortable use and enjoyment of his house, and in case of a shop or a warehouse, for the beneficial use and occupation thereof.

The right to light is a right to be protected against a particular form of nuisance. It may be acquired:

- (a) by a grant or covenant, express or implied;
- (b) by prescription; or
- (c) by a reservation at the time of the sale of the servient tenement.

To constitute an actionable obstruction of ancient lights, there must be a substantial deprivation of light, enough to render the occupation of the house uncomfortable according to the ordinary notions of mankind, and in the case of business premises, to prevent the plaintiff from carrying on his business as beneficially as before.

The Rule of 45 degrees. - A building does *not*, in the eyes of law, constitute a material obstruction when its elevation subtends an angle *not exceeding 45 degrees* at the base of the light alleged to be obstructed, or in other words, when the height of the wall of obstruction which is built opposite the ancient lights is *not* greater than the distance between it and the ancient lights. This rule is *not* applicable in every case but is used as *prima facie* evidence. Though *not* a positive rule of law, it is a circumstance which the courts have taken into consideration in India.

In one leading case on the point, the appellant proposed to build a forty-two feet high building on a road. A suit was filed against him on the ground that this would obstruct the light of the respondents, who carried on their business across the street. The court found that the proposed building would *not* materially interfere with access to the light of any of the respondent's windows, except two. It was also shown that even despite this, the respondent's premises would still be sufficiently lighted for all ordinary purposes as a place of business. The suit was, therefore, dismissed. (*Colls v. Home and Colonial Stores Ltd.*, 91904) A. C. 179)

4. Right to air

The right to the access of air is an easement which can be acquired only by grant or prescription. In order to render the defendant's obstruction actionable, there must be proof that the plaintiff is likely to suffer danger to health. The plaintiff can claim no more air than what is sufficient for ordinary purposes. The right to air is *not* violated, unless the annoyance is such as materially interferes with the ordinary comforts of human existence.

5. Right of way

A right of way over the land of another is *not* a natural right. It may be acquired by (i) grant, or (ii) immemorial custom, or (iii) necessity, or (iv) prescription.

6. Right of privacy

Invasion of privacy by opening a window is *not* an act of which the *English law* takes cognizance as a wrongful act. A right to undisturbed privacy is *not* recognised by English law.

In India, however, a right to privacy may be acquired by grant or permission or by virtue of a local custom. The right of privacy does *not* arise from prescription but is a creation of custom. Such an easement, founded as it is on the oriental custom of secluding females, is of great importance in a country like India.

The Bombay High Court has *held* that, in accordance with the usage of Gujaratis, an invasion of privacy is an actionable wrong. Therefore, a man may *not* open new doors or windows in his house or make any new apertures or enlarge old ones in a way which will enable him to overlook those portions of his neighbour's premises which are ordinarily secluded from observation, and so intrude upon his privacy.

The right of privacy has been recognised in Gujarat, Uttar Pradesh and Punjab, but *not* in the towns of Calcutta and Madras, where it has been *held* that such a right *cannot* exist, at any rate, independently of prescription or grant or express local usage. Privacy is *not* an inherent right of property like the right to ancient lights and air. The Patna High Court has also adopted the same view.

7. Right of prospect

The law does *not* recognise a view of prospect from a house as a right in the nature of an easement which can belong to anybody as of right. No period of enjoyment will give a person a right of action against another who, on his own land, erects a structure or plants trees which obstruct the view or prospect of another.

8. Right of common

A right of common is a right which one person who is *not* the owner has of taking some part of the natural produce of land belonging to another, as for instance, a right of pasture or a right to fish. Disturbance of a right of common is an actionable wrong. Thus, there is a disturbance of this right when the owner of a land prevents one having a right of pasture or a right of taking or digging quarry on that land.

9. Profits-a-prendre

Under English law, a profit-a-prendre is a right to take away something from the land of another. Thus, the right to dig for and carry away minerals from another's land or the right to fish in another's pond and carry away the fish would be termed as profits-a-prendre under English law. However, these would fall under the general category of 'easements' *under Indian law*.

Profits-a-prendre are usually classified under the following *three* categories:

- (a) *Right of common*. - This is a right which a person who is *not* the owner of land has to take away some part of the natural produce of that land, as for instance, grass, leaves, fishes, *etc.*
- (b) *Right of ferry*. - This is an incorporeal right to carry passengers and goods across a river from one place to another, as for instance from one village to another.
- (c) *Right of market*. - In the olden days, it was considered to be a great benefit to give a right of holding a market in a town or village. It was equally important to prevent persons from disturbing the market or from selling goods on market days in their own houses. *In England*,

such a right arose by immemorial enjoyment or prescription. However, the Calcutta High Court has *held* that there is no such thing as a market franchise in India; nor can such a right be acquired by prescription. (*Hem Chandra v. Krishna Sardar*, (1920) 47 Cal. 1079)

7. NUISANCE

Definition

The word ‘nuisance’ is derived from the *French* word “*nuire*” and the *Latin* word “*nocere*”, meaning ‘to do hurt’ or ‘to annoy’. Nuisance has been defined to be anything done to the hurt or annoyance of the lands, tenements or hereditaments of another and *not* amounting to a trespass. *Blackstone* describes nuisance (*nocumentum*) as “something that worketh hurt, inconvenience or damage”.

Nuisances are of *two kinds*: (i) public nuisance, also called general or common nuisance, and (ii) private nuisance.

The law relating to nuisance can be conveniently discussed under the following *five heads*:

- A. Public or common nuisance
- B. Private nuisance
- C. Remedies
- D. Law as to nuisance generally
- E. Defences.

A. PUBLIC OR COMMON NUISANCE

Definition

Public nuisance is “an act or omission which causes any common injury, danger or annoyance to the *public* or to the *people in general* who dwell or occupy property in the vicinity, or which must *necessarily* cause injury, obstruction, danger or annoyance to persons who may have the occasion to use any public right”: Section 268, Indian Penal Code. Thus, keeping a common gaming-house, or a disorderly inn, obstructing a highway, or making it dangerous for traffic, would come within the category of public nuisance.

Public nuisance consists *not* only of those acts which *interfere* with definite *public rights* (such as the right to use a public thoroughfare) *but also of nuisance which endangers the health, safety or comfort of the public generally*, such as noise or the escape of noxious vapours, gases, fumes or any deleterious thing affecting the health of the neighbourhood.

The Gujarat High Court examined the scope of the tort of nuisance in a suit where the plaintiffs alleged that some scenes in the Hindi film ‘*Jai Santoshi Ma*’ would hurt the religious feelings of devout Hindus and cause annoyance and offence to them. After observing that ‘nuisance’ is a word which is *not* capable of an exact definition, the Court *held* that to make nuisance an actionable tort, it is essential that the following *two things* must co-exist, namely:

- (a) wrongful act; *and*
- (b) damage or loss or inconvenience or annoyance caused by such act to another.

It was *held* that the second element alone *cannot* give rise to a tort, and therefore, the plaintiff’s suit was dismissed. (*Ushaben Trivedi v. Bhagyaxmi Chitra Mandir & Others*, A.I.R. 1978 Guj. 13)

In *Ushaben Trivedi’s* case (above), commenting on the nature of the annoyance or inconvenience, which is an essential ingredient of the tort of nuisance, the Court observed as follows:

“Inconvenience or annoyance or discomfort to be considered must be more than mere delicacy or fastidiousness and more than providing sensitive personal discomfort or annoyance. Such annoyance or discomfort or inconvenience must be such which the law considers as substantial or material.”

SOLTAU v. DE HELD, (1851) 2 Sim N. S. 133. — In this case, nuisance was regarding *noise*. The plaintiff resided in a house next to a Roman Catholic chapel of which the defendant was the

priest, who rang the chapel bell at all hours of day and night. It was *held* that it was a *public nuisance*, and inasmuch as it proved *particularly* obnoxious to the plaintiff and satisfied the requirements of a suit by a private individual for public nuisance. Further, so far as the plaintiff was concerned, it also became a *private nuisance* and the plaintiff was *held* entitled to an injunction.

HARROLD v. WATNEY, (1898) 2 Q. B. 320. — The plaintiff, a child of four years, scrambled up a defective fence abutting a highway maintained by the defendant and was injured by the fall of the fence. It was *held* that the defendant was liable, inasmuch as it was a natural thing for children to get upon fences adjoining a highway.

WARE v. GARSTON, (1944), 1 K. B. 30, — A motor cyclist at night ran into the back of a trailer which was attached to a stationary lorry standing on the road. The trailer and the lorry were unattended and no rear lights were switched on. The Court *held* that the lorry and trailer caused obstruction, and therefore constituted an actionable nuisance.

DYMOND v. PEARCE, (11972) 2 W. L. R. 633. — Leaving a motor lorry on the highway for a considerable period for the convenience of the driver was *held*, in this case, to constitute a nuisance by obstruction, which is actionable if such obstruction causes damage to a member of the public.

LEANSE v. EGERTON, (1945) 1 K. B. 323. — The plaintiff, while walking on a highway, was injured by a window glass in an occupied house of the defendant. The house was damaged in an air-raid and the defendant did *not* know of its condition, though he could have known if he had been diligent. It was *held* that the window was a nuisance, and therefore, the defendant was *liable*.

PROBLEMS. 1. The plaintiff resided in a house next to the temple of which the defendant was the *poojari*. The temple bell kept ringing all hours of the day and night, causing annoyance to the plaintiff. Is the defendant liable?

Ans. — Yes. This is a *public nuisance*. The plaintiff will be entitled to an injunction against the defendant on the authority of *Soltau v. De Held*, above.

2. A Municipality planted some trees on the road-side and provided spiked iron guards for the protection thereof. The guards, were visible at night with normal street lighting. However, on account of blackout restrictions, the street lights were dimmed and as a result, pedestrian dashed against the guards and injured himself. Is the Municipality liable to the pedestrian for the injuries sustained by him?

Ans. - The Municipality is *liable*. It is *bound* to take the necessary measures to prevent such accidents.

No nuisance, if act is authorised by law

No action will, however, lie in respect of any damage which is the necessary result of an *act authorised by statute*, unless the authority is permissive, or the harm is avoidable and is due to negligence in doing the authorised act, or the authority conferred by the statute is *not* exercised *bona fide*.

The authority to make and work a railway passing is derived under a statute. The injuries due to noise and vibration are the natural consequences of the running of the trains without any negligence on the part of the Railway Company. Hence, an action is *not* maintainable, *unless* it is shown that the noise and vibrations could have been avoided or lessened.

DWYER v. MANSFIELD, (1946) 1 K. B. 437. — The defendant, a shopkeeper, had a licence to sell vegetables and fruits. At a time when there was a scarcity of potatoes, he sold only 1 lb. per ration book. Queues of customers formed at the defendant's shop, which at times, extended to the highway in front of the neighbouring shops. In an action by the shop-keepers against the defendant, the Judge found that neither nuisance nor damage to the plaintiffs has been proved. It was also *held* that, even if a nuisance had been established, since the defendant, in distributing food essential for the public, had been carrying on his business in a normal and proper way,

without doing anything unreasonable or unnecessary, the defendant could *not* be said to have created the nuisance.

Suit by a private individual for public nuisance

Ordinarily, a private individual *cannot* sue for a *public* nuisance. To enable a *private* individual to bring an action for damages in respect of a *public* nuisance, he must satisfy the following *three conditions*:

1. Special damage

Firstly, the plaintiff must prove that he has suffered a particular injury to himself, beyond that suffered by the rest of the public. If the alleged nuisance is, for instance, the obstruction of a *highway*, it is *not* enough for him to show that he suffers the same inconvenience in the use of the highway as other people do. He must show that he has suffered some damage *more* than what the general body of public had to suffer.

The Allahabad High Court has *held* that the term “special damage” indicates damage to a particular person, as opposed to damage caused to the public at large. In that case, it was shown that a large quantity of dust from the neighbouring brick-powdering mill entered a doctor’s consulting room, resulting in a visible thin red coating on clothes. It was also shown that dust is a public hazard injuring the health of human beings. The Court *held* that the doctor had succeeded in proving “special damages” and decreed the suit in his favour. (*Dr. R. B. Singh v. Babulal*, A.I.R. 1982 All. 285)

2. Injury must be direct

Secondly, the plaintiff must show that such injury is *direct*, and *not* merely *consequential*, as where one way is obstructed, but another is left open. In such a case, the private and particular injury is *not* sufficiently *direct* to give rise to a cause of action.

3. Injury must be substantial

Lastly, such an injury should be of a *substantial nature*, that is, *not* fleeting or evanescent. Therefore, in order to entitle a person to maintain an action for damages caused by that which is a public nuisance, the damage must be *particular, direct and substantial*. The *object* of this rule is to avoid multiplicity of litigation. Thus, the constant ringing of the bells near a dwelling place is a public nuisance, and if it interferes with the comfort of a tenant, he will be said to suffer *special damage*, and an action for *public nuisance* can lie at his instance. (See *Soltau v. De Held*, above.)

Remedies for public nuisance

The appropriate remedies for a public nuisance are *two*:

- (1) Civil and
- (2) Criminal.

- (1) *Civil*. - The Attorney-General in *England* can sue in respect of a public nuisance. In *India*, under Sections 91 and 93 of the Civil Procedure Code, the Advocate-General in a Presidency town, and the Collectors outside such towns have the same powers as the Attorney-General in *England* has with respect to a public nuisance.
- (2) *Criminal*— Ch. XIV of the Indian Penal Code and Ss. 133 to 143 of the Criminal Procedure Code prescribe the appropriate remedies for a public nuisance.

B. PRIVATE NUISANCE

Definition

A private nuisance is some unauthorised use of a man’s own property, causing damage to the property of another, or some unauthorised interference with the property or proprietary rights of another, causing damage but *not* amounting to trespass. Private nuisance includes obstruction to light and air, wrongful escape of foul, gas, or noise, water, filth, germs, *etc.* Thus, in *Ware v. Garston*, (1944) A. C. 30, it was *held* that if anything is likely to cause an accident through being an obstruction to those who are using the highway, and an accident results, there is an actionable nuisance.

The essentials of private nuisance thus are (1) an unlawful act; and (2) damage, actual or

presumed. Further, the damage must be substantial and *not* merely sentimental, speculative, trifling, fleeting or evanescent.

THOMPSON-SCHEWEB v. COSTAKI, (1956) 1 W. L. R. 335. — A house-holder residing in a respectable residential street, complained that two women were in the habit of picking up men in neighbouring streets and bringing them to the house next door for the purposes of prostitution. The Court *held* that such activities would constitute *actionable nuisance*.

Kinds of private nuisance

Generally speaking, the wrongs of private nuisance fall under *two* broad classes: (i) those causing damage to property; and (ii) those causing physical discomfort.

i) Damage to property

In the case of damage to property, any sensible injury would be sufficient to support an action. In considering whether an act is a nuisance, *not only* the thing done, *but also* the surrounding circumstances, must be taken into account. As observed in *Sturges v. Bridgman*, (1879) 11 Ch. D. 852, “What could be a nuisance in one locality might *not* be so in another.”

It was further observed in this case that whether anything is a nuisance or *not* is a question to be determined, *not* merely by an abstract consideration of the thing itself, but in reference to its circumstances. For example, where a locality is devoted to a particular trade or manufacture carried on by the traders or manufactures in particular and an established manner, the trade or manufacture so carried on in that locality is *not* a private nuisance. But, where no right of prescription exists to carry on a particular trade, the fact that the locality is one where similar trades were carried on will *not* be a good defence in an action for damages in respect of injury to property. The right to carry on a particular trade does *not* authorise the commission of a nuisance, in the absence of proof that the trade could *not* be carried on otherwise.

HOLLYWOOD v. EMMETT, (1936) 2 K.B. 468. — A carried on the business of breeding silver foxes on his land. During the breeding season, the vixens are very nervous, and liable, if disturbed, either to refuse to breed, to miscarry, or to kill their young. B, an adjoining landowner, maliciously caused his son to discharge guns on his own land, as near as possible to the breeding pens, for the purpose of disturbing A’s vixens. A filed a suit against B for injunction. It was *held* that A was entitled to the injunction. No proprietor can create noise on his own land to the annoyance of, or detriment to, others.

(ii) Physical discomfort

In the case of physical discomfort, the act complained of must be (i) in excess of the natural and ordinary course of enjoyment of the property, and (ii) materially interfering with the ordinary comfort of human existence. As observed in *St. Hellens Smelting Co. v. Tipping* (1865) 11 H. L. C. 642, “If a man lives in a street where there are numerous shops and a shop is opened next door to him, which is carried on in a fair and reasonable way, he has no ground for complaint, because to himself individually there might arise much discomfort from the trade carried on in that shop.”

The damage must be substantial, and everything must be looked at from a reasonable point of view. The law does *not* regard trifling and small inconveniences, but takes account of sensible inconvenience and injuries which considerably diminish the comfort, enjoyment or value of the property which is affected.

PROBLEM

A erected a flour-mill at a distance of 8 or 9 feet from the house of B, did *not* pay attention to B’s complaint which he had made at the very inception of the working of A’s flour-mill and did *not* introduce a silencer in the engine or build walls round his mills so high that the noise reaching B’s house would have been reduced to the minimum or would have been only an occasional inconvenience to him. B wishes to sue A for nuisance cause by the abnormal noise produced by the flour-mill. Advise B.

Ans. - Yes. He will succeed. The requirements of a private nuisance (above) are satisfied.

C. REMEDIES

Three remedies are available to a person for nuisance:

1. Abatement
2. Damages
3. Injunction.

1. Abatement

Abatement means the removal of a nuisance by the party injured. The removal must be peaceable and without danger of limb or limb; and if it is necessary to enter another's land or property, prior notice should be given. Nuisance by a positive act of commission may be abated without notice, but *not* nuisance due to omission. A private individual *cannot* abate a public nuisance, except under the three circumstances discussed earlier.

PROBLEMS: 1. A mango tree on the land of P largely overhangs on the land of S, who without giving any notice to P, cuts off the overhanging branches of the tree. P sues S for damages. Will he succeed?

Ans. - A nuisance may be abated (that is, removed) by the person affected by it. Where the nuisance can be removed without entry on the wrong-doer's land, as by cutting off the overhanging branches, no notice is necessary. Therefore, P is *not* entitled to sue S for damages. P will *not* succeed.

2. The branches of Y's neighbour's apple tree are overhanging on Y's land, and the roots have spread into it so that Y can grow almost nothing underneath it. Advise Y whether he may safely (i) cut down the branches; (ii) sever the roots; (iii) for either purpose, walk upon X's land or put his hand over the boundary; (iv) burn the wood and eat any apples on the branches cut down.

Ans. (i) Yes; (ii) Yes; (iii) Yes, after notice; (iv) No. Y would have to pay the price of the apples.

3. N erects an aerial mast in his garden. Owing to a very high wind, the mast is blown down across the roof of N's house. As a result, a tile is dislodged and falls upon M, a policeman who is on his beat on the footpath in front of N's house, and a portion of the ceiling collapses upon a bed in which H, a guest of N, is sleeping. Serious injuries are inflicted on both M and H. Is N liable to either of them?

Ans. — N is *not liable* to M or H. There is no liability in law for *vis major* (act of God).

2. Damages

The second remedy for nuisance is damages. It has been *held* that what is important in cases of nuisance is *not whether* the defendant is using his own property reasonably, *but whether* injury is caused to his neighbour. The *measure of damage* will be the diminution of value of the plaintiff's property as a direct result of the defendant's nuisance.

It must be remembered that every day that the nuisance continues, a fresh cause of action arises, for which further damages may be recovered.

3. Injunction

In order to obtain an injunction, it must be shown that the injury complained of is present or is such as, by reason of its gravity or permanent character or both, *cannot* be adequately compensated in *damages*.

The Allahabad High Court has *held* that if in a noisy locality, substantial addition to the noise is introduced at the defendant's premises by some machines in a flour-mill, which materially affects the physical comfort of the plaintiff, a permanent injunction against the defendant can be granted by the Court. (*Radhey Shyam v. Gur Prasad Sarma*, A. I. R. 1978 All. 86)

Public and private nuisance distinguished

There are *five* points of distinction between public and private nuisance:

1. Nature of the right violated

A public or common nuisance affects the public at large or some considerable portion thereof, whilst a private nuisance affects only person one or a determinate body of persons. In other words, while a public nuisance is an offence against public right, safety or convenience, a private

nuisance is a violation of a private right of a person to the comfortable occupation of his property.

2. Who can sue

Public nuisance does *not* create a civil cause of action for any person. An action *cannot* be maintained by a private individual in his own name in respect of a public nuisance, except under the three circumstances mentioned earlier. Private nuisance, on the other hand, is actionable at the suit of any person in possession of land who is injured by reason thereof.

3. Acquisition of right to continue nuisance

While no length of time can legalise a public nuisance, a right to create or continue a private nuisance may be acquired by prescription.

4. Abatement

Whilst a private nuisance may be abated by the person injuriously affected thereby, a public nuisance *cannot* be so abated by him.

5. Remedies available

An action for damages lies in respect of a private nuisance, but *not* in respect of a public nuisance, unless the plaintiff has sustained for special damages. In case of a public nuisance, the action generally is for *declaration* and *injunction*.

Distinction between trespass and nuisance

1. Trespass is an injury to possession itself. Nuisance is an injury to some right accessory to possession.
2. Trespass is actionable *per se*, while nuisance (except in the case of nuisance consisting of injuries to servitudes) is actionable only on proof of actual damage.

Thus, trespass and nuisance are mutually exclusive. But they may overlap when the injury is to possession as well as to some right accessory to possession, as for instance, trespass of cattle or discharge of obnoxious matter into a stream or on another's land.

D. LAW AS TO NUISANCE GENERALLY The following are general provisions of the law which are common to both kinds of nuisance, public and private.

Who can sue for nuisance

For nuisance of a temporary character, the actual occupiers of the property can file a suit. If the affected property is in the occupation of tenants, the landlord or reversionary has no right of action, unless the nuisance is of a permanent character and necessarily inflicts *lasting damage to the property*. So long as the tenants stay and endure the nuisance, they are the only persons who can complain. A person who has no interest in the property or no right of occupation *cannot* maintain an action.

In the case of a public nuisance, the Attorney-General in England and the Advocate-General or Collector in India can maintain a suit.

Who is liable for nuisance

The following persons are liable for a nuisance:

1. He who actually creates a nuisance is liable for it. Further, the occupier of premises is under a duty of care to see that no nuisance is created or maintained on his property.
2. In general, it is only a person who is in actual occupation of the premises who can be sued for a nuisance emanating from the premises.
3. *Prima facie*, it is the tenant who alone will be liable. But in the following cases, the landlord will be liable concurrently with the tenant:

when the landlord has, prior to the lease, created a nuisance by a positive act of misfeasance (as for example, building so as to obstruct ancient lights);

when he has expressly or impliedly authorised the tenant to continue the nuisance;

when the nuisance is due to a breach by the landlord of his covenants to repair the premises.

What a plaintiff must prove in an action for nuisance

In an action for nuisance, the plaintiff must prove:

(a) Actual damage

In order to succeed in an action for nuisance, the plaintiff must prove that he has suffered actual damage, because nuisance, unlike trespass, it is *not* actionable *per se*. The damage must be actual and *not* merely prospective; for example, a noisy factory is no nuisance to the owner of an adjoining building plot, *unless and until he builds* upon it. The damage must be either (i) a physical injury to the plaintiff's property or (ii) a substantial interference with his beneficial use of it, *not* merely according to elegant or dainty modes of living, but according to plain, sober and simple notions of life.

In a case decided by the Court of Appeal in England, the plaintiff's father had a leasehold in a house. The roots of a lime tree planted in the pavement in front of the house of the Borough Council encroached on the land, causing subsidence, undermining the foundation of the house. The father then transferred the house to the plaintiff, and the question before the Court was whether the plaintiff was entitled to recover, as damages, the cost of remedying the damage caused to the house before it was transferred to him.

On these facts, the Court, giving judgment in favour of the plaintiff, *held* that the encroachments of the roots was a continuing actionable nuisance, and that, in such cases, the person in possession of the property can recover the loss incurred by him in remedying the damage caused by the nuisance, whether the damage occurred before or after he acquired the land. In the circumstances, it was *held* that the plaintiff could recover the total cost of remedying the damage caused by the roots of the tree. (*Masters v. Brent London Borough Council*, 1978, 1 Q.B. 841)

(b) Damages must be substantial

The damages caused by the nuisance must be substantial, and *not* merely trifling or fanciful. Thus, where the nuisance complained of consists of damage to property, the damage must be proved to be of an appreciable magnitude and apparent to persons of ordinary intelligence, and *not* something discoverable only by scientific tests.

Similarly, when the action is based on personal discomfort, the damage must *not* be trifling. In such a case, it is sufficient if the plaintiff proves that he has suffered sensible discomfort and annoyance, having regard to the standards of reasonable people and to the character of the neighbourhood. As once observed. "What would be nuisance in Belgrave Square would *not* necessarily be so in Bermondsey."

(c) Possessory interest of plaintiff

The plaintiff must have a *possessory interest in the premises affected by the nuisance*. Ordinarily, the actual occupier of the premises alone can bring an action for a nuisance. The landlord or reversioner can sue *only* if the injury complained of is of such a nature as to affect the estate *permanently*, as for example, for permanent depreciation of the property or obstruction of light by building, but *not* for personal discomfort by noise, smell or pollution of air.

E. DEFENCES

The following are *three* valid defences to an action for nuisance:

1. Grant

It is a valid defence to an action for nuisance that the said nuisance is under the terms of a grant.

2. Prescription

A special defence available in the case of nuisance is *prescription*. The right to continue a private nuisance may be acquired as an easement of prescription, if it has been peaceably and openly enjoyed as an easement and as of right, without interruption for 20 years.

STURGES v. CRIDGMAN, (1879) 11 Ch. D. 852. — For more than 20 years, A had used a certain heavy machinery for his business. B, a neighbour and a physician, constructed a consulting room adjoining A's house and then found himself seriously inconvenienced by the noise of A's machinery. B brought an action against A for abatement of nuisance. It was *held* that B must succeed. A *cannot* plead prescription, since time runs *not from* the date when the cause of

the nuisance began, *but from* the day when the nuisance began.

3. Statutory authority

When a statute has authorised the doing of a particular act or the user of land in a particular way, all remedies, whether by way of indictment or action, are taken away, provided that every reasonable precaution consistent with the exercise of the statutory powers has been taken.

In *Vaughan v. Tall Vale Rly. Co.* (1860) 5 H. & N. 679, the defendants, who had authority by statute to use locomotive engines on their railway, were *held not* liable for a fire caused by the escape of sparks from one of their engines, as they had taken all reasonable measures to prevent the escape of sparks. On the other hand, it is quite clear that liability for a nuisance *cannot* be avoided where the act authorised by statute is done *negligently*.

What cannot be pleaded as a defence

In a suit for nuisance, the following *cannot* however, be pleaded as a defence:

- (a) It is no defence to show that the plaintiff himself came to the nuisance. Thus, if a man knowingly purchases an estate in close proximity to a smelting factory, his remedy for nuisance created by fumes issuing therefrom is *not* affected.
- (b) In the case of a continuing nuisance, it is no defence to show that all possible care and skill were used to prevent the operation complained of from amounting to a nuisance. In other words, in an action for nuisance, it is no answer to say that the defendant has done everything in his power to prevent its existence.
- (c) It is no defence that the defendant is merely making a reasonable use of his own property. No use of property is reasonable which causes substantial discomfort to other persons.
- (d) It is also no defence that the defendant's operations do *not* alone amount to a nuisance, as for instance, that other factories also contribute to the noise or smoke complained of.

15 TORTS RELATING TO MOVABLE PROPERTY

Questions for this chapter are:

Write a short note on: Conversion. May 2011.

Define "conversion". 2 marks. April 2013.

What is conversion by destruction? 2 marks. November 2013. January 2017.

Torts affecting movable property fall into the following *four* categories:

1. Trespass to goods
 2. Trespass *ab initio*
 3. Detinue or detention
 4. Conversion or trover.
- ### 1. TRESPASS TO GOODS

Definition

The tort of trespass to goods takes place wherever there has been an actual *taking of*, or direct and immediate *damage to*, another person's goods. In other words, *trespass to goods* (*trespass de bonis asporatis*) is an unlawful disturbance of the possession of the goods by *seizure or removal* or by a direct act causing damage to the goods (for instance, removing a tyre from a motor-cycle or scratching the hood of a car). An action for trespass will also lie for taking or injuring docile and tame animals. It is immaterial whether the injury is caused by the defendant or by an animal belonging to him.

Case. — The plaintiff was the owner of some homing and racing pigeons. One day, when he

released them, they went on the defendant's land and began to feed on his peas. To protect the peas, the defendant shot at them, killing four and wounding one. The plaintiff sued for damages. It was *held that* it could *not* be shown that shooting was the only way to protect the peas, and as the defendant had acted unreasonably in shooting down the pigeons, *he was liable*. (*Hampass v. Darby*, (1948) 2 All. E. R. 474)

Its forms

Trespass to goods may assume either of the following two forms:

1. Taking the thing away from the plaintiff's possession. This is called "asportation". This would also amount to the crime of theft or larceny if a dishonest intent is present; it would be robbery if it is forcible.
2. Direct application of force, as for instance, killing or injuring an animal or defacing a work of art. Damage is *not* essential, and even the slightest application of force, like touching, is wrongful.

Its essentials

In order to succeed in a suit for trespass to goods, the plaintiff must prove:

1. That he was in possession, actual or constructive, of the goods. There is constructive possession of goods in all cases where there is a legal right to possess.
2. That his possession has been wrongfully disturbed. The fact that the trespass was unintentional is no ground of defence.

Joint-owner's right

A *joint-owner* can maintain an action of trespass against his coowner, if the latter has done some act inconsistent with the joint- ownership, except when (1) the chattels have been completely destroyed; and (2) there has been a sale of the chattels in *market overt* (that is, open market).

Replevin

Replevin was a form of action for the recovery of specific goods which had either been wrongfully distrained or taken for rent or by way of *distress damage feasant*. It did *not* lie to recover goods in which the plaintiff alleged merely that he had a right of property or which had been delivered under a contract.

DEFENCES TO AN ACTION FOR TRESPASS TO GOODS

The following are *six defences* to an action of trespass to goods:

1. Self-defence or defence of property

If a person has actual possession of the goods and another person wrongfully attempts to take the same from him, he is justified in using such force as is necessary for the purpose of defending his own possession.

2. Exercise of one's absolute or relative rights

If a person is exercising his rights, he *cannot* be made liable for trespass to goods. Thus, seizing goods of another under a lawful distress for rent or *damage feasant* is lawful.

3. Obedience to a legal authority

Obedience to a legal authority is also a good defence, as for instance, when goods are taken under a due process of law.

4. Negligent or wrongful act of the plaintiff himself

If a person places his horse or cart so as to obstruct the right of way, it may be removed, even by applying force for the purpose.

5. Re-capture

Re-capture means the re-taking by a lawful owner, of goods of which he has been wrongfully deprived. The owner may justify an assault in order to repossess himself of such goods.

6. *Jus tertii*

When a person who is *prima facie* liable to another, on being sued by him, sets up a defence that the paramount title is vested in a third person, he is said to set up the defence of *jus tertii*

(right of a third person). Such would be the case if A trespasses on the land of Y, and when sued by the latter, sets up the defence that Y himself has wrongfully obtained that land, the real owner being another person, X.

The general rule is that a wrong-doer *cannot* set up the *jus tertii*, that is, the right of possession outstanding in some third person, as against the fact of possession in the plaintiff. If the defendant justifies his trespass on the land of the true owner, and thereby sets up *jus tertii*, such authority is transversable by the plaintiff, in which case the defendant must prove that such authority was given in fact.

The defence of *jus tertii* can be set up against a plaintiff who has neither actual nor constructive possession of the chattels at the time of trespass.

Jus tertii in suit for ejectment

There is no uniformity of opinion on the question whether *jus tertii* is or is not a good defence to an action of ejectment, but in the following *two* cases, it *cannot* be set up at all, namely,-

- (a) *Landlord and tenant*.— The landlord need *not* prove his title, but only the termination of the tenancy. Neither the tenant nor any one claiming under him can dispute the landlord's title.
- (b) *Licensees*. — A licensee *cannot* dispute the title of the person who licensed him. There is no distinction between the case of a tenant and that of a common licensee.

2. TRESPASS AB INITIO

This is similar to trespass *ab initio* relating to immovable property which has been discussed in the last Chapter.

A person who lawfully takes a chattel, but afterwards abuses or wastes it, renders himself liable as a trespasser *ab initio*. The plaintiff must show (i) that he was in possession (actual or constructive) of the goods; and (ii) that his possession has been wrongfully disturbed.

Thus, if a bailiff takes a horse which is a stray horse (which he had power to do), but later uses it for his own purposes, he will be a trespasser *ab initio*.

3. DETINUE OR DETENTION

Detinue or detention is the adverse *withholding* of the goods of another. The remedy for this tort in English law is an *action in detinue*. It lies for the *specific recovery of chattels wrongfully detained* from the person entitled to their possession and also for the damages occasioned by the wrongful detainer. The injury complained of is *neither the taking nor the misuse and appropriation* of the goods, but only the detention. To succeed, the plaintiff must have a *special and general property* and a right to *immediate possession*.

Detinue was the form of action for the recovery of specific goods wrongfully *detained* from the plaintiff by the defendant, or their value, and also damages occasioned by their detention.

Detinue is thus the wrongful detention of the possession of a chattel. It does *not* matter how the possession of the chattel was acquired. In an action for detinue, the plaintiff must prove:

- (i) that he is entitled to possession of the chattel; *and*
- (ii) that the defendant detained it after demand had been made for its restoration

4. CONVERSION OR TROVER

Definition

An action of *conversion or trover* was originally the remedy of the plaintiff to recover damages against the person who had *found* goods and *refused* to *deliver* them up on demand to the plaintiff. In course of time, it became the form of action where the plaintiff sought to recover damages from the defendant who had converted the plaintiff's goods to his own use and came to be known as an action of *conversion*. Conversion is thus the wrongful *taking or using or destroying* of the goods or an exercise of *dominion over* them *inconsistent* with the *title* of the owner.

To maintain an action of trover, the plaintiff had to prove either an absolute or a special property in the goods in question and also a right to their possession. The action of trover is

founded on the property in the goods, the action of trespass, on their *possession*. In trover, damages alone can be recovered.

In a case decided by the Orissa High Court, it was observed that there are *three distinct* methods by which one can commit conversion, namely, -

- (a) by wrongfully taking a chattel;
- (b) by wrongfully detaining a chattel; *and*
- (c) by wrongfully disposing of a chattel.

The Court observed that in the *first case*, the wrong-doer acquires a possession which is wrongful *ab initio*. In the *second case*, he acquires possession rightfully but retains the chattel wrongfully. In the *third case*, he neither takes it wrongfully nor retains it, but so acts that it is lost to the true owner. (*Paramananda v. Bora Behera*, A. I. R. 1978 Ori. 114)

Although the above case refers to only *three* ways of committing conversion, there are, in law, *six* ways by which an act of conversion may be committed, namely:

1. *When the property is wrongfully taken*

If the defendant has wrongfully taken the plaintiff's property, the latter can sue for conversion. Thus, if a person sees branches of a tree overhanging his land and breaks them and eats the fruits thereof, he would be guilty of conversion. It is to be remembered that *if there is no taking, there can be no conversion*.

The taking need *not* be with the intention of acquiring a full ownership. It is enough if any interest is claimed *inconsistent* with the right of the person *entitled*. The taking may be merely constructive, but a taking which is unaccompanied by an intention to exercise permanent or temporary dominion is *not conversion*.

There is no conversion without assumption of ownership. Thus, there is no conversion (i) by a bailee who loses the property through negligence, or (ii) by a person who refuses to hand over the property to the plaintiff on the ground that he has doubts about his title and wishes to investigate the position.

FOULDES v. WILLOUGHBY, (1841) M. W. 540. — A goes on board a ferry boat with two horses. The boatman wrongfully refuses to carry the horses, and tells A that he must leave the horses behind on the shore. A refuses to do so. The boatman thereupon takes the horses from A and puts them on the shore. A remains on board the boat and is conveyed across the river. The question arises whether A had any right of action against the boatman. In these circumstances, the boatman had recognised A's right by his conduct. Therefore, there is no conversion. But the boatman's act, unless he could justify it in some way, amounts to *trespass*.

(This case has been discussed again, while noting the difference between conversion and trespass, later in the Chapter.)

HOLLINS v. FOWLER, (1875) L.R. 7. H.L. 757. — A, who has fraudulently got goods from B, delivers them to C, a warehouseman, for the safe custody. B, on being informed of the fraud, sets out in search of A to get back the goods. A absconds, but B learns that the goods are deposited with C. B demands the goods from C, but C has already in the meantime returned the same to A. B sues C for conversion. Here, C is *not liable* for conversion. He had simply restored the goods to the person from whom he had received them.

2. *When the property is wrongfully parted with*

If a man hands over goods to another, so as to give him some right over the property itself, whether as owner or *dominus protempore*, it amounts to conversion. Misdelivery by a carrier will amount to conversion. So also, a bailee who pledges the goods to a third person commits conversion.

3. *When the property is wrongfully sold*

SETON v. LAFONE, (1887) 10 Q. B. D. 68. — A deposited goods with B, a warehouseman for safe custody. B's servants subsequently delivered them by mistake to C. B, in ignorance of this fact, represented to D, that he was still on possession of these goods on behalf of A, whereupon D

purchased them from A and demanded delivery from B.

The Court *held* that where the defendant has made a negligent misrepresentation with respect to his title to the goods, and the plaintiff has acted upon it and has thereupon suffered damage, the defendant is estopped from denying that he has committed conversion. Thus, B is estopped from denying that he had the goods, and he is liable to D for conversion by refusing to deliver them.

A wrongful sale of goods is also conversion. In a *market overt*, the property passes to the purchaser by sale, which is, therefore, equivalent to physical destruction.

4. *When the property is wrongfully detained*

Conversion may be committed by detention if the detention is adverse to the right of the person entitled to possession, as for instance, where a bailee refuses to return the chattel to his bailor on demand. The essence of this form of conversion is refusal on demand. An unqualified refusal is always conclusive evidence of conversion, though *not a* qualified, reasonable and justifiable refusal.

ARMORY v. DELAMIRIE, (1721) 1 Str. 505. — The plaintiff, a chimney-sweeper boy, found a valuable jewel. He took it to the defendant, a goldsmith, to ascertain its value. The defendant, taking advantage of the boy's simplicity, told him it was worthless and offered him three-and-a-half pence for it, which the lad declined and demanded back the jewel. The defendant refused and the plaintiff sued him. The Court *held* that the plaintiff was entitled to succeed.

Though the finder of a chattel does *not*, by such finding, acquire an absolute property or ownership, yet he has such a property as will enable him to keep it against *all but the rightful owner*, consequently, he may sue for its value any wrong-doer who has wrongfully converted it. *A finder of goods has a good title against all except the true owner.*

5. *When the property is wrongfully destroyed*

Every wilful and wrongful destruction of a chattel or wilful or wrongful damage to it, whereby the owner is deprived of the use of it in its original state, is a conversion, as for example, taking away the wine from a cask and filling the cask with water.

6. *Where there is denial of the lawful owner's right*

There may be conversion of goods, even though the defendant has never been in physical possession of such goods, if his act amounts to an absolute denial and repudiation of the plaintiff's rights.

Essentials of a suit for conversion

To maintain an action for conversion, the plaintiff should have a *right of property* in the thing converted and also a *right of possession*. It is to be noted that the person in actual possession (or entitled, at the time of conversion, to the actual possession) of a chattel can maintain an action for conversion, for the action is *not* founded upon a right of *ownership*, but upon the fact of *possession*. Therefore, in an action for conversion, the plaintiff has to prove (i) that he was either in possession or had immediate right to the possession of the chattel, and (ii) that the defendant deprived the plaintiff of the possession or the right or dominion over it.

Remedies for the tort of conversion

The following are the *three remedies* open to a person whose goods are wrongfully converted:

1. *Re-capture*

A person entitled to possession of goods of which he has been deprived may retake them wherever he finds them, using reasonable force, if necessary.

2. *Order for restoration of property*

It is in the discretion of the Court whether an order for restoration of property will be made, and it may properly be refused if the defendant has increased the value of the property by his labour.

3. *Suit for damages*

If the chattel has *not* been restored, the plaintiff is entitled to its full value and damages.

Defences to an action for conversion

The following *five defences* are available to the defendant in an action for conversion:

1. *General or particular lien.*
2. *Right of stoppage in transit.* This defence may arise out of a contract, or under a statute, as for instance under the Sale of Goods Act.
3. *Denial of plaintiff's right to property, where* the plaintiff sues relying on this right only.
4. *Sale in market overt.* In the case of a sale in *market overt*, the purchaser *cannot* be sued for conversion, though the seller can be. (In India, the position is governed by Sections 27- 30 of the Sale of Goods Act.)
5. *Distress*, that is, that the goods were taken under distress or in execution of a decree.

Conversion and trespass distinguished

Conversion resembles trespass in that the action is based on the right of immediate possession, and *not* on the right of ownership, and that a mere possessor can sue the wrong-doer, unless the latter has a better title or right to be in possession.

The following are the *three* points of distinction between conversion and trespass:

1. *As to right to possess*

Conversion is wider than trespass. In an action for conversion, the plaintiff need *not* prove actual possession but can sue if he has an immediate right to possess. Trespass is a wrong to possession, and *cannot*, therefore, be committed by the actual possessor. But an actual possessor can be sued in conversion by the person who has the immediate right to possess. Thus, a purchaser who has paid the price, but has *not* yet obtained possession, can sue his vendor for conversion.

2. *As to intention to possess*

To damage or meddle with the chattel of another, but without intending to exercise an adverse possession over it, is a trespass. A conversion is a breach, made adversely in the continuity of the owner's dominion over his goods, though the goods may *not* be damaged.

3. *As to gist of the action*

The gist of the action in trespass is the force and direct injury inflicted; in conversion, it is the deprivation of the use.

The distinction between *trespass to goods* and *conversion* is well brought out by the case of *Fouldas v. Willoughby*, (discussed above). In that case, the plaintiff embarked upon the defendant's ferry boat with two horses, and paid for their passage. The defendant wrongfully refused to carry the horses and requested the plaintiff to put them ashore. The plaintiff refused to comply with this request, whereupon the defendant turned the horses loose on the landing place. The plaintiff remained on board and was carried across the river.

It was *held* that the defendant's act in taking the horses was wrongful and actionable as trespass, but in the absence of evidence of any intention on the part of the defendant to assert any right or dominion over plaintiff's property, there was no conversion. In order to constitute a conversion, the taking need *not* be with the intention of acquiring *full ownership*. The *sole test* of an actionable conversion are a dealing with goods in a manner inconsistent with the right of the true owner, and an intention in so doing to negative the true owner's right, so to assert a right inconsistent therewith.

Detinue, trespass and conversion distinguished

1. *As to their nature*

Conversion (or trover) was defined by *Atkin, J.* in *Lancashire and Yorkshire Rly. Co. v. MacNicoll*, (1918) 88 L. J. K. B. 600, as "a dealing in goods in a manner inconsistent with the right of the true owner, provided that there is also an intention on the part of the defendant in so doing to deny the owner's right or to assert a right which is inconsistent with the owner's right." In short, conversion is an interference with the plaintiff's possession or right to possess, together with an intention to exercise dominion over the goods.

Detinue consists in the act of wrongfully withholding goods from the plaintiff, in whatever way they have come into the defendant's possession. In effect, the tort is continued by a wrongful refusal to return the plaintiff's goods on demand.

Trespass to goods is constituted by any direct act of interference with the goods in the plaintiff's possession.

2. *As to their scope*

Conversion covers most of the sphere of detinue and trespass, and thus in most cases, *wrongful detention and trespass will also constitute a conversion*. But in certain cases, an action of conversion will *not* lie. Thus, if a bailee negligently loses goods or allows them to be destroyed, he is liable in detinue, since it is by his fault that he is unable to restore the goods; but he is *not liable* in conversion, since there is no act of wilful interference, that is, there is no positive act of misfeasance which is the essence of the action of conversion; nor is there any intention to deny the plaintiff's rights.

Many acts which amount to trespass also amount to conversion, but in certain cases, there may be a trespass, but no conversion. Thus, a mere simple asportation (removal) of a chattel, unaccompanied by an intention to exercise acts of dominion over it, is a trespass, but *not* conversion. Further, mere damage to goods in the plaintiff's possession, falling short of actual destruction, is a trespass, but *not* a conversion.

Subject to these exceptions, a suit for conversion will lie wherever one for detinue or trespass will lie. It is important to note the distinction between these acts since the measure of damages in trespass and conversion is *not* the same.

16 NEGLIGENCE

Questions for this chapter are:

Write a short note on: Donoghue v. Stevenson. November 2011, 2012, 2013, 2014.

Write a short note on: Res ipsa loquitur. June 2018.

What is the meaning of "Res ipsa loquitur"? 2 marks. November 2012.

Define 'vis major'. 2 marks. April 2016.

Write a short note on: Contributory negligence. April 2011, 2014, 2015, November 2014, 2015, January 2017, 2018.

What is meant by contributory negligence? Discuss the doctrine briefly and state the exceptions, if any. May 2012, 2017, April 2013, 2015, 2016, November 2014, 2015.

The following *five* topics are discussed in this Chapter:

- A. What is negligence
- B. Essentials of a suit for negligence
- C. Illustrative cases
- D. *Res ipsa loquitur*
- E. Defences available in a suit for negligence.

A. WHAT IS NEGLIGENCE

Negligence may be defined as a breach of a duty, caused by the *omission to do something* which a reasonable man (guided by those considerations which ordinarily regulate the conduct of human affairs) would do - *or doing something* which a prudent and reasonable man would *not* do. In other words, negligence may arise from *nonfeasance* or from *misfeasance*. It is a tort which can be committed with respect to both, the person and the property of another.

A suit for negligence proceeds upon the idea of an obligation or duty on the part of the defendant to use care, a breach whereof results in the plaintiff's injury. It is *not necessary* that the duty neglected should have arisen out of a contract between the plaintiff and the defendant. Thus, the duty may arise under a statute or otherwise; and if it is neglected and it results in an injury to

the plaintiff, he has a right to sue for damages.

There *cannot* be a liability for negligence *unless there is a breach of some duty*. Hence, no case of actionable negligence will arise unless the duty to be careful exists. Thus, the idea of negligence and duty are strictly correlative, and there is no such thing as negligence in the abstract; negligence is simply neglect of some care which one is bound by law to exercise towards another.

Austin defines negligence thus: "In case of negligence, a party performs *not* an act to which he is obliged; he breaks a positive duty." Actionable negligence consists in the neglect of the use of the ordinary care or skill towards a person to whom the defendant owes the duty of observing ordinary care and skill, by which neglect the plaintiff has suffered injury to his person or property.

As was once observed, "If a man is driving on Salisbury plain, and no other person is near him, he is at liberty to drive as fast and as recklessly as he pleases. But if he sees another carriage coming near to him, immediately a duty arises *not* to drive in such a way as is likely to cause an injury to that other carriage."

Thus, a man who walks across a crowd of people, carrying sharp-edged tools in his hand, is under a duty to ensure that he does no injury to those around him. He will have to be more careful than a man who merely carries an umbrella (even though this is nearly as bad in crowded cities today). And, of course, the man with the umbrella would have to be more careful than a man who carries nothing at all.

The concept of duty of care

A fundamental principle of the English law of negligence was affirmed by the House of Lords in a majority judgement in a *leading case*, *DONOGHUE v. STEVENSON (The snail-in-the-bottle-case, 1932 A. C. 562)*.

In that case, the Plaintiff accompanied by a friend, went to a cafe in Paisley for refreshments. They ordered two slices of ice-cream and a bottle of ginger-beer. Each slab of ice-cream was placed in a tumbler, over which was then poured part of the contents of the ginger-beer. The ginger-beer was served in a stoppered bottle of dark opaque glass and had been manufactured by the defendant, Stevenson. After the plaintiff had finished some of the ice-cream, her friend attempted to replenish the glass by pouring into it the rest of the contents of the bottle. As she was doing this, the remains of a decomposed snail (which had apparently found its way into the bottle in the factory) floated out. It was the plaintiff's case that as a result of the nauseating sight of the snail and the impurities of the ginger-beer which she had already consumed, she suffered from shock and severe gastro-enteritis. A majority of the House of Lords *held* that Stevenson owed her a duty to take care that the bottle did *not* contain any noxious matter and that he would be *liable* if that duty was *not* performed.

In the course of judgement, *Lord Atkin* re-defined the concept of duty of care, observing as follows:

"You must take reasonable care to avoid acts or omissions which can reasonably be foreseen to be likely to injure your neighbour. Who, then, in law is my neighbour? The answer seems to be - persons who are so closely and directly affected by my act, that I ought reasonably to have them in contemplation, as being so affected when I am directing my mind to the acts or omissions which are called in question."

The following passage from the judgement of *Lord Atkin* is also interesting:

"If your Lordships accept the view that this pleading discloses a relevant cause of action, you will be affirming the proposition that, under the Scots and English law alike, a manufacturer of products which he sells in such a form as to show that he intends them to reach the consumer in the form in which they left him, owes a duty to the consumer to take reasonable care."

It is clear that, in the above case, there was *no contractual duty* on the part of the manufacturer towards the Plaintiff. However, the learned Lords who gave a dissenting judgement

in this case seem to have been influenced by the fallacy that because there was no contractual liability, therefore, the manufacturer was *not* liable in tort also. This fallacy died a hard death in the majority judgment in *Donoghue's case*, and was finally buried by the Privy Council four years later in *Grant v. Australian Knitting Mills Ltd.* (1936 A. C. 85).

Thus, the same facts may give rise to both a contractual as well as a tortious liability. However, in such cases, it is wrong to assume that just because *A* is bound by a contract to *B*, therefore, the harm resulting from *A*'s breach of that contract to *C*, a third party, can never give rise to a liability in tort on *A*'s part to *C*.

Lord Atkin's judgement in *Donoghue v. Stevenson* has laid down certain important principles, which have been followed in several subsequent cases. Thus, in *Home Office v. Dorset Yacht Co. Ltd.*, (1970) A. C. 1004, *Lord Reid* observed as follows:

"*Donoghue v. Stevenson* may be regarded as a milestone and the well-known passage in *Lord Atkin*'s speech should, I think, be regarded as a statement of principle."

Standard of degree of care

The standard by which one can determine whether a person has been guilty of negligence is the conduct of a *prudent man in the particular situation*. The amount of care may vary to the greatest extent, while the standard itself remains the same. The prudent man is the man who has acquired the skill to do the act which he undertakes. If a man has *not* acquired the skill to do a particular act he undertakes, then he is imprudent, however careful he may be, and however great his skill may be in other things. The question to be raised with regard to a man's conduct brought in question is, whether a prudent or careful or diligent man of his calling or business or skill would have undertaken to do the thing in question, supposing the party to have exercised due care in executing the work undertaken.

The degree of care which a man is required to use in a particular situation varies with the obviousness of the risk. If the danger of doing injury to the person or property of another by the pursuance of a certain line of conduct is great, more care is necessary. If the danger is slight, only a small amount of care is required. Thus, owners or occupiers of real property must *not* act in such a way as to cause injury to the person or property of others. The care that will be required of them will be the care than an ordinary prudent man is bound to exercise. But, persons who profess to have special skill or who have voluntarily undertaken a higher degree of duty are bound to exercise more care than an ordinary prudent man.

The Calculus of Negligence: The "Hand Rule"

An American Judge, *Justice Hand* (in *U.S. v. Carroll Towing Co.*, 159 F. 2d 169) gave his famous *formula* for determining the appropriate standard of care to be expected when dealing with cases of negligence. This is a *Balancing Test* and is often referred to as the *Calculus of Negligence* or the *Hand Rule* or the *Hand Test*.

Applying this formula, an act is in breach of the duty of care if:

$$B < P \times L \text{ (P multiplied by L)}$$

Where B = Burden or cost of taking precautions or safeguards

P = Probability of the loss or mishap

L = Loss that would result from the mishap.

According to *Justice Hand*, the product of P x L must be a greater amount than B to create a duty of care towards the plaintiff.

In *US v. Carroll Towing Co.* (above), a barge which was improperly secured drifted from the pier, causing damage. Applying the above formula, the three variables can be set out as under:

B = Burden of adequate precautions to be taken in respect of the barge

P = Probability that the barge would drift away

L = Loss which would result from such a mishap.

If B is less than P multiplied by L, a duty is cast on the owner of the barge to provide against the resulting damage.

B. ESSENTIALS OF A SUIT FOR NEGLIGENCE

The burden of proving negligence is on the part of the plaintiff who alleges it. In order to succeed in an action for negligence, the plaintiff must prove the following *five* things:

1. That the defendant was under a legal duty to exercise due care and skill, as there *cannot* be any liability for negligence unless there is a breach of some legal duty.
2. That the duty was towards the plaintiff.
3. That, in the circumstances of the case, the defendant failed to perform that duty, that is, the duty to exercise due care and skill.
4. That the breach of duty was the *causa causans*, that is, the direct and proximate cause, of the damage complained of. If the causal connection between the negligent act and the damage is *not direct*, the damage is *too remote*, for which there is no remedy at law.
5. That the damage was caused on account of this breach of duty.

In *PHILIPS INDIA LTD. V. KUNJU PUNNU* (1974 B. L. R. 337), the Bombay High Court has laid down that in an action for negligence against a doctor, the plaintiff has to prove *three* things, namely -

- (i) That the doctor was under a duty to take reasonable care towards the plaintiff to avoid the damage complained of or *not* to cause damage to the patient by failure to use reasonable care.
- (ii) That there was breach of such duty on the part of the doctor; *and*
- (iii) That such breach of duty was the real cause of the damage complained of and that such damage was reasonably foreseeable.

Electrocution Cases — In a case decided by the High Court of Jammu and Kashmir, an overhead high tension electric wire (which was loosely connected) fell upon students who were taking exams in their school compound. As a result, three students died and three others were seriously injured. The State of Jammu and Kashmir, whose duty it was to control, maintain and supervise electricity, was *held* to have failed in its duty to rectify the defect and change the high tension electric wires. Keeping in view the age of the victims, the Court awarded a compensation of Rs. 3 lakhs each in case of death and Rs. 2 lakhs each in the other cases of injury. (*Bashir Ahmad Rathor v. State of Jammu and Kashmir*, A. I. R. 2008 J & K 15)

In a similar case where death was caused due to electrocution, the High Court of Guahati ordered payment of compensation of Rs. 1.5 lakh to each victim. (*Merilyn Sangriron v. State of Meghalaya*, AIR 2008 (NOC) 300, Gau.)

RAILWAY LEVEL CROSSINGS. — In a normal situation, a person can assume, from the fact that the gates of railway level crossing are open, that there is no danger in crossing the railway track at such level crossing. When, therefore, a car or a truck is hit by a passing train, the fact that the gates of the crossing were open at the time of the accident is *prima facie* evidence of negligence on the part of the Railway administration. Moreover, there is no law which requires the driver of a vehicle to take precautions to ascertain whether a train is approaching when the gates are open. (*Mata Prasad v. Union of India*, A. I. R. 1978 All. 303)

VICTORIAN RAILWAYS COMMISSIONERS v. COULTAS (1888 13 App. Cases 222). — The gate-keeper of a railway company negligently invited the plaintiffs, a husband and his wife, to driver over a level crossing when it was dangerous to do so, and their buggy was nearly, but *not* quite, run down by a passing train. The wife fainted and received a serious nervous shock, leading to a severe illness. On such a suit filed by the plaintiffs for damages, the Court *held* that the damage was too remote to be recovered.

(However, the ruling in *Victorian Railways' case* has *not* been followed in subsequent cases like *Hambrook v. Strokes* and *King v. Phillips*.)

It may be noted that the above rulings proceed on the assumption that the railway crossing is a manned crossing. At an unmanned crossing, the driver of a vehicle would be under a duty to take proper precautions.

Burden of proof of negligence

As a rule, the onus of proving negligence is on the *plaintiff*. He must *not* merely establish the facts of the defendant's negligence and of his own damage, but must also show that the one was the effect of the other.

Firstly, where there is no contract, the plaintiff must prove facts inconsistent with due diligence on the defendant's part. Where the balance is even as to which party is in fault, the one who relies on the negligence of the other is bound to turn the scale.

Secondly, where there is a contract of personal undertaking, the plaintiff must prove such contract or undertaking and also injury to himself. The mere fact of an injury happening, if unexplained, is evidence of negligence. It is for the defendant to prove that he was exercising due care.

Thirdly, under certain circumstances, the mere happening of an accident will afford *prima facie* evidence that it was the result of *not* taking due care: *Res ipsa loquitur* : The thing speaks for itself. This maxim (which is discussed at length later in this Chapter) requires the plaintiff to prove only two things, namely, —

- (i) that the injurious agency was under the management or control of the defendant; and
- (ii) that the accident is such as, in the ordinary course of things, does *not* happen if those who have the management use proper care.

Thus in cases involving *res ipsa loquitur*, there is a *presumption of negligence* and it is for the *defendant* to rebut it.

C. ILLUSTRATIVE CASES

A few illustrative cases of negligence are given below. As there is no scarcity of case-law on this topic, only the more important ones have been discussed, as they illustrate the underlying principle of this tort.

Cases where the defendant was held *liable*

AUSTIN v. GREAT WESTERN RLY., (1867) 2 Q.B. 442. — A, carrying in her arm B, her son (over three years old and therefore liable to pay half-fare), took a ticket for herself, but *not* for B. Due to negligence of the Railway company, an accident occurred to the train and B was injured. When A took her ticket, no inquiry has been made by the servants on the Railway Company as to B's age, and there was no intention on A's part to defraud the Railway Company. B brought a suit for damages against the Railway Company.

The Court *held* that any passenger who has been injured by the negligence of a railway company can sue the company in tort, if it has invited or knowingly permitted him to enter the train, *whether or not* there is also a contract for carriage between him and the company. Thus B was entitled to recover damages from the railway company for he had been accepted as a passenger.

MANCHESTER CORPORATION v. MARKLAND, (1936) A. C. 360. — The Manchester Corporation's service water-pipe on a road burst and caused a pool of water to form on the road. The water lay unheeded for three days. On the third day, a frost occurred, the water froze, and on the ice so formed, a motor-car skidded and knocked down and killed a man. The Corporation was *not* informed until after this accident that the pipe had burst. In an action by the widow of the deceased under the Fatal Accidents Act, 1846, against the owner of the motor-car and the Corporation, it was *held*, exonerating the owner of the motor-car, that the Corporation was *liable* in *not* having taken prompt steps to attend the leak and thus preventing the road from being dangerous to traffic.

CARMARTHENSHIRE COUNTY COUNCIL v. LEWIS (1955), 1 All. E. R. 565. — A small boy, aged about four years, who was a pupil at a nursery school conducted by the City Council, was dressed up to go for a walk with one of the school mistresses. The mistress left him unattended in the class-room, whilst she went out to get ready herself. Whilst out of the classroom, she met another child, who had cut himself, and she bandaged him. During her absence for about ten minutes, the boy got out of the class-room and left the school compound

through an unlocked gate and entered a busy highway. A lorry, which was passing on the highway, in order to save the child, swerved, and in doing so, it struck a telegraph pole, as a result of which the lorry-driver was killed. His widow brought an action in which the question was whether there was any negligence on the part of (i) the school mistress and (ii) the school authorities.

The House of Lords *held* that, in the circumstances of the case, there was no negligence on the part of the school mistress. The Court *further held* that the school authorities were, however, guilty of negligence towards the deceased, as the presence of a small boy, wandering outside the school premises on a busy highway, at a time when he was in the care of the school authorities, indicated lack of reasonable precautions on the part of the authorities.

DANN v. HAMILTON, (1939) 1 K.B. 509. — The plaintiff, knowing that the driver of a motor-car was under the influence of drink, and that consequently the chances of an accident were thereby substantially increased, nevertheless, being under no compulsion either of necessity or otherwise, chose to travel by that car. She was injured in an accident caused by the drunkenness of the driver, in which accident the driver was killed. In an action against the personal representative of the driver, the defendant raised the defence of *volenti non fit injuria*. It was *held* that, except perhaps in extreme cases, the maxim did *not* apply to the tort of negligence, so as to preclude from remedy, a person who had knowingly and voluntarily accepted the risk which might arise from the driver of a car bring under the influence of drink and had been injured in consequence, and that the plaintiff was entitled to recover, the case *not* being one of the extreme types referred to.

[Note:

1. In *Dann v. Hamilton*, the contributory negligence of the plaintiff (which is discussed later in this Chapter) was *not* pleaded in defence. In a subsequent case, *NETTLESHIP v. WESTON* (1971 2 Q. B. 691), it was observed that a passenger going with a drunken driver may be unable to sue because he is himself aiding and abetting an offence.

2. *Dann v. Hamilton* was also *not followed* by the High Court of Australia in *Insurance Commissioner v. Joyce* (1948 77 C. L. R. 39).]

STANSBELE v. TROMAN, (1948) 2 K.B. 48. — A decorator was engaged to carry out decorations in a house. The decorator left the house without locking the doors when the inmates were out. During his absence, a thief entered the house and stole some property, the value of which the householder claimed from the decorator. The Court *held* that the decorator was *liable* as he was negligent in going away, leaving the house open.

BARNETT v. PACKER & Company. (1940), 3 All. E.R. 575.—The defendants were manufactures of sweets. A box of sweets manufactured by them was sold to a middleman, who in turn supplied it to the plaintiff. When the plaintiff was putting the sweets in a displaying tray, his finger was injured by a piece of wire in one of the sweets. In a suit filed by the plaintiff, the Court *held* that the defendants were clearly negligent and were therefore *liable*.

DAVIES v. LIVERPOOL CORPN., (1949) 2 All. E.R. 175. — As the plaintiff was boarding a tram-car belonging to the defendant corporation, an unauthorised person gave the starting signal. The car started and the plaintiff fell and was injured. The conductor was *not*, at that time, on the platform, which was his proper place. It was *held* that the defendants were *liable*, as the conductor was negligent in *not* remaining on the platform. He should have foreseen that any unauthorised person might start the tram.

FOSTER v. GILIGHAM CORPORATION, (1942) All. E.R. 304. — A crater created by a bomb had been fenced by a local authority, and lamps were placed around it. A strong wind blew out these lamps and the man on night duty failed to turn up that night. A cyclist collided with the unlit barrier and sustained injuries. It was *held* that the local authorities were *liable* because if they had kept an obstruction on the road, it was their duty to keep it lighted at night.

FARRUGIA v. GRANT WESTERN RAILWAY, (1947) 2 All. E.R. 565. — A truck of the

defendant company was carrying a large, tall container. The driver tried to go under a low bridge and the container was thrown off the lorry, injuring the plaintiff who was running behind the lorry. The company contended that it was *not* liable (i) because the plaintiff was trespassing on the highway, and (ii) because they could *not* possibly have known of his presence there. It was *held* that the defendant company was carrying a potential source of danger and owed a duty of care to anyone who might be on the highway, whether lawfully or unlawfully.

RAMESH KUMAR NAYAK v. UNION OF INDIA (A.I.R. 1994 Ori. 279). — In this case, it was *held* that the inaction of the postal authorities to maintain the compound wall of a Post Office in good condition can be said to be an act of negligence. The Court, therefore, *held* that the person who sustained injuries due to the collapse of the wall would be entitled to compensation.

KILARIMANMMI & OTHERS v. BARIUM CHEMICALS LTD., (A.I.R. 1979 A.P. 75). — In this case, a driver of a jeep parked it on the street and went to a tailor's shop, leaving the ignition key in the jeep. Thereafter, B, who was waiting in the jeep, and who was *not* authorised to drive it, started the jeep and caused a serious accident. The Court *held* that the negligent act of the driver in leaving behind the ignition key was the real and effective cause of the accident, and since this act was done in the course of employment, the employer of the driver was *liable*.

SHIVKAR MOTASINGH v. RAMNARESH MANSINGH & OTHERS (A.I.R. 1978 Guj, 115). — In this case, a boy of about 12 years of age was drowned at a school picnic party and a suit for damages for negligence was filed against (i) the two school teachers who had accompanied the 60 boys for the picnic; (ii) the headmaster of the school; and (iii) the Municipal Corporation which ran the school. The picnic-spot was at a place on the bank of the river *Sabarmati*, and after reaching the spot, the picnic party took food. Thereafter, the two teachers (who were in charge of the picnic party) began eating, when they heard of noise from the river-side and rushed there. Two boys who were in the river water were rescued by the fisherman, but the third was drowned.

On the above facts, the Court *held* that, in such a case, the test to be applied is the test of what a reasonably careful *parent* would have done in like circumstances. Of course, this test would apply only to an extent, because a parent who takes his boys to such a picnic-spot may ordinarily have to look after two (or three, or four) boys, whereas here, two teachers were in charge of 60 boys. However, as river water is always an allurements for young boys, and excessive enthusiasm would prove a trap, a greater degree of supervision became necessary. Moreover, the danger could have been foreseen. Thus, reasonable care required that the two teachers ought *not* to have started taking their food together, and one of them could have supervised the boys' movements. The Court, therefore, *held* -

- (i) that the two teachers were *guilty of negligence*.
- (ii) that the Head-master was *not liable*, as all that he did was to permit the picnic, and this, by itself, cannot constitute negligence.
- (iii) that the Municipal Corporation, in its capacity as the employer, was *vicariously liable* for damages arising out of this accident.

Cases where the defendant was held *not liable*

ROBINSON v. POST OFFICE, (1974) 1 W.L.R. 1176. — In this case, an employee of the Post Office slipped because of oil on a ladder and sustained a wound on his left shin. Eight hours later, his doctor gave him an injection of anti-tetanus serum (ATS), but did *not* follow the accepted procedure of a test-dose. The plaintiff showed no immediate reaction, but nine days later, he developed encephalitis, which resulted in brain damage and permanent partial disability. He filed a suit against both the Post Office and the doctor, claiming that his injuries and illness were due to negligence of either or both of them. The Court dismissed the plaintiff's claim against the doctor holding that the post office was wholly liable. The Court observed that although the doctor was negligent in the procedure adopted for applying the test-dose, that negligence had *not* caused or contributed to the encephalitis.

DICKSON v. REUTER, (1877) 3 C.P.D. 1. — A sent a telegram to B for the shipment of

certain goods. The telegraph company, by mistake, delivered the telegram to C. C, acting on the telegram sent the goods to A. A refused to accept the goods, stating that he had ordered the goods *not* from C, but from B. C sued telegraph company for damages for the loss suffered by him. It was *held* that C had no cause of action against the company, for the company did *not* owe any duty of care to C and no legal right of C could, therefore, be said to have been infringed.

CAMINER v. NORTHERN, (1949) 2 K.B. 64. — The defendants owned a 130 years old elm tree which, to all appearances was free from danger. A gust of wind uprooted it and it fell on plaintiff's car and damaged it. It was subsequently found that the tree had diseased roots. It was *held* that the defendant *could not be held liable* since no one knew anything about the dangerous tendency of the tree.

HALL v. BROOKLANDS AUTO RACING CLUB, (1933) 1 K.B. 205. — The plaintiff, who was a spectator at a car race, and who had paid for his admission to the defendant's premises, was injured by a racing car. No such accident had occurred in the previous twenty- six years. The defendants were *held not liable*. They were *not* insurers against accidents which could not reasonably be expected to happen.

(Note: The defence of *volenti non fit injuria* would also be available in such cases.)

BOLTON v. STONE, (1915) A. C. 850. — The plaintiff was on a road opposite a cricket pitch which was properly fenced. Occasionally, balls did cross over the fence. One ball hit the plaintiff, who sustained an injury. It was *held* that the defendant club was *not liable*.

TINSLEY v. DUDLEY, (1951) 2 K.B. 18. — The plaintiff went in a public house for refreshment, leaving his motor-cycle in the compound. The motor-cycle was stolen. It was *held* that the defendant was *not liable*, as he could *not* be called an insurer of his customer's goods. The Court observed that although the plaintiff was an invitee, the defendant was under no duty to protect the plaintiff's goods from the risk of theft by third parties. Further, as the motor-cycle had *not* been delivered into the possession of the defendant, and as the defendant was *not* even aware that it had been brought into his premises, he did *not* become a bailee in respect of the motor-cycle. He was, therefore, *not liable* for its loss as a bailee also.

SAFDAR HUSAIN v. UNION OF INDIA, (A.I.R. 1978 All. 53). — In this case, A, a Head Clerk of Northern Railway, who was entrusted with the additional functions of the Chief Booking Clerk, kept the cash- on-hand, amounting to Rs. 10,510, in an iron safe in his office room, placed the key of the safe in a hidden place inside a wooden *almirah* and locked it with his own lock. After that, the back door of the office was bolted from inside. A locked the outer door and went home. On returning to duty the next day, he found that the *almirah* lock had been broken open and the entire cash was gone. The question was whether A could be said to be guilty of negligence.

The Court *held*, in the above circumstances, that the railway authorities had *not* provided any place for keeping the key of the safe by its employees when they went home, and that A's act in keeping the safe-key in hidden place in a locked *almirah* rather than in his personal custody, according to the consistent practice of Chief Booking Clerks, did *not* amount to gross negligence, so as to render him liable for the loss of the cash. In fact, A had exercised all the care which was expected to a prudent and reasonable person in the circumstances.

P. PEARL (EXPORTERS) LTD. V. CAMDEN LONDON BOROUGH COUNCIL, (1983) 3 W.L.R. 769. — In this English case, the defendants had a broken lock on the front door of their premises. During a week-end, thieves entered the defendants' premises and through them, entered the neighbouring premises of the plaintiffs, whose garments they stole. The Court *held* that the defendants did *not* owe a duty of care to their neighbours, and were, therefore, *not liable* for acts of an independent third party, namely, the thieves.

Negligence of doctors

The Kerala High Court awarded damages amounting to Rs. 1,60,000 against a surgeon for performing an operation on a 24-year old girl (who ultimately died) under crude and primitive

conditions and without even administering local anaesthesia. (*Joseph v. Dr. George Moonjely*, A.I.R. 1994 Ker. 289)

The Rajasthan High Court has *held*, in a case against a doctor for damages, that if the plaintiff shows that the doctor was in fact negligent, but fails to prove that any loss or injury was caused to him by such negligence, he *cannot* be awarded any damages and his claim will be dismissed. (*Sidhraj Dhadha v. State of Rajasthan*, A.I.R. 1994 Raj. 68)

D. RES IPSA LOQUITUR

The rule that in action of negligence, the plaintiff must affirmatively prove negligence may cause hardship in cases where the plaintiff can prove the accident but *cannot* show how it happened, the fact being solely outside his knowledge and within the knowledge of the defendant who causes it. In such cases, *it is sufficient for the plaintiff to prove the accident and nothing more*, for there is a presumption of negligence according to the maxim, “*Res ipsa loquitur*” (the thing speaks for itself). Such a presumption arises when the cause of the mischief was apparently under the control of the defendant or his servants. The accident itself constitutes reasonable evidence of negligence in the particular circumstances.

Thus, if a *hammer* falls out of a window, it could be a case of somebody’s negligence, or even mischief. But it is *not* a case of *res ipsa loquitur*, because it is *not unusual* for small things to so fall out. But suppose a *chair*, or a *cupboard* or a *table* falls out of a window, surely such articles never fall, or should fall, like that. This very fact is itself clear evidence of somebody’s gross negligence: the fact speaks for itself: *Res ipsa loquitur*.

In *Ryrne v. Boadle*, (1863) 2 H & C, 722, the plaintiff was passing along the street and when he came near the defendant’s shop, was injured by the fall of a barrel of flour which rolled out of a window on the second floor. There was no evidence on the part of the plaintiff as to how the accident happened, beyond the facts that, while on the road, he was knocked down by the barrel, became unconscious and was injured. It was *held* that the accident alone was *prima facie* evidence of negligence and *Pollock, C. B.* observed: “A barrel could *not* roll out of a warehouse without some negligence, and to say that a plaintiff who is injured by it must call witness from the warehouse to prove negligence seems to me preposterous. So in building or repairing a house, or putting pots on the chimneys, if a person passing along the road is injured by something falling upon him, I think the accident alone would be *prima facie* evidence of negligence.” It is, therefore, for the defendant to rebut the presumption of negligence.

The principal requirement for the application of the maxim is that the mere fact of the accident having happened should tell its own story and raise the inference of negligence, so as to establish a *prima facie* case against the defendant. The story must be clear and unambiguous, and if it tells one of half a dozen possible stories, the maxim *cannot* be applied.

Thus, the following are the *three essential requirements* of the application of the maxim:

- (i) The thing causing the damage must be under the control of the defendant or his servants.
- (ii) The accident must be such as would *not*, in the ordinary course of things, have happened without negligence.
- (iii) There must be no evidence of the actual cause of the accident.

A classic exposition of the maxim is found in the judgement of *Sir William Erie C. J.* in the leading English case, *Scott v. London & St. Katherine Docks Co.* (1865 3 H & C 596), where it was observed as follows:

“There must be reasonable evidence of negligence. But where the thing is shown to be under the management of the defendant or his servant, and the accident in such as in the ordinary course of things does *not* happen if those who have the management used proper care, it affords reasonable evidence, in the absence of any explanation by the defendant, that the accident arose from want of care.”

In one case, a bus knocked down the plaintiff who was seated near his shop. It was argued, on behalf of the owner of the bus, that there was a latent defect in the vehicle, and that the brakes had

suddenly failed and the steering wheel had also gone out of order. The Court observed that notwithstanding the maxim, *res ipsa loquitur*, it is open to a defendant, in a given case, to establish that there was no lack of reasonable care on his part, even though he *cannot* explain exactly as to how the accident took place. However, the presumption *cannot* be rebutted merely by proving latent defects in the vehicle, as the sudden failure of the brakes and the steering wheel can also be due to carelessness of the defendant's part to keep the vehicle in a proper state of repairs. As the defendant had *not* proved that all necessary steps were taken for the proper maintenance and upkeep of the vehicle, it was *held* that the plaintiff was entitled to claim damages from the defendant. (*Amina Begam v. Ram Prakash*, A.I.R. 1978 All. 526)

VISHNU v. B.B.&C. I. Rly., 25 Bom. L. R. 881. — A travels in a second class compartment of a train of a railway company. The compartment carries a ladder, to reach the upper berths. The ladder, when *not* in use is kept underneath one of the lower berths. On the occasion in question, someone folds the ladder and keeps it in a rack near the ceiling of the compartment. After an hour's journey, the ladder falls on A's head and causes him injury. A sues the railway company for damages. This is *not* a case of *res ipsa loquitur*. It *cannot* seriously be contended that it was the railway company's duty to see that there was no dangerous article in the rack when the train started.

In one English case, a black-board of a class-room slipped down and fell, injuring one of the students. It was *held* that the mere fall of the black-board was *not* evidence of the teacher's negligence. (*Crisp v. Thomas*, (1891) 63 L. T. 756)

The observations of *Morris L. J.* in *Roe v. Minister of Health* (1954 2. Q. B. 66) are interesting. He observed:

"The maxim possesses no magic quality. Nor has it any added virtue, other than that of brevity, merely because it is expressed in Latin. When used on behalf of a plaintiff, it is generally a short way of saying, "I admit that the facts and circumstances which I have proved establish a *prima facie* case of negligence against the defendant." There are certain happenings that do *not* normally occur in the absence of negligence, and upon proof of these, a Court will probably hold that there is a case to answer."

The doctrine of *res ipsa loquitur* was applied in a case (*The National Small Industries v. Bishambhar Nath*, A.I.R. 1979 All. 35), where combustible material was stored in rooms which were in the exclusive control and supervision of the defendants. It was also shown that only the workers of the defendants had access to those rooms and that they were in the habit of smoking cigarettes and *bidis* inside the premises during working hours. One day, a fire broke out, causing substantial damage to the building (which was a hundred years old). Applying the doctrine, the Court *held* that, having regard to the common course of natural events and human conduct, it could be presumed that the fire must have been caused because of some negligent act of the defendants or its employees. The Court observed:

"The rule of evidence, as applied in the case, is fully reflected in the well-established doctrine of *res ipsa loquitur*, which has, in connection with proof of negligence, been consistently followed in this country."

E. DEFENCES AVAILABLE IN A SUIT FOR NEGLIGENCE

The following *three defences* are available in an action for negligence:

- (A) *Vis major* (Act of God)
 - (B) Inevitable accident
 - (C) Contributory negligence of the plaintiff.
- (i) *Vis Major* (Act of God)

Vis major (or *act of God*) is such a direct, violent, sudden, and irresistible act of *nature* as could *not*, by any amount of human foresight, have been foreseen, or, if foreseen, could *not*, by any amount of human care and skill, have been resisted. Thus, acts which are occasioned by the elementary forces of nature, unconnected with the agency of man or other cause, will come under

the category of acts of God, as for example, storm, tempest, lighting, extraordinary fall of rain, extraordinary high tide, extraordinary severe frost, *etc.*

NIOCHLS v. MARSLAND, L.R. 2. Ex. Div. 1. — The defendant had a series of artificial lakes on his land, in the construction or maintenance of which there had been no negligence. Owing to a most unusual fall of rain, so great that it could *not* have been reasonably anticipated, some of the reservoirs burst and carried away four country barges. It was *held* that the defendant was *not* liable, inasmuch as the water escaped by an act of God.

SLATER v. WORTHINGTON, (1941) 1 K. B. 488. — Owing to the extraordinary severe snow-storms, snow and ice had accumulated on the roof of the defendant's premises. No steps were taken to remove the snow or to warn the public of its presence. The plaintiff, while standing on the pavement outside the premises and looking through the window of the defendant's shop, was injured by a fall of snow which had accumulate on the roof. The snow could have been removed from the roof, but this was *not* done. She claimed damages, alleging nuisance, or alternatively, negligence.

It was *held* that the accumulation of snow constituted a public nuisance of which, in view of the severity of the storms, the defendants must be deemed to have had knowledge; that there was a duty on the part of the defendants to safeguard members of the public using the pavement from the danger occasioned by the snow; and that as they failed to abate the nuisance, *they were liable both in nuisance and negligence-*, and that the plea that the storms were acts of God was no defence, as it was the snow, and *not* the storms, which directly caused the injury.

CROSSLEY v. RAWLINSON, (1982) 1 W.L.R. 369. — The defendant's truck caught fire owing to his negligence. A patrolman (who was about 100 yards away) grabbed a fire extinguisher and rushed towards the truck. In doing so, he stumbled on a concealed hole on the pathway and injured himself. In a suit by the patrolman against the defendant, the Court *held* that although the fire was caused by the defendant's negligence, the plaintiff's injury was caused by an accident which was *not* reasonably foreseeable, and therefore, the plaintiff could *not* succeed.

(ii) Inevitable accident

The second defence in action for negligence is that of evitable accident. Thus, A is lying drunk on a roadway. B drives a motor-car around a bend in a road, but just before he reaches the point at which, under ordinary circumstances, he would first see A, sheet of newspaper is blown by the wind against his windscreen and materially obscures his view. He runs over A, and injures him. Here, A *cannot* succeed, it being a case of inevitable accident or misfortune.

CLEGHORN v. OLDHAM, (1927) W.N. 147. — X was on a golf course as a spectator, and Y, who was *not* striking the ball in a game of golf, but was merely demonstrating a stroke to X's brother, negligently struck Y in the face with the golf club. In a suit by X against Y for damages, Y contended that by going to the golf course, X took the risk of such an accident. It was *held* that X was entitled to damages. This was *not a case of* sport or a game, but a regular business.

(iii) Contributory negligence of the plaintiff

The third defence to an action for negligence is that of contributory negligence of the plaintiff himself.

Contributory negligence is *negligence in not avoiding the consequence arising from the negligence of some other person, when means and opportunity were available to do so*. It is the non-exercise by the plaintiff of such ordinary care, diligence, and skill as would have avoided the consequence of the defendant's negligence. The law takes into consideration any act or conduct of the party injured or wronged which may be immediately contributed to that result. Where such conduct can be proved, the party is considered in law to be the author of his own wrong, and it is fatal to any action on his part based on the injury. This doctrine is based on the maxims, *volenti non fit injuria* and *in jure non remota causa sed proxima spectatur*. (Both these maxims have been explained in earlier Chapters.)

Thus, a man who keeps his hand outside the window of a railway coach or hangs perilously

on the foot-board, knowing the risk in either case, is only inviting the injury and *cannot* claim damages against the Railway Company.

In one case, while the plaintiff was crossing a railway line, a servant of the Railway Company in charge of crossing shouted a warning to him. Owing to his deafness, the plaintiff was unable to hear the warning and was consequently injured. The Court *held* that this amounted to contributory negligence of the plaintiff. (*Shelton v. L. & W. Rly.*, 91876) 36 L. J. C. P. 249)

Principles of contributory negligence

The principles of contributory negligence may be summarised as follows:

1. Wherever the *immediate, proximate* or *decisive* cause of the damage is the *plaintiff's own negligence* or want of care and caution, so that, but for such negligence or want of ordinary care and caution on his part, the misfortune would *not* have happened, he is *not* entitled to recover.
2. The plaintiff, however, is *not* disentitled to recover, unless it is shown (i) that one might, by the exercise of ordinary care, have avoided the consequences of the defendant's negligence; or (ii) that the defendant could *not* have avoided the consequence of the plaintiff's negligence by exercise of ordinary care. The question therefore will be: Which of the parties had it last in his power to avert the disaster?
3. If there has been as much want of reasonable care on the plaintiff's part as on the defendant's, the plaintiff *cannot* sue the defendant.

Burden of proving contributory negligence

The onus of proving affirmatively that there was contributory negligence on the part of the person injured rests, in the first instance, upon the defendant, and in absence of evidence tending to that conclusion, the plaintiff is *not* bound to prove its non-existence. If the Court finds itself unable to discover to what extent the negligence of the plaintiff or that of the defendant contributed to bring about the accident, the defendant is entitled to succeed, for *in pari delicto potior est conditio defendantis*.

Cases

GREAT CENTRAL RLY. V. BATES (1940) 3 All. E.R. 399. — The plaintiff stepped out from a lift on the landing of an upper floor, remained for a few seconds on that landing during which the lift door closed. Then, according to his own evidence, while keeping back to the lift, stretched his hand backwards, opened the door and stepped backwards through it. The lift was *not* there and, in consequence, he fell down the shaft and sustained injuries, in respect of which he sued the defendants and the engineers responsible for the installation and maintenance of the lift, for the negligence in its construction and maintenance.

It was *held* that the plaintiff was *not* entitled to assume that, because the door opened, the lift would be in place; and, therefore, on his own evidence, he had been guilty of contributory negligence in stepping backwards through the door. He was, therefore, *not* entitled to recover.

HANSRAJ v. TRAM CO., 35 Bom. 478. — A, in attempting to board moving tram car of the Tramway Company, set his foot on the footboard which was loose and *not* firmly fixed. A's foot slipped, and as he also failed to get a firm grip of the hand-bar, he fell down and sustained injuries. A sued the Company for damage for negligence.

It was *held* that A could *not* recover any damages. If A had attempted to board the tram-car while *not* in motion, the condition of the foot-board would *not* have affected him. As the tram-car was in motion, A could *not* get a firm grip of the hand-bar. It was his own negligent act in boarding a moving car which was the cause of accident. Hence, the Tramway Company was *not* liable.

WESTWOOD & ANOTHER v. THE POST OFFICE (1973) 3 W.L.R. 287. — In this case, in the office premises of a telephone exchange, there was a lift motor room, with a notice stating that only an authorised attendant was permitted to enter that room. However, the employees of the telephone exchange were in the habit of going on its flat roof for recreation. W, a technical

officer, was fatally injured by reason of a trap door in the floor of the room giving way.

In the circumstances, the Court *held* that this practice of the employees (of going on the roof) was known to the post office, and was *not* objected to by them. Further, the terms of the notice of the door of the room had *not* been such as to suggest that there was any danger in the room. Further, the fact that the man was a trespasser had no bearing on what he might or might *not* reasonably foresee as possibly causing him hurt. If at all, W was guilty of disobedience, but *not* of negligence, and he was therefore, *not* guilty of any contributory negligence.

THE MUNICIPAL BOARD v. BRAHM KISHORE (A.I.R 1978 All. 168). — In this case, the plaintiff, while returning from his club on a bicycle, fell into a ditch at about 6:15 p.m. The municipality had dug this ditch for repairing a culvert, and there was no light or danger signal or barricade or other caution notice. In a suit filed by the plaintiff (who had sustained considerable injuries), the Municipality contended that it was *not* liable under the doctrine of contributory negligence as the plaintiff's cycle had no light on it. Rejecting this argument, it was *held* that the benefit of the defence of contributory negligence was *not* available to the Municipality, which had failed to carry out its statutory duties. Moreover, an ordinary bicycle lamp would *not* radiate enough light to any considerable distance. The benefit of the doctrine of contributory negligence was therefore, *not* available to the Municipality.

GUJARAT STATE BOARD TRANSPORT v. KESHAVLAL SOMNATH PANCHAL, A.I.R. 1981 Guj. 205. — The Gujarat High Court has *held* that an injured passenger who had sat in a bus with his arm resting on the window, and the elbow protruding about six inches from the window *cannot* be said to be guilty of contributory negligence, when a truck came from the opposite side and struck the elbow, fracturing it in the process. The slight protrusion of the passenger's arm out of a window is a common occurrence and is *not* a thing which is obviously fraught with danger. In fact, it was the duty of the truck driver to so manoeuvre his own vehicle that it did *not* touch either the bus or any part of a passenger's arm which may be resting on the window.

When the defence of contributory negligence is not available

Contributory negligence is, however, no defence in the following *five* cases:

1. *Where rightful acts are assumed*

Contributory negligence is *not* a good defence in cases where the plaintiff is *not* bound to take such care as a defendant contends, but has a right to assume that the defendant has done all things rightly and carefully.

GEE v. METROPOLITAN RLY. CO., (1873) 8 Q. B. 161. — In this case, the plaintiff, in company with his brother, was travelling by an underground railway. When the train was in motion, he got up for the purpose of looking out of the window, in order to point out some object to his brother. In doing so, he placed his hand against a bar which went across the carriage window, when the door immediately flew open, and he fell out and was injured. It was *held* that the plaintiff could recover, although he could easily have avoided the accident by simple precaution of examining the door handle; he was, however, *not* bound to take that precaution, but was entitled to assume that the company's servants had done their duty by fastening the door.

BUTTERFIELD v. FORRESTER, (1809) 11 East 60. — The defendant wrongfully obstructed a street by placing a pole across it. The plaintiff was riding home at dusk when there was sufficient light to notice the obstruction, but galloping at high speed, he came into collision with the pole and was injured. It was *held* that he had no cause of action. Notwithstanding the defendant's negligence, the plaintiff might have avoided the accident by the use of due care.

2. *Where defendant had later opportunity*

Contributory negligence of the plaintiff is no defence if the defendant had a later opportunity than the plaintiff of avoiding the accident by taking reasonable care.

DAVIS v. MANN, (1842) 10 M. & W. 546, 549. — The plaintiff had negligently left his donkey with its legs tied in a narrow lane, and the defendant who came with his wagon at a fast pace negligently ran over the donkey. It was *held* that the plaintiff was entitled to his remedy,

notwithstanding any negligence on his part, inasmuch as the accident might have been avoided by the exercise of ordinary care on the part of the driver, as for instance, by going at such a pace as would be likely to avoid the mischief. The court observed:

“Although the ass may have been wrongfully there, still the defendant was bound to go along the road at such a pace as would be likely to prevent mischief. Were this *not* so, a man may justify the driving over goods left on a public highway, or even over a man lying asleep there, or purposely running against a carriage going on the wrong side of the road.”

3. *Doctrine of alternative danger*

The third exception to the rule of contributory negligence is, what is known as the “doctrine of alternative danger.” Where the defendant has placed the plaintiff in a situation of extreme peril, he *cannot* set up the defence of contributory negligence, merely because the plaintiff, acting under a reasonable apprehension of danger and in a reasonable and prudent way, had adopted a perilous way of escape.

Thus, in *Jones v. Boyce*, (1 Stark 493), the defendant, a coach driver, was *held liable* for injuries suffered by the plaintiff who jumped out of the coach when, by reason of the defendant’s negligent driving, an accident seemed imminent, for the defendant had placed the plaintiff “in such a situation as obliged him to adopt the alternative of a dangerous leap or to remain at certain peril.” In such cases, it is immaterial whether the plaintiff has acted, *not* for his own preservation, but instinctively for the preservation of another, as for example, a wife for her husband: *Brandon v. Osborne, Garrette and Co.*, (1924), 1 K.B. 548.

BRANDON v. OSBORNE. — Owing to the negligence of defendant’s workmen, broken glass fell on the plaintiff’s husband. She was standing under cover, but immediately seized her husband and tried to pull him to safety. In so doing, she injured her leg. It was *held* that there was no contributory negligence on her part.

Choice of evils

The doctrine of alternative danger or choice or risks is an exception to the rule that the contributory negligence of the plaintiff would debar him from recovering damages from the defendant. Though the plaintiff might have in fact contributed to the injury to himself, yet, if he had been placed in a perilous situation by the defendant’s negligence, and being so placed, he was obliged to choose between two apparent dangers and chose one, with the result that he was injured, the plaintiff would be entitled to recover. The defendant can escape liability only by proving that the plaintiff had acted with less than average prudence and care.

RIDLEY v. MOBILE RLY. CO., (1905) 86 S.W. Rep. 606. — An engine belonging to a railway company was passing a level crossing without giving a whistle. *B*, seeing a child on the level crossing in imminent danger of being run over by the engine, rushed in and saved the child; but in doing so, fell down and one of his legs was cut off.

The Court *held* that the law allows a person some liberty of action to save another in a position of great peril, and fixes the responsibility for harm on the original wrong-doer who caused the peril, as here, by passing a level crossing without giving a whistle. The law has so high a regard for human life, that it will *not* impute negligence, unless the act is clearly rash and negligent. Therefore, *B* can successfully claim damages from the railway company.

4. *Maritime law*

The doctrine of contributory negligence is also *not* applicable to maritime law. It is the duty of seamen to observe the regulations for the prevention of collisions at sea. When a collision takes place as a result of the negligence of the crew of two vessels, under the Maritime Conventions Act, the liability is apportioned in proportion to the degree of negligence. When such degrees of negligence *cannot* be proved, the liability is apportioned equally.

5. *Children*

As the doctrine of contributory negligence does *not* generally apply to children, it is no defence to say that the child itself was negligent, for negligence is a state of mind, and children

are *not* expected to have sufficient intelligence to judge as accurately or as quickly as an adult. The rule as to contributory negligence will *not* inflexibly apply in cases where young children are concerned. The defence of contributory negligence is more difficult to make out against a child than against an adult. The plaintiff who is a child will *not* be disentitled to relief merely because he or she has failed to show as much care as a person of mature age. Allowance must be made for lack of experience and infirmity of judgement in children. The rule seems to be that an infant can recover, although the infant's own conduct contributed to the injury, if the defendant is shown to have failed in his duty to the infant.

Of course, if the child is proved to have sufficient maturity of understanding, his own contributory negligence may go against him. Thus, in *M. and S.M. Railway Co. Ltd. v. Jayammal*, (1924) 48 Mad. 417, where a girl of seven years was knocked down by an engine while she was crossing the railway line after passing through a wicket gate, the Madras High Court had *held* that the proximate cause of the accident was the negligence of the girl in *not* looking out for a passing engine, when she was crossing the line and that she was capable of appreciating danger and was old enough to have a sense of discrimination; she was therefore guilty of contributory negligence.

LYNCH v. NURDIN, (1841) 1 Q. B. 29. — The defendant left his cart and horse unattended in a street where some boys were playing. The plaintiff, a boy, was climbing into the cart, while another pulled the bridle, the horse moved on, and the plaintiff fell down under the wheel of the cart and was injured. The Court *held* that the defendant was *liable*.

GLASGOW CORPORATION v. TAYLOR, (1922) A. C. 44. — In this leading English case, the Corporation maintained a public garden wherein there were shrubs containing berries which looked luscious and attractive, but were in fact poisonous. The plaintiff's son, a child of seven, entered the garden and ate one of the fruits and died. The defendants were *held liable* as they placed an allurement within the reach of the child without any fencing or warning as to its poisonous character.

COATES v. RAWTENSTALL, (1937) 3 All. E.R. 602. — The defendants maintained a children's recreation ground, which, among other amusements, included a children's slide. The plaintiff, an infant, aged four years, attended by a boy aged fourteen, while sliding, collided with a chain, which had been improperly fixed, and was seriously injured. The chain was required for the purpose of preventing the use of the slide on Sundays, and was kept padlocked to a pole when *not* required. It was found that the attendant in charge had negligently failed to secure the chain to the pole, whereby some other child was able to remove it and fix it across. In action for damages, the defendants pleaded that recreation ground was meant for children of school-going age only and the plaintiff was a trespasser.

The Court *held* that the plaintiff was accompanied by a competent guardian and was, therefore, a licensee. The injuries to the plaintiff were caused by a danger which was known to the defendants. Therefore, the defendants were *liable*.

YACHUK v. OLIVER, (1949) A.C. 386. - By an untrue statement, a boy aged nine years, who was accompanied by his brother aged seven, prevailed on an employee of the defendant company to sell him a small quantity of petrol. The employee had doubts as to propriety of the sale, for, before the two children were beyond recall, he informed the assistant manager and asked him to confirm that he had acted rightly. The children wanted the petrol for use in a game in which they enacted a Red Indian scene they had witnessed in a film. In the result, the boy was seriously burnt.

It was *held* that, in view of the fact that the boy's story was such as to arouse, rather than to allay, suspicion in the mind of a reasonable man, the fact that he told a lie to obtain the petrol, could *not* help the defendants. The court *also held* that the defendants' employee, having given an explosive substance to a boy who had limited knowledge of the likelihood of an explosion and its possible effect, and the boy having done that which a child of his age might be expected to do, the defendants could *not* also avail themselves of the defence of contributory negligence. The Court

observed that the employee's negligence contributed to cause the injuries suffered by the boy, and it was impossible to say that a new cause had intervened so as to relieve the defendants from all responsibility for the serious consequences which followed their wrongful act.

Doctrine of identification

Where a child is in the actual custody of an adult at the time of the accident, the contributory negligence of the adult will disentitle the child from recovering damages, because the child is so identified with the adult so that his negligence would amount to the negligence of the child. Therefore, a *special application of the doctrine of application* is to be met with where an infant, who is incapable of taking care of himself and is in charge of an adult, suffers injury owing to the negligence of a *third person* as well as the contributory negligence of the custodian.

At one time, it was thought that the contributory negligence of an adult having actual custody of a child at the time of the accident would be a bar to an action by the child against the other party whose negligence helped to bring about the accident. In *Waite v. N.E. Rly.*, (1858 E.B. & E. 719), a child of five under the control of its grandmother was injured by a train owing to the contributory negligence of the grand-mother. It was *held* that the child had to be identified with its grand-mother and thus had no right of action against the company.

But the doctrine of identification laid down in the above case had been *overruled* in the decision in *Mills v. Armstrong* (below).

MILLS v. ARMSTRONG, (1888) 12 App. Cases, 1. — An infant, four years old, was crossing a road under the care of his grand-father. He was struck by a motor omnibus and received permanent injuries to his left hand. The infant sued the Omnibus Company for damages sustained by him through the negligent driving of the omnibus belonging to the Company. The jury found that the accident occurred through the negligence of the driver of omnibus and the contributory negligence of the grand-father. Nevertheless, the infant *could* recover damages.

In another case, *Oliver v. Birmingham and Midland Motor Omnibus Co. Ltd.*, (1913) 1 K.B. 35, *Macangten J.* observed: "If the accident was due solely to the negligence of the person in whose care he was, there seems to be doubt that he could recover from the person. If the accident was due solely to the third person, there is no doubt he could recover compensation from the third person. It would indeed seem very odd that if the accident was due to the combined negligence of both, he should be without remedy."

In short, where a child is in *the actual custody of an adult at the time of the accident*, the contributory negligence of the adult will *not* disentitle the child from recovering damages.

Law Reform (Contributory Negligence) Act, 1945

In England, the doctrine of contributory negligence has been abolished by the Law Reform (Contributory Negligence) Act, 1945, which lays down that if any person suffers damage as the result partly of his own fault and partly of the fault of any other person or persons, a claim for damages will *not* be defeated by reason of fault of the person suffering the damage. However, the damages recoverable in respect thereof are to be reduced to such extent as the Court thinks just and equitable, having regard to the claimant's share in the responsibility for the damage. However, the Act does *not* alter the existing law as to determining *whether or not* there has been contributory negligence; it only alters the law as to the damages recoverable where contributory negligence is established. The Act is also extended to the Workman's Compensation Acts of 1925-1948, subject to certain conditions.

At common law, if there was contributory negligence on the part of the plaintiff, he could *not* recover at all. But the Law Reform (Contributory Negligence) Act, 1945, allows him to recover; only the amount of damages is reduced in proportion to his responsibility for the damage.

A husband who sues for damages caused to him by reason of injuries negligently inflicted on his wife, sues in his own right, and the fact that the wife was guilty of contributory negligence neither defeats his claim at common law nor causes any diminution of his damages under the Law Reform (Contributory Negligence) Act, 1945.

17 TORTS OF MALICIOUS ABUSE OF LEGAL PROCESS

Questions for this chapter are:

Write a short note on: Malicious prosecution. May 2012, 2017, November 2012.

Define malicious prosecution. 2 marks. November 2011, 2013, April 2013.

The torts of malicious abuse of legal process are discussed in this Chapter under the following *four* heads:

1. Malicious *criminal* prosecution
2. Malicious *civil* proceedings
3. Malicious *arrest*
4. Maintenance and *champerty*.

1. MALICIOUS CRIMINAL PROSECUTION

Definition

Malicious criminal prosecution may be defined as the institution against an innocent person, of unsuccessful criminal, bankruptcy or liquidation proceedings, without reasonable and probable cause and in a malicious spirit, that is, from an indirect and improper motive and *not* in furtherance of justice, and which causes damage to the plaintiff in person, pocket or reputation.

Its essentials

In an action for malicious criminal prosecution, the plaintiff has to fulfil the following *five* conditions:

1. Prosecution

The plaintiff has to prove that he was prosecuted by the defendant on a criminal charge or in bankruptcy or liquidation proceedings.

It has been *held* in an English case that if A makes a false complaint to a judicial officer, and B is taken into custody under the orders of the judicial officer, A would be *liable in damages for malicious prosecution but not for false imprisonment*. (*Austin v. Dowling*, 1870 L. R. 5 CP 534)

The Courts in India have, however, *held* that if a person gets another person arrested by the police on the basis of a false complaint, he is liable for damages for false imprisonment. (*Gouri Prasad Dey v. Chartered Bank*, 1925 ILR 52 Cal. 615; *Sakik Khan v. Taffazal Khan*, 1939 43 CWN 1080)

2. Termination of proceedings in plaintiffs favour

No action for malicious prosecution lies until the prosecution or other proceeding has terminated in favour of the person complaining of it. There need *not* have been an acquittal on the merits; it is enough if the prosecution has been discontinued, or if the accused has been discharged, or if a conviction has been quashed for some defect in the proceedings, or if the order granting sanction to prosecute is set aside on appeal.

3. No reasonable and probable cause

The third requirement is that the defendant, in so prosecuting, acted without reasonable and probable cause. If there are reasonable grounds for the defendant's instituting the proceedings, he would *not* be liable, even if his motive was improper. There must be an honest and reasonable belief in the guilt of the accused; *mere suspicion is not enough*.

ABRATH v. NORTH-EASTERN RLY. Co., (1886) 11 App. Cases 247. — M had recovered from the defendant railway large sums as compensation for personal injuries in respect of a railway collision. Subsequently, the railway got some information that the injuries of M were *not* caused by the collision, but were artificially caused by Dr. A (the plaintiff), the surgeon of M. The railway made inquiries and, with legal advice, prosecuted A for conspiracy, but he was acquitted. In an action brought by A for malicious prosecution against the railway, it was *held* that the defendants were *not liable*, as they did take reasonable care to inform themselves of the true facts, and they honestly believed in the case. It was the plaintiff's duty to show absence of reasonable cause and the defendants were, therefore, *not liable*.

The Calcutta High Court has reiterated that in a suit for malicious prosecution, the onus of establishing the absence of reasonable and probable cause in launching the criminal prosecution lies on the plaintiff. The only fact that the criminal proceeding (based on a complaint lodged by the defendant) ultimately resulted in the acquittal of the plaintiff does *not* allow the Court to draw a presumption of absence of reasonable and probable cause to launch the complaint. (*Sachindra Nath Choudhary v. Labangalata Sarkar and Others*, A.I.R. 1980 Cal. 121)

The same view was also expressed by the Gujarat High Court in a case where A agreed to sell his house to B, and the latter paid the earnest money. A had *not* disclosed that the house was burdened with mortgages, and on coming to know about these mortgages, B filed a criminal case against A, wherein A was ultimately discharged. On the question whether the prosecution of A was malicious, the Court *held* that in order to bring home the charge of malicious prosecution and to sustain a suit for damages, the plaintiff must establish that the prosecution was *not* commenced *bona fide*, but only with a view to harass the plaintiff. In the circumstances, it was *held* that A's suit was *not* maintainable. (*Bhogilal Saoghani v. Dr. Ranpura*, A.I.R. 1979 Guj. 200)

4. Malicious intent

The next requirement is that the prosecution was instituted with a malicious intention, that is, from an indirect and improper motive and *not* in furtherance of justice. The gist of the action of malicious prosecution is malice or improper motive. Malice is *not* to be inferred from the absence of reasonable cause; the two must unite to create liability. Malice, in this connection must be express malice, that is, malice in fact.

It may be noted that malicious prosecution is one of those few wrongs where improper or wrongful motive is essential to constitute liability. No action will lie for the institution of legal proceedings, however destitute of reasonable and probable cause, unless they are instituted maliciously.

There may be malice either in commencing a prosecution or in continuing one which was honestly begun. A prosecution, though at the outset *not* malicious, may nevertheless so become in any of the stages through which it has to pass, if the malicious prosecutor, having acquired positive knowledge of the innocence of the accused, goes on with the prosecution. So, a prosecution which is honestly begun may, due to the subsequent conduct of the prosecutor, become *malicious*.

5. Damage

The last requirement is the plaintiff has suffered damage as a result thereof. The plaintiff must prove that he has suffered in person, reputation or pocket, when the proceedings are those other than criminal, as for instance, bankruptcy proceedings.

Liability of a corporation for malicious prosecution

A corporation is liable for torts committed by its agent or servant to the same extent as a principal is liable for the torts his agent or an employer for the torts of his servant, provided that the tort is committed in the course of doing an act which is within the scope of the powers of the corporation. It may thus be liable for assault, false imprisonment, trespass, conversion, libel or negligence.

It was thought, at one time, that a corporation could *not* be held liable for wrongs involving

malice or fraud, on the ground that to support an action of such a wrong, it must be shown that the wrong-doer was actuated by a motive in his mind and that “a corporation has no mind.” But, it is now well-settled that a corporation acts through its officers and can become liable for wrongs even of malice and fraud. A corporation, therefore, may be sued for malicious prosecution or for deceit.

Malicious prosecution and false imprisonment distinguished There are *four* points of distinction between malicious prosecution and false imprisonment.

1. *Definitions*

Malicious prosecution is wrongfully setting the criminal law in motion; false imprisonment is wrongfully restraining the personal liberty of the plaintiff.

2. *Ministerial or judicial officer set in motion*

In false imprisonment, the personal liberty of the plaintiff is wrongfully restrained by a private individual, either personally or by setting a ministerial officer in motion, while in malicious prosecution, the arrest is secured under judicial sanction. The question whether a person is liable for false imprisonment or malicious prosecution often turns upon the question whether the defendant has set a ministerial or judicial officer in motion. The distinction was pointed out in *Austin v. Dowling*, (1870) L. R. 5 C. R 534, 540 thus:

“The distinction between false imprisonment and malicious prosecution is well-illustrated by the case where parties being before a magistrate, one makes a charge against another, whereupon the magistrate orders the person charged to be taken into custody and detained until the matter can be investigated. The party making the charge is *not* liable to an action for false imprisonment because he does *not* set a ministerial officer in motion, but a judicial officer. The opinion and the judgement of a judicial officer are interposed between the charge and the imprisonment.”

3. *As to malice*

Malice is an essential ingredient in an action for malicious prosecution, but *not* in that of false imprisonment; in an action for false imprisonment, it is *not necessary* for the plaintiff to prove that the defendant was actuated by malice.

4. *As to onus of proof*

In false imprisonment, the onus lies on the defendant to plead and prove affirmatively the existence of reasonable and probable cause as his justification, whereas in an action for malicious prosecution, the plaintiff must allege and prove its non-existence.

2. MALICIOUS CIVIL PROCEEDINGS

Though an action for damages for malicious criminal prosecution is competent in law, the law does *not* recognise an action for a malicious institution of a civil suit. An action will *not* lie for maliciously and without reasonable and probable cause, instituting an ordinary civil suit. But in respect of a false and vexatious claim, the Court can, under S. 35A of the Civil Procedure Code, award *compensatory costs*.

But there are certain civil proceedings in which a party’s reputation is at stake, and the law allows an action for damages where such civil proceedings are initiated maliciously. Thus, damage to reputation is presumed in the following *three cases*:

1. Where the plaintiff is sought to be adjudged a *bankrupt*, and proceedings for bankruptcy are taken against him and ultimately such proceedings are dismissed, the law allows an action for malicious bankruptcy proceedings.
2. Similarly, an action lies for instituting proceedings maliciously and without reasonable cause for declaring a person to be *lunatic*.
3. Again, the law allows an action for filing an application maliciously and without reasonable cause of *winding up or liquidation of an incorporated company*.

The Bombay High Court has *held* (in *G.G. Shivaie v. B.J. Raison*, A.I.R. 1981 Bom. 170) that in order to succeed in establishing malicious abuse of civil proceedings, the plaintiff must prove the following *three things*:

- (a) *Firstly*, malice must be proved.
- (b) *Secondly*, the plaintiff must prove that the defendant had acted without reasonable and probable cause and that the earlier proceedings had terminated in his favour.
- (c) *Lastly*, he must also prove that such civil proceedings interfered with his liberty or property or adversely affected his reputation.

The plaintiff's suit in the above case was dismissed, and the Court was heard to observe: "One seldom comes across an action (in torts) for malicious civil proceedings."

3. MALICIOUS ARREST

Definition

Malicious arrest is wilfully putting the law in motion to effect the arrest of another, under civil process, without reasonable and probable cause. It is not actionable, unless it involves interference with personal liberty. In order to succeed, the plaintiff must show:

- (i) that the original action out of which the injury arose was decided in his favour;
- (ii) that the arrest was procured maliciously and without reasonable and probable cause; *and*
- (iii) that the damages or injury sustained was something other than an injury that has been, or might have been, or might have been, compensated for by an award of the costs of the suit, that is, he has suffered from a collateral wrong.

If a person sets the process of a Court in motion and the wrong person is arrested, he is only responsible if he has obtained such process fraudulently and improperly. If he truly states the facts and the judge thereupon does an erroneous act, he is *not liable*.

4. MAINTENANCE AND CHAMPERTY

Maintenance is the officious intermeddling in a suit, by supporting it with money or otherwise, by a third person, that is, a person who is *not* a party to a suit, in which he himself has no legal interest, to enable the person to prosecute or defend it. Where a person agrees to maintain a suit in which he has no interest, the proceeding is known as *maintenance*; where he bargains for the share of the result to be ultimately decreed in a suit in consideration of assisting its maintenance, it is known as *champerty*. Both these arrangements are declared unlawful in England on account of the illegality of their object, as they tend to encourage litigation which is *not bona fide, but speculative*.

It may be noted that all cases of champerty are also cases of maintenance, but the converse is *not* necessarily so. As *Lord Abinger* once observed: "The law of maintenance is confined to cases where a man improperly, and for the purpose of stirring up litigation and strife, encourages others to bring actions or to take defence which they have no right to make." It should be noted that the person maintaining the suit acts through ill-will or spite. Malice is of the essence of the action. The law, it is said, presumes or implies malice in all cases of maintenance on proof of officious assistance. But this presumption may be rebutted by the defendant by showing:

1. That he had a common interest in the action with the party maintained, as for instance, master for a servant or *vice versa*, brothers, kinsmen, *etc.*, or
2. That he was impelled (i) by motives of charity, *bona fide* believing that the person maintained was poor and was harassed by a rich person (though the charity may be misguided and the action groundless), or (ii) by religious sympathy.

BRADLAUGH v. NEWDEGATE, (1883) 11 Q.B.D. 1. — Charles Bradlaugh was elected a member of Parliament and took his seat and voted on a motion without taking the prescribed oath. A penalty was provided by the statute for cases where persons without taking the oath participated in the proceedings. The defendant instigated and assisted another to file a suit against the plaintiff for recovery of the statutory penalty. The plaintiff filed an action for maintenance against the defendant. It was *held* that the action was maintainable.

INDIAN LAW. — The English Law of maintenance and champerty is *not* in force in India. In a Privy Council case, *Bhagwat Dayal Singh v. Devi Dayal Sahu*, their Lordships *held* that "an agreement champertous according to English law is *not necessarily void in India*; it must be

against public policy to render it void here”.

In India, a fair contract to share the result of a suit, if successful, in consideration of providing the means of carrying it on, is *not void as it is not contrary to public policy*. But, if it is found to be extortionate and unconscionable or if it is made, *not* with the *bona fide* object of assisting a claim, but for the purpose of gambling in litigation or of injuring or oppressing others by abetting and encouraging unrighteous suits, it is *void*.

18 TORTS OF INJURIOUS FALSEHOOD

Questions for this chapter are:

Write a short note on: Tort of deceit. April 2011.

Define “fraud”. 2 marks. November 2013.

What is deceit or fraud? Discuss in detail the essentials of the tort of deceit. November 2011, 2012.

Torts of injurious falsehood fall under the following *four* categories:

1. Fraud or deceit
2. Slander of title
3. Slander of goods (Trade libel)
4. Passing off.

1. FRAUD OR DECEIT

Fraud (or deceit) defined

Fraud has been defined as “a false representation of a fact made with the knowledge of its falsehood, or without belief in its truth, or a reckless statement, whether it be true or false, with intent to induce a person to act in reliance upon it, with the result that the person acts on it and suffers damage.”

The tort of deceit was first recognised in *Pasley v. Freeman* (1789 3 T.R. 51), where it was laid down that this tort has the following *four* elements:

- (i) There must be a false representation of fact.
- (ii) The representation must be made with the knowledge of its falsehood.
- (iii) It must be made with the intention that it should be acted on by the plaintiff, or by a class of persons which includes the plaintiff, in the matter which resulted in damage to him.
- (iv) It must be proved that the plaintiff had acted upon the false statement and sustained damage by so doing.

Requirements of fraud

In order to sustain an action for deceit, the plaintiff must prove the following *four* requirements of this tort:

1. False representation

A representation, in order to be fraudulent, must be a representation which is untrue in fact. There must be an active attempt to deceive by a statement which is false in fact and fraudulent in intent. Again, it must be representation of *fact*, and must *not* be a mere expression of *opinion*.

Ordinarily, mere non-disclosure of a fact does *not* amount to a fraud, but there are certain exceptional cases where non-disclosure will also amount to fraud. Thus, where there is a duty to disclose, active concealment will amount to fraud. This duty may arise in several ways: (i) a duty which a person owes to the world at large, such as *not* to leave a loaded gun in a public place; or (ii) a duty arising out of fiduciary relationship between the parties; or (iii) a duty arising out of the nature of the contract, as when it is *uberrimae fidei* (of utmost good faith).

In the leading case of *PASLEY v. FREEMAN*, referred to above, the plaintiff was dealing in

cochineal, and had a large stock on hand, which he was anxious to dispose of. The defendant approached the plaintiff saying that he knew F, who would purchase the cochineal. When the plaintiff inquired, "Is he a respectable and substantial person?" The defendant replied, "Certainly, he is", knowing full well that was actually insolvent. On the faith of this representation, the plaintiff delivered 16 bags of cochineal, worth about 3,000 pounds to F on credit. When the plaintiff learnt that he could *not* recover his money from F, as the latter was insolvent, he filed a suit against the defendant for making a false representation to him, whereby he had suffered the loss. The Court *held* that the defendant was liable to the plaintiff, to the extent the latter had suffered in consequence of the false statement of the former as to the credit and character of F. **2.**

Knowledge of its falsity

Secondly, the plaintiff must prove that the defendant *either* knew that the statement was false *or* made it without belief in its truth or was reckless, whether it was true or *not*. Consequently, if a man makes a false statement, honestly believing it to be true, he *cannot* be rendered liable in an action for deceit. In a leading case of *Derry v. Peek* (below), the House of Lords laid down that a statement made with honest belief in its truth will *not* make a person liable in an action for damages in deceit. This is also known as *the Rule in Derry v. Peek*.

DERRY v. PEEK (1889 14 A. C. 337). — The defendants were ' directors of a tramway company which had power, by a special Act, to run tramways and, with the consent of the Board of Trade, to use steam power for the trams. As the plans of the company had already been approved by the Board of Trade, the directors assumed that the consent of the Board to use steam power, which had to be obtained, would be given as a matter of course, and issued a Prospectus containing a statement that the company had the right to use steam power. The Board of Trade, however, subsequently refused their consent and the company was wound up. The plaintiff, a shareholder, sued the directors for damages for the loss caused by his taking shares on the faith of the false statement in the Prospectus. The Court *held* that though the statement in the Prospectus was in some respects careless, it was made with an honest belief in its truth. The defendants were, therefore, *not liable* in an action for deceit.

[It may be noted that, under the current provisions of the Companies Act, both in India and in England, the Directors of a company *would* be liable today in such a case.]

3. Intention that the plaintiff should act upon it

The *third* requirement is that the plaintiff must prove that the defendant made the statement with intent that the plaintiff should act upon it.

In one English case, the defendant had sold a gun to the plaintiff for the use of himself and his son, representing that the gun was made by a well-known maker, and was therefore, quite safe. When the son used the gun, it exploded in his hand. In a suit filed by the son against the defendant, the Court *held* that the defendant was *liable* to the son, *not* on the warranty (as there was no contract between the son and the defendant), but for deceit. (*Langridge v. Lery* (1837 2 M. W. 519))

It may be noted that the decision in the above case turns on the fact that the representation was made with a view that the plaintiff (that is, the son) should be one of the persons acting upon it. Therefore, if the injured person was a mere stranger who had found the gun lying idle in the house and fired it, and had been hurt thereby, the decision of the Court would *not* have been the same.

4. Damage to the plaintiff

Lastly, the plaintiff must prove that the plaintiff acted in reliance on the statement and suffered damage in consequence. No action will lie for a false statement unless the plaintiff, in fact, relies upon it. A mere attempt to deceive is *not* actionable. This is expressed in the epigram, "*Deceit which does not deceive is not fraud.*"

The gist of the action is *fraud as well as damage*. Fraud *without* damage or damage *without* fraud will *not* be a good ground for a successful suit; but where both concur, an action *will* lie.

WARD v. HOBBS, (1877) 3 Q. B. D. 150. — The defendant sent for sale to a public market, pigs which were to his knowledge infected with a contagious disease. They were exposed for the sale subject to a condition that no warranty would be given and that no compensation would be made in respect of any defects. The plaintiff bought the pigs and put them with other pigs which became infected. Some of the pigs bought as well as some of the other pigs died of the disease. The plaintiff sued to recover damages for the loss he had sustained. The Court *held* that the defendant was *not liable*, for he had *not* represented that the pigs were free from disease.

DENTON v. GREAT NORTHERN RLY., (1856) 5 E. & E. 860. — A train which had been discontinued was announced as still running in the current time-table of a railway company. A person relying on it missed an appointment and incurred loss. The Court *held* that the railway company was *liable* for the misrepresentation, however innocent.

GEORGE v. SKIVINGTON, (1869) L. R. Ex. 1 (*Injurious hair-wash case*). — A husband bought from the defendant a chemical compound professed to be fit for washing hair. He gave it to his wife, whose hair was literally washed away, and who was injured by the wash. It was *held* that the defendant was *liable*.

Exceptions to the rule in *Derry v. Peek*

The rule in *Derry v. Peek* (above) is subject to the following seven exceptions:

- (a) *Contractual duty*. - When there is a contractual relation between the plaintiff and the defendant, which involves a contractual duty to use care, the rule does *not* apply.
- (b) *Fiduciary relationship*. - Where there is a breach of a special duty, whether arising from the fiduciary relationship of the parties or the special circumstances of the case, the defendant will be liable.
- (c) *Warranty of authority*. - Every person who purports to act as an agent of another is deemed in law to have entered into an implied contract of warranty of authority with any person who contracts or otherwise deals with him on reliance of his authority.
- (d) *Estoppel*. - When a person has, by his statement, intentionally caused another person to believe a thing to be true and to act upon such belief, he will *not* be allowed to deny its truth.
- (e) Where there is *statutory duty* to give correct information.
- (f) Where a statement is made in relation to *property of a dangerous character*.
- (g) *Where the directors of a company issue a Prospectus*. (Thus, although *Derry v. Peek* was decided with reference to directors issuing a **Prospectus**, **due to subsequent changes in the law, the law laid down therein is no more applicable to directors of a company.**)

2. SLANDER OF TITLE

Slander of title may be defined as a false, malicious statement in writing, printing, or by word of mouth, injurious to any person's title to property, whether movable or immovable, and causing special damage to such a person.

To sustain an action for slander of title, the plaintiff must prove:

1. That the statement, whether oral or written, is false. It is for the plaintiff to prove it to be false, *not* for the defendant to prove it to be true.
2. That there was a publication of the false statement.
3. That the statement was made *mala fide* and was malicious, that is, with intent to injure the plaintiff, or with some indirect or dishonest motive.
4. That the words have the effect of defeating his title to property, that is, that the statement is calculated to disparage his property or business.
5. That special damage has resulted from the slander. The special damage must always be such as naturally or reasonably arises from the use of the words.

Slander of title and defamation distinguished

The following are the points of *similarity* and *difference* between an action for slander of title and an action for defamation:

1. In slander of title, the words are *not defamatory*; they do *not* disparage the plaintiff's

moral character, or his solvency, skill, business capacity, *etc.* They merely attack *something* or *his title* to a thing.

2. In both, the words are equally actionable, whether written or spoken.
3. Special damage must, in both cases, be proved.
4. In both, there is no presumption that the words are untrue; the onus lies on the plaintiff to prove them *untrue*.
5. In slander of title, malice is *not* presumed, and the plaintiff must give some *prima facie* evidence that the defendant acted maliciously, or at all events, without lawful occasion on reasonable cause.
6. A right of action for defamatory words lies with the person defamed, but his action survives to an executor, to the extent that any damage can be shown to the estate of the deceased.

3. SLANDER OF GOODS (Trade Libel)

Slander of goods consists of a false statement disparaging a man's goods, published maliciously and causing him special damage. This is also known as "trade libel".

To maintain an action for slander of goods, it is necessary to prove the following *five* points:

1. That the defendant disparaged the plaintiff's goods.
2. That such disparagement was false.
3. That there was publication of such disparagement. It may be in writing, printing, or by word of mouth.
4. That the disparagement was made maliciously, that is, in bad faith, out of a corrupt or wrong motive, or some motive other than a *bona fide* claim of right.
5. That special damage has resulted thereby.

WHITE v. MELLIN (1885) A. C. 154. - In this case, the defendant was charged with having made a statement that his food for infants was more nutritious than any preparation yet offered in the market. The Court *held* that his statement would *not support* a cause of action, *it was* merely a piece of puffery intended more to promote the sale of the defendant's food than to disparage the plaintiff's food.

JAYS LTD. v. GEOBI, (1933) 102 L. J. Ch. 130. — A was the manageress of Jay Ltd., a firm dealing in ladies' clothes. For many years, A was known to customers as Miss Jay. A, after leaving service of Jay Ltd., started a rival establishment in the name of Miss Jay. Jay Ltd. sued A for deceptive use of their trade name. The Court *held*, dismissing the suit, that a surname is *not* a man's legal property, and if a man is called by some name other than his real name, he may acquire his second name by repute. He *cannot* be restrained from using it honestly. In the given case, A had acquired the name "Miss Jay" by reputation and was entitled to trade under it so long as she acted honestly, even though the similarity of the name to that of the plaintiff might occasionally lead to the goods of the one being mistaken for those of the other.

4. PASSING-OFF

Definition

"Passing-off" refers to a false representation tending to deceive purchasers into a belief that the goods which the defendant is selling are really those of the plaintiff. It includes the infringement of the trade-mark, patent or copyright of another person.

Its essentials

In an action for passing-off, the plaintiff must establish that the goods manufactured or sold by him, of which the label and get-up were distinctive and well-known in the particular market, and that the label and get-up of the defendant on his goods of a similar character are a colourable imitation of the plaintiff's, and thus likely to mislead the public into a belief that the defendant's goods are those of the plaintiff.

Remedies for passing-off

The remedies in an action for passing-off are:

1. An injunction

2. Either (i) damages, or (ii) an account of profits, at the plaintiff's option. But neither damages nor accounts will be given for innocent user before actual notice of the plaintiff's right.

1. Trade-mark

A mark used for denoting the *goods are the manufacture or merchandise of a particular person* is called a *trade-mark*. It can be defined as a "mark used, or proposed to be used, upon or in connection for the purpose of indicating that they are the goods of the proprietor of such trade-mark, by virtue of manufacture, selection, certification, dealing with, or offering for sale." The term "mark" is defined as including any device, brand, label, ticket, name, signature, word, letter, numerical, or any combination thereof.

The use of a mark which is so similar as to lead (or be likely to lead) purchasers to buy marked therewith under the impression that they are the goods of the original manufacturer whose registered trade-mark they bear, is an infringement of that mark.

It is only when the use of the mark deceives (or is reasonably likely to deceive) the public, that it can be interfered with or prevented. It is *not enough* to show a mere possibility of deception. There must be a reasonable probability of purchasers being deceived. The *test* is the impression likely to be produced on casual and unwary customers. Actual physical resemblance of the two marks is *not necessary*. It is enough if one of the designs is an obvious imitation of the other. For the purpose of a civil remedy, the invasion exists even if the false trade-mark is used unwittingly or innocently.

In addition to the above, the plaintiff, if he claims damages, must either prove the damages he has sustained by reason of the infringement of the trade-mark on the part of the defendant or the profits which the defendant has made by his wrongful act. He can also prove loss of custom if he claims special damage.

On the other hand, if he brings in a suit for an injunction, he has to prove that the infringement of the trade-mark is likely to deceive, though it is *not necessary* to prove that somebody in fact has been deceived.

Defences

The chief defences to an action for infringement of a trade-mark are:

- (i) Denial of plaintiff's title to the trade-mark
- (ii) Concurrent right in defendant to use the mark
- (iii) Non-registration of the mark
- (iv) Denial of the infringement as a fact
- (v) Estoppel of the plaintiff
- (vi) Acquiescence on the part of the plaintiff.

In India, the Trade and Merchandise Marks Act, 1958, regulates the infringement of trade-marks. All the marks which are trade-marks can be registered under the Act. Unregistered trade-marks are *not* protected in "passing-off" actions.

Trade-mark and property-mark distinguished

A property-mark is a mark which denotes the ownership of goods. The distinction between a trade-mark and a property-mark is that the former denotes the manufacture or quality of the goods to which it is attached and the latter denotes their ownership; in other words, the former concerns the goods themselves, whilst the latter concerns the proprietor.

In order to succeed in an action for infringement of a trade-mark, the plaintiff must prove:

- (i) that the defendant has used a mark similar to the plaintiff's trade-mark;
- (ii) that such similar mark leads, or is likely to lead, purchasers to buy the goods marked therewith under the impression that they are the goods of the original manufacturer whose mark they bear; *and*
- (iii) that there is a reasonable probability of the purchaser being deceived.

2. Trade Name

A trade name may be either the name of the manufacturer of goods or some name by which

the manufactured goods have become generally known. The wrong consists in any other person selling goods of his own in such a way to lead the public to suppose that they are purchasing someone else's goods. The principle is that nobody has any right to represent his goods to be the goods of somebody else. But where a trade name is merely descriptive of the article, whether originally a descriptive name or *not*, and does *not* designate manufacture by any particular firm, it *cannot* any longer be exclusively retained by the original maker and may be adopted by any other trader.

PROBLEM. — The plaintiff had for some years made belting and sold it as “Camel Hair Belting”, a name which had come to mean in the trade, the plaintiff's belting and nothing else. The defendant began to sell belting made of the yarn of camel's hair, and stamped it “Camel Hair Belting” so as to be likely to mislead purchasers into the belief that it was the plaintiff's belting, endeavouring thus to pass off his goods as the plaintiff's. What is the remedy of the plaintiff?

Ans. - In this case the plaintiff is entitled to an injunction restraining the defendant from using the word ‘Camel Hair’ as a trade name. (*Reddaway v. Banham*, (1986) A. C. 199)

3. Patent-right

A patent-right is a privilege granted by the State to the first inventor of any new manufacture or invention, that he and his licensees have the sole right of making and selling such manufacture or invention. This branch of the law has been codified and the rights of a person who is responsible for a new invention are protected by statute both in English and in Indian Law.

A person who has registered a patent gets the exclusive right to make, use, or sell the patented invention for a period of *fourteen years*. Any person, who whether with or without the knowledge of the existence of the patent-right, infringes the same, may be restrained by an injunction, and if he knowingly infringes the patent, he will also be liable for damages.

4. Copyright

Copyright is the sole and exclusive liberty of printing, or otherwise multiplying copies of any book. This right exists the Copyright Act. A copyright exists in books, letters, dramatic works, musical works and works of art.

For an intellectual work to be capable of protection as a copyright, it is necessary that:

- (i) *It must be innocent.* There can be no copyright in any work of an irreligious, immoral, libellous or obscene character.
- (ii) *It must be of value.*
- (iii) *It must be original.* Taking a lenient view in the matter, courts have held that a very small degree of originality is sufficient to constitute a person an author.

The plaintiff must make out his title to the copyright and must prove that there has been an infringement of the copyright. A person who commits literary larceny may be proceeded against by a *civil action or criminal proceedings*.

19 WRONGS OF ABSOLUTE LIABILITY

Questions for this chapter are:

What is the rationale of strict liability? Explain with the help of case laws. November 2013, 2014, April 2015

Discuss the principle of strict liability. January 2018.

Write a short note on: strict liability. November 2014.

Discuss strict liability and absolute liability. November 2015.

What is the rationale of strict liability? Explain with reference to *Rylands v. Fletcher*. April 2014, 2011, June 2018.

State fully the principle of absolute liability with special reference to *Rylands v. Fletcher*, May 2012, January 2017

Write a short note on: *Rylands v. Fletcher*. April 2013.

Write a short note on: The scienter rule. January 2017.

What is meant by scienter rule? 2 marks. May 2012, 2017, April 2014, 2016, November 2014, June 2018.

Definition

Wrongs of *absolute liability* impose a kind of liability which is somewhat peculiar in that a person becomes liable *without there being any fault on his part*. That is why it is called *absolute or strict liability*. Here, the wrong arises from the breach of an absolute duty. An absolute duty may be defined as a duty which renders a man liable without any fault of his, irrespective of any consideration of intention or negligence on his part. It is absolute, meaning thereby, that it is *not necessary* for the injured party to prove any intention or negligence on the part of the injuring party, and no amount of care and caution expended by the latter to prevent the damage done to the former will *excuse* him.

The following six topics are discussed in this Chapter:

1. Escape of dangerous things
2. Escape of animals
3. Use of things which are naturally dangerous
4. Dangerous premises
5. Persons professing skill
6. Defences available to a defendant.

1. ESCAPE OF DANGEROUS THINGS

The owner or occupier of land may lawfully use it for any purpose for which it might, in the ordinary course of the employment of land, be used. For such *natural uses of land*, an owner will *not*, in the absence of negligence, be liable, though damage results to his neighbour. But if there is any *non-natural user*, such as the introduction on to the land of something which, in the natural condition of the land, is *not* upon it, he is liable if damage results to his neighbour.

The strict principle of law is: *Sic utere tuo ut alienum non laedas*: Everyone must so use his own as *not* to do damage to another. When this maxim is applied to landed property, it is necessary for the plaintiff to show, *not only* that he has sustained damage, *but that* the defendant has caused it by going beyond what is necessary in order to enable him to have the natural use of his own land.

Rylands v. Fletcher, (1868) L. R. 3 H. K. 330 (*The Reservoir Case*) fully established the principle that the person who, for his own purposes, brings on his land and collects and keeps there, anything likely to do mischief if it escapes, must keep it at his peril, and he is *prima facie* answerable for all the damage which is the natural consequence of its escape. This is the established law, whether the things so brought be beasts or water or filth or stench or electricity or a traction engine or a motor-car. It is immaterial whether the person *is or is not* aware of the danger at the time when he brings and uses them. This liability exists whether the land *is or is not* owned by the person responsible for the bringing upon it and use of the dangerous things.

RYLANDS v. FLETCHER

Facts of the case

X was working in a coal mine under a lease. On the neighbouring land, *Y* desired to erect a reservoir for storing water, and for this purpose, he employed a competent independent contractor whose workmen, while excavating the soil, discovered some disused shafts and passages communicating with old workings of a mine in the adjoining land. The shaft and passages had been filled with loose earth and rubbish. The contractor did *not* take the trouble to pack these shafts and passages with earth, so as to bear the pressure of water in the reservoir, when filled. Shortly after the construction of the reservoir, whilst it was partly filled with water, the vertical shafts gave way and burst downwards. Consequently, water flooded the old passages and also *X*'s mine, so that the mine could *not* be worked. *X* sued for damages. *No negligence on the part of Y*

was proved. The only question was whether Y would be liable for the negligence of the independent contractor who was admittedly a competent engineer. The court *held* that *the question of negligence was quite immaterial. Y, in bringing water into the reservoir, was bound to keep it there at his peril and was therefore liable.*

The Rule in *Rylands v. Fletcher* (also known as ‘The Wild Beast Theory’)

It is now well-established that a person who, for his own purposes, brings on his land and collects and keeps there, *anything* which is likely to do mischief if it escapes, must keep it at his peril and is *prima facie* answerable for all the damage which is the natural consequence of its escape. This is known as *the Rule in Rylands v. Fletcher*. In other words, if a person brings or accumulates on his land anything, which, if it should escape, may cause damage to his neighbours, he does so at his own risk. If it does escape and causes damage to any other person, he is responsible, *however careful he may have been and whatever precautions he may have taken to prevent the damage.*

Thus, the rule in *Rylands v. Fletcher* lays down that when a man acts at his peril, he is the insurer of the safety of the neighbours against any harm - accidental or otherwise. Here, the duty is *not* merely the general negative duty to refrain from active injury, but a positive duty to guard and protect one’s neighbours, lest they suffer harm by reason of dangerous things artificially brought on one’s land. *This duty is absolute because it is independent of any negligence on the part of the defendant or his servants.*

The strict liability under the rule in *Rylands v. Fletcher* is based on the following two conditions:

Firstly, there should be some non-natural use of land. This means that land should be brought under some special use, which increases the danger to others; in other words, it must *not* merely be ordinary use of the land or such a use as is proper for the general benefit of the community. Thus, bringing water into a cistern in a house is natural use, but *not* water stored in bulk or water for industrial purposes.

Secondly, there should be an escape from the land of something likely to do mischief if it escapes. The escape, for the purpose of applying the rule, means escape from a place of which the defendant has occupation or control to a place which is outside his occupation or control.

READ v. LYONS, (1947) A. C. 146. - The plaintiff, while performing her duties as inspectress of the Ministry of Supply, was injured by an explosion in the defendant’s ammunition factory. The plaintiff neither alleged nor proved negligence on the defendant’s part. She maintained that her claim would fall under the strict liability rule in *Rylands v Fletcher*. The House of Lords did *not* accept this argument and rejected the plea on the ground that the accident took place within the factory of the defendant, and that there was no escape from the land of the defendant of something likely to do mischief if it escaped.

The strict liability rule in *Rylands v. Fletcher* has, however, been extended by the Supreme Court to apply to accidents arising out of the use of motor vehicles on the road, in addition to no fault liability statutorily provided in the Motor Vehicles Act, without the necessity of establishing any negligence on the part of the driver of the motor vehicle causing the accident. (See *Kusuma Begum v. The New India Assurance Company Ltd.* and *Gujarat SRTC v. Ramanbhai Prabhatbhai*, (1987) 3 SCC 234.)

Problems

1. A tree, which did *not* impede the highway, fell down on a road, killing the driver and one of the occupants of a motor- bus belonging to a cinema company, which happened to be passing by. The personal representatives of the two men who were killed and the cinema company filed an action for damages against the owner of the tree. Will they succeed? Would it make any difference if the tree actually impeded the highway?

Ans.: The rule in *Rylands v. Fletcher* is confined to dangerous things *per se*. A tree, however, is *not* a dangerous thing by itself. The owner of the tree would, therefore, *not* be liable as the

tree did *not* impede the highway; nor was it known to him to be in dangerous condition. (*Noble v. Harrison*, (1926) 2 KB 332). However, if the tree actually impeded the highway, the owner would be liable.

2. The defendants carried on the business of bone manufacturers on the premises near the plaintiff's farm. For the purpose of their business, the defendants had on the premises large quantities of bones, and due to that, a large number of rats began to collect there. These rats made their way from the defendant's premises to the plaintiff's land and ate his corn, causing substantial loss to the plaintiff, who sued for damages. Will he succeed?

Ans.: The defendants would *not* be *liable*, as the rats were *not* accumulated on the land. The plaintiff would have no cause of action against the defendants. (*Steam v. Prentice Bros. Ltd.* (1919) 1 KB 399)

3. The defendant kept a number of bee hives on his land, much to the annoyance of all his neighbours. One day, he smoked the hives in order to remove honey, without warning the plaintiff (who was his neighbour) who was training his horse at that time. The bees, irritated by the smoking operations, swarmed on to the plaintiff's land. The plaintiff's horse, irritated by the bees, became violent, dragged the plaintiff and threw him on the ground, causing serious injuries. The plaintiff sued the defendant. Will he succeed?

Ans.: Any person who keeps bee hives does so at his own peril and is responsible for all consequent injuries done to his neighbours. The plaintiff will, therefore, succeed in this case.

4. A is the owner of a house adjacent to a factory, the machinery of which has, by its vibrations, weakened and caused cracks to appear in the ceiling of A's drawing room. One day, when A was taking B, a prospective purchaser, around the house, the ceiling falls and injures both A and B. Has B any remedy against (i) the owner of the factory and/or (ii) A?

Ans.: (i) The vibration of the machinery is a dangerous force, for the escape whereof the owner of the factory is liable to A on the principle of *Rylands v. Fletcher*. This right to sue is *not* limited to an adjoining occupier. A guest or an invitee upon the adjoining property also has a good cause of action. Therefore, B, who is A's invitee, may sue the owner of the factory for damages. (ii) A, the occupier of the house, has failed in his duty to warn B, his invitee, of the unusual danger of which A knew or ought to have known. Therefore, B may also sue A for damages.

INDIAN LAW. - It has been *held* in several cases that the rule of *Rylands v. Fletcher* applies in India with equal force. Thus, when the owner of land had penned back the water of a stream by erecting a *bund* upon his land, so as to inundate the land of his neighbour, without the latter's permission, it was *held* that the owner was liable.

AMERICAN LAW. - The American courts have *not* followed the strict liability rule in *Rylands v. Fletcher* to its fullest extent. The authority of this English case was questioned in *Brown v. Collins* (16 Am. Rep. 372) and subsequent cases. However, in the so-called 'blasting cases', an absolute liability has been uniformly imposed by American courts, without regard to any default, whenever there has been an actual invasion of property by rocks, debris and the like.

FIVE EXCEPTIONS TO THE RULE IN RYLANDS v. FLETCHER

The following are *five important exceptions* to the principle laid down in *Rylands v. Fletcher*:

1. Vis major or Act of God

The rule in *Rylands v. Fletcher* does *not* apply when the escape is due to *vis major* or the operation of some superior force beyond reasonable expectation or human control.

An act of God (*vis major*) is defined to be such a direct, violent, sudden and irresistible act of nature, as could *not*, by any amount of ability, have been foreseen, or if foreseen, could *not*, by any amount of human care and skill, have been resisted. Thus, those acts which are occasioned by elementary forces of nature, unconnected with the agency of man or other cause, will come under the category of acts of God, as for instance, storm, tempest, lightning, extraordinary fall of rain, extraordinary high tide, extraordinary severe frost, *etc.* In order that a phenomenon should fall within the operation of the rule of law with regard to an act of God, it is *not necessary* that it

should be unique or that it should happen for the first time; it is enough to show that it is extraordinary and such as could *not* reasonably be anticipated.

NICHOLAS v. MARSLAND, (1875) L.R. Ex. 225. — The defendant possessed certain artificial pools formed by damming a natural stream. The dams were properly constructed and adequate for all ordinary occasions. A violent storm, described by witnesses as the heaviest in human memory, broke them, and the rush of water destroyed certain barges downstream. It was *held* that the defendant was *not liable* as there was no negligence on the part of anyone and the accident was due directly to an act of God.

GREENOCK v. CALEDONIAN RLY., (1917) A. C. 556. — A municipal authority, in laying out a path, constructed a concrete padding-pond for children in the bed of a stream, thereby altering the course of the stream and obstructing the natural flow of water therefrom. Owing to a rainfall of extraordinary violence, the stream overflowed at the pond and a great volume of water, which would have been carried off by the stream in its natural course without mischief, poured down a public street and damaged the property of the railway company. It was *held* that the municipality was *liable* for the damage. They could have made sufficient allowance for such extraordinary rain, and therefore, the defence of *vis major* was *not available*.

PROBLEM. — The plaintiff owned paddy lands adjoining a stream, which served as the only outlet of the excess water collected in his paddy lands. The State, in pursuance of the “grow-more food” campaign, constructed a dam in the stream for storing water to be used for irrigation purposes. It was proved that the plaintiff had agreed to the construction of the dam. As a result of unusually heavy rainfall in a particular year, the whole of the excess water collected in the dam could *not* be easily let out through the sluices provided in the dam, and the paddy crop in the plaintiff’s land was kept submerged for a few days and the plaintiff was prevented from raising other cultivation during that year. The plaintiff sued the State for damages. The State pleaded *vis major* and *volenti non fit injuria*. How would this case be decided?

Ans. — The plaintiff will not succeed, as the defences of *vis major*, *volenti non fit injuria* and *common benefit* are available to the State. (The defence of common benefit is discussed below.)

2. Wrongful or malicious act of a stranger

The rule is also *not* applicable where the damage is due to the wrongful or malicious act of a stranger. Thus, in *Richards v. Lothian* (1913) A. C. 263, the occupier of an upper storey was *held not liable* for damage to those below, due to water escaping from a lavatory by the deliberate act of a third person. If, however, the act of the stranger is such that it ought to have been anticipated and guarded against, the defendant will be liable for failure to take reasonable care.

The efficacy of this exception has, however, been watered down by the observations of the Supreme Court in *M. C. Mehta v. Union of India*, below.

M. C. MEHTA v. UNION OF INDIA (1987 1 SCC 395). — This case arose out of the compensation applications filed against Shriram Foods and Fertilizers for the harm suffered by the victims on account of the leakage of *oleum gas* from one of their plants. Although the Supreme Court ordered that the matter may be investigated by the ordinary courts of the land, it did evolve new principles of tortious liability, *not even recognised by English Courts*.

The Supreme Court observed, in the above case, that any enterprise which is engaged in a hazardous or inherently dangerous industry owes a strict, absolute and non-delegable duty, and if any harm results, the unit has an absolute liability to pay compensation for the loss. The exceptions to the rule in *Rylands v. Fletcher* have no application in such a case, and the enterprise *cannot* escape liability by pleading that an act of a stranger (or sabotage) was the real cause of the damage. The Court further observed that the measure of compensation should be correlated to the magnitude and capacity of the enterprise, so that such compensation can have a deterrent effect.

3. Plaintiff’s own fault

The rule also does *not* apply where the escape is due to the plaintiff's own fault.

4. Common benefit

The rule does not apply where the escape is due to artificial works maintained with the plaintiff's consent and for the common benefit of the plaintiff and the defendant.

Thus in one case, the defendant, the landlord, maintained a rainwater box, both for his own benefit and that of the plaintiff, the tenant. Rats chewed away at the box and the consequent leakage damaged the plaintiff's goods. It was *held* that the defendant was *not liable*. (*Carstairs v. Taylor*, (1871), L. R. 6 Ex. 217)

5. Statutory authority

The last exception to the rule in *Rylands v. Fletcher* is where the defendant is *empowered* or *authorised* or *required* under the law or a statute to accumulate, keep or collect the dangerous thing, which escapes and causes mischief and injury to the plaintiff. Persons empowered by the statute to bring or keep upon their land, a dangerous substance are not liable, in the absence of negligence or an express provision in the statute to the contrary, for the damage caused by its escape.

The leading case on the topic is *Green v. Chelsea Water Works Co.*, (1894) 70 L. T. 547. The defendants were authorised by statute to store water for the purpose of supply to the city. Owing to some accidental cause, the water escaped and caused injury to the plaintiff. The defendants were sought to be made liable on the principle of *Rylands v. Fletcher*. But the Court *held* that where the accumulation of water by the defendants was *not* for their own purposes, and where they had been authorised by the statute to accumulate and keep it, they would *not* be responsible for any escape, unless it was traceable to the defendant's own negligence. In other words, the liability is *not* an absolute liability within the meaning of the rule in *Rylands v. Fletcher*.

Thus, in short, persons empowered by a statute to bring or keep upon their land a dangerous substance are *not liable* (in the absence of negligence or an express provision in the statute to the contrary) for damage caused by its escape.

Statutory authority is, however, of *two* kinds: (i) *absolute* and (ii) *discretionary*. *Absolute authority* confers absolute immunity for the consequences of acts which would otherwise amount to torts. *Discretionary authority* must, however, be exercised with due care and with due regard to the rights of others.

2. ESCAPE OF ANIMALS

The second kind of tort of absolute liability relates to escape of animals. Now, animals are of two kinds: (i) those that are of a dangerous character (animals *feroe naturae*) which a person must keep at peril, as for example, a lion, a bear, an ape or an elephant; and (ii) those *not* of a dangerous nature (animals *monsuetoe naturae*), as for instance, dogs, cats, horses, rams, bulls and other domestic animals.

The Scienter Rule

In the case of domestic animals (animals *monsuetoe naturae*), the plaintiff should prove *scienter* or knowledge of the dangerous propensity of the animal. Unless he proves that the defendant had such knowledge, he will *not* succeed. On the other hand, in an action for injury done by animals of a dangerous character (animals *feroe natuore*) the plaintiff need *not* plead or prove that the defendant had any such knowledge. In *May v. Burdett* (1846 9 Q. B. 101), the defendant was *held liable* for keeping a monkey which bit the plaintiff, on the ground that the monkey is an animal of a dangerous nature.

A person who keeps a savage animal is bound to keep it under control, so as to prevent it from indulging in its propensities and inflicting injuries. If the animal escapes and hurts any one, the owner becomes liable in an action for the damage, without any averment of negligence or default in the securing or taking care of it. The gist of the action is the keeping of the animal despite knowledge of its mischievous propensities.

In regard to animals which are *not* of a dangerous nature, the owner is liable for their trespass

and consequent damage, but *not* for other injuries, unless proof of *scienter* is given as to the propensity of the animal to do the act in question.

HUDSON v. ROBERTS, (1851) 6 Ex. 697. — The owner of a bull knew of its tendency to attack anything which was red in colour. He was, therefore, *held liable* to a person wearing red clothes whom the bull attacked in the street.

As regards trespass, there is a distinction between animals which, from their natural tendency to stray, require to be restrained and those which are *not* usually kept confined. Owners of dogs and cats are *not* responsible for their trespass. As regards other injuries, knowledge of the defendant that the animal was prone to injure mankind must be established, and for this, a single instance of the ferocity of such an animal is sufficient notice. Such knowledge may be either personally possessed by the defendant or may have been brought to his notice impliedly by the knowledge of someone whose business connected him with the animal. When the cause of action is an injury which has been inflicted by a dog on cattle and sheep, no evidence of *scienter* need be established and damages are recoverable by the owner of the injured animals.

If a person keeps an animal belonging to a class which is not dangerous and not likely to do mischief (as for instance, dogs, cats, horses or camels), he may safely keep such an animal - unless he knows that the particular animal kept by him is likely to cause mischief. Thus, since it is not usual for dogs or cats to attack human beings, the plaintiff who complains of injury from such an animal must establish that the defendant knew that the particular animal was prone to injure mankind. In such cases, even a single instance of ferocity of such an animal is sufficient knowledge.

If the owner of a dog has employed a servant to keep the dog, the knowledge of the servant is, in law, the knowledge of the master. (*Baldwin v. Caselle*, 1872, LR 7 Ex. 325)

PROBLEMS

1. A country pony was tethered in a stable adjoining the highway and, being insecurely fastened, it escaped. It was a quiet animal with no vicious propensities, but it injured a pedestrian. The pedestrian sued the owner for damages. Discuss the chance of the pedestrian's success.
Ans.: The vicious nature of the pony was *not* known to its owner. The pedestrian will *not* succeed.
2. The defendant parked his saloon motor-car in a street and left his dog inside. The dog had always been quite and docile. As the plaintiff was walking past the car, the dog, which had been barking and jumping about the car, smashed the glass panel, and a splinter entered the plaintiff's left eye which had to be removed. In an action for damages, will the plaintiff succeed against the defendant?
Ans.: In this case, the plaintiff *cannot* recover, as a car, with a dog inside it, is *not* in itself dangerous, and there was no negligence on the part of the defendant. (*Fardon v. High Court Revington*, (1932) 48 T. L. R. 215)
3. A was riding a bicycle on a highway on the footpath on which there were some fowls belonging to B. As A got abreast the fowls, a dog belonging to C frightened the fowls, one of which flew into the spokes of the cycle causing it to upset, whereby A suffered personal injury and the bicycle was damaged. A sues B to recover damages.
Ans.: Here, A is *not* entitled to damages for the following reasons: (i) *Firstly*, fowls are *not* by nature dangerous, so as to cast any special duty on their owner as regards the safety of others, (ii) *Secondly*, the fowls were frightened by a dog belonging to C, a stranger. This is no fault of B, the owner of the fowls, (iii) *Thirdly*, the owner of an animal is *not*, in the absence of negligence, liable for the *damage done by the animal straying from or into* a highway.
Thus, in *Health Garages v. Hodges*, (1961) 2 C. B. 370, it was *held* that a motor cyclist, who suffered personal injuries by reason of the defendant's sheep wandering on the highway could *not* recover damages. But, there is liability where a man is guilty of negligence in allowing an animal of dangerous propensities to be on the highway in circumstances under which it is likely to do

harm. (*Turner v. Coats* (1917) 1 K.B. 670)

4. A circus lion escapes and injures a small child. Can the circus management be made liable in damages?

Ans.: Yes. He who keeps a savage animal like a lion does so at his own peril. Such a person is bound to keep it in control and ensure that it does *not* inflict an injury on any person. The management of the circus will, therefore, be *liable* in damages to the child for the injuries caused to him.

3. USE OF THINGS WHICH ARE NATURALLY DANGEROUS

The third tort of absolute liability takes place when a person uses things which are, by their nature, dangerous, such as fire, fire-arms, gas, *etc.* Some of these dangerous goods, namely, fire, fire-arms, fireworks and explosive materials, poisonous drugs, gas and machinery, are briefly discussed below.

1. Fire

(a) 'Domestic' fire

A man is *not* liable for damage caused by domestic fire, that is, a fire which began in his house or in his land, provided it originated by accident and without negligence. But, if a fire is negligently lighted or kept by a person or his servant, he will be liable for any injury thereby occasioned to his neighbour.

(b) 'Non-domestic' fire

Every person who lights a fire for non-domestic purposes is clothed with a heavy responsibility to his neighbours as regards the lighting, safe-keeping and spreading of such fire. He must keep the fire in his land at his peril. Thus, where the legislature has sanctioned the use of locomotives, there is no liability for injury caused by sparks flowing from them. But, if there is no such sanction, a railway company will be liable for injury caused by sparks, even though there is no negligence.

2. Fire-arms

Loaded fire-arms are regarded as highly dangerous things, and persons dealing with them are answerable for the damage done by their explosion, even if they have taken apparently sufficient precaution. This liability is absolute, and in dealing with an instrument of this kind, the only caution that will be held adequate in point of law is to deprive it of its dangerous character altogether.

DIXON v. BELL, (1816) 5 M. & S. 198. — The defendant, having left a loaded gun with another man, sent a young girl to fetch it, with a message to the man in whose custody it was to remove the priming, which the latter, as he thought, did, but as it turned out, did *not* do effectively. The girl loitered on the errand, and thinking that the gun would *not* go off, pointed it in sport at the plaintiff's child and drew the trigger. The gun went off and the child was wounded. It was *held* that the defendant was *liable*, though he had used sufficient care; for it was incumbent on him who, by charging the gun, had it capable of doing mischief, to render it safe and harmless. The gun ought to have been so left as to be out of all reach of doing harm. (The intervening negligence of the other person was no defence.)

BURFITT v. A. & E. KILLE, (1939) 2 K.B. 743. — The defendants, proprietors of a toy and fancy goods shop, sold a "safely pistol" and fifty blank cartridges to A, a boy twelve years of age. In playing with the pistol, A fired it and injured his playmate, B, a boy of about ten years of age. The cause of the accident was that the pistol had become foul. It was *held* that the pistol and cartridges formed a dangerous combination in the hands of A, and the defendants, having chosen to sell the cartridges, could not be heard to say that they did *not* know that they might become dangerous in A's hands. Therefore, they were liable to B in damages.

3. Fireworks and explosive materials

Persons are bound to use the greatest care in the use of fireworks and other highly explosive material or materials otherwise dangerous or destructive. The law, having regard for human life

and safety, demands great care from owners and controllers of dangerous goods.

4. Poisonous drugs

Similarly, persons dealing with poisonous drugs are bound to exercise more than ordinary care, as the mischief which is likely to occur for want of such care is extremely dangerous to the public.

THOMAS v. WINCHESTER, 6 N.Y. 397. — The defendant, a compounding chemist, put extract of belladonna, a poison, into a jar labelled “Extract of dandelion”, which is a harmless drug, and sold it as extract of dandelion to a retail druggist. The latter, believing the substance to be what it purported to be, sold it upon the prescription of a physician, to the plaintiff. The plaintiff suffered serious injury in consequence. It was *held* that the defendant was *liable*. The defendant was a dealer in poisonous drugs. The death or great harm to some person was the natural and almost inevitable consequence of the sale of belladonna bearing a false label. The existence or non-existence of a contract between the wholesale chemist and the ultimate consumer would be immaterial in such cases.

GEORGE v. SKIVINGTON, (1969) L.R. 5 Ex. 1. — The defendant sold a bottle of hair-wash to the plaintiff’s husband. The plaintiff used the hair-wash, and owing to the existence of some injurious ingredients, the plaintiff was injured and she sued for damages. The Court *held* the defendant *liable* as there was negligence in the preparation of the hair-wash. As the goods sold were of a dangerous character, there was liability on the defendant, independent of any contract.

5. Gas

All persons dealing with gas are bound to exercise the greatest care, for they are using a material difficult to manage, and of a very dangerous character, for it is explosive and poisonous.

In *M.C.Mehta v. Union of India* (discussed above), the Supreme Court has observed that there is absolute liability in all cases where there is injury on account of escape of gas (oleum gas, in that case).

6. Machinery

Persons employing machinery are bound to ensure that the machines are reasonably safe. There are several Acts of the Legislature requiring persons using dangerous machinery to take proper precautions.

Liability of manufacturer

Ordinarily, a manufacturer of goods will be liable if there is gross negligence in their preparation.

GRANT v. AUSTRALIAN KNITTING MILLS, (1939) A. C. 85. — The plaintiff contracted dermatitis as the result of wearing a woollen garment which, when purchased from the retailers, was in a defective condition owing to the presence of excess sulphites which, it is found, had been negligently left in it in the process of manufacture. The presence of the deleterious chemical was a hidden and latent defect, and could *not* be detected by an examination that could reasonably be made. The garment was made by the manufacturers for the purpose of being worn exactly as it was worn in fact by the plaintiff. It was *held* that there was a duty to take care as between the manufactures and the plaintiff, for the breach of which the manufacturers were *liable*.

In another case (discussed in an earlier Chapter), the plaintiff suffered through drinking a bottle of ginger-beer, manufactured by the defendants, which a friend had bought from a retailer and given to her. The bottle contained the remains of a snail which, since the bottle was opaque were undiscoverable until most of the contents had been consumed. It was *held* that the defendants were liable; they owed a duty of care that snails did *not* enter their bottles during manufacture: *Donogue v. Stevenson*, (1932) A. C. 562.

4. DANGEROUS PREMISES

This topic is discussed under the following two heads:

- I. Liabilities of occupiers of premises at common law
- II. Liability under the Occupier’s Liability Act, 1957.

I. Liabilities of occupiers of premises at common law

1. Persons entering as of right

A person who enters the premises as of right, as for instance, a bailiff or a government official to collect taxes, or a bill collector, or a policeman, is entitled to have the premises made safe for him and *not* merely to be warned of the danger.

Thus, X buys a dilapidated house, and employs Y to repair it. Y negligently omits to repair the kitchen floor which is rotten. X then lets the house to Z. During Z's tenancy, while Z, Mrs. Z and a visitor are having dinner, the kitchen floor collapses, and all three are injured. Have they or any of them any remedy against X or Y or both?

Here apart from contract, the owner, as opposed to the occupier of the premises, owes no duty to make them safe for using them, and such a duty assumed by contract is owing only to the other party to the contract. No other person can show both *damnum* and *injuria* in himself: *Cavalier v. Pope*, (1906) A. C. 428. Therefore, Z, Mrs. Z and the visitor, or any of them have no remedy against either X or Y.

(NOTE. The decision in this case has, however, been reversed by the Occupiers' Liability Act, 1957, discussed later in the Chapter.)

2. An invitee

An invitee is a person who enters upon the invitation of the occupier, for the purpose of some business or matter which concerns the occupier. The term does *not* include an employee. There must be a common interest between the *invitor* and the *invitee*. A typical example of an invitee is a customer who enters a shop, for the permission granted to him to enter is *not* a mere matter of grace, but is in the material interest of the shop-keeper.

(a) Person entering by express invitation

Where persons enter the premises on an express invitation, the duty of the occupier is that he should warn such a person of the dangers known to him, or which, with reasonable diligence, he could have discovered.

(b) Persons entering by implied invitation

When a person enters on an implied invitation from the occupier of the building, the extent of the duty is to warn him of all latent defects or dangers of which the occupier actually knows, or of which he would have known, had he acted reasonably and prudently.

CATES v. MONGINI BROS. (1917) 19 Bom. L. R. 778. — A lady was having tea in a restaurant under an electric fan which the waiter stopped at her request. The fan thereupon fell on her and caused her injuries. The cause of the fall was a latent defect in the metal of the suspension rod. The lady sues the owner of the restaurant.

Here, the lady is an invitee. She is entitled to expect use of reasonable care on her own part for her own safety. The invitor, the owner of the restaurant, should, on his part, take reasonable care to prevent damage being caused to her from unusual danger, which he knows or ought to know. But, the invitor is *not* liable for injuries from *dangers which are not discoverable by the exercise of reasonable care*. In this case, the cause of the fall was a latent defect in the metal of the suspension rod, which could *not* have been discovered by reasonable care or skill on the part of the owner of the restaurant, the invitor. Under these circumstances, the lady will *not* succeed.

WIGALL v. WESTMINSTER HOSPITAL, (1936) 52 T.L.R. 301. — The plaintiff, the mother of a patient, occupying for payment, a private ward in hospital, desired to consult one of its honorary surgeons, with whom she had a personal contact for the treatment of her son. He invited her to a small room, the floor of which was highly polished. She trod on a mat, which slid along the floor beneath her foot, so that she fell and suffered personal injury. She sued the hospital authorities. The Court *held* that the plaintiff could recover damages.

INDERMAUR v. DAMES, (1866) L.R. 1 C.P. 274. — The defendant was a sugar refiner, and in his place of business, a patentee had fitted a patent glass-fitter to be paid for by the defendant on demonstration that the use of the fitter effected certain savings. The plaintiff, a journeyman

glass-fitter, entered the premises of the defendant to test the gas regulator and collect the money. On the defendant's premises, there was a deep shaft used for lifting sugar bags, and the shaft was left unfenced and open. Without want of reasonable care on his part, the plaintiff fell into the open shaft and was injured. It was *held* that the defendant was *liable* on the ground that there was a trap on the premises.

STOWELL v. RAILWAY EXECUTIVE, (1949) 2 K.B. 519. — The plaintiff, who was looking out for members of his family who were due to arrive by train, slipped on a patch of oil on a railway platform. The Court *held* that he was an invitee, and that the railway company was liable, as the patch of oil was an “unusual danger” on the platform.

BLACKMAN v. RAILWAY EXECUTIVE, (1951) A. C. 737. — In this case, when the defendant railway company's foreman noticed a patch of oil on the station premises, he ordered sawdust to be spread on it, and shouted a warning to the passengers. The plaintiff, who did *not* hear the foreman, slipped on the oil before the sawdust could be put on it. The Court *held* that the plaintiff could *not* recover, as the defendants had taken reasonable care.

PROBLEMS. - 1. The plaintiff, who was shopping in the defendant's shop, slipped on a piece of a vegetable matter, fell down and was injured. She sued the shop-keeper. Will she succeed?

Ans.— She will succeed, because she is an invitee.

2. X, intending to travel by a train, went to the railway station of B & Co. The night was very foggy and the lamps on the platform did *not* show through the fog. While walking along the platform, X fell on the rails and was injured. Can X recover damages from B & Co.?

Ans.- Yes, X can recover damages.

3. Trespasser

A trespasser is a person who enters into another's property without any right or permission. The general rule is *that there is no duty of care towards such a person*. He who enters wrongfully does so at his own risk in all respects. The occupier has no duty to take reasonable care for the trespasser's protection, or even to protect him from concealed danger. He is liable only where the injury is due to some wilful act involving something more than the absence of reasonable care. There must be some act done with deliberate intention of doing harm to the trespasser. Thus, an occupier must *not* endanger the safety of the trespasser by concealed dangers in the nature of a trap or something likely to punish him in a cruel manner.

In short, a trespasser can expect no care or warning from the occupier with regard to a dangerous state of the premises. But, the occupier must *not* intentionally create dangers for them, as by setting traps for them. And if he knows of their presence, he is under a duty *not* to harm them by his own negligence.

PROBLEM. - A and B trespassed on C's land. Thereupon, C's ferocious and powerful dog set upon them and mauled A. B, in attempting to climb over the compound wall, was lacerated by pieces of broken glass fixed therein. Both A and B sued C for their respective injuries. Advise C.

Ans.- The occupier's duty to a trespasser is two-fold: (i) *not* to cause deliberate injury to him; and (ii) *not* to injure him by some act done with reckless disregard for his safety and with knowledge of his presence. Thus, it is *not lawful* to defend one's land by means of dangerous traps. It is lawful, however, to protect it from trespass by reasonably necessary means, as by means of pieces of broken glass upon the top of a wall or by a dog accustomed to bite people. A and B are trespassers, and the source of danger created on C's land is nothing more than a reasonable means of protecting it from trespass. Therefore, C is *not liable* in damages to A and B for their injuries.

Law as to juvenile trespassers (children)

In cases of trespass, there can be no difference in the case of children and adults, because if there is no duty to take care, that *cannot* vary according to the age of the trespasser: *Robert Addie v. Dumbreck*, (1929) A. C. 358 (376).

But in the case of children, -

- (i) a licence may be more easily inferred than in the case of adults, from the occupier's conduct in failing to take reasonably effective steps to prevent the entry of the former; and
- (ii) the defences of contributory negligence or consent may be harder to establish against a child than against an adult.

If children are trespassers, the only duty of the landowner is *not* to injure them intentionally or to put dangerous traps for them. He is under no liability if, in trespassing, they injure themselves on objects legitimately on his land. To make a landowner liable for injury to children on his land, it must be proved that he expressly or impliedly invited them to his land, and either did an act which caused damage with knowledge that it might injure them, or knowingly permitted the existence on his land of a hidden danger or trap. If the owner of any premises on which dangerous and alluring things are placed, gives leave to boys of a mischievous and intermeddling age, or to children of such tender years as to be quite unable to take care of themselves, to enter upon the premises, he will be responsible for any injury the boys or children may sustain.

GLASGOW CORPORATION v. TAYLOR, (1922) 1 A. C. 44. — The plaintiff brought an action against the defendants, the Corporation of Glasgow, for damages for the death of his son who died as the result of eating the berries of a poisonous shrub growing in their botanic gardens which were open to the public. The gardens were much frequented by children and were accessible by a gate which could be easily opened by young children. The plaintiff's son with some other children, entered the garden and ate some of the berries, which presented a tempting appearance to children. The defendants knew that the berries were a deadly poison but took no precaution to warn children of the danger of picking the berries or to prevent them from doing so. It was *held* that the defendants were *liable*.

MOURTON v. POULTER, (1930) 2 K.B. 185. — A piece of land adjoining a highway was unfenced and used as a playground by children without any licence from the owner. The defendant was engaged by the owner to fell a large elm tree. On the day on which the tree was expected to fall, there were many children on the land and they were driven away more than once. When the last root was cut and at the moment when the tree was expected to fall, no further warning was given, and the plaintiff, a boy of ten years, was injured. In an action by the plaintiff, it was *held* that the defendant owed a duty, even to a trespasser, *not* to do any act which would alter the condition of the land and might injure them without giving him warning, and therefore, he was *liable*.

BIRD v. HOLBROOK, (1828) 4 Bing. 628. — The defendant had placed a spring-gun in his garden to protect it from thieves and trespassers. The plaintiff, a boy, trespassed into the garden to recapture a fowl which had strayed there. While so trespassing, he was injured by the discharge of the gun. The Court *held* that the defendant was *liable*.

4. Licensee

A licensee is a person who enters on premises under a licence from the occupier, either express or implied. In the case of licensees and guests, the standard of care required is:

1. To caution them against any known insecurity or hidden danger which is *not* of a readily discoverable character, and of which, he was aware, but the other party was ignorant. In other words, the occupier must *not* lead them into a trap.
2. *Not* to alter the character of the place (i) by placing on it dangerous obstructions; or (ii) by affecting the condition of the property, whereby the danger is increased without notice.

FAIRMAN v. PERPETUAL INVESTMENT BUILDING SOCIETY (1923) A.C. 74. — The defendants owned a block of flats, which they let to various tenants, the defendants keeping possession and control of the common staircase giving access to the flats. The stairs were made of cement reinforced by iron bars, embedded in the cement and running along the whole length. Owing to the wearing away of the cement, in some cases, irregular depressions were scooped out behind the iron bars. The plaintiff stayed with her sister in a flat of which the sister's

husband was the tenant. Whilst descending the stairs, her heel was caught in a depression so formed and she fell and was injured. In an action for damages against the defendants, it was *held* that the defendants were *not liable*, as the duty owed by the defendants to the plaintiff was *not* to expose her to a concealed danger or trap, but the depression which caused the plaintiff to fall was obvious and could have been seen by her if she looked properly.

This case has established the rule that the occupier is *not* bound to make the premises safe for use by a licensee; licensees must be content to take them as they are. Nevertheless, there is an obligation to warn them of any concealed danger known to the occupier.

COOKE v. MIDLAND GREAT WESTERN RLY. CO., (1909) A. C. 229. — The defendant railway company had tacitly allowed children to enter upon the railway premises and to amuse themselves by moving a turntable. It was *held* that the company was liable for injuries suffered by the children, and that the duty in such cases was *not* merely to give notice of the danger but of taking due care to avoid it.

ASHDOWN v. SAMUEL WILLIAMS & SONS LTD. (1957) 1 Q. B. 409. — The defendants, who were occupiers of railway sidings, had posted notices that all persons going across the tracks would be doing so at their own risk. A was knocked down by a truck shunted negligently by the defendants. The court *held* that A could *not* recover. Although A was a licensee, the notices were sufficient to absolve the defendants from liability for negligence.

ELLIS v. FULHAM BOROUGH COUNCIL (1938) 1 K.B. 212. — The defendant Council maintained a paddling pool in a public park for children. Loads of sand were put at the side of the pool to give the appearance of a sea-side. Some of the land had silted or been pushed under the water. The son of a rate-payor, while paddling, stepped upon a piece of glass buried in the sand and cut his toe. The pool was raked every morning and the accident happened almost immediately after the pool had been raked by an official of the defendant. It was *held* that the boy was in the position of a licensee, and the defendants were *liable*, as they knew that there was a possible danger to children paddling in the pool through articles in the pool and took measures to remove such articles but that such measures were inadequate.

PROBLEMS. - 1. D gave permission to Y to cross his yard, which was traversed by several routes. In a part of the yard was a hole which D usually covered. One night, D uncovered it, and Y who was unprepared for the hole being uncovered, took the same route as usual and sustained damage as a result of falling into the hole. Can Y successfully sue D for damages?

Ans. - Vis a licensee. The occupier is bound to warn the licensee against any concealed danger actually known to the occupier. D, the occupier, had failed to do so. Therefore, Y can successfully sue D for damages: *Blyth v. Topham*, (1607) Cro. Jac. 158.

2. The plaintiff bought a ticket for admission to a stand of a racecourse, entitling him to remain there throughout the races. In breach of this agreement, the occupiers of the race-course ordered him to leave the premises while the races were going on, and on his refusal to leave, they ordered and procured his forcible expulsion by their servant, the defendant. Discuss the rights of the parties.

Ans.- These are the facts in *Wood v. Leadbitter*, (1845) 13 M. & W. 838, in which it was *held* that no action would lie. Although the licence has been revoked improperly and in breach of contract, its revocation was nonetheless effectual. The plaintiff was a trespasser and could *not* successfully sue the defendant for assault.

3. The plaintiff, a policeman on patrol duty, seeing one of the sliding doors of the defendant's warehouse open at midnight, went in to see that everything was right, and was injured by falling into unfenced sawpit. The plaintiff claims damages from the defendants. Discuss.

Ans.- In *Great General Rly. Co. v. Bates*, (1921) 2 K.B. 578, on similar facts, it was argued that the plaintiff was a licensee, since the door was open and he went on duty as a policeman to see whether everything was all right. But the Court *held* that the plaintiff was *not* a licensee, but a

trespasser to whom the defendants owed no duty. Therefore, the plaintiff will *not* succeed.

5. Passer-by

In regard to persons lawfully passing by the premises, the duty of the owner of the premises extends to guarding against what may happen just beyond the premises, on the road, or other place where they may lawfully be. It is incumbent upon the owner to show that he used reasonable care and diligence which he was bound to use.

MORRISON v. THE MAYOR (1917) 2 K.B. 561. — A municipality planted some trees on the roadside and provided spiked iron guards for protection thereof. The guards were visible at night with normal street lighting. However, on account of blackout restrictions, the street lights were dimmed and as a result, a pedestrian dashed against the guards and injured himself. Is the Municipality liable to the pedestrian for the injuries sustained by him?

It was *held* in this case that the Municipality would be *liable* to the pedestrian for the injuries sustained by him, on the ground that it was bound to take measures to remove the danger which resulted from the altered conditions due to the absence of sufficient lights.

II. Liability under the Occupier's Liability Act, 1957

The liability of an occupier of dangerous premises has, to some extent, been modified by the Occupier's Liability Act, 1957. The Act reduces the categories of visitors to *two*: lawful visitors and trespassers. An occupier of premises owes the same duty, "the I common duty of care", to all his lawful visitors (whether licensees or invitees), except in so far as he is free to and does extend, restrict, modify or exclude his duty to any visitor or visitors, by agreement or otherwise. The common duty of care is defined as the duty to take such care as in all the circumstances of the case is reasonable to see that the visitors will be reasonably safe in using the premises for the purpose for which he is permitted or invited to be there.

This common duty of care does *not*, however, impose on the occupier any obligation to a visitor in respect of risks voluntarily undertaken by the visitor. The Act thus affirms the principle of "*Volenti non fit injuria*".

The Act, however, does *not* affect the liability of occupiers in relation to a trespasser. So far as children are concerned, the Occupiers' Liability Act provides that in assessing the common duty of care, an occupier must be prepared for children to be less careful than adults. Many dangers which would be open and obvious to an adult may be secret traps for a child.

PROBLEM — The defendants owned and operated a narrow gauge railway which passed through a tunnel. For many years, local residents had habitually used the railway as a pathway providing a short-cut to a village, and the practice had been acquiesced in by the defendants. While walking through the tunnel, the plaintiff was struck by a train and injured, and he claimed damages. The defendants contended that the plaintiff was a licensee on the track and relied on the maxim *volenti non fit injuria*. Decide the case.

Ans. - As the plaintiff is *not* a child, even under the Occupiers' Liability Act, the doctrine of *volenti non fit injuria* is applicable. Therefore, the defendants are *not liable*. However, a contrary view was taken by the court in *Bengal-Nagpur Railway Co. v. Taraprasad Mati*, (1927) 48 CLJ 45), where the court observed that if people are in the habit of crossing the railway line at a place which is *not* a level crossing, the railway company must take reasonable precautions in the use of the spot, even though there is no right of way there.

Railway crossing

Railway companies are bound by statutes to shut the gates of a level crossing while a train is approaching. If they omit to do so, they invite persons to cross the railway line and thus put them off their guard and are liable for injuries that follow. The plaintiff must allege and prove, *not merely* that the railway company was negligent, *but that* its negligence caused or materially contributed to the injury.

DAYASHANKAR v. B B & C I Rly., (AIR 1913 All 740). — A, who was travelling in his car at a speed of seven miles an hour, finding the gates of a railway level crossing open, tried to cross

the rails and while doing so, a railway engine collided against his car and damaged it. A sued the railway company for damages. The court *held* that the gates of the railway level crossing being left open, there was an invitation to all persons to cross the line, and therefore, the railway company was liable to pay damages.

Invitation to alight

An invitation to alight on the stopping of a train, without any warning of danger to a passenger who is in such a position that he cannot alight without danger, such danger *not* being visible or apparent, amounts to negligence on the part of the railway company. Again, when a train stops, and a person thinks that it has arrived at the platform of his station and that he should therefore alight, does so, but is injured as the train has overshot the platform, the railway company will be liable.

5. PERSONS PROFESSING SKILL

Where persons hold themselves out to be persons of skill, they are bound to conduct themselves in a skillful manner. The maxim, *Spondes peritiamartis* ('If your position implies skill, you must use it') applies to all such persons. Such persons include the following:

1. Directors of companies
 2. Inn-keepers
 3. Solicitors
 4. Bankers
 5. Carriers
 6. Doctors
 7. Manufacturers.
1. Directors

Directors of companies are persons holding themselves out as capable of directing complicated affairs and inviting persons to trust their money to the company which they direct. They are, therefore, bound to show more than ordinary care towards the shareholders of the company. They must act with such amount of diligence as prudent men of business are accustomed to act with.

2. Inn-keepers

An inn-keeper is a keeper of a common inn for the lodging of travellers and passengers, their horses and attendants in return for a reasonable compensation. However, a person who keeps a private boarding and lodging house is *not* an inn-keeper.

In an old English case (*Cayle's case*, 1584 Coke Rep. IV 32), it was *held*: that an inn-keeper is liable for the safety of the goods which are brought into the inn. It is no excuse for the inn-keeper to contend that he gave the key of the room to the guest and that the door of the room had been left open; that if an inn-keeper, at the request of his guest, sends his horse to pasture, and the horse is stolen, the inn-keeper is *not liable* for the loss.

An inn-keeper is bound to provide lodging for all persons at a reasonable price if he has available accommodation. He must also guard the goods of his guests with proper diligence. However, he is *not liable* if a friend or a servant of the guest steals or carries away goods of the guest.

The liability of an inn-keeper as regards to the personal safety of his guest is less onerous, as he does *not* insure the personal safety of his guest.

BREWSTER V. DRENNAN, (1945 2 All E. R. 705). - The plaintiff was a guest at a small hotel owned by the defendant. The door of her room was *not* fitted with a lock, and when she mentioned this to the defendant, she was assured that it would be quite safe for her to leave her belongings in the room. Whilst the plaintiff had gone out, her valuable fur-cap, which she had left in her room, was stolen. In a suit filed by the plaintiff, it was *held* that the loss of the fur-cap was *not* due to the plaintiff's failure to take the ordinary amount of care which a prudent person would

take, and the plaintiff was, therefore, entitled to recover damages for her loss.

ORCHARD v. BUST & CO., 1898 2 Q. B. 284. - The plaintiff went into the dining room of a hotel in Liverpool, owned by the defendants, and put his overcoat in a place where coats were ordinarily kept in that room. On finishing his meal, he discovered that his coat was missing. In a suit filed by him against the defendants, it was *held* that there was no sufficient evidence to establish the relationship of an inn-keeper and guest between the parties, so as to make the defendants liable for the loss of the coat, without proof of negligence on their part.

CARPENTER v. HAYMARKET HOTEL LTD. (1931) 1 K. B. 364. — A man and his wife engaged a room in the defendant's hotel. The wife put her diamond ring (which she was wearing) in their suit-case, which was latched, but *not* locked. When they went for dinner, the husband locked the room and took the key with him. After dinner, they came back to the room. After a while, they went out for a dance, locking the room once again, leaving the key at the hotel desk. When they returned late in the night, the porter gave them the key and they went to the room. In the morning, it was discovered that the ring was missing from the suit-case. There was a notice in the room that all the valuable articles should be deposited at the office. In the suit by the wife, it was *held* that she had taken reasonable care of the ring, and the fact that she had *not* deposited the ring in the office in compliance with the notice did *not* imply that she had retained protection in her own hands. The defendants were, therefore, *liable*.

3. Solicitors

A solicitor is a person of skill and knowledge and great care is expected of him in matters entrusted of him; therefore, ordinary neglect is a ground of liability in his case. Thus, he is liable for the loss of his client's case due to his ignorance or non-observance of the rules of practice of the Court, as when he allows his client's claim to be barred by limitation.

4. Bankers

Bankers are expected to be acquainted with the signatures of their customers and are bound to exhibit skill in detecting forgeries. They will, therefore, be liable for negligence in paying forged cheques of their customers. But, if such a forgery is the result of the neglect of the customer himself, and the Bank pays the money *bona fide*, the Bank will *not* be liable for such loss to the customer.

5. Carriers

Carriers of goods

A carrier of goods is called a *common carrier*, when he undertakes to carry goods of all persons for a suitable hire. On payment of such hire, he is bound to carry all goods entrusted to him for carriage with utmost care from the time of receiving them until delivery. And if he is a carrier by water, he must provide sea-worthy vessels manned by proper officers and crew.

The liability of a common carrier is that of an insurer of goods, that is, he is answerable for all the loss or damage to the goods, even though *not* due to any negligence on his part. But he is saved from liability if the loss or damage has been caused by an act of God, King's enemies or by any defect inherent in the goods carried. This exception is, however, subject to any contract to the contrary.

Carriers of passengers

Carriers of passengers, either by land or water, are bound to provide road-worthy vehicles or sea-worthy vessels equipped with careful and proper staff. Such carriers are bound to carry all persons who offer to pay, and *cannot* refuse except for want of accommodation. Their liability extends only to convey them safely as far as human care and foresight can go. This liability can be negated by a special contract to the contrary.

In one case, an elephant belonging to the plaintiff, while being carried by the Railway Company's servants, under a contract between the plaintiff and the defendant company, fell out of the railway wagon without any apparent cause, and was killed. The plaintiff claimed damages from the defendant company for the loss of the animal. It was shown that the animal had fallen

out through sheer accident. The company had done nothing wrong or negligent, and was therefore, *held not liable*.

6. Doctors

Every person who enters a learned profession undertakes to bring to its exercise such care and skill as is becoming for one belonging to that profession. A physician or a surgeon does *not* undertake that he will perform a cure, but he undertakes to employ a fair, reasonable and competent degree of skill. If, therefore, he fails to display this degree of skill, he would be *liable*.

In one case, it has been observed that if a doctor makes a negligent diagnosis, and thereby causes injury to his patient, he can be made liable in an action for negligence. However, a mistaken diagnosis is *not necessarily* a negligent diagnosis; nor would it, by itself, imply absence of reasonable skill and care on the part of the doctor. (*Dr. J.N. Shrivastava v. Rambiharilal*, A.I.R. 1982 M.P. 132)

The Kerala High Court has awarded damages of Rs. 1,60,000/- against a surgeon for performing an operation on a 26-year old girl, who ultimately died, under crude and primitive conditions, and without even administering local anaesthesia. (*Joseph v. Dr. George Moonjely*, A.I.R. 1994 Ker. 289.)

The Rajasthan High Court has *held* that, in a case against a doctor for damages, if the plaintiff shows that the doctor was in fact negligent, but fails to prove that any loss or injury was caused to him by such negligence, he *cannot* be awarded any damages. (*Sidhraj Dhadda v. State of Rajasthan*, A.I.R. 1994 Raj. 68)

7. Manufacturers

A manufacturer of an article of food, medicine or the like sold by him to a distributor, in circumstances which prevent the distributor or the ultimate purchaser or consumer from discovering by inspection any defect, is under a legal duty to the ultimate purchaser or consumer to take reasonable care that the article is free from any defects likely to cause injury to health.

(See *Donoghue v. Stevenson (The snail-in-the-bottle case)* discussed in an earlier Chapter.)

6. DEFENCES AVAILABLE TO A DEFENDANT

Where the defendant is *prima facie* liable in cases of absolute liability, it is open to him to plead any of the following defences, namely:

1. Plaintiff's contributory negligence

The defendant may plead contributory negligence on the part of the plaintiff. In a case involving injury by an animal, he may plead and prove that the plaintiff irritated the animal which caused the damage, and thus invited the trouble upon himself.

2. Plaintiff, a trespasser

Or again, the defendant may prove that the plaintiff was a trespasser to whom the defendant owed no duty. (This defence is, however, subject to what has been stated earlier under the heading, "Trespassers".)

3. Plaintiff undertook risk

Similarly, the plea of *volenti non fit injuria*, that is, the plaintiff, knowing the risk, undertook the job, may be put forward. For instance, a person who undertakes to be the keeper of a savage dog, if injured by the animal, *cannot* sue the master. So also, there is no duty to licensees beyond merely warning them; if thereafter, they choose to run the risk, there is no liability.

4. Act of a third party

Again, if the harm to the plaintiff was due to the wrongful act of a third person, as in the case of a stranger letting an animal loose or inciting it to do mischief, the defendant would *not* be liable. In principle, since the mere act of keeping a dangerous animal is *not* a tort, an owner who has taken reasonable care to keep the animal safe should *not* be responsible merely because a stranger has provided it with an opportunity of mischief, as by unchaining it. The owner's servants or those lawfully on his premises are, however, *not* strangers for the purposes of this rule.

5. Act of God

Further, it appears that where the escape of an animal is brought about by an act of God, no action will lie in respect of damage done by the animal. This is based on the analogy of the rule in *Rylands v. Fletcher*, although this was doubted by *Bramwell, J.*, in *Nicholas v. Marsland* (L. R. 10 Ex. 260), where he said *obiter*. “If a man kept a tiger and lightning broke its chain and got it loose and did mischief, I am by no means sure that the man would *not* be liable.” It is to be noted, however, that there is no direct authority on the point.

20 TORTS AFFECTING CONTRACTUAL AND BUSINESS RELATIONS

There are two torts affecting contractual and business relations:

1. Procuring a breach of contract
2. Conspiracy.

1. PROCURING A BREACH OF CONTRACT

It is an actionable wrong to induce a person to commit a breach of a contract which he has entered into with another person; thus, it is a violation of a legal right to interfere with contractual relations recognised by law when there is no sufficient cause for the interference.

Ingredients

In an action for this tort, the plaintiff must prove:

- (i) that there was a valid and subsisting contract between himself and a third party; and
- (ii) that the defendant procured a breach thereof knowingly and unjustifiably.

Since damage is readily presumed, proof of special damage is *not necessary* to enable the plaintiff to succeed.

The Bombay High Court has observed that for succeeding in a suit for damages in such cases, it is imperative for the plaintiff to prove that the defendant acted in such a manner that the plaintiff was thereby prevented from performing his contract. (*G.G. Shivale v. B.J. Raisoni*, A.I.R. 1981 Bom. 170)

LUMLEY v. GYE, (1853) 2 E. & R. 216. - In this case, it was *held* that a manager of a theatre was entitled to recover damages in an action of tort for the act of the manager of another theatre, in inducing an artist to break her contract to act at the plaintiff's theatre for three months. This rule is *not* confined to contracts of personal service only, but is applicable to contracts to *all* kinds.

QUINN v. LE ATHEM. — (1901) AC 495. — A, without just cause or excuse, induced B's workmen to discontinue their work in breach of their contract with B. A did this, prompted by a good motive to do good to both, B and B's workmen. It was *held* that, nonetheless, A was *liable*, inasmuch as the procurement of a breach of contract without just cause is a tort, and therefore, actionable.

It must also be noted in this connection that procuring a breach of contract is actionable; but no action lies for procuring another to refuse to enter into a contract with the plaintiff, even if it be done maliciously, provided that wrongful means are *not* used. Such an action amounts to *damnum sine injuria*, though it may interfere with the plaintiff's trade or business. Moreover, though inducing a breach of contract is an actionable tort, no action will lie for inducing a breach of a contract which is null and void, as for example, a wagering contract: *Joe Lee v. Lord Dalmeny*, (1927) 1 Ch. 300

ALLEN v. FLOOD, (1898) A. C. 1. — The plaintiffs were engaged by G. I. Co. to work on a ship from day to day. The defendant Allen, an official of the trade union of iron workers, who were also engaged to work on the same ship, informed G. I. Co. that the Company should dismiss the plaintiffs, who were non-union men; if *not*, the men of his union would cease to work. The Company discharged the plaintiffs, but such discharge did *not* amount to a breach of contract,

inasmuch as the plaintiffs were engaged from day to day. Therefore, the question was whether the defendants were liable for maliciously injuring the plaintiffs by inducing their employers to do something which it was lawful for employees to do (namely, to refuse to enter into contract with plaintiffs). It was *held* that no action lay. Merely to induce another to refrain from entering into a contract is *not* in itself an actionable wrong, though the motive may be malicious.

2. CONSPIRACY

Conspiracy, which is both a tort and a crime, can be defined as follows: When two or more persons, without lawful justification, combine for the purpose of wilfully causing damage to the plaintiff and actual damage results therefrom, they commit the tort of conspiracy.

The following are the *four* ingredients of the tort of conspiracy:

- (i) There must be a combination of two or more persons.
- (ii) It must be without lawful justification.
- (iii) It must be for the purpose of wilfully causing damage to the plaintiff.
- (iv) Actual damage must result from such combination.

The history of the law of conspiracy begins with the decision of the House of Lords in *Mogul Steamship Co. v. McGregor, Gow and Co.*, (1892) A. C. 25. The defendants in this case were firms of ship-owners trading between China and Europe. With a view to obtaining for themselves a monopoly of the tea trade, they formed themselves into an association, and offered a rebate of five percent to all merchants and shippers in China who shipped their tea exclusively in vessels belonging to members of the association. The plaintiffs, who were competitors, suffered loss by reason of price-cutting and the other operations of the association, and therefore, sued the defendants.

The Court *held* that the plaintiffs could *not* succeed, since the acts were *not unlawful in themselves*, and were done by and for the defendants in their trade competition. The defendant had done nothing which would have been unlawful if done by a single trader in his own sole interest, and their action did *not* become unlawful by reason of being undertaken in concert with several persons, for a common interest. They were *not liable* because, firstly, they combined only to advance their trade interest, and secondly, they did *not* adopt any illegal means like fraud or molestation.

(See also, *Allen v. Flood*, above.)

QUINN v. LEATHEM, (1901), A. C. 495. — The plaintiff was a butcher employing non-union men. The defendants, who were officials of the union, demanded the dismissal of the men, and on the plaintiff's refusal, they forced one of his best customers to stop taking supplies from him by threats to withdraw union men from the customer. The Court *held* that the defendants were *liable* to the plaintiff for the damage incurred.

SORRELL v. SMITH, (1925) A. C. 700. — The defendants, a union of newspaper-owners, threatened to cut off the supply of papers to A, a wholesaler, if he continued to supply to the plaintiff, a retailer, who had transferred his custom from B to A at the instigation of his own association of retail agents in pursuance of their policy. The Court *held* that it was a case of conflicting trade interests of two associations, and the plaintiff had no cause of action. The defendants acted solely to protect their trade and *not* from spite or a desire to injure the plaintiff.

In *Crofter Hand Woven Harris Tweed Co. Ltd v. Veitch* (1942 A. C. 435), the House of Lords answered the question whether an act, which was otherwise lawful, could become a tort of conspiracy only because it is engaged by a combination of persons. The facts of the case are:

The production of Harris Tweed is an industry of the Isle of Lewis. Originally, the yarn of the cloth was hand-spun from wool by the crofter of Lewis, and was wholly produced in the Isle. By 1930, hand-spinning of wool had become commercially impracticable, and henceforth many of the weavers in Lewis imported yarn from the mainland. Five mill-owners in Lewis, nevertheless, spun yarn woven by the crofters. These mill-owners alleged that cloth woven in Lewis from the mainland yarn could be sold much more cheaply than cloth made from yarn spun in Lewis. It

was, therefore, in their interest to get a minimum price fixed for the cloth. Of the work-people in their mills, 90 percent were members of the Transport and General Workers Union, of which the Lewis dockers were also members. The union, with the object of getting workers in the mills to be members of the union and of increasing their wages, approached the mill-owners, who replied that they could *not* raise wages because of the competition of the crofters who wove yarn imported from the mainland. The union officials then put an embargo on the import of yarn, by ordering the Lewis dockers *not* to handle such yarn. They obeyed (without breaking any contract) and thus injured the trade of seven small producers of tweed, who used imported yarn and who sued the union officials for conspiracy.

The House of Lords *held* that they were *not liable* because the real purpose of their embargo was to benefit members of the union. The actual decision was based upon the *ratio decidendi* of *Sorrell v. Smith* (discussed above).

Sorrell v. Smith, (see above) had laid down *two* principles:

- (1) A combination of two or more persons wilfully to injure a man in his trade is unlawful, and, if it results in damage to him, is actionable.
- (2) If the real purpose of the combination is *not* to injure another, but to forward or defend the trade of those who enter into it, then no wrong is committed and no action will lie, although damage to another ensues, provided that the purpose is *not* effected by unlawful means, such as violence or threat or fraud.

In *Crofter Hand Woven Harris Tweed v. Veitch* (above), Lord Simon L.C. observed that “the above two propositions are *not* exhaustive. It is possible to imagine a combination, the purposes of which does *not* fall within either of these two classes, as for example, a combination to demonstrate the power of those combining to dictate policy or to prove themselves masters in a given situation. Unless the real and predominant purpose is to advance the defendants’ lawful interests in a matter where the defendants honestly believe that those interests would directly suffer if the action taken against the plaintiff was *not* taken, a combination wilfully to damage a man in his trade is unlawful.” **PROBLEMS**

Plaintiff betrothed his son to X. Sometime after the betrothal, X’s father got her married to the defendant. Thereupon, the plaintiff and his son sued the defendant and his two sisters to recover damages, alleging that they had conspired together to procure the breach of the contract of marriage. Will the plaintiff and his son succeed?

Ans.: No, the plaintiff and his son will *not* succeed if it is shown that the defendant did *not* know of the betrothal before the marriage and if the alleged conspiracy is *not* proved. (See *Khimji Vasani v. Narsi Dhanji*, (1914) 17 B. L. R. 225.)

2. The plaintiffs, who were the owners of a ballroom, decided to exclude coloured persons from their ballroom. The Musicians’ Union thereupon gave a notice to the plaintiffs that the members of the Union would *not* be allowed to perform in the ballroom. The Union had many coloured members in whose interest it was that the colour bar should be lawfully opposed. The plaintiffs applied to the Court for an injunction to restrain the defendants from persuading their members *not* to perform at the ballroom, as such an action would amount to conspiracy. Will Court issue such an injunction?

Ans.: No, the injunction would be refused, because the purpose of the defendants is lawful, namely, to protect the interests of its members. There is, therefore, no actionable conspiracy committed by the defendants. (*Scala Ballroom Ltd V. Radcliffe*, 3 All. E.R. 220)

3. The plaintiff was planning to perform as an actor at a theatre. The defendants maliciously conspired to prevent him from acquiring fame in their performance, and in furtherance of the conspiracy, hired persons who came to the plaintiff’s performance and hissed and hooted and groaned and yelled at him, so as to compel him to desist from the performance, thereby causing the plaintiff to lose his engagement. Can the plaintiff successfully sue the defendants?

Ans.: Yes, the plaintiff has a good cause of action against the defendants as it is a case of actionable conspiracy. *Gregory v. Duke of Brunswick*, (1844) 6 M. & G. 205)

21 TORTS FOUNDED ON CONTRACT

There are certain torts which arise out of the breach of a contract, which may be in the nature of *either* an express promise or an implied promise. Such torts give rise to an action *ex-contractu*. *The main difference between a tort arising out of a contract and a tort independent of a contract is that in the former case, privity between the parties is absolutely necessary to support an action; in the latter case, no privity is necessary, as it is the breach of a right in rem.*

In English law, the difference between the two has been mostly historical. But, at the same time, it must also be noted that even in the case of a tort arising out of a contract, there must be a tort independent of a contract. For example, if a physician agrees with X to treat X's child, and if he is negligent in performing his duty, he commits a tort arising out of a contract against X; but the child will have a right of action against the physician though there is no privity of contract between him and the child. This is a case of a tort independent of a contract between him and the child.

A tort may arise out of contract in two ways:

(a) By the defendant's negligence

When a person who is under a contractual duty to do a particular act does that act negligently, thereby causing damage to the other party to the contract, the aggrieved party may sue him in tort.

(b) By the defendant's fraud

Similarly, when a party to a contract commits fraud in performing his duty under the contract and injures the other party, the latter may sue him in tort.

In both the above cases, the injured party may sue the other party *either in tort or in contract*.

The class of injuries which lie on the border-line between contract and tort may be divided into the following two categories:

1. Alternative form of remedy for the same cause of action

Where the same state of facts shows, *not only* a breach of contract, *but also* a breach of a common law duty, a party to the contract may sue, at his election, on the contract or in tort. Thus, for negligence or unskillfulness, a carrier or a solicitor or a surgeon may be liable in tort or in contract. But, a stranger to the contract can only sue in tort.

2. Concurrent causes of action

Here, *three* types of cases arise, namely:

(a) Cases where it is doubtful whether a contract has come into existence, and the act is a breach of such a contract, if any, and is, in any event, a tort.

DENTON v. G. N. RLY. CO., (1856) 5 E. & B. 860. — In this case, an intending passenger was *held* to have a remedy for damage sustained by acting on an erroneous announcement in the current time-table of the Railway Company, on the ground of its being a false representation.

(b) Cases where A can sue B for a tort, through the same facts may give him a cause of action against C in contract.

AUSTIN v. W. RLY. CO., (1876) L. R. 2 Q. B. 442. — The plaintiff, a young child just above the age upto which children are entitled to travel free, was being carried by his mother who took a ticket only for herself. When the plaintiff's mother took her ticket, no question was asked as to the plaintiff's age, and there was no intention on the part of the mother to defraud the defendants. It was *held* that the railway company was *liable* either (a) on an entire contract to carry the mother and the child which operated in favour of each, or (b) independently of contract because the child was accepted as a passenger, and this cast a duty on the company to carry him safely. Such a passenger is, in the absence of fraud, in the position of using the company's property by invitation.

FOULKES v. METROPOLITAN DISTRICT RLY. CO. (1880) 5 C.R.D. 157. — The plaintiff

purchased a return-ticket at the station belonging to the S. W. Rly., and on his return journey to that station, he was carried in a train belonging to another company, M. D. Rly. Co., (the defendants) who had running powers on S. W. Rly. Co., under an agreement for division of profits with the later. While alighting, he was injured, as the carriage was unsuitable to the height of the platform at the station. It was *held* that the defendant company was *liable*, even though the plaintiff's contract was with S. W. Rly. Co. alone, solely on the ground that the defendant company actually received the plaintiff as a passenger, and thereby undertook the duty of *not* exposing him to unreasonable peril in any matter incidental to the journey.

(c) Cases where *A* can sue *B* for a tort, though the misfeasance of *B* may be a breach of a contract made by him with a third person, *C*.

MALFOOT v. NOXAL LTD., (1935) 51 T. L. R. 551. The plaintiff, the owner of the motor-cycle to which the defendants had fitted a side-car was driving the combination along a road. The sidecar became detached from the motor-cycle, and the plaintiff and his wife, who were sitting in the side-car, sustained injuries. The Court *held* that the defendants were *liable* to the plaintiff in contract and in tort, and to the wife in *tort only*.

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APPENDIX

SUMMARY of THE LAW OF TORTS

INTRODUCTION

A “tort” (French, for “wrong”) is a civil wrong, independent of contract, for which the appropriate remedy is an action for damages.

Salmond defines a tort as a civil wrong for which the remedy is a common law action for unliquidated damages, and which is not exclusively the breach of a contract or the breach of a trust or other merely equitable obligation.

Accordingly to *Winfield*, tortious liability arises from the breach of a duty fixed by the law; this duty is towards persons generally and its breach is redressable by an action for unliquidated damages.

The Supreme Court has quoted with approval the above definitions of “tort” by *Salmond* and *Winfield*.

According to one view (advocated by *Salmond* and *Sir Fredrick Pollock*), the law of torts consists of *specific rules of prohibiting certain harmful acts*. This theory is also known as “the pigeon-hole theory”.

The other view (supported by *Sir Winfield*) is that all injuries to another person are torts, unless there is some justification recognised by the law.

Wrongs which are *not* torts

There are four classes of wrongs which are *not* torts, viz. -

- (1) Wrongs which are exclusively criminal
- (2) Civil wrongs which are exclusively breaches of contract.
- (3) Breaches of trust or other equitable obligations.
- (4) Wrongs which are quasi-contractual.

Characteristics of a tort

The followings are the *five* characteristics of a tort;

- (a) It is a civil wrong.
- (b) It involves the infringement of a right *in rem*, i.e. a right against the whole and *not* a right *in personam*, i.e. against a particular person or *q*
- (c) The right which is infringed is fixed by the law, independent 1 parties.
- (d) In England, the remedy for violation of such a right is a “common law action”.
- (e) The remedy for the violation of the right is compensation in money, i.e. damages.

Tort and crime distinguished

Tort	Crime
1. It is the infringement of a private right.	1. It is the invasion of a public right.
2. The wrong-doer must compensate the injured party.	2. The offender is punished by the State.
3. The suit is filed by the injured party.	3. Action is taken in the name of the State.

Tort and Breach of contract distinguished

Tort	Breach of contract
1. It is a violation of a right <i>in rem</i> .	1. It is a violation of a right <i>in personam</i> .
2. The duty is imposed by the law.	2. The duty is fixed by the parties to the contract.
3. A tort is inflicted against the will of the party.	3. The obligation is founded on the consent of the parties.
4. There is no privity between the parties.	4. There is privity of contract between the parties.
5. (a) The suit is for unliquidated damages. (b) Liability may also arise for damages arising from circumstances unknown to the defendant. (c) Exemplary damages can be awarded.	5. (a) The suit is for liquidated damages. (b) If special circumstances are unknown to the defendant, he is <i>not</i> liable. (c) Exemplary damages are normally <i>not</i> awarded.
6. For the purpose of limitation, time runs from the date on which the damage is suffered.	6. For purposes of limitation, time runs from the date of the breach.
7. Motive of the defendant is often (though <i>not</i> always) relevant.	7. Motive of the defendant is generally immaterial.

FELONIOUS TORTS

When an act amounts to both a tort and a crime (felony), it is called a *felonious tort*. In England, prior to 1967, the doctrine of merger of tort and felony was applied, so, a suit under the law of torts could *not* be filed, unless the person was first prosecuted in a criminal court. In 1967, however, this rule was abolished in England.

In India the rule of merger of tort and felony had never been accepted. So, a person can always be sued for a tort, although the act also amounts to a crime, without first instituting criminal proceedings against him.

CONSTITUENT ELEMENTS OF A TORT

The following are the *three main ingredients of a tort*

1. There must be a wrongful act, *i.e.* a violation of a legal right, by the defendant.
2. Such wrongful act must give rise to a legal remedy.
3. There must be legal damage (*injuria*) to the plaintiff.

When there is no legal damage to the plaintiff, it is a case of *damnum sine injuria*, *i.e.* damage without infringement of a legal right.

On the other hand, *injuria sine damnum* (*i.e.* a legal injury without actual damage) will give rise to a claim for damages.

Two kinds of torts

Torts may be:

- (a) Actionable *per se*, *i.e.*, without proof of actual damage, *e.g.* trespass, libel, *etc.*

(b) Actionable only on proof of actual damage, *e.g.* slander.

Ubi jus ibi remedium

This maxim lays down that whenever there is a legal right, there is also a legal remedy. In other words, there is no legal wrong without a remedy.

Ex turpi causa non oritur actio

This maxim means that if the damage is, in any manner, tainted with illegality, no suit can be filed. An action does *not* arise from an immoral cause.

Malice in fact

A lawful act does *not* become unlawful because it is done with a bad motive or with express malice (malice in fact). Likewise, a good motive is no justification for an act which is otherwise illegal.

There are, however, certain torts in which malice is an essential element, *e.g.* defamation, malicious prosecution, *etc.*

Malice in law

The term “malice in law” refers to implied malice. It connotes a wrongful act done intentionally, without just cause or excuse.

Motive

Motive is generally irrelevant in the law of torts. An act which is lawful *cannot* become unlawful merely because it is done with an evil motive, and *vice versa*.

Motive is, however, Relevant in the case of some torts like malicious prosecution, defamation, *etc.*

Intention

When legal harm is caused, it is *not* open to defendant to plead that he did not intend to cause the damage. Every person is *presumed to intend* the natural and ordinary consequences of his act.

Malfeasance, misfeasance and non-feasance

“*Malfeasance*” refers to the commission of an unlawful act.

“*Misfeasance*” implies the improper performance of a lawful act.

“*Non-feasance*” is a failure or omission to perform an obligatory act.

PERSONS WHO CANNOT SUE AND BE SUED

Persons who *cannot sue*

The following are *seven* categories of persons who either *cannot* sue for a tort or who can sue subject to certain limitations:

1. An alien enemy
2. Formerly, felons and convicts
3. Bankrupts
4. Formerly, husband and wife
5. A corporation, which *cannot* sue for personal wrongs
6. A child in the womb
7. Foreign states.

Persons who *cannot be sued*

There are *nine* classes of persons who *cannot* be sued in tort, subject to certain exceptions, namely, —

1. The Crown in the exercise of its sovereign powers.
2. Foreign sovereigns
3. Ambassadors
4. Public officials for acts done in their official capacity
5. Infants, when malice, knowledge, intention, *etc.* is essential
6. Lunatics and drunkards
7. Corporations for *ultra vires* acts
8. Trade unions

9. Formerly, married women in England.

FOREIGN TORTS

If a tort is committed with respect to *immovable property* outside England, no suit can be filed in England, even if the defendant is a British subject.

But if the tort is committed with respect to *movable property* outside England or against the person of the plaintiff, a suit can be filed in England,-

If the act was *not* justifiable by the law of the place where it was committed; *and* act would have been actionable if committed in England.

DEFENCES IN THE LAW OF TORTS

Fifteen defences are available when a suit is filed under the law of torts. *Sir Frederick Pollock* calls them *the rules of immunity which limit the rules of liability*.

1. Acts of State

An act of State is a legal injury inflicted on an alien by a servant of the Crown, which is either previously authorised or is subsequently ratified by the Crown, and being done under State policy, such wrong is *not* cognizable by a court of law.

2. Judicial acts

No suit can be filed against a Judge for any act done or words spoken in his judicial capacity. This is to enable Judges to exercise their functions with independence and without fear of consequences.

3. Quasi-judicial acts

Various bodies like universities, colleges, clubs, *etc.* often exercise quasi-judicial authority with respect to their internal management. Such bodies will *not* be liable if they observe (i) the rules of natural justice, and (ii) their own statutory or conventional rules.

4. Executive acts

Executive acts, *i.e.* obedience to valid orders of a public authority are also protected. But, if a court's officer *maliciously* arrests a person or attaches his property, he will be liable.

5. Parental or quasi-parental authority

Parents as well as persons who take the place of parents, *e.g.* a school teacher, will *not* be liable for inflicting corporal punishment on the child, so long as such punishment is moderate and reasonable in the circumstances.

6. Authorities of necessity

An authority of necessity is also a good defence. Thus, a master of a ship on the high seas can exercise disciplinary powers *not only* on his crew, *but also* on the passengers, to preserve the discipline and safety of the ship.

7. Necessity

A person's property (or even his liberty) may sometimes be put into jeopardy for public good. Thus, a private house may have to be pulled down to stop a fire, or goods may have to be cast overboard to save a ship from drowning. In such cases, the welfare of the community is more important than the welfare of an individual. *Salus populi est supreme lex*: The welfare of the people is the supreme law.

8. Statutory authority

It is also a good defence to show that the legislature has authorised the act in question. If that is so, the person who is injured by the act can except the one provided by the statute itself.

9. Leave and licence (*Volenti non fit injuria*)

An act is *not* actionable as a tort at the instance of any person who has expressly or impliedly consented to it. If the plaintiff has freely and voluntarily taken a risk, he cannot later complain about it.

10. Inevitable accident

An inevitable accident, *i.e.* one which could *not* possibly be prevented by the exercise of ordinary care, caution and skill, is a good defence to an action in tort.

11. Mistake of fact

If motive is an essential ingredient of a tort, mistake of fact is a good defence.

12. Exercise of common right

The exercise of ordinary rights for a lawful purpose in a lawful manner is *not* a tort, even if it causes damage to another person.

13. Private defence

An act done in private defence of oneself, or of one's spouse, child, parent, master, servant, etc. is *not* actionable. However, the force employed in such defence should *not* be out of proportion.

14. Plaintiff, a wrong-doer

A person is *not* disabled from recovering damages for an injury caused to him by reason of he himself being a wrong-doer, unless some unlawful act or conduct on his part is connected to the harm suffered by him, as part of the same transaction.

15. Acts causing slight harm

Acts causing slight harm are *not* to be taken notice of. *De minimis non curat lex*. However, this is no defence when there is an injury to a legal right.

DISCHARGE OF TORTS

No remedy will lie for a tort, i.e. a tort is discharged, in the following seven cases:

1. Death of either party

A personal right of action dies with that person. *Actio personalis moritur cum persona*. However, there are important exceptions to this rule, under both English and Indian laws.

2. Waiver

If a person has more than one legal remedy for the same wrong, and he chooses one of them and abandons the other or others, he *cannot* afterwards pursue the remedy waived by him. Such waiver may be express or implied.

3. Accord and satisfaction

When there is a mutual agreement between the parties to pay a specified amount as compensation, and such payment is made, it operates as a bar to the right of action.

The term “accord” signifies the mutual agreement to pay some money or do something else as compensation for the wrong, and “satisfaction” refers to the payment of the agreed amount or the doing of the agreed thing.

4. Release

It is also open to the injured party to release the wrong-doer, i.e. to surrender the right of action against the wrong-doer. However, a mere covenant *not* to sue one of two tort-feasors does *not* operate as a release of the other.

5. Acquiescence

When the injured person, with full knowledge of his right to sue the wrong-doer, neglects to do so for a considerable length of time, he may be said to have given his acquiescence, which would take away his right to sue.

6. Judgment recovered

When a suit for tort is filed and a judgment is pronounced, the original right of action is merged therein, and a second suit for the same tort will be barred, applying the doctrine of *res judicata*.

The *four exceptions* to the above rule are as follows:

- (a) Cases where two or more distinct rights are violated.
- (b) Cases where a fresh cause of action arises every time the tort is committed, e.g. trespass.
- (c) Cases where a fresh cause of action arises as often as fresh damage accrues, as for instance, in the case of nuisance.
- (d) Cases where the injury is of a continuing nature.

7. Limitation

A suit for a tort will be barred, if it is *not* filed within the period prescribed by the Limitation Act, *i.e.* if it is time-barred.

VICARIOUS LIABILITY

Vicarious liability arises where one person becomes liable for a tort committed by another person, as for instance, the liability of a master for the tort of his servant. This liability can arise in several ways.

By Ratification

Qui facit per alium facit per se. He who does an act through another, does it himself. When an act is done without another person's authority, but the latter ratifies it, *i.e.* assents to and approves such act subsequently, the person ratifying is bound by the act.

The *four* requisites of a valid ratification are:

1. The act should be done on behalf of the other person.
2. The person who ratifies the act must do so with full knowledge of its tortious nature.
3. Ratification can take place only when the person ratifying could himself have done that act.
4. An act which is illegal and void *cannot* be ratified.

MASTER AND SERVANT

The liability of a master for the wrongful acts and omissions of his servant is based on two legal principles, *viz.,*-

- (i) *Qui facit per alium, facit per se* : He who does an act through another, does it himself.
- (ii) *Respondeat superior* : Let the superior be responsible.

Master's liability to third persons

A master is liable for the torts committed by his servant in the course of his employment in the following six ways:

1. The wrong may be the natural consequence of something done by the servant with ordinary care in executing the master's specific orders.
2. The wrong may be due to the servant's want of care or negligence in carrying out the work for which he is employed.
3. The servant's wrong may consist of excess or mistaken execution of a lawful authority.
4. The servant's wrong may be a willful wrong, done on his master's behalf and with the intention of serving his purpose.
5. The wrong may be due to the servant's fraudulent act.
6. The wrong may be due to the servant's criminal act.

However, a master is *not* liable for the torts of his servant -

1. when he has temporarily lent his servant to another person;
2. when he is obliged by law to employ a particular person, as for instance, a compulsory pilot;
3. when the relation between the parties is that of a head of a Government department and an employee in that department.

Liability of master to the servant

At Common law

At common law, a master is *not* liable to the servant for injuries received from any risk which is ordinary or incidental to the employment. In such cases, the maxim, *Volenti non fit injuria*, applies.

However, the Common Law imposes the following *four* duties on a master:

1. He must provide proper and competent fellow-servants.
2. He must *not* be guilty of personal negligence.
3. He should provide proper appliances and maintain them in a proper condition.
4. He must take all reasonable precautions to secure the safety of his servants.

Under the Workmen's Compensation Act

Under the Workmen's Compensation Act, a master is liable to pay compensation to his workman for accidental injuries and death arising in the course of the employment. This

obligation to compensate is independent of any negligence on the part of the employee himself or his fellow-servants.

The Doctrine of Common Employment

Prior to 1948, a master was *not* responsible or liable for negligent harm to his servant by another servant engaged in common employment with him. In order to successfully plead this defence, the master had to show:

- (a) That the servant who was injured as well as the servant causing such injury were in the service of the same employer.
- (b) The injured servant was engaged in a common employment in the sense that the safety of one servant would, in the ordinary and natural course of things, depend on the care and skill of the other servants.

However, *after 1948*, this defence of common employment has been taken away by the Law Reform (Personal Injuries) Act, 1948. Under this Act, it is no defence to an employer to contend that he is not liable because the injury was caused by the negligence of a fellow-employee. Any contract between the master and his servant, which excludes the master's liability on the ground of common employment is also declared to be void.

Servant's liability to the master

A servant is liable to his master for the consequence of his wrongful acts and omissions. If a third party recovers damages from the master for the servant's negligence, the master can recover such damages from the servant.

OWNER AND INDEPENDENT CONTRACTOR

The general rule is that an employer is *not* liable for the acts and omissions of an independent contractor, except in the following *eight* cases:

1. Where the thing contracted to be done is itself unlawful.
2. Where the employer retains control over the independent contractor.
3. Where there is a legal duty on the employer to carry out a particular work efficiently.
4. Where the work agreed to be done is likely to damage the property of another person, unless preventive measures are taken, and such measures are *not*, in fact, taken.
5. If there is an implied warranty of the employer.
6. If an incompetent contractor is employed.
7. If the employer is liable for a wrong of absolute liability.
8. Under the provisions of the Workmen's Compensation Act.

PRINCIPAL AND AGENT

A principal is liable for the wrongful acts of his agent-

- (a) If the act is committed by the agent in the course of his employment - although it may *not* be authorised by the principal.
- (b) If the fact is beyond the scope of agency, but has been authorised by the principal or has been subsequently ratified by him.

COMPANY AND ITS DIRECTORS

A company is liable for the torts of their servants in the course of their employment, | However, this liability attaches to *intra vires* (and *not ultra vires*) acts.

FIRM AND ITS PARTNERS

Every partner is liable to third parties for the negligence or fraud of his fellow-partner committed in the ordinary course of the partnership business.

GUARDIAN AND WARD

A guardian is *not* personally liable for a tort committed by his (minor) ward.

LIABILITY BY ABETMENT

A person who procures another to commit a tort is himself liable for the consequences,-

- (i) if he knowingly induces such person to commit the tort; or
- (ii) if the person inducing the act uses illegal means against a third party; or

(iii) if he procures a breach of contract between two other persons by illegal means or with a malicious intent.

REMEDIES AVAILABLE IN CASE OF TORTS

JUDICIAL REMEDIES

The *three* main judicial remedies (*i.e.* remedies granted by the court) in respect of a tort are the following:

1. Damages

General damage is the damage which is presumed by the law to flow from the tort. *Special damage*, on the other hand, is the actual damage or loss suffered by that party in that particular case.

The law requires special damage to be proved in suits for:

1. Seduction
2. Slander
3. Deceit
4. Conspiracy
5. Waste
6. *Distress damage feasant*
7. Nuisance consisting of damage to property.

As a man is presumed to intend only the natural and normal, and *not* the remote, consequences of his act, remote damages will *not* be granted. A man *cannot* be made liable for all possible consequences of his wrongful act, however remote such consequences may be. *In jure non remota causa sed proxima spectator*: In law, the immediate and proximate, and *not* the remote, cause must be considered.

According to one view, consequences of an act can be said to be remote if a reasonable person could *not* have foreseen them.

According to the other view, once a person is liable for a tort, he is liable for all its direct consequences, whether a reasonable person could have foreseen them or *not*.

Generally speaking, damages will be said to be remote in the following *four* cases:

- (a) Where the damage is neither the necessary nor the probable result of the defendant's act.
- (b) Where the damage is caused, wholly or mainly, by the act of the plaintiff himself.
- (c) Where the damage occurred due to the wrongful act of a third party, and *not* the defendant (*novus actus*).
- (d) Where the damage is partly caused by a third person, the defendant will be liable only if it is found that his negligence was the effective cause of the accident.

Damages are of the following *four* kinds:

1. *Contemptuous (or ignominious) damages* - where technically, there is a wrong, but the court is of the view that, in the circumstances, no suit should have been filed.
2. *Nominal damages* - which are awarded *not* by way of compensation, but by way of recognition of a legal right of the plaintiff.
3. *Substantial damages* - which are awarded to compensate the plaintiff for the loss or damage suffered on account of the tort. (This is the commonest form of damages.)
4. *Exemplary damages* (also known as *vindictive, punitive, or retributive damages*) - where a large sum of money is awarded by the court on account of the aggravating circumstances accompanying the tort, as for instance, when defamation is committed on account of sheer spite or jealousy.

Damages can also be recovered for any illness caused by nervous shock although there may be no physical impact or physical injury.

Formerly, no damages could be recovered for mental shock, *i.e.* for mere mental pain or sorrow or any injury to feelings and emotions. However, the current trend of judicial decisions is that such damages can be granted by the court.

2. Injunction

In an appropriate case, the defendant can be enjoined (*i.e.* restrained) from doing, continuing or repeating his wrongful act.

An injunction may be *mandatory* (*i.e.* requiring a person to do a particular thing), or *prohibitive* (*i.e.* prohibiting him from doing such a thing).

An injunction is called interim (or temporary) when it is only for a particular period of time; it is called a permanent injunction when it is to **operate for all time to come**.

In India, permanent injunctions are governed by the Specific Relief Act and temporary injunctions by the Code of Civil Procedure.

3. Specific restitution of property

When the plaintiff has been wrongly dispossessed of his land or goods, the court can order the defendant to return such property to him.

EXTRA - JUDICIAL REMEDIES

Extra-judicial remedies are those which the injured party can himself adopt to redress the wrong, without going to a court of law, as for instance, the following:

1. Self defence
2. Expulsion and re-entry
3. Re-capture
4. Abatement of nuisance
5. *Distress damage feasant*.

JOINT TORT-FEASORS

When several persons join in committing a tort, they are called joint tort-feasors.

Circumstances under which joint liability arises

The *three* circumstances under which joint liability arises are:

1. Agency
2. Vicarious liability
3. Joint (or common) action.

Nature of joint tort-feasors' liability

The following three principles are to be noted in this connection:

- (a) The liability is joint and several; in other words, each person can be made liable for the whole damage.
- (b) A release of one of the tort-feasors releases all the others too.
- (c) A judgment obtained against one joint tort-feasor operates as a bar to any suit against the other (or others).

Contribution between joint tort-feasors

At common law, there was *no contribution* among joint tort-feasors. So, if one of them was forced to pay the whole amount, he could *not* claim a proportionate share from the others. This rule was known as the rule in *Merryweather v. Nixon*.

There were, however, the following *five exceptions* to the above rule:

1. Cases of negligence or unintentional breach of the law
2. Cases of indemnity
3. Cases where one person induced another to do the act
4. Admiralty actions involving collision of ships
5. In the case of directors or promoters of a company, in connection with misrepresentation in the Prospectus.

In 1935, however, the rule in *Merryweather v. Nixon* was abolished by the Law Reform (Married Women and Tort-Ffeasors) Act, 1935.

ASSAULT

Definition

An assault is the unlawful laying of hands on another, or an attempt to do a corporeal hurt to

another, coupled with present ability and intention to do the act. Assault is also a criminal offence under S. 531 of the Indian Penal Code.

Ingredients

To succeed in an action for assault, the plaintiff must prove—

- (a) That there was some gesture or preparation which constituted a threat of force;
- (b) That such gesture or preparation was such as to cause a reasonable apprehension of force; and
- (c) That there was a present ability on the defendant's part to carry out his threat immediately.

BATTERY

Definition

Battery is the actual striking of another person, or touching him in a rude, angry or insolent manner. Battery is also a *criminal offence* under S. 350 of the Indian Penal Code.

Ingredients

To succeed in an action for battery, the plaintiff must prove—

- (a) That force was used against his body directly, or by bringing an object in contact with his body; and
- (b) That the use of such force was intentional.

Difference between assault and battery

The main difference between the two is that physical contact is an ingredient of battery, whereas mere fear of physical violence is enough to constitute assault.

Battery would include assault; but assault does not necessarily involve battery. Assault is sometimes described as “inchoate battery”.

Defences

The following *eight* defences are available for battery as well as for assault:

1. Self-defence

Assaulting another to defend oneself (or one's spouse, children, *etc.*) is permissible. In such cases, the defence of “*son assault demesne*” (i.e. that the act complained of was the result of the plaintiffs own attack) is always available.

2. Defence of one's property

Likewise, if the plaintiff had entered the defendant's house with force or violence, the defendant would be justified in “assaulting” the plaintiff to defend his own property.

3. To prevent a forcible entry or seizure

The rightful owner can always use force to repossess himself of his land or goods or to prevent forcible entry into his premises.

4. Exercise of parental or quasi-parental authority

Reasonable force may be used for the chastisement or correction of a child, pupil or apprentice.

5. Leave and license

When a man has exposed himself voluntarily to some harm (as for instance, in a boxing bout) he *cannot* complain of assault.

6. Preservation of public peace

A person who disturbs a public meeting or a public worship may be removed physically, using reasonable force.

7. Legal process

An assault may be justified on the ground that it was committed in serving any legal process, as for instance, a search warrant.

8. Misadventure (Inevitable accident)

Inevitable accident is a good defence against a charge of assault or battery in cases where the act is lawful in itself, and is done in a reasonable manner.

MAYHEM

Definition

Mayhem (or “maim”) is said to be committed when a person is deprived of a *fighting limb*, as in the case of loss of a finger, hand or teeth. However, cutting off the nose or ears would amount to disfigurement, but *not* the loss of a fighting limb. It would, therefore, *not* be mayhem.

FALSE IMPRISONMENT

Definition

False imprisonment is the total restraint of liberty of a person, for however short a time, without lawful justification. It is the infliction of bodily restraint which is *not* authorised by law.

According to *Winfield*, false imprisonment is the infliction of bodily restraint which is not expressly or impliedly authorised by law.

Ingredients

In order to succeed in an action for false imprisonment, the plaintiff must prove:

- (a) That he was completely deprived of his liberty; and
- (b) That such detention was unlawful.

Defences

In order to successfully do such an action, the defendant must show:

- (i) that he acted under a lawful warrant; or
- (ii) that his act was justified even without a warrant.

DEFAMATION

Defamation is a tort affecting a man's reputation. It is called *libel*, when it is in a permanent form, and a *slander*, when it is in a transitory form.

Libel -

A *libel* is a publication of a false and defamatory statement, in some permanent form, tending to injure the reputation of another person, without lawful justification or excuse.

In order to succeed in an action for libel, the following *three conditions* must be satisfied:

- 1. The statement must be false.
- 2. It must be in a permanent form.
- 3. It must be defamatory, *i.e.* it must:
 - (a) expose the plaintiff to hatred, contempt, ridicule or obloquy; or
 - (b) tend to injure him in his profession or trade; or
 - (c) cause him to be shunned or avoided by his neighbours.

Libel is always *actionable per se*, *i.e.* without proof of actual damages.

Slander

Slander is a false and defamatory verbal or oral statement in a transitory form, which tends to injure the reputation of another person, without lawful justification or excuse.

The following are the *six ingredients* of slander:

- 1. The statement must be defamatory (- See above -)
- 2. It must be false.
- 3. It must refer to the plaintiff.
- 4. It must be published.
- 5. It must be published by the defendant.
- 6. There must be special, *i.e.* actual damage, to the plaintiff, except in the following *five cases*, *viz-*
 - (a) When there is an accusation of a criminal offence.
 - (b) When there is an accusation of a virulent disease.
 - (c) When there is imputation against an office, profession or trade.
 - (d) When there is imputation of unchastity in a girl or woman.
 - (e) When there is an aspersion on the caste of a person.

Libel and slander distinguished

Libel	Slander
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1. Defamation in a written form.	1. Defamation in an oral form.
2. It is in a permanent form.	2. It is in a transitory form.
3. In England, libel is a tort as well as a crime	3. In England, slander is a tort, but not a crime
4. Libel is actionable <i>per se</i> (i.e. without proof of actual damage).	4. Slander is <i>not</i> actionable <i>per se</i> , except in five cases (above).
5. Libel raises a suggestion of malice.	5. Slander may be uttered in the heat of the moment.
6. The publisher of a libel may <i>not</i> be liable.	6. The publisher of a slander is always liable.
7. In England, a suit for libel gets time-barred after 6 years.	7. In England, a suit for slander gets time-barred after 2 years.

Innuendo

Sometimes, words which may not be defamatory *per se* may convey a defamatory meaning in the circumstances or the background in which they are used. If a plaintiff alleges that a statement which appears to be *prima facie* innocent nevertheless does have a defamatory significance, he must prove an innuendo, that is, he must demonstrate the libellous content of the apparently innocent statement.

Defences

The *three* defences available to a defendant in an action for defamation are:

1. Justification or truth.

It is a complete defence to show that the words which are complained of are true in substance and in fact. The law does not permit a person to recover damages for an apparent injury to his character which he does not, or ought not to possess.

2. Fair and *bona fide* comment.

A fair and bona fide comment on a matter of public importance does not attract any liability, however severe it may be, unless such a comment is made intemperately or maliciously.

4. Privilege, which is of two types:

A. **Absolute:**

- (a) Parliamentary proceedings
- (b) Judicial proceedings
- (c) Military and naval proceedings
- (d) State proceedings.

B. **Qualified:**

- (a) Statement made in performance of duty
- (b) Statement made in protection of common interest
- (c) Fair and accurate reports

Absolute and qualified privilege distinguished

Absolute privilege	Qualified privilege
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1. Absolute privilege is <i>not</i> affected by express malice.	1. Qualified privilege can be rebutted by proof of express malice.
2. In absolute privilege, once the occasion is shown to be privileged, every communication is protected.	2. In qualified privilege, the interest or duty must be shown to exist in making the communication.
3. In absolute privilege, the person is exempt from inquiry.	3. In qualified privilege, the person is <i>not</i> altogether exempt from inquiry.
4. Absolute privilege is protected in all cases, independently of good or bad faith.	4. Qualified privilege is rebuttable by proof of express malice.

Aggravating and mitigating circumstances

Circumstances which are considered *aggravating*, i.e. where damages will be greater, are:

- Malice
- Gross recklessness
- Violence of language
- Neglect to retract or apologise, *etc.*

The following circumstances *mitigate* the damages:

- Absence of malice or gross negligence
- Innocent repetition of a libel
- Provocation by the plaintiff himself
- Apology by the defendant, *etc.*

TORTS TO MARITAL RIGHTS

Torts to marital rights are:

1. Abduction (or taking away a man's wife)
2. Adultery
3. Causing physical injuries to a man's wife.

TORTS TO A PARENTAL RIGHTS

In the case of female servants, the employer can sue for seduction, i.e. the debauching of the servant. In the case of female children, such a right rests with the father or the guardian.

To support an action for seduction of a child or servant, the plaintiff must show:

- (a) Proof of actual service of some kind, (however slight) at the date of seduction.
- (b) That the child (or servant) was rendered ill and incapable of rendering service in consequence of the seduction.

TORTS TO A MASTER'S RIGHTS

At common law, a master can sue any person who deprives him of the services of his servant by -

- (i) injuring or imprisoning the servant; or
- (ii) inducing the servant to leave the master's service wrongfully.

In order to sue for seduction of a female servant, it must be proved -

- (a) that contractual service of some kind was rendered by the servant at the time of the seduction;
- (b) that the servant was incapacitated from rendering such service in consequence of the seduction; *and*
- (c) that the plaintiff suffered special damage by reason of the injury inflicted on the servant.

WRONGS AFFECTING STATUS

Wrongs affecting status are of *four* types:

1. Expulsion from membership of a club or association.
2. Expulsion from caste.
3. Invasion of right to an exclusive office or title.
4. Exclusion from worship.

TORTS RELATING TO IMMOVABLE PROPERTY

Trespass

Trespass to land is an unwarranted entry upon the land of another, or any direct and immediate act of interference with the possession of such land. It is *actionable per se*, i.e. without proof of actual damage. It is a continuing wrong, which gives rise to actions *de die in diem*, i.e. from day to day.

Trespass to land can be committed in any of the following *three ways*:

- (a) Trespass by wrongful entry.
- (b) Trespass by remaining on the land (after lawful entry).
- (c) Trespass by placing things on another's land.

To succeed in an action for trespass, the plaintiff must prove:

- (a) that he was in actual and affective possession of the land at the time of the trespass; and
- (b) that there was a direct interference with the possession of his land.

In the case of a trespass, the following *remedies* are available to the plaintiff :

1. He can sue the wrong-doer.
2. He can forcibly defend his possession, or forcibly eject the trespasser.

The following *nine* defences are available to a defendant who is sued for trespass:

1. Prescription
2. Leave and licence
3. Authority of law, as for instance, -
 - (a) Execution of legal process
 - (b) Distress
 - (c) *Distress damage feasant*
4. Act of public authority
5. Self-defence
6. Re-entry on land
7. Re-taking of goods or chattels (re-capture)
8. Abatement of nuisance
9. Special property or easement.

Trespass *ab initio*

When a person enters the land of another under an authority of law, but is subsequently guilty of an abuse of such authority by an act of malfeasance, he is liable in damages for trespass *ab initio*. In such cases, the authority is *not only* terminated, but is treated by law *as if* it never existed.

The following *two conditions* must be satisfied in order to sue for this tort:

1. The authority which is abused must be given by the law, *not* by an individual.
2. The subsequent abuse of authority must be by a positive act of misfeasance, and *not* by mere omission or non-feasance.

Dispossession

Dispossession (or ouster) is wrongfully taking possession of land from its rightful owner. In such cases, the injured person can bring a suit of ejectment to recover possession of his land.

The defences available to the defendant in such cases are:

- (a) That the defendant has a better title than the plaintiff.
- (b) That the defendant acquired a good title by prescription, i.e. by holding the property for 12 years or more.

Waste

When a person who is entitled to remain in possession of property does unlawful damage to it, to the detriment of the reversionary interest of the owner, he is said to commit waste.

Waste is of two types:

- (a) Voluntary waste.
- (b) Permissive waste.

Damage to natural rights and easements

A person has the right, not only to remain in possession of his immovable property, but also to enjoy such property, which rights may be classified as follows:

1. Right to support
2. Right to water
3. Right to light
4. Right to air
5. Right to way
6. Right of privacy
7. Right of prospect
8. Right of common
9. Profits-a-prendre.

NUISANCE

Definition

Nuisance is anything done to the hurt or annoyance to the lands, tenements or hereditaments of another person, and *not* amounting to trespass. It is of *two kinds* : public nuisance and private nuisance.

Public nuisance

Public nuisance is an act or omission which causes any common injury or annoyance to the public.

In *England*, the Attorney General, and in *India*, the Advocate General in a Presidency town (and the Collector, outside such towns) can sue in respect of a public nuisance.

A private individual can also sue for a public nuisance, provided the following *three conditions* are fulfilled:

1. The plaintiff must prove that he has suffered a particular injury himself, beyond that suffered by rest of the public.
2. Such injury must be direct, and *not* merely consequential.
3. Such injury must be of a substantial nature; it must *not* be fleeting or evanescent.

Private nuisance

A private nuisance is an unauthorised use of a man's own property, causing damage to the property of another, but *not* amounting to trespass. Such nuisance falls under two broad heads:

- (a) Those causing damage to property; and
- (b) Those causing physical discomfort.

Remedies

The following three remedies are available in case of a nuisance :

1. Abatement of the nuisance
2. Damages
3. Injunction

Public and private nuisance distinguished

Public nuisance	Private nuisance
1. It affects the public at large.	1. It affects an individual.

2. An individual <i>cannot</i> generally sue in his own name (except if the three conditions above) are satisfied.	2. An individual can sue for a private nuisance
3. No length of time can legitimise a public nuisance.	3. A right to create a private nuisance may be acquired by prescription.
4. A public nuisance <i>cannot</i> be abated by the <i>injured</i> person.	4. The injured person can abate a private nuisance.
5. The normal remedy for a public nuisance is a suit for declaration and injunction.	5. The normal remedy for a private nuisance is a suit for damages

Defences

The *three* defences available in a suit for nuisance are:

1. Grant
2. Prescription
3. Statutory authority.

TORTS RELATING TO MOVABLE PROPERTY

Trespass to goods

Trespass to goods consists of the actual taking of, or direct and immediate damage to, the goods of another person.

The tort assumes one of the following *two* forms:

1. Taking a thing away from the plaintiff's possession (asportation).
2. Direct application of force.

To succeed in an action for trespass to goods, the plaintiff must prove:

- (a) That he was in possession, actual or constructive, of the goods; and
- (b) That his possession was wrongfully disturbed.

In England, the forms of action for recovering goods are:

1. Replevin
2. Trover
3. Retinue.

The following *six* defences are available in an action for trespass to goods:

1. Self-defence (or defence of property)
2. Exercise of one's own rights
3. Obedience to a legal authority
4. Negligent or wrongful act of the plaintiff himself
5. Re-capture
6. *Jus tertii* (right of a third person).

Trespass *ab initio*

When a person lawfully takes a chattel, but subsequently abuses or wastes it, he becomes a trespasser *ab initio*. In such an action, the plaintiff must show:

- (a) that he was in possession of the goods; and
- (b) that his possession was wrongfully disturbed by the defendant

Detention (Detinue)

Detention (or detinue) is the adverse withholding of the goods of another person.

Conversion (Trover)

The tort of conversion (or trover) consists of the wrongful taking or using or destroying goods, or exercising dominion over them, inconsistent with the title of the owner. The tort of conversion is committed:

1. When the property is wrongfully *taken*.

2. When the property is wrongfully *parted with*.
3. When the property is wrongfully *sold*.
4. When the property is wrongfully *detained*.
5. When the property is wrongfully *destroyed*.
6. When there is *denial of the lawful owner's right*.

The following *three remedies* are available to a person whose goods are wrongfully converted:

- (a) Recaption
- (b) Obtaining an order for restoration of property
- (c) Suit for damages.

The following *five defences* are open to a defendant in a suit for conversion:

1. Lien
2. Right of stoppage in transit
3. Denial of the plaintiff's right to property
4. Sale in market overt
5. Distress

NEGLIGENCE

Negligence is the breach of a duty, caused by the omission to do something which a reasonable man would do, or doing something which a prudent and reasonable man would *not* do.

The standard by which one can determine whether a person is guilty of negligence is *the conduct of a prudent man* in the particular situation.

In a suit for negligence, the plaintiff must prove the following *five things*:

1. That the defendant was under a legal duty to exercise due care and skill.
2. That such duty was towards the plaintiff.
3. That the defendant failed to perform that duty.
4. That the breach of duty was the direct and proximate cause (*causa causans*) of the damage complained of.
5. That the damage was caused on account of this breach of legal duty.

Res ipsa loquitur

The general rule that the plaintiff must affirmatively prove the defendant's negligence is relaxed in cases where the plaintiff can prove the accident, but *cannot* show how it happened, as that is solely within the defendant's knowledge. In such cases, it is enough if the plaintiff proves only the accident (and nothing more), as there would be a presumption of negligence under the maxim, *Res ipsa loquitur*, i.e. the thing speaks for itself.

Defences

The following *three defences* are open to a defendant when he is sued for negligence:

1. *Vis major*

Vis major is an act of God. It is a sudden, direct, violent and irresistible act of nature, which could not be foreseen, or even if foreseen, could *not* be prevented, e.g. storm, tempest, etc.

2. *Inevitable accident*

An inevitable accident, i.e. an accident which could *not* be prevented by the defendant, is also a good defence in cases of negligence.

3. *Contributory negligence of the plaintiff*

Contributory negligence is negligence of the plaintiff is *not* avoiding the consequence arising from the defendant's negligence, when means and opportunity were there to do so.

The *three principles of contributory negligence* are:

- (a) If the immediate and proximate cause of the damage is the negligence of the plaintiff himself, and but for such negligence, the damage would not have been suffered, the plaintiff will not succeed.
- (b) The plaintiff *cannot* succeed if it was last in his power to avert the disaster, and he failed to

do so.

- (c) If there is as much want of reasonable care on the part of the plaintiff, as on the part of the defendant, the plaintiff will not succeed.

Contributory negligence is, however, *not* a good defence in the following cases:

1. Where rightful acts are assumed.
2. Where the defendant had a later opportunity of avoiding the accident.
3. Under the doctrine of alternative danger.
4. Under maritime law.
5. When the contributory negligence is that of a child.

In England, the Law Reform (Contributory Negligence) Act, 1945, provides that if the plaintiff suffers injury partly due to his own fault, and partly due to the fault of the defendant, he is *not* totally disentitled from recovering damages (as was the position at common law), but the damages to be recovered would be reduced to such extent as the court thinks just and equitable.

MALICIOUS ABUSE OF LEGAL PROCESS

Malicious criminal prosecution

Malicious criminal prosecution involves the institution against an innocent person, of unsuccessful criminal or bankruptcy proceedings, without reasonable and probable cause and in a malicious spirit.

To succeed in an action for this tort, the plaintiff has to prove:

1. That he was prosecuted by the defendant on a criminal charge or in bankruptcy proceedings.
2. That such proceedings terminated in favour of the plaintiff.
3. That, in so prosecuting, the defendant acted without reasonable and probable cause.
4. That such prosecution was instituted with a malicious intent.
5. That the plaintiff suffered damage as a result of such proceedings.

Malicious civil proceedings

Normally, no damages can be recovered for malicious civil proceedings, except in the following *three* cases:

- (a) When bankruptcy proceedings are commenced against a person, and ultimately, such proceedings are dismissed.
- (b) When lunacy proceedings are instituted against a person maliciously and without reasonable cause.
- (c) When an application is made for winding up a company maliciously and without reasonable cause.

Malicious arrest

To succeed in recovering damages for malicious arrest, the plaintiff must prove:

1. That in the original action (i.e. the one in which the injury arose) was decided in his favour.
2. That the arrest was procured maliciously and without reasonable and probable cause.
3. That the damage or injury sustained was something other than an injury that has been compensated for by an award of the costs of the suit.

Maintenance and champerty

Maintenance is the officious intermeddling in a suit by supporting it with money, or otherwise, by a person who is *not* a party to the suit, and who has no interest in such suits. When such a person further bargains for a share of the result of the suit, it is called champerty.

The English law of champerty and maintenance is *not* followed in India. Such agreements are hit only if they are shown to be against public policy.

TORTS OF INJURIOUS FALSEHOOD

Fraud (or deceit)

Fraud is the false representation of a fact, made with the knowledge of its falsehood, or without belief in its truth, or a reckless statement, whether it is true or false, with intent to induce a person to act in reliance upon it, with the result that the person acts on it, and suffers damage.

In order to succeed in an action for fraud or deceit, the plaintiff must prove:

1. That a false representation was made by the defendant.
2. That the defendant either knew that it was false, or made it without belief in its truth, or made it recklessly. (So, if the defendant honestly believed in truth of that (false) statement, the plaintiff will *not* succeed.)
3. That the plaintiff acted upon it.
4. That the plaintiff suffered damage in consequence of acting upon it.

Slander of title

Slander of title is a false, malicious statement injurious to any person's title to property, and causing special damage to such a person.

To succeed in a suit for this tort, the plaintiff must prove:

- (a) That the statement was false.
- (b) That the statement was published.
- (c) That the statement was made *mala fide* and maliciously.
- (d) That the statement had the effect of defeating his title to property.
- (e) That special damage was suffered by him on account of such statement.

Slander of goods (Trade libel)

Slander of goods involves a false statement, disparaging a man's goods, published maliciously, and causing him special damage.

To maintain a suit for this tort, the plaintiff must prove:

1. That the defendant disparaged the plaintiff's goods.
2. That such disparagement was false.
3. That there was publication of such disparagement.
4. That the disparagement was made maliciously.
5. That special damage resulted thereby.

Passing off

Passing off consists of a false representation tending to deceive purchasers to believe that the goods which the defendant is selling are made by the plaintiff.

The plaintiff's remedy in such cases is to ask for an *injunction*. Additionally, he can claim either damages or the amount of profits made by the defendant on such goods.

This tort can be committed in respect of the plaintiff's -

- (a) trade-mark, or
- (b) trade-name, or
- (c) patent right, or
- (d) copyright.

WRONGS OF ABSOLUTE LIABILITY

In cases of wrongs of absolute liability, a person can become liable *without proof of any negligence* on his part. The wrong arises, in such cases, from the breach of an *absolute duty*, i.e. a duty which renders a person liable without any fault on his part, and irrespective of any intention or negligence on his part.

Escape of dangerous things

Everyone must so use his own property, so as *not* to do damage to another. *Sic uter tuo at alienum non laedas*.

For any *natural use* of his own property, its owner is *not liable*, unless he is negligent. But for any *non-natural use*, he becomes *liable*, even if he is not negligent. This is known as *the Rule in Rylands v. Fletcher*, which rule applies in India also.

However, there are *five exceptions* to this rule, as follows:

1. *Vis major* or act of God
2. Wrongful or malicious act of a stranger
3. Plaintiffs own fault

4. Common benefit
5. Statutory authority.

Escape of animals

In case of a dangerous and savage animal (*animal feroe nature*), he who keeps such an animal is bound to keep it under control. And if the animal escapes and hurts any person, the owner is liable in damages.

As regards animals which are *not* of a dangerous character (*animals monsuetoae naturoe*), the owner is liable for their trespass and consequent damage, but *not* for other injuries, unless the plaintiff proves that the owner had knowledge of the dangerous propensity of the animal.

Use of things which are naturally dangerous

A person is *not liable* for damage caused by domestic *fire*, provided it originated by accident and without negligence. But a person who lights *fire for non-domestic purposes* does so at his peril, and is *liable* for the damage caused by it.

Loaded fire-arms are very dangerous things, and a person dealing with the same is answerable for the damage caused by such arms, even *if* he had taken apparently sufficient precautions.

Likewise, persons are bound to use the greatest care in the use of *fire-works* and other explosive materials.

So also, persons dealing with *poisonous drugs* are bound to use more than ordinary care, to prevent any injury to the public.

Similarly, all persons dealing with gas must use the greatest amount of care, as it is an explosive and poisonous substance.

Persons who employ machinery must also provide reasonable safe machines and take proper and necessary precautions.

Dangerous premises

A person who enters the premises as of right, *e.g.* a court bailiff, is entitled to have the premises made safe for him, and *not* merely to be warned of the danger.

When a person enters the premises on an *express* or *implied invitation*, the occupier of the premises must warn such a person of the dangers known to him.

Generally, there is no duty of care towards a *trespasser*, as he enters wrongfully, and does so at his own risk. The occupier will be liable only if he inflicts any willful or deliberate harm on the trespasser. Even if the trespassers are children, the occupier's liability is only *not* to injure them intentionally or put dangerous traps for them.

As far as a *licensee* is concerned, the occupier -

- (a) must caution him against any known danger; and
- (b) must *not* alter the character of the place by placing any dangerous obstruction.

As regards a *passer-by*, *i.e.* a person who lawfully passes by the premises, the occupier must take reasonable care to guard against any injury to him.

The liability of an occupier is now codified in the *Occupier's Liability Act, 1957*.

Persons possessing skill

Directors of companies are required to show more than ordinary care and diligence towards the shareholders of the company.

An *inn-keeper* is bound to guard the goods of his guests with reasonable and proper diligence, but he does *not* insure the personal safety of his guests.

Solicitors are supposed to be skilled and knowledgeable, and a great degree of care is expected of them.

Bankers can become liable for paying forged cheques of their customers. But, if the forgery is due to the customer's neglect, the bank will *not* be liable.

A *common carrier* must carry the goods entrusted to him with utmost care. He will be answerable for all loss or damage, except if caused by an act of God, by the King's enemies or by

any defect which is inherent in the goods carried by him.

A *doctor* must exercise such care and skill as is becoming of one who belongs to this learned profession.

A *manufacturer of a food item* is under a legal duty to the ultimate purchaser to take reasonable care to ensure that the article is free from any defects likely to injure the consumer.

Defences

The following defences are available in an action for a wrong of absolute liability:

1. Plaintiffs contributory negligence
2. Plaintiff, a trespasser
3. Plaintiff undertook risk
4. Act of a third party
5. Act of God.

TORTS AFFECTING CONTRACTUAL AND BUSINESS RELATIONS

Procuring a breach of contract

It is a tort to induce a person to commit a breach of contract which the latter has entered into with another person.

To succeed in a suit for this tort, the plaintiff must prove:

- (a) That there was a valid and subsisting contract between himself and a third party; and
- (b) That the defendant procured a breach of that contract knowingly and unjustifiably.

Since damage is presumed to arise in such cases, there is *no need to prove special damage*.

Conspiracy

When two or more persons, without lawful justification, combine for the purpose of willfully causing damage to the plaintiff, and actual damage results therefrom, the tort of conspiracy is said to be committed.

This tort has the following *four ingredients*:

1. There must be a combination of two or more persons.
2. It must be without lawful justification.
3. It must be for the purpose of willfully causing damage to the plaintiff.
4. Actual damage must be shown.

TORTS FOUNDED ON CONTRACT

A tort can arise out of contract in *two ways*:

- (a) If a person who is under a contractual duty to do a particular act does that act negligently, thereby causing damage to the other party, the injured party can sue in tort.
- (b) If a party to a contract commits a fraud in performing his duty under a contract, and the other party suffers damage, the latter can sue in tort.

When the same set of facts show a breach of contract as well a tort, the injured party has a choice to sue in tort or in contract.

However, in the following *three* cases, there is a concurrent cause of action:

1. Cases where it is doubtful whether a contract has come into existence, although a tort has been committed.
2. Cases where *A* and *B* in tort, though the same facts can give a cause of action against *C* in contract.
3. Cases where *A* can sue *B* for a tort, though the act of *B* may be a breach of contract between *B* and *C*.